HISTORY

The History of Sulu

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THE HISTORY OF SULU

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PREFACE

The first object sought in the search for the Genealogy of Sulu was a knowledge of those significant historical events of Sulu which antedated the Spanish discovery and conquest of the Philippine Islands, the connection which those events might have had with the earlier history of the other islands and the light that they might throw upon the subject of prehistoric Malayan immigration to the Archipelago. The tarsila (genealogies) [1] of Mindanao show that events of considerable importance had occurred in the Archipelago, especially in the south, long before the Portuguese or the Spaniards reached Malaysia. Some tribes, such as the Samals, we were told, had emigrated from western Malaysia to the Sulu Archipelago and Mindanao, and indications were not wanting that probably other tribes, now inhabiting the Philippine Islands, came from the same place. Further, information was desired relative to the mohammedanization of Sulu and the possible connection that such a movement might have had with the introduction of Islam into Sumatra and Malacca.

The research so conducted was well rewarded. The history of Sulu was traced as far back as the early days of its oldest settlements, and the organization of the nation was followed back to the primitive communities out of which the Sulu nation has grown. Records of early Malayan expeditions and of communication between Sulu and Mindanao were traced to the earliest missionaries who reached these Islands by the way of Malacca, and through whom the sultanates of Mindanao and Sulu were organized on plans similar to those of Malacca and Palembang. A fuller account of the life history and work of these missionaries will be given in a later paper of this series. We here give only a narrative of the events in which they participated and the part they played in making the history of Sulu proper.

Many difficulties were encountered in the effort to secure an authentic copy of the Genealogy of Sulu. Several trips of 20 to 40 miles were made in small Moro sailing craft to visit datus who were said to have copies of this document. The Sulu authorities who had the manuscript or copies of it denied this fact from time to time, but after two years and a half of persistent endeavor and inquiry, the original manuscript was procured from the prime minister of the Sultan of Sulu, whose confidence was gained by a long period of intimate acquaintance and frequent communication. Soon after that, the Annals of Sulu (the Luntar) were obtained from the sultan and some facts of importance were learned and made use of in the course of this work. Diligent effort was further made to collect all interesting Sulu traditions and documents, and most of the best informed Sulus living were interviewed. Of these the author feels under special obligation to mention Sheikh Mustafa bin Ahmad, formerly prime minister to Sultan Harun; Hadji Butu, prime minister of the present Sultan of Sulu; Datu Pangiran; and Hadji Mohammed Tayib, one of the principal advisers of the present sultan.

After the first object sought had been gained, it became apparent that a general public interest in Sulu and Mindanao had been growing rapidly. It therefore seemed advisable to complete the history of Sulu up to the date of Spanish evacuation, for no such work has as yet been published in the English language. It is of special interest to Americans living in Mindanao and Sulu and of general interest to Americans and others elsewhere to have a better understanding of the Moros in general and to acquire some idea of the history of Islam in the Philippine Islands. This the history of Sulu makes possible for the reader in a most vivid and realistic manner. The history is written without prejudice or bias, and events are related as they appear in the light of facts, and by one capable of seeing things from the standpoint of a Sulu as well as of a Spaniard.

Nothing reveals the true character of a nation, its capabilities, tendencies, and resources, better than its history. There is no time when such general intimate knowledge of a people is more interesting and more needed than during the period of their regeneration, and there can be no time when the history of the Sulus will be more interesting than at present.

Besides the Moro sources above referred to, several authors in Spanish and English have been consulted and quoted with due credit. Special indebtedness must however be expressed to Col. Miguel S. Espina, author of "Apuntes sobre Jolo," whose admirable work has been our chief authority for the majority of the events which occurred after the Spanish invasion of Sulu in 1578. Espina saw considerable service in Sulu, was intimately acquainted with the Spanish administration of Sulu affairs, and most of his information was derived from official documents and other sources of equal authenticity. Most of the events relating to the late period of Spanish occupation of Sulu have been confirmed by personal investigation, and the Sulu view of every matter of significance has been studied and understood.

A chapter on the geography of the Archipelago is presented first to give a general idea of the geographical relations of the Archipelago of Sulu, the location of its various islands and settlements, and its commercial resources. Special attention has

been given to accurate spelling of names and the correct location of settlements and small islands. Unusual pains have been taken to get satisfactory maps of the Archipelago and Island of Sulu and sketches of the town of Jolo. These will help the reader and add interest to the succeeding chapters.

In the Appendixes will be seen reprints of various documents, reports, quotations and letters of direct and significant bearing on the history of Sulu and Mindanao. They are arranged in chronological order and are intended to complete the record and description of important events in Moro history so as to throw light on the actual conditions of life among the Moros, the political motives of the interested powers, and the real state of affairs in Mindanao at the time of the Spanish evacuation. The source from which each article is derived is given in connection therewith. A considerable number of quotations or chapters have been taken from "The Philippine Islands," by Blair and Robertson, for which special obligation is hereby expressed. Many of the official documents given could not be conveniently incorporated in the text of the history proper, and are herein published, probably for the first time. They include protocols, capitulations, official letters, decrees, and correspondence relative to Sulu obtained from the Division of Archives of the Philippine Islands. The originals of the copies can be seen in Spain in the Indies Archives.

Some liberty has been taken in correcting the spelling of geographical and other proper names in order to render the history uniform in its orthography and to avoid confusion and misconnection of events, persons, and places. The same system of orthography has been used here as that used and described in Part 1 of Volume IV, Ethnological Survey Publications. Diacritical signs to denote the long sounds of vowels have, however, been very rarely used. The Arabic "hamzat," occurring in Moro words has been expressed by an apostrophe; while an inverted apostrophe has been used to represent the Arabic sound or character "`ain," the eighteenth letter of the Arabic alphabet. Annotations which occur in the original documents have generally been indicated by letters, while those made by the author are denoted by figures.

Manila, January, 1907.

CHAPTER I

GEOGRAPHICAL DESCRIPTION OF THE SULU ARCHIPELAGO [2]

IN GENERAL

The Sulu Archipelago is a series of small volcanic islands which extends in a northeast and southwest direction between the meridians of 119° 10' and 122° 25' east, and the parallels of 4° 30' and 6° 50' north. It forms a continuous chain of islands, islets, and coral reefs, which connects the peninsula of Zamboanga with the northeastern extremity of Borneo and separates the Sulu Sea from the Celebes Sea. It marks the southern line of communication between the Philippine Islands and Borneo

and is probably the chief route of former emigrations and travel from Borneo to Mindanao and the southern Bisayan Islands.

The islands of the Archipelago are so disposed as to form several smaller groups, the most important of which are the following: The Basilan Group, the Balangingi or Samal Group, the Sulu Group, the Pangutaran Group, the Tapul or Siasi Group, and the Tawi-tawi Group.

The Basilan Group is the first on the north and includes the Island of Basilan and fifty-six small adjacent islands, all of which lie north of the parallel of 6° 15' north and east of the meridian of 121° 19' east. This group, under the name of Basilan, constituted the sixth district of the politico-military government of Mindanao, organized by the Spanish Government in 1861. Since that date the islands forming this group have not been recognized politically as a part of the Sulu Archipelago.

Basilan is the largest island in the Archipelago. Its northernmost point is about 10 miles directly south of Zamboanga. The island is more or less circular in outline and has a radius approximately 11 miles long. Its area is about 400 square miles. Two prominent headlands projecting, one on the east and one on the west, give the island a maximum length of 36 miles. The greatest width, north and south, is 24 miles. The eastern headland is long and has a picturesque, conical peak, called Mount Matangal, which rises about 648 meters above sea level. This peak is a very prominent landmark, visible to a great distance from all points in the Celebes Sea and in the Straits of Basilan. The western headland is less prominent. It has an isolated peak about 287 meters above the sea, immediately north of the settlement of Pangasa'an. The position of this peak makes it a conspicuous landmark to vessels entering the Straits of Basilan from the Sulu Sea.

The surface of the island is high and hilly. Twenty-three peaks are recognized, forming two distinct series or ranges, central and peripheral. The central region of the island is an elevated tableland, out of which rise a number of peaks forming the central series and ranging from 609 to 1,019 meters above sea level. A thick forest covers this region. The rivers are small and dry up in the dry season. Few Yakans are to be found there, and their houses are isolated and far apart. No cultivation is carried on in the interior. On the outside of this region rises the peripheral series of hills or peaks which lies parallel and near to the coast. With the exception of two, all of these peaks are below 304 meters in height. The drop from this line of hills to the coast is rapid in some places, and in general the shore line is low and swampy and covered with mangrove trees. The three largest valleys in the island are those of Gubawan or Lamitan on the northeast, Kumalarang on the northwest, and Malusu on the west. This region is generally considered fertile, but it has a marked dry season and droughts are not rare.

The island is very rich in timber; all its hills and mountains are forest-clad to their summits. Excellent boats are constructed on the south and west coasts of the island which rival the Tawi-tawi boats in every particular. A few Americans have started hemp and coconut plantations on the north coast, but native cultivation is not extensive and compares very poorly with that of the Islands of Sulu, Tapul, and Siasi.

Most of the cultivation on the island is carried on by Yakans, the Samals living chiefly on the products of the sea. The staple products of the soil are rice, tapioca, and corn. Ubi (a kind of tuber used as food), camotes (sweet potatoes), and wild fruits abound. The number of cattle is not inconsiderable, but horses are few. Most of the settlements on the island are on the sea coast and lie on the north and west coasts. The larger ones, beginning at Isabela and going east, are, on the north, Isabela, Patasan or Balaktasan, Malu'ung, Nipa, Lamitan, Tagima, and Kandi'is; on the east, Tambunan, Buhi-lubung, and Ubung; on the south, Amalwi, Giyung, and Mangal; on the west, Libuk, Kabkaban, Kanas, Malusu, and Pangasa'an; on the north, Bulansa, Atung-atung, Batanay, and Panigayan. [3] The prominent chiefs of the island live at Lamitan, Ubung, and Malusu, which form the principal centers of native power. The old name of Basilan was Tagima, so called after the name of the old settlement of Tagima mentioned above.

Isabela may be considered as the capital of Basilan. Its old name is Pasangan, which is still the name of the stream at the mouth of which it is built. The town is situated 4 miles inland, on the narrow channel which separates Basilan from the small island of Malamawi. The channel widens a little at this point and forms an excellent harbor. Under Spanish jurisdiction it was a naval station with a dry dock for gunboats. An aqueduct furnishes the town with fresh water brought from a small stream in the neighborhood. The stone fort Isabel II, built on the hill in 1842, commands both entrances of the channel. It was designed to defend the town against the Moros. The abandonment of the town as a naval station has led to its present decline. An American sawmill planted there has been the chief source of lumber supply for the town of Zamboanga and neighborhood.

The largest islands in this group, excepting Basilan, are Baluk-baluk and Pilas, both of which lie west of Basilan. A narrow channel which lies in the direct route leading from Zamboanga to Jolo separates these two islands. Tapiantana, Salupin, Bubwan, and Lanawan are the largest islands of the group south of Basilan.

The population of this whole group is generally estimated at 25,000. Of these, 15,000 live in Basilan itself. The inhabitants of Basilan proper are Yakans and Samals, while the adjacent islands are occupied entirely by Samals. The Yakans are the aborigines of Basilan and extend farther into the interior than the Samals.

Basilan never enjoyed political independence. Before Spanish rule it was governed by Sulu datus and paid tribute to the Sultan of Sulu. Under the datus, subordinate Samal panglimas [4] and maharajas [5] had charge of the various communities or settlements. The Samals of Basilan are at present stronger than other Samals and enjoy a greater degree of liberty and self-government than their brothers in the Tawi-tawi Group.

The Balangingi Group lies east of the meridian of 121° 28' east, and to the south of the Basilan Group. It has nineteen islands, the principal ones of which are Tonkil, Balangingi, Simisa, Tatalan, Bukutwa, Bulim, Bangalaw. The islands of this group are small and low and do not exceed 38 square miles in area. Their inhabitants are Samals. The people of Balangingi and Tonkil were notorious pirates. They built strong

forts and once surpassed all other Samals in power, political organization, and prosperity.

The Sulu Group lies west of the Balangingi Group and north of the parallel of 5° 46' north. Its western boundary may be sent at the meridian of 120° 46' east. It consists of about twenty-nine islands with a total area of 380 square miles. The principal island of this group is Sulu. To the north of Sulu lie Pangasinan, Marongas, Kabukan, Bubwan, Minis, Hegad, and a few others; to the east lie Tulayan, Kapwal, and Bitinan; to the south, Pata and Patyan.

Tulayan lies north of Tandu and is separated from it by a narrow strait. It has a good harbor on the southern side. It was ceded to the English in 1763 by Sultan Alimud Din I out of appreciation of the favor done in releasing him from prison in Manila and reinstating him as Sultan of Sulu. The English, however, never made any use of the island.

Pata is, next to Sulu, the largest island of the group. It is mountainous and well populated. The description of the Island of Sulu is given separately at the end of this chapter.

The Pangutaran Group lies west of the Sulu Group and north of the sixth parallel. It has fourteen islands and an area of 72 square miles. The principal members of the group are Pangutaran, Pandukan, North Ubian, Laparan, and Tababas or Cap. They are all low and flat with little more than trees visible from the sea. They are surrounded by coral reefs and sand banks, which in places form lagoons which can be entered only at high water. The drinking water in these islands is brackish in the hot season and has a black color during rains. Very often the people go as far as the Island of Sulu to get good water. Pangutaran is the fifth island in the Archipelago in size, being 11 miles long, north and south, and 8 miles wide, from east to west. Its chief settlement is Maglakub. Its northern and eastern coasts are the best populated. The inhabitants of this group are chiefly Samals; few Sulus are found mixed with them. Coconut trees and tapioca plants grow well in places.

The Siasi Group lies to the south and west of the Sulu Group, east of the meridian of 120° 33' east, and north of the parallel of 5° 24' north. It has thirty-eight islands with an aggregate area of 77 square miles. Its population is estimated at 20,000. The principal islands of this group are Siasi, Pandami, Lugus, Tapul, Laminusa, and Kabinga'an. The first four are volcanic islands of some size; the last two are low and flat. Tapul is the nearest island of the group to Sulu. It is more or less round in circumference and rises in the middle to a picturesque conical peak 505 meters above the sea. It is about 5 miles in diameter and is separated from Lugus by a very narrow channel. The island is 8 miles south of Sulu Island, is well cultivated, and appears very attractive from the sea. It supports a considerable population and has several fairly prosperous settlements. The people are mostly Sulus; they are very warlike and take great pride in their traditions.

The chief settlement of this island is Kanawi, where lives Sharif Alawi, the strongest chief on the island. Buhangin Hawpu, Pangpang, and Pagatpat lie on the southern coast, east of Kanawi. The settlements on the western coast are, beginning

at the south, Suba Pukul, Kawimpang, Tigbas, Banting, Kutabatu, Bagus; on the northern coast, Kawimpang, Pangdan; on the eastern coast, Sampunay, Tulakan.

Lugus is a larger island. Its long diameter extends 9 miles east and west, and it has an area of 18 square miles. It is hilly and rough; but the northern shore is fairly well cultivated.

The chief settlements are on the western coast. They are Basbas, where Datu Amilusin used to live, and Bulipungpung. On the north lie, beginning at the east, Gapas, Ba'it-ba'it, and Hawit, the place of Maharaja Sharafud Din; on the east Kalu'ukan, the residence of Panglima Salahud Din; and on the south Aluduyung, and the Island of Munupunu.

Siasi and Pandami are separated by a narrow channel which forms a good anchorage for vessels. Siasi is prettier than Tapul in form and is larger, but not equally wooded. It has an isolated, conical, and beautiful peak in the center rising to a height of 509 meters above sea level. The island is about 7 miles in diameter and has an area of 39 square miles. Reefs and numerous islets form a fringe off the east and south coasts and these teem with Samal houses. It is thickly settled, fairly well cultivated, and has, in proportion to its size, a considerable number of horses and cattle. The majority of the people are Samals, but the chief rulers and some of their retinues are Sulus. In this respect this island follows the general rule governing all the larger islands of the Archipelago outside of Sulu Island. The town of Siasi is on the western side. It lies on the Pandami Channel and has a good harbor. A spring rising at the base of the western slope of the mountain supplies the town with fresh water.

A detachment of Spanish troops occupied the town in 1882 and built a stone fort and barracks. American troops were there from 1900 to 1904, when they were relieved by a detachment of the Philippine Constabulary. An effort was made in 1899 by the present sultan, Jamalul Kiram II, to retain Siasi under his own jurisdiction for the establishment of a custom-house where he could collect duties on foreign goods, as was formerly done by his father; but no such rights were conceded to him. Siasi is a closed port at present. The residents of the town are Samals and Chinese traders. They vary from 500 to 700 in number. The other settlements on the island are, on the north, Siyundu, Pagatpat, and Manta; on the east, Pamungunan, Tanjun, Sipanding, and Bulikulul; on the south, Dugu, Latung, and Musu; on the west, Nipanipa, Jambanganan, Dungus, and Sablay; in the interior, Kabubu, Ju, and Kungatad. Siasi and Laminusa are important centers of pearl and shell fishing. About 2,000 Samals live on Laminusa.

Pandami is an attractive island. Its long diameter runs north and south. Two round peaks, one at each end of the island, give it the shape of a saddle and make a picturesque sight from the sea. The people are chiefly Samals ruled by Sulu datus. Its best settlements are on the west and south. The name given to this island on Spanish maps is Lapak, which is the name of one of its southern settlements. The northern extremity of the island is Diadia Point, the northeast projection is Butun Point. The chief settlements on the west are, beginning at the north, Subasuba, Tabunan,

Pari'an Pandami, Tubig-shina, Lahi, and Sibawud, which lies on a reef off the southern point of the island. On the east lie Ambilan, Bakal, and Lapak. Laminusa and Kabinga'an lie to the east of Siasi. They are small but thickly populated by Samals. The chief settlements of Laminusa are Tampan on the north and Kungkung on the south.

The Tawi-tawi Group lies to the south and west of the Tapul Group and extends as far west as the Sibutu Passage. This is the largest group in number and area, including eighty-eight islands with a combined area of 462 square miles. Its population is estimated at 25,000. These islands form two distinct divisions or subgroups, differing in both extent and population.

The first or northern division includes Bangao, Sangasanga, Tawi-tawi, Tandu-batu, and a large number of smaller islands, all of which are rough, volcanic, mountainous, and very sparsely populated. The second or southern division is a series of low, flat islands which are smaller in area but more thickly populated than those of the northern division. The principal names, beginning at the east, are the following: Kinapusan, Bintulan, Tabawan, South Ubian, Tandubas, Sikubun, Lata'an, Mantabwan, Banaran, Bilatan, Manuk-manka, and Simunul. Extensive reefs and narrow channels and shoals separate these islands from one another and from those of the northern division, rendering navigation between them impossible except in vessels of very light draft.

Bangao, Sanga-sanga, and Tawi-tawi are separated by very narrow channels and are practically one island. Bangao forms the southwest extremity and is substantially one solid rock which rises perpendicularly to a height of 228 meters. It is a conspicuous landmark to vessels going through the Sibutu Passage. The town of Bangao is a military station and an open port; it has an excellent landlocked harbor and a very poor water supply. The town has been occupied by troops since 1882, but it has never attained any size or importance.

Tawi-tawi Island is a continuous range of hills covered by thick and rich forests. The highest points in the range are the Dromedary peaks (591 meters) lying about the center of the island. The length of the island is about 34 miles and its greatest width 14 miles. It is next in size to the Island of Sulu, but it is very sparsely populated. Its chief settlements are Tungpatung, Balimbang, Lissum, and Bu'an on the south coast, and Tawi-tawi, Tata'an, Butung, Tumhubung, Tumbaga'an, Languyan, and Bas on the north. At Balimbang are built the best types of Sulu and Samal boats. Good timber abounds in the neighboring hills, and the little bay is transformed into a shipyard. The town used to be a famous rendezvous for Samal pirates. Tata'an had formerly a Spanish garrison; the present Moro town is a little distance to the south of the ruins of the fort and is called Butung. It is built on the hillside and commands a pretty view of the sea. It lies 100 miles east of Lahat Datu, East Borneo. The anchorage is deep and safe, being well protected by a large semicircle of reefs. A boa 30 feet long was killed on the island in 1903. Rubber and gutta-percha are found on this island. Tapioca and ubi are the staple products.

Sibutu lies in a little group of the same name, situated between the Tawi-tawi Group and Borneo and at a distance of about 15 miles from each. The Sibutu Passage separates it from Manuk-manka, the southernmost island of the Tawi-tawi Group, and the Alice Channel from Borneo. This island did not lie within the limits of the Philippine Islands as defined in the Treaty of Peace of December 10, 1898. It was ceded by Spain with Kagayan Sulu, by a separate treaty in November, 1900. Its close proximity to Borneo renders it a convenient stopping place for small Moro boats navigating between Borneo and Sulu. Sitanki, an island and town, is the trade center of this group, and has just lately been made an open port.

ISLAND OF SULU

GEOGRAPHICAL FEATURES

Sulu is an island of irregular shape and among the islands of the Archipelago is next in size to Basilan. Its longest diameter runs east and west and approximates 37 miles, while its average length does not exceed 32 miles. Its greatest width is 14 miles and its average width about 10 miles. The main structure of the island is volcanic, but it is surrounded with a coral reef formation, which is most extensive in the bays and on the south.

Two indentations of the northern shore at Jolo and Si'it and two corresponding indentations of the southern shore at Maymbung and Tu'tu', divide the island into three parts--western, middle, and eastern.

The Bay of Jolo is quite open and faces the northwest. It is very shallow near the shore and its head constitutes the roadstead of Jolo. The Bay of Maymbung is a deeper indentation, but it is narrower and shallower than the Bay of Jolo. The town of Maymbung lies at the head of the bay and is about 9 miles south of Jolo in a direct line.

The Bays of Si'it and Tu'tu' indent the island to such an extent as to leave only a neck of land, less than 4 miles wide, connecting the middle and eastern parts of the island. The settlement of Si'it lies at the head of the bay and in the immediate vicinity of a small lake of the same name. The shores of the Bay of Tu'tu' are marshy and are covered with mangrove trees. The bay is very shallow to a considerable distance from shore. Tu'tu' is the principal settlement near the head of the bay.

The backbone of the island is a mountain range which runs east and west and lies nearer to the northern shore. The highest point is Mount Tumangtangis, at the western extremity of the range. This mountain reaches a height of 853 meters above sea level and descends very rapidly to the western coast near Timahu. A spur of the mountain terminates in Point Pugut at the northwestern extremity of the island. [6]

Toward the east, the ridge descends to a much lower level at Bud Datu, Bud Agad, and Bud Pula, which lie immediately to the south of Jolo. It rises again in Mount Dahu to an altitude of 716 meters. Mount Dahu is a prominent landmark and forms the most picturesque landscape in the background of Jolo. It is a steep and conical extinct

volcano, similar to, but smaller and more regular in form than Mount Tumangtangis. East of Mount Dahu is another gap in which lies Tambang Pass. Beyond this the range rises again at Mount Tambang and continues uninterrupted to Mount Sinuma'an, at the extreme end of Lati, and Mount Bagshag. After Mount Bagshag the range descends gradually toward Su' and Si'it. The northern slopes of Mount Tumangtangis and Mount Dahu, and the crest of Bud Datu are covered with grand forests, while the crests and lower slopes of Bud Agad and Bud Pula are partly cultivated and partly covered with tall grass.

From the shores of the Bay of Jolo the land rises gradually and presents a beautiful green appearance. The northern aspect of this whole range and its beauty were appropriately described by Mr. Hunt, as follows:

There are few landscapes in the world that exhibit a more delightful appearance than the seacoasts of Sulu; the luxuriant variety of the enchanting hills exhibits a scenery hardly ever equaled and certainly never surpassed by the pencil of the artist. Some with majestic woods that wave their lofty heads to the very summits; others with rich pasturage delightfully verdant, with here and there patches burnt for cultivation, which form an agreeable contrast with enameled meads; others, again, exhibit cultivation to the mountain top, checkered with groves affording a grateful variety to the eye--in a word, it only requires the decorations of art and civilized life to form a terrestrial paradise. [7]

To the south of Bagshag [8] lies a small extinct volcano called Panamaw or Pandakan, whose crater is now a lake. East of Si'it rise the Lu'uk mountains of Urut, Upao, and Tayungan. From these the range extends to Bud Tandu at the eastern extremity of the island.

The highlands near the southern coast of the island divide into three separate regions. The first and westernmost lies west of Maymbung and forms the principal highlands of Parang. The highest points in this region are Mount Tukay, east of the town of Parang, and Mount Mabingkang, east of Tukay. To the east of Maymbung rise Mount Talipao and Mount Kumaputkut, which form the middle and second region. The third region is the southern part of the Lu'uk country. Its highest point is Mount Bulag, to the north of Tandu-Panu'an.

Between Mount Tukay and Mount Tumangtangis lies Bud Gapang. Midway between Mount Talipao and Bud Datu is Mount Kumuray, in the neighborhood of Langhub.

The largest streams on the island are Tubig Palag and Bina'an. The first is generally known as the Maymbung River. It passes through the settlement of Maymbung and empties into the head of the bay of the same name. It drains the southern slopes of Mounts Tumangtangis, Pula, Dahu, and Kumuray. The Bina'an stream drains the southern slopes of Mount Sinuma'an and the northern slopes of Mounts Talipao and Kumaputkut and empties into the Bay of Tu'tu'.

PRINCIPAL COAST SETTLEMENTS

Beginning at Jolo and going west along the northern coast we pass the following points of interest: The first is Point Baylam, the western limit of the Bay of Jolo. At the head of the small bay that follows lies the settlement of Matanda, where a Spanish blockhouse marks the western limit of the Jolo line of fortifications. Next comes Point Mangalis and the receding beach of Bwansa, the old capital of Sulu. Here and in the next bay, at Malimbay and Kansaya, Samal boats assemble in favorable weather for fishing. Back of these settlements the land rises rapidly to Mount Tumangtangis. A teak forest of considerable size lies between Tumangtangis and Jolo.

Outside of the wall of Jolo and to the east lies the settlement of Busbus, where criminals formerly were chopped to death after being tied to a tree. A mile beyond is Mubu, where the old residence of Sultan Harun stands out prominently. Copious springs of fresh water issue at this place at a point near the high-water mark. A mile farther east we come to Tandu (point or cape), where Datu Kalbi lives. This point is generally known as Tandu Dayang Ipil [9] and marks the eastern limit of the Bay of Jolo. The isolated hill of Patikul rises immediately behind Tandu. The settlement of Patikul lies still farther away on the beach. Here lives Datu Julkarnayn (Alexander the Great), the brother of Datu Kalbi. The beautiful region lying between Patikul and the mountains of Tambang and Sinuma'an is called Lati.

Buhanginan lies about midway between Patikul and Higasan. At the latter place or Tandu Manuk-manuk the shore line recedes toward the south. Opposite this point lies the Island of Bakungan. Next comes the larger settlement of Taglibi, above which rises Mount Ta'ung; then Bunbun, near a point which marks the western entrance into the Bay of Si'it. Midway between Bunbun and the head of the bay is Su', which may be said to mark the boundary line between Lati and Lu'uk. Si'it is a small settlement near the head of the bay. Beyond Si'it the shore line turns north until it reaches Kansipat. About 2 miles farther, a semicircular reef off the shore makes the excellent and well-protected small harbor of Bwal. A large spring of pure, fresh water adds to this place another natural advantage, one which gave it the prominence it had in former days. The entrance into the harbor is very shallow and allows only sailboats of light draft. The channel lies close to the shore on the west side. Opposite the Island of Tulayan lie Tandu-batu and a little farther inland Kuta Makis. Limawa lies about 3 miles farther on near a point opposite the Island of Buli Kuting. Behind this island and at the head of a shallow cove lies Patutul, the chief settlement of Tandu. East of Bud Tandu is Tandu Pansan, the easternmost point of the island. The eastern coast is exposed to storms and appears rocky and barren, though the hills behind it are well cultivated.

The first point on the southern coast is Tandu Panu'an, behind which lies the settlement of Sukuban. This marks the southern extremity of the boundary line between Tandu and Lu'uk. The country behind Kuta Sihi' and Pitugu appears rich and well tilled. The hills come down to the beach. Near the point at the eastern limit of Tu'tu' Bay lies Kambing. The neighboring country is rich and prosperous. It is governed by Maharaja Bayrula, one of the wisest and best chiefs of Sulu. West of Kambing lie Pandang-pandang, Tubu-manuk, and Tu'tu'. The shore is a continuous mangrove marsh, while the country behind is about the richest and best tilled land on

the whole island. The western side of Tu'tu' Bay has few places of importance. The country behind is picturesque and hilly, but not as well populated as other parts of the island. Lubuk, Kabungkul, and Lumapit are the chief settlements.

Beyond the point of Buhangin Puti', the shore line bends again north and the Bay of Maymbung begins. Here mangrove swamps are extensive and extend a good distance inland. The greater part of Maymbung is built on piles over the water. It is surrounded by swamps on all sides. After the tide recedes, strong odors arise from the muddy bottom to such an extraordinary degree as to render the atmosphere of the place very disagreeable and often unbearable to strangers. The center of the town is a small, open square of reclaimed land filled with coral rocks. Around this square were built the houses of Sultan Jamalul A`lam and his ministers of state. The present sultan lives on a hill about half a mile inland from the town. The square was probably the site of the Maymbung fort which was destroyed by General Arolas in 1887. Some Chinese traders live in the town and export hemp, pearls, pearl shells, etc., through Jolo. The population of the town and its immediate suburbs varies considerably, but it is generally estimated at 1,000. Beyond Maymbung the coast bends sharply to the south. In the immediate vicinity of Maymbung lies Bwalu. A mile west of this place begins the district of Parang. After Lipid and Lapa comes Kabali'an, the western limit of the Bay of Maymbung. The shore line then takes a more westerly direction. Passing Dandulit and Lakasan, we reach Tandu Put, where the western coast of the island begins. This southern region of Parang is well populated and is very pretty and productive. Cultivated areas are seen on the side of the mountains everywhere and they reach the very summit of Mount Tukay.

The town of Parang is one of the largest settlements on the island and has, at present, an estimated population of 1,000. It is situated at the head of a small open bay facing the southwest and commands a beautiful view of Tapul and Lugus and the intervening sheet of water. It is the capital of the district and has one of the best markets in the Archipelago for fish, shells, and pearls. The drinking water in this neighborhood is brackish.

An islet lies off the shore near Tandu Bunga. Beyond this point the shore line turns north to Bwisan, which is one of the most prosperous settlements in the district. Beyond Alu Pangku' the coast inclines a little east and runs to Silankan and Timahu. Extensive coconut groves and well-cultivated fields and fruit trees of various kinds abound all along the coast from Parang to Timahu.

DISTRICTS OF THE ISLAND

The districts of the island conform in a great measure to its natural divisions. However, political reasons have modified the natural boundaries and increased the districts to six by division. These districts are Parang, Pansul, Lati, Gi'tung, Lu'uk and Tandu. The first district on the west is Parang. A line joining the western limit of Bwalu on the south coast, with a point slightly east of the summit of Mount Tumantangis, and projected to the sea on the north, delimits this district on the east and carves out of the western natural division the district of Pansul. The eastern

boundary of Pansul is a line running from a point 2 or 3 miles east of Maymbung to Mount Pula and Busbus. The chief reason for separating Pansul from Parang was to reserve for the sultan direct control over Jolo and Maymbung. This district has more foreigners residing in it than any other.

A line joining Su' and Lubuk marks the eastern limit of both Lati and Gi'tung, the third and fourth districts. The watershed line joining the summits of Mounts Dahu, Tambang, and Sinuma'an and falling on the east to the vicinity of Su', divides Lati on the north from Gi'tung on the south. For all practical purposes the district of Lati may be said to lie between Jolo and Su', and the district of Gi'tung or Talipao between Maymbung and Tu'tu'. The land joining Si'it and Tu'tu' is low. Sulu traditions say that when the Samals arrived in the island this neck of land was submerged and the island was divided by a channel of water. The extinct volcano of Pandakan, generally spoken of as the "Crater Lake," which lies in this vicinity, may be of late origin and may have been the source of the geologic deposits which helped to fill the channel. Spanish records speak of a volcanic eruption in the vicinity of Jolo as late as 1840, and it is very likely that other volcanic action occurred prior to that date and after the arrival of the Samals in the fourteenth century.

A line joining Limawa on the north and Sukuban or Tandu Panu'an on the south, divides Lu'uk from Tandu, thus forming the fifth and sixth districts respectively. A line joining Mount Tayungan and Bud Tandu divides both Lu'uk and Tandu into a northern and a southern part. In both cases the southern parts are more fertile and better cultivated and probably more thickly populated than the northern.

The Sulus are principally agriculturists. The greater part of the people are farmers and a considerable portion of the interior of the island is under cultivation. They raise a good number of cattle, carabaos, and horses, which they utilize for tilling the soil and transporting its products. Trails cross the island in all directions and the interior is in easy communication with the sea. Fruits are good and abundant. The forests are rich in jungle products and in timber. Some copra and hemp is raised and the amount is being increased annually. The staples are tapioca, rice, and corn. Sugar cane is raised in small quantities. Ubi and taro are fairly abundant. Some coffee is produced, but disease destroyed most of the plantations. Some tobacco and vegetables are raised for home consumption only.

Jolo is one of the best fish markets in the Philippine Islands. The varieties of fish in Sulu waters are innumerable and of excellent quality. The Island of Sulu surpasses Mindanao in the quality and proportional amount of its fruit. There is an abundance of mangostins, durians, nangkas (jack-fruit), lançones, [10] marangs, [10] mangos of several varieties (mampalam, bawnu, and wanni), oranges, custard apples, pineapples, bananas, etc.

In the extent and quality of cultivation the district of Lu'uk ranks first, Parang second, and Lati third. Good fresh water abounds everywhere except on the western coast. Considerable irrigation is possible in many localities.

TOWN OF JOLO.

GENERAL PLAN, BUILDINGS AND STREETS

Jolo is the Spanish representation (or rather misrepresentation) of the word Sulu, sometimes written Sooloo. The early Spaniards wrote it "Xolo," which later changed to Joló. The complete form of the word is Sulug, as it is rendered in Magindanao. The Sulus pronounce it and write it Sug. Sug means a sea current. The flow of the tide through the innumerable narrow channels separating the numerous islands of the Archipelago gives rise to unusually strong currents which figure prominently in the seafaring life of the people. Therefore the term is an appropriate designation for the Archipelago as a whole.

The rulers of the island state have changed their capital four times. The most ancient capital was Maymbung, the second was Bwansa, which lies on the north coast of the island about 3 miles west of Jolo. Here ruled Raja Baginda and the first three sultans of Sulu. The fourth sultan moved to Sug, the third capital, and the town remained the capital of the sultanate until 1876, the date of the Spanish conquest and occupation. Sultan Jamalul A`lam then moved to Maymbung and the Spaniards occupied the town. Since then the term Jolo has become so intimately associated with it, that it is deemed preferable to use it as a name for the town, while the term Sulu, which is more correct and more commonly used, is retained in all other applications.

The town of Jolo has been so closely identified with the history of the sultanate as to claim considerable attention. The Spanish buildings and improvements were sufficiently extensive to obscure the ancient landmarks of the town and to render a complete and intelligent understanding of the early history and traditions of the place impracticable. A few words describing the location of Jolo, its ancient landmarks, and the Spanish improvements will therefore be of primary interest.

The town as it stands at present is divided into four distinct parts. The main or central part is Jolo proper or the "walled town." This is known to the Moros as Tiyangi Sug meaning the "shops or market of Sulu." The western half of this part bordering on Suba' Bawang formerly was termed Luway. The second part, called San Remondo, lies back and south of the walled town and is separated from it by a little stream called Tubig Hasa'an. The third part is Tulay and lies on the west side; the fourth is Busbus, on the east side.

At the head of the roadstead separating the Pueblo nuevo or Tulay from Jolo proper or Luway is a small tidal stream formerly called Suba' Bawang. Some maps designate it as Rio del Sultan. This stream extends back into a swamp and divides into two branches. The main or direct branch extends in a more or less southerly direction to a point about 700 meters from the mouth of the stream, where it rises in copious springs of fresh water at the edge of the swamp. The other branch is formed by the junction of the rivulet that rises in the springs of San Remondo with Tubig Hasa'an. The latter has its origin at the foot of the hills above the cemetery and Blockhouse No. 2. Hasa'an means grindstone, and the springs are said to have burst out of the spot where a grindstone was set for use. Another stream, termed Suba' Ligayan, drains the northern slopes of Buds Datu and Agad, and running north, passes by Fort Asturias and through Tulay, and empties into the roadstead of Jolo at a point about

250 meters west of the mouth of Suba' Bawang. A branch of this stream formerly issued at Asturias and connected with the main stream of Suba' Bawang. The land which thus lay between Suba' Bawang and Suba' Ligayan was a delta. It was called by the Moros u-laya (that is, the head of the net) because of its triangular shape. It was mostly marshy, but it had a central longitudinal strip of dry land which practically connected Tulay with the base of the hills, at Asturias. At the upper end of this strip there existed at one time a well-defined, sandy spot, different in formation from the surrounding land, which was considered sacred and was supposed to be the first land formed on the island. This spot was Sug proper; after it was named the whole settlement which was built along the banks of Suba' Bawang and at the head of the roadstead.

The Sultan's palace, termed istana, his kuta (fort) and stockades were built along the lower left bank of the stream Bawang; hence the name Rio del Sultan. On the right bank lay the houses and stockades of the other datus of high rank. Two bridges connected one side of the stream with the other.

On the outskirts of the town lay various kuta belonging to subordinate datus, which defended the approaches to the town. The most famous of these kuta was Daniel's Fort, the best stronghold of Sulu. On the site of this fort was built in 1878 the fort or redoubt of Alfonso XII, which was lately replaced by the present headquarters building of the military post of Jolo. Another strong fort was built at the foot of the hills just above the head of the delta above described; it defended the inland approach to the town. This was Panglima Arabi's kuta, on the site of which Fort Asturias was erected. Another kuta was located on Point Baylam.

The principal part of the town was formerly built over the shoal and beach at the head of the bay. Extensive rows of buildings stretched out into the roadstead and in front of the buildings now occupied as the clubhouse and military hospital. The present "Chinese pier" is constructed on the same plan. This extensive row of houses and shops begins at the lower point of the Tulay delta and stretches straight out into the sea. The bay is very shallow here and appears to be fairly well protected from severe storms. A variety of fish called tulay, after which the Moro town of Tulay is named, is caught in the bay. A swamp bounds the town on the south and west, affording it considerable protection from assault. However, it is open to attack from the sea and from the east. The land on the east is high and affords the only desirable site for residences. Here the strongest forts and defenses were erected.

The Spaniards built the central part of Jolo first. They raised it considerably above sea level by extensive fillings, and surrounded it by a loop-holed wall, 8 feet high and 1 1/2 feet thick, for protection from Moro assaults. The new town was beautifully laid out with broad, clean streets lined with double rows of arbol de fuego (fire trees), ylang-ylang, [11] acacia, and other varieties of trees, some of which are large and magnificent. Three parks, each one block in size, added considerable picturesqueness to the place. Substantial quarters were built for the officers, all houses were painted white or whitewashed, and none of them had the nipa roofs so common in the Archipelago. Business places, storehouses, a large market place, a church, a theater, two schoolhouses, and a hospital were erected and a public water supply provided. A

stone pier was built extending 120 meters into the sea, and provided with a light-house at its outer end.

The town wall had five gates, two of which lay on the northwest or sea front, one at the foot of the pier, and the other close to it. Through the latter gate cargo was admitted from small boats, which can always come up to this point at high water. The three other gates lay on the land side, one at the south end of the town toward Tulay, another at the opposite extremity facing Busbus, and a third one at the southern end of Calle [12] Buyon, directly facing San Remondo. This last is the only gate of the three kept open at present and is the only entrance into the town from the land side. A tower called Torre de la Farola surmounts the gate. Near the Busbus gate and forming the northeast angle of the town was the fort or redoubt termed Alfonso XII. It was built on a prominent eminence and commanded an extensive view of the bay, the town, and the surrounding country.

In the immediate vicinity lay the Cuartel España, which was a large and substantial building occupying the northern extremity of the town, facing the bay on the side of Busbus. At the extreme end of the wall beyond the barracks was the tower or blockhouse called Torre Norte. Another similar tower at the south gate was termed Torre Sur. At the intersection of the south wall and the beach line was a strong building called Cuartel Defensivo de las Victorias. The block lying diagonally between this cuartel and the market had eight buildings which were known as Casas de la Colonia para Deportados.

Two roads and two bridges connected the south and southeast gates with San Remondo. The continuation of these roads formed the two main streets of this part of the town. San Remondo has six small town blocks, nearly all of which are on reclaimed swamp land. The buildings here are mere nipa huts and the streets are muddy and narrow, unlike those of the walled town. Back of the town lies a large coconut grove which extends to Blockhouse No. 2 on one side and Asturias on the other. A straight and well laid out road directly connects these two latter points and marks the southern limit of the town.

A good road runs outside the wall connecting Busbus and Tulay. Later usage has applied the term Tulay to all parts of the town lying west of Suba' Bawang. Formerly the name Tulay was applied only to that part lying west of Suba' Ligayan, while the intermediate section was known as Pueblo nuevo. The bridge across the mouth of Suba' Bawang was termed puente del sultan. On the other side of the bridge this street extends through Pueblo nuevo and along the central strip of u-laya, or the delta, to Fort Asturias, thus separating the waters of Suba' Bawang from Suba' Ligayan. Midway between Tulay and Asturias stands an obelisk-like monument erected by General Arolas and bearing the date 1892. Further fillings in Tulay have provided for several streets, the chief one of which is the direct street running to the Chinese pier and then on to the blockhouse of the playa [13] and the Ligayan River. A large bridge crosses this river to Tulay proper. The road ends at the beach a little beyond the bridge. In the central plaza at Tulay stands a monument erected by General Arolas in 1891 in memory of the three renowned conquerors of Jolo. On one side the monument bears the inscription "A la gloria de los que con su esfuerzo

hicieron esta tierra Española;" the second side bears the inscription "Corcuera, 17 de Abril de 1638;" the third side, "Urbistondo, 28 de Febrero de 1851;" the fourth side, "Malcampo, 29 de Febrero de 1876." A straight road about three-fourths of a mile long called the Asturias Road directly connects Asturias with the main entrance of the walled town. Another road starts at this latter point and running along the right bank of Tubig Hasa'an reaches the cemetery on the opposite side of Blockhouse No. 2. The old bridge connecting a branch of this road with the one running from Asturias to Blockhouse No. 2 was washed away by a severe freshet in 1904, thus breaking what had formerly been a complete circle of roads around the town.

Busbus is wholly occupied by Moros. Its houses are dilapidated nipa huts built on piles over the water. Back of the town is a marsh which extends a little way toward the base of the hills. The water from the marsh escapes into the bay by two rivulets, the first of which runs through the settlement and is known as Tubig Uhang; the other is artificial, forms the outer limit of the town, and is called Buyung Canal. Persons convicted of capital crimes in the days of the independent sultanate were tied to a tree at this place and there their bodies were chopped to pieces; hence the name "Busbus" which means to "chop up" or "dress wood."

TRADE

Jolo lies about 4 miles from the point of intersection of latitude 6° north and longitude 121° east. It is about 540 nautical miles due south from Manila and 81 nautical miles distant from Zamboanga. The harbor is deep and free from currents. The bay is well protected on the north by the Islands of Pangasinan and Marongas and is safe from all storms except those from the northwest.

Sulu occupies the most nearly central position of any island in eastern Malaysia. It lies between Mindanao on the east and Borneo on the west, and separates the Sulu Sea from the Celebes Sea. The commercial advantages of this position are unique. To the north lie the Bisayas, Palawan, Luzon, Formosa, China, and Japan; to the east Mindanao and Basilan; to the south, the Moluccas, Celebes, and Java; to the west, Borneo, Sumatra, and the Malay Peninsula. Besides, the Sulus are natural-born sailors, and their famous pearl industry has prompted them to trade since time immemorial. Their boats brought silk, amber, silver, scented woods, and porcelain from China and Japan; gold dust, wax, dyes, saltpeter, slaves, and food stuffs from Luzon, the Bisayas, and Mindanao; gunpowder, cannon, brass, copper, iron, rubies, and diamonds from Malacca and Bruney; [14] pepper and spices from Java, the Moluccas, and Celebes. Chinese merchants traded with Sulu long before the arrival of Legaspi, and while Manila and Cebu were still small and insignificant settlements Jolo had reached the proportions of a city and was, without exception, the richest and foremost settlement in the Philippine Islands. Jolo, with the exception of Bruney, had no rival in northeast Malaysia prior to the seventeenth century.

Such commercial importance naturally attracted the attention of the early Spanish Governors-General and was one of the causes which led to the early invasion of Sulu. The long period of warfare which followed this invasion retarded the progress of Jolo

and reduced its trade. Again, the rise of Spanish commerce in the north tended to restrict the trade of Jolo. The growth of Manila, Cebu, and Iloilo naturally diverted the commerce of Luzon and the Bisayas and the north coast of Mindanao to those cities. The later commercial decline of Jolo was probably brought about more in this way than as a result of actual clash of arms. Jolo, however, remained an important port and a transshipping station to Mindanao until a late date.

At present trade has assumed new proportions and is following new routes. Zamboanga, Kotabato, and Davao are directly connected with Manila by regular steamship lines, and Jolo is fast losing its importance as a transshipping port. Zamboanga, on the other hand, is rising in importance and seems destined to become the port of Mindanao. It is the capital of the Moro Province and lies in the direct route connecting China, Manila, and Australia. It has direct communication with Manila, Hongkong, Singapore, and Australia, and is gradually diverting the trade of Mindanao from Jolo.

In spite of overwhelming odds, however, Jolo will maintain considerable commercial importance. It has well-established trade relations with Borneo, the Malay Peninsula, China, and Luzon, and is connected by regular steamship lines with Sandakan, Singapore, Manila, and Zamboanga. Practically the whole trade of the Sulu Archipelago passes through this port, and it stands now, as ever before, as the center of business, power, and importance of the whole district of Sulu.

In the early days the trade of Sulu was carried on by Moros and Chinese. The Chinese appear to have entered the Archipelago prior to its mohammedanization, and the commercial relations of China and Sulu are really prehistoric. As hostilities between Spain and Sulu increased, Sulu traders became less daring and grew fewer and fewer. Chinese traders, on the other hand, were less molested and conditions encouraged their increase. The "Chinese pier" is a very old business establishment, and Chinese traders and merchants have resided in Jolo for many generations. Their number, in 1851, exceeded 500. At present Chinese merchants have complete control of the trade of the Sulu Archipelago. They are found everywhere and command all the avenues of commerce. The Sulus have abandoned commerce as a trade and apparently have no inclination to resume it on any large scale. This is due mainly to the decline of their power and the present abeyance of their national life. A new political revival will no doubt change their attitude and may bring about a surprising development in arts and trades as well as of commerce.

The trade between Jolo and various islands and settlements of the Archipelago is carried on by means of innumerable small Moro boats and sloops termed sapits. Formerly such boats traded with Bruney, Sandakan, the Celebes, Java, and all the various islands of the Philippine Archipelago, but the stricter enforcement of the customs regulations, which followed the establishment of open ports at Sitanki, Bangao, and Kagayan Sulu, had the effect of checking trade with foreign countries in such small boats and tended to concentrate the whole trade of the Archipelago at Jolo. A review of the imports and exports of the port of Jolo will therefore throw considerable light on the material resources of the Archipelago, its industries, and the enterprise of the natives.

Port of Jolo

IMPORTS

========== | | Fiscal year-- | | Commodity |----------| | | 1905 | 1906 | |----------|----------+----------| | Animals, etc | $214 | $71 | | Brass, manufactures of | 6,402 | 2,548 | | Breadstuffs | 4,881 | 3,870 | | Cement | 745 | 989 | | Coal | 4,208 | | | Coffee | 621 | 872 | | Cotton cloths, close woven | 82,999 | 80,381 | | Cotton cloths, loose woven | 14,053 | 14,338 | | Carpets | 5,379 | | | Yarn and thread | 18,059 | 19,594 | | Knit fabrics | 2,688 | 3,564 | | Cotton cloths, all other manufactures of | 949 | 2,079 | | Dyes | 2,691 | 3,807 | | Opium | 14,578 | 6,601 | | Earthen and stone ware | 1,494 | 2,419 | | Fibers, vegetable | 308 | 153 | | Dried fish | 216 | 456 | | Shell fish | 375 | 497 | | Fruits, canned | 272 | 254 | | Fruits, not canned | 362 | 407 | | Glass and glassware | 694 | 415 | | Iron, steel, and manufactures of | 3,640 | 2,916 | | Malt liquors | 2,020 | 822 | | Matches | 956 | 372 | | Mineral oils | 742 | 1,339 | | Vegetable oils | 536 | 503 | | Paints | 979 | 299 | | Paper and manufactures of | 2,123 | 1,816 | | Condensed milk | 1,516 | 1,363 | | Rice | 76,172 | 57,416 | | Silk and manufactures of | 1,614 | 1,318 | | Soap | 724 | 610 | | Spirits, distilled | 1,643 | 1,108 | | Sugar, refined | 4,314 | 2,987 | | Tea | 646 | 489 | | Tobacco and manufactures of | 586 | 367 | | Vegetables | 1,204 | 1,919 | | Wearing apparel | | 3,699 | | Wood and manufactures of | 2,270 | 1,646 | | Wool and manufactures of | 2,282 | 206 | | All others | 8,126 | 7,262 | | |----------+----------| | Total in U. S. currency | $274,281 | $231,772 | | Total in Philippine currency | P548,562 | P463,544 | ==========

EXPORTS

========== | | Fiscal year-- | | Commodity |----------| | | 1905 | 1906 | |----------+----------+----------| | Animals | $42 | $70 | | Hemp | 486 | 5,561 | | Cordage | 5,084 | 5,054 | | Fish | 7,893 | 13,151 | | Copra | 17,870 | 30,052 | | Copal | 3,793 | 4,458 | | Gutta-percha | 108 | 3,939 | | Hides | 839 | 867 | | Mother-of-pearl (shells) | 88,516 | 60,051 | | Tortoise shell | 1,971 | 2,856 | | Shells, all others | 4,249 | 11,864 | | All others | 8,033 | 4,610 | | |----------+----------| | Total in U. S. currency | $138,884 | $142,533 | | Total in Philippine currency | P277,768 | P285,066 | ==========

Port of Zamboanga [15]

IMPORTS

========== | Agricultural imports | P250 | P40 | | Wheat flour | 6,048 | 18,378 | |

Cement | 3,088 | 12,966 | | Coffee | 5,656 | 10,646 | | Copper, manufactures of | 838 | 686 | | Cotton cloths, close woven | 92,254 | 97,866 | | Cotton cloths, loose woven | 9,628 | 33,714 | | Cotton wearing apparel | 2,136 | 5,152 | | Cotton yarn and thread | 25,032 | 34,862 | | Cotton, knit fabrics | 6,278 | 4,380 | | Cotton, all other manufactures | 1,840 | 5,118 | | Opium | 8,928 | 26,254 | | Earthen and stone ware | 1,406 | 5,016 | | China ware | 262 | 388 | | Hats and caps | 1,164 | 598 | | Iron, sheet | 6,470 | 12,786 | | Cutlery, table | 76 | 142 | | Cutlery, all other | 120 | 96 | | Nails, wire | 500 | 530 | | Boots and shoes | 762 | 2,884 | | Beer in wood | None. | 198 | | Beer in bottles | 8,410 | 42,618 | | Other malt liquors | 1,902 | 548 | | Matches | 60 | 988 | | Tin, manufactures of | 188 | 40 | | Oil, petroleum | 4,850 | 8,600 | | Milk, condensed | 3,200 | 5,972 | | Rice, husked | 119,572 | 161,642 | | Brandy | 814 | 3,212 | | Whiskey, bourbon | 822 | 1,240 | | Whiskey, rye | 1,030 | 376 | | Whiskey, all other | 6,668 | 19,566 | | Sugar, refined | 3,566 | 5,488 | | Tea | 1,346 | 2,484 | | Zinc, manufactures of | 880 | 834 | | All other imports | 49,712 | 86,807 | | |------------+------------| | Total in Philippine currency | 375,756 | 613,115 | ========== ==========

EXPORTS

========== == | | Fiscal year-- | | Commodity |----------| | | 1905 | 1906 | |----------+----------+----------| | Bejuco (rattan) | P700 | P1,594 | | Fish | 60 | 1,886 | | Coconuts | None. | 2,258 | | Copra | 125,734 | 157,398 | | Almaciga [16] | 632 | 288 | | Copal | 19,906 | 31,582 | | Gutta-percha | 2,282 | 28,370 | | Rubber | None. | None. | | All other gums and resins | 910 | None. | | Hides, carabao | 362 | 316 | | Beeswax | None. | 3,024 | | Shells, mother-of-pearl | 2,440 | 2,420 | | Shells, tortoise | 8,708 | 7,638 | | Shells, all other | 2,224 | 10,320 | | Salt | None. | 1,508 | | Wood, all kinds | 1,346 | 1,076 | | All other exports | 9,590 | 9,860 | | |----------|----------| | Total in Philippine currency | 174,894 | 259,538 | ========== ==========

The above statements of the imports and exports of the port of Jolo for the fiscal years 1905 and 1906 have been obtained through the kindness and help of Mr. E. B. Cook, collector of customs for Jolo. They represent the total value of the imports and exports of the town to and from foreign ports only. They do not, however, give an idea of the grand total of the imports and exports of the Archipelago. Account must also be taken of the large amount of commodities smuggled into the country by means of small boats which continually run between the Tawi-tawi Group and Kagayan Sulu on the one side and Borneo and Palawan on the other. Moreover, it is difficult to tell what part of the trade of Basilan and the Samal group of islands is retained by Jolo and what part has lately been drawn away by Zamboanga. Besides, some trade between Sulu and Basilan, on one side, and Mindanao, Negros, and Cebu on the other, is carried on by sailing craft; no account of this is taken either at Jolo or Zamboanga. Since July 1, 1905, all boats under 15 tons register have not been required to present at the custom-house manifests of goods carried. It is clear, therefore, that no correct estimate or opinion can be rendered on the strength of

these figures, unless one is aided by personal observation and knowledge of actual conditions previous to July 1, 1903.

Estimating the population affected by the trade of Jolo, at 100,000, we note that the importation of cloths and woven materials amounted to P204,431 in 1905 and P196,836 in 1906, or 37 per cent and 42 per cent of total imports, respectively. There is no doubt that the weaving industry among Sulus and Samals is far from being adequate to furnish clothing material, and European cotton cloths are therefore extensively used throughout the Archipelago.

The importation of rice amounted to P152,344 in 1905 and P114,832 in 1906, or 27 and 24 per cent of the total imports, respectively. The Sulus are agriculturists and should be able to raise sufficient rice for themselves and the Samals. The islands most fitted for this purpose are Sulu, Basilan, Tapul, Siasi, Pata, and Pandami. The Samals are not agriculturists as a rule and seldom raise anything except tapioca and corn. They generally live on flat, low islands, unfit for the cultivation of rice. The Archipelago as a whole should produce sufficient rice, tapioca, corn, and camotes to feed the whole population. The importation of rice in 1905 was probably in excess of the average amount; less rice was raised that year because of war and general disturbances.

The commodities of next importance are yarn and thread for weaving purposes. Importation of these articles amounted to P36,118 in 1905 and P39,188 in 1906, or 7 and 8 per cent, respectively. The country does not produce silk, cotton, or wool.

All other imports may be regarded as accessories. Of these opium comes first, then dyes, breadstuffs, sugar, iron, steel, brass, paper, and earthenware. A considerable amount of tobacco is imported by the government free of duty, and quantities of tobacco, opium, and cloths formerly were smuggled in. The reduction of imports in 1906 may be due to increased production, to the depression that followed the disturbances of 1904 and 1905, and to a diversion of certain parts of the trade to Zamboanga.

The exports, on the other hand, show a light increase in 1906. They distinctly represent those resources of the country which are most capable of development. At the head of the list stands the shell industry, particularly the pearl shell, which amounted to P189,472 in 1905 and P149,542 in 1906, or 64 and 52 per cent of total exports, respectively. The exportation of shell has lately been greatly affected by the falling of the price of pearl shell in the market of Singapore. The exportation of other shells seems, on the contrary, to have increased. Pearl fishing is the principal industry of the country and forms the main source of its riches. The fishing is done exclusively by natives, but the trade seems to be wholly in the hands of Chinese. The figures given above do not include pearls. It is very difficult to obtain any statistics for this valuable product, but on the whole it is reckoned by merchants as equivalent to the whole output of shell.

Second in importance comes copra, which amounted to P35,740 in 1905 and P60,104 in 1906, or 12 and 21 per cent of total exports, respectively. The marked increase of this export in 1906 may be explained partly by increased production and

partly by the general damage done to the trees in 1905 by locusts. Increase in the cultivation of coconut trees is not perceptible and can not account for the increase in exportation.

Dried fish comes third in order, amounting to P15,786 in 1905 and P26,302 in 1906. This industry is capable of unlimited development. The fertility of the Sulu Sea is unusual and can hardly be surpassed. Nothing but enterprise and organized effort is needed to render this trade a source of enormous wealth to the country. The natives are exceedingly skillful in fishing, but lack ambition and initiative. The trade in fish is mostly in the hands of Chinese merchants.

Fourth in importance comes hemp. Both in fiber and cordage its exports amounted to P11,140 in 1905 and P21,230 in 1906. Hemp culture has markedly improved during the last year, and the increased production is sufficient to explain the increase in exportation. Coconut trees and hemp grow splendidly on all the larger islands of the Archipelago, and their cultivation is capable of extensive development.

Copal and gutta-percha are the products of Sulu, Basilan, and the Tawi-tawi Islands. Although sufficiently important in themselves, they sink into insignificance when compared with the four primary staple products and the immense possibilities that lie in the line of their development.

The greater part of the trade of Jolo is handled by the Jolo Trading Company, the firm of Hernandez & Co., and the commercial houses of Chaun Lee and Ban Guan, all of which are controlled and managed by Chinese merchants. The following list compiled in the office of the Jolo Trading Company, for the Far Eastern Review, is a fair estimate of the prospective exports of the town for the coming two years:

Article	Amount	Price	Total
Piculs.			
Hemp	1,000	P21	P21,000
Pearl shells	150	45	6,750
Trepang or beche-de-mar	50	30	1,500
Shark fins	20	45	900
Hemp rope	30	25	750
Caracoles (sea shells for buttons, etc.)	40	12	480
Black shells	10	8	80
Copra	500	7	3,500
Seaweeds	40	4	160
Hides	10	20	200
Cacao	10	50	500
Tortoise shells	1-1/2	1,800	2,700
Sea horses			240
Grand total			38,760

Hemp is generally exported to Manila, while the other articles mentioned in the above table are generally exported to Singapore.

Trepang, shark fins, seaweed, and sea horses are foods highly prized by the Chinese.

If the value of pearls taken is estimated on the basis suggested by the president of the Jolo Trading Company, it will bring the total up to P58,760 per month.

POPULATION

The present population of Jolo is less than 2,000. This includes all the natives and foreigners living in Tulay and Busbus; but the United States troops are excepted. The bulk of the inhabitants is made up of Filipinos, Chinese, and Moros. The census report of 1903 gives the following statistics, which include Tulay and San Remondo, but not Busbus:

========== | Color | Males | Females | |==========+=======+=========| | Brown | 309 | 306 | | |==========| | Ilokano | 10 | 4 | | Moro | 9 | 98 | | Tagalog | 103 | 66 | | Bisayan | 161 | 132 | | Foreign born | 26 | 6 | | Mixed | 74 | 48 | | Yellow | 429 | 56 | | White | 31 | 17 | | |=======+=========| | Total | 843 | 427 | ==========

Walled town 541 Tulay 615 San Remondo 114 ----- Total 1,270

Males of voting age

Brown: Filipino 189 Ilokano 9 Moro 4 Tagalog 75 Bisayan 101 English 14 French 1 All others 5 Mixed: Filipino 1 Chinese 8 English 2 Yellow: Chinese 392 Japanese 1 English 3 White: American 22 Spanish 2 All others 1 --- Total 641

As the great majority of the "mixed" population have Chinese fathers, they, as a rule, follow Chinese custom and trade and may be regarded as Chinese. The Chinese element may therefore be classified as follows:

========== | Chinese | Males | Females | Total | |----------+-------+---------+-------| | Pure | 429 | 56 | 485 | | Mixed | 70 | 45 | 115 | | |-------+---------+-------| | Total | 499 | 101 | 600 | ==========

The Filipinos may be classified as follows:

========== | Filipinos | Males | Females | Total | |----------+-------+---------+-------| | Brown | 274 | 202 | 476 | | Mixed | 4 | 3 | 7 | | |-------+---------+-------| | Total | 278 | 205 | 483 | ==========

The census statistics give a full and clear idea of the composition of the resident population of the town in 1903. The Chinese and their offspring, amounting to 600, undoubtedly form the preponderant element. The Filipinos come next, amounting to 483 only. Considerable change has, however, occurred since the census was taken, and necessitates a revision of the above figures. The increase of the garrison and the construction of many new buildings for the military post has caused an influx of Filipinos from Zamboanga and Kotabato, and more Chinese have undoubtedly come in since 1903. The census figures again do not include Moros, some hundreds of whom live at present in Tulay and Busbus.

The following, based on close personal observation, is considered a fair estimate of the present population:

========== | | Walled | San Remondo | Tulay | Busbus | Jolo | | | town | | | | |

|----------+---------+-------------+-------+--------+-------| | Moros | [17] 30 | 30 | 300 | 350 | 710 | | Chinese | 250 | 10 | 400 | 20 | 680 | | Filipinos | 170 | 100 | 250 | | 520 | | |---------+-------------+-------+--------+-------| | Total | 450 | 140 | 950 | 370 | 1,910 | ===== ========== =====

The inhabitants of the town are more or less migratory in character. The population is constantly changing. Few are property owners. The majority are traders, carpenters, and domestic servants. The Filipinos were originally "camp followers" and still feel as strangers in the land. Many of the Moros living at Tulay and Busbus are of mixed origin. The mixture is chiefly of Sulus and Samals, with each other and with Chinese. The Jolo type of Moros is by no means pure Sulu and has consequently misled many authors and ethnologists. A large number of Samals frequent Tulay and Busbus and often temporarily reside there, but because of their strong migratory habits no estimate has been made of them.

A few Arabians, Malays, and Indian traders are married in the country, but their proportion is small and insignificant at present.

CHAPTER II

GENEALOGY OF SULU

TRANSLATOR'S INTRODUCTION

The manuscript of which a translation follows is an exact copy of the original, which is in the possession of Hadji Butu Abdul Baqi, the prime minister of the Sultan of Sulu. The genealogy proper begins on page 6 of the manuscript and is written entirely in Malay. This was the rule among all old Moro writers and is a decided indication of the authenticity of the document.

Hadji Butu maintains that his ancestry goes back to Mantiri [18] Asip, one of the ministers of Raja Baginda, the Sumatra prince who emigrated to Sulu prior to the establishment of Mohammedanism in the island. The Sulu ministry seems to have remained in Asip's lineage down to the present time.

The first five pages of the original manuscript are the genealogy of Asip's descendants. This part is written in Sulu and was probably composed at a later period than the Malay part of the book. It is written by Utu Abdur Rakman, the nephew of Imam Halipa, who is the son of Nakib Adak, the last person mentioned in the genealogy. Abdur Rakman is a cousin of Hadji Butu.

The addition of these five pages to the Genealogy of Sulu is for the purpose of giving prominence and recognition to the sons of Asip, who have been the right-hand men of the Sultans of Sulu since the organization of the sultanate.

SULU AUTHOR'S INTRODUCTION

This is the genealogy of the sultans and their descendants, who lived in the land of Sulu.

The writing of this book was finished at 8 o'clock, Friday the 28th of Thul-Qa`idat, [19] 1285 A. H.

It belongs to Utu [20] Abdur Rakman, [21] the son of Abu Bakr. It was given to him by his uncle Tuan [22] Imam [23] Halipa [24] Abdur Rakman. This is the genealogy of the Sulu sultans and their descendants.

DESCENDANTS OF ASIP

This is the genealogy of Mantiri [25] Asip, the hero and learned man of Menangkabaw. [26] Mantiri Asip had the title of Orangkaya [27] at the time he came to Sulu with Raja [28] Baginda. [29] He married a woman from Purul [30] called Sandayli and begot Orangkaya Sumandak. Sumandak begot Orangkaya Manuk [31] and Orangkaya Hamba. [32] Manuk begot Orangkaya Buddiman [33] and Orangkaya Akal [34] and Orangkaya Layu and Satya [35] Akum. His daughters were Santan, Satan, Ambang, Duwi, Sitti, [36] and Tamwan. Orangkaya Buddiman begot Orangkaya Salimin [37] and Dayang [38] Saliha. [39] The former begot Hinda Da'ar Maputra and Utu Undik, Dayang [40] Patima, [41] Dayang Bahira, [42] and Dayang Sawira. Dayang Saliha bore Idda. Akal begot Orangkaya Muhaddi, who begot Hinda Human. Orangkaya Layu begot Dayang Jawsul [43]-Manalum, who became famous. Manalum bore Ma'asum, Bulaying and Jamila. [44] Jamila bore Itang. Ma'asum begot Bayi. Bulayin begot Inda and Duwalang.

Jawsul begot Na'ika and Rajiya. [45] The former begot Orangkaya Sila. Rajiya bore Tuan Aminud [46] Din. [47] Santan bore Ma'mun. [48] Ma'mun begot Orangkayas Utung and Amang. Satan bore Palas and Bahatul. Bahatul begot Abdul Hadi. [49] Ambang bore Orankayas Amin and Bunga. [50] Orangkaya Amin begot Rajiya and Zakiya. [51] Zakiya is the mother of Orangkaya Sila. Rajiya is the mother of Tuan Aminud-Din. Bunga begot Aliya and Salima. [52] Salima bore Hinda Baying Gumantung.

Duwi bore Manduli and Immang. Manduli is the mother of Tuan Iman Anda and Na'ima. [53] Immang bore Mali. Sitti bore Orangkayas Ugu, Garu, Abu Bakr, Abu Samma, Manawun, Sayda, and Suda. Allak begot Ila and Malum. [54] Ila bore Andungayi. Malum is the father of Imming. Tamwan bore Ima. Ima begot Angkala. Angkala begot Inung. Inung begot Hinda Nakib [55] Adak.

DESCENDANTS OF TUAN MASHA'IKA

This is the genealogy of Tuan Masha'ika. It was said by the men of old that he was a prophet who was not descended from Adam. He was born out of a bamboo and was esteemed and respected by all the people. The people were ignorant and simple-minded in those days and were not Mohammedans of the Sunni sect. Some of them worshiped tombs, and some worshiped stones of various kinds.

Masha'ika married the daughter of Raja Sipad the Younger, who was a descendant of Sipad the Older. His wife's name was Idda [56] Indira [57] Suga. [58] She bore three children, Tuan Hakim, [59] Tuan Pam, and 'Aisha. [60] Tuan Hakim begot Tuan Da'im, [61] Tuan Buda, Tuan Bujang, Tuan Muku, and a girl. Da'im begot Saykaba. Saykaba begot Angkan. Angkan begot Kamalud [62] Din, and Katib [63] Mu`allam [64] Apipud [65] Din, and Pakrud [66] Din, and many girls.

Tuan May begot Datu Tka, who was surnamed Dina, Lama and Timwan. Dina begot Abi [67] Abdul Wakid [68] and Maryam. [69]

ORIGINAL AND LATER SETTLERS OF SULU

This chapter treats of the original inhabitants of the Island of Sulu. The first dwellers of the land of Sulu were the people of Maymbung, whose rulers were the two brothers, Datu Sipad and Datu Narwangsa. After them came the people of Tagimaha, who formed another party. After these came the Bajaw (Samals) from Juhur. These were driven here by the tempest (monsoon) and were divided between both parties. Some of the Bajaw were driven by the tempest to Bruney and some to Mindanao. After the arrival of the Bajaw, the people of Sulu became four parties. [70] Some time after that there came Karimul [71] Makdum. [72] He crossed the sea in a vase or pot of iron and was called Sarip. [73] He settled at Bwansa, [74] the place where the Tagimaha nobles lived. There the people flocked to him from all directions, and he built a house for religious worship.

Ten years later Raja Baginda [75] came from Menangkabaw to Sambuwangan. [76] From there he moved to Basilan and later to Sulu. When he arrived at Sulu the chiefs of Bwansa tried to sink his boats and drown him in the sea. He therefore resisted and fought them. During the fight he inquired as to the reason why they wanted to sink his boats and drown him. He told them that he had committed no crime against them and that he was not driven there by the tempest, but that he was simply traveling, and came to Sulu to live among them because they were Mohammedans. When they learned that he was a Mohammedan, they respected him and received him hospitably. The chiefs of Sulu who were living at that time were Datu Layla [77] Ujan, Datu Sana, Datu Amu, Datu Sultan, [78] Datu Basa, and Datu Ung. Another class of chiefs called Mantiri were Tuan Jalal, [79] Tuan Akmat, [80] Tuan Saylama, Tuan Hakim, Tuan Buda, Tuan Da'im, and Tuan Bujang. The Tagimaha chiefs were Sayk [81] Ladun, Sayk Sahdu, and Sayk Bajsala. The Baklaya chiefs were Orangkaya Simtu and Orangkaya Ingsa. All the above chiefs were living at the time Raja Baginda came to Sulu.

There also came to Sulu from Bwayan, [82] Sangilaya Bakti and Sangilaya Mansalah. The latter's wife was Baliya'an Ñyaga.

Five years after Raja Baginda's arrival at Sulu the Raja of Jawa [83] sent a messenger to Sulu with a present of wild elephants. The messenger's name was Jaya. He died at Ansang, and two elephants only arrived at Sulu.

After that time there came Sayid [84] Abu Bakr from Palembang [85] to Bruney and from there to Sulu. When he arrived near the latter place he met some people and asked them: "Where is your town and where is your place of worship?" They said, "At Bwansa." He then came to Bwansa and lived with Raja Baginda. The people respected him, and he established a religion for Sulu. They accepted the new religion and declared their faith in it. After that Sayid Abu Bakr married Paramisuli, the daughter of Raja Baginda, and he received the title of Sultan Sharif. [86] He begot children, and his descendants are living to the present day. He lived about thirty years in Bwansa.

After Abu Bakr, his son Kamalud Din succeeded to the sultanate. Alawad [87] Din did not become sultan. Putri [88] Sarip lived with her brother Alawad Din. Alawad Din married Tuan Mayin, the daughter of Tuan Layla. After the death of Sultan Kamalud Din, Maharaja [89] Upu succeeded to the sultanate. After the death of Upu, Pangiran [90] Buddiman became sultan. He was succeeded by Sultan Tanga. The sultans who followed are, in the order of their succession, Sultan Bungsu, [91] Sultan Nasirud [92] Din, Sultan Karamat, [93] Sultan Shahabud [94] Din, Sultan Mustafa [95] called Shapiud [96] Din, Sultan Mohammed Nasarud [97] Din, Sultan Alimud [98] Din I, Sultan Mohammed Mu`izzid [99] Din, Sultan Isra'il, [100] Sultan Mohammed Alimud Din II, Sultan Mohammed Sarapud [101] Din, Sultan Mohammed Alimud Din III.

SULU HISTORICAL NOTES

INTRODUCTION

These notes were copied by the author from a book in the possession of Hadji Butu, prime minister to the Sultan of Sulu. Pages 1, 2, and 3 form a separate article. They appear to be a supplement to the Genealogy of Sulu, but they were undoubtedly derived from a different source. Their contents are well known to the public and are probably an attempt on the part of Hadji Butu to register what seemed to him a true and interesting tradition of his people.

Page 4 was copied by the author from an old, dilapidated document which was torn in many places. It no doubt formed part of an authentic genealogy of Sulu, older and more reliable than that of the manuscripts on pages 148 and 149. It is written in Malay.

Page 5 is a copy of a Sulu document issued by Sultan Jamalul-Kiram I in the year 1251 A. H., or about seventy-three years ago. It confers the title of Khatib or Katib [102] on a Sulu pandita [103] named Adak. In conferring a title of this sort it is customary among the Sulus to give the person so honored a new name, generally an Arabic one, such as Abdur Razzak. [104] The same custom is observed in the case of accession to the sultanate and other high offices.

The writing at the top of the page is the seal of Jamalul Kiram. The date given in the seal is the date of his sultanate. The flourish at the end of the signature below is the mark of the writer.

SULU NOTES

Translation of page 1 of the original manuscript.--The first person who lived on the Island of Sulu is Jamiyun Kulisa. [105] His wife was Indira [106] Suga. [107] They were sent here by Alexander the Great. [108] Jamiyun Kulisa begot Tuan Masha'ika. [109] Masha'ika begot Mawmin. [110] Mawmin's descendants multiplied greatly. They are the original inhabitants of Sulu and chief ancestors of the present generation.

Translation of page 2 of the original manuscript.--In the days of the Timway [111] Orangkaya Su'il the Sulus received from Manila four Bisayan captives, one silver agong, [112] one gold hat, one gold cane, and one silver vase, as a sign of friendship between the two countries. One of the captives had red eyes, one had black eyes; one, blue eyes; and one, white eyes.

Translation of page 3 of the original manuscript.--The red-eyed man was stationed at Parang, [113] and is the forefather of all the people of Parang. The white-eyed man was stationed at Lati, [114] and is the forefather of all the people of Lati. The black-eyed man was stationed at Gi'tung, [115] and is the forefather of the people of Gi'tung. The blue-eyed man was stationed at Lu'uk, [116] and is the forefather of the people of Lu'uk. At that time the religion of Mohammed had not come to Sulu.

Translation of page 4 of the original manuscript.--The first inhabitants of the Island of Sulu were the people of Maymbung. [117] They were followed by the Tagimaha [118] and the Baklaya. [119] Later came the Bajaw (Samals) from Juhur. Some Bajaws were taken by the Sulus and were distributed among the three divisions of the island, while others drifted to Bruney and Magindanao. Some time after that there came Karimul [120] Makdum. [121] He sailed in a pot of iron and the ancients called him Sharif [122] Awliya. [123] The Sulus adopted the Mohammedan religion and brought Makdum to Bwansa. [124] There the Tagimaha chiefs built a mosque. Ten years later there arrived Raja Baginda, who emigrated from Menangkabaw. [125] Baginda came to Zamboanga first. From there he moved to Basilan and Sulu. The natives met him on the sea for the purpose of fighting him. He asked them, "Why do you wish to fight a Mohammedan who is coming to live with you?" He married there.

The commission of Khatib Abdur Razzak.

The Conqueror. By the order of the Omniscient King, The Sultan Mohammed Jamalul Kiram. The year 1239.

Translation of page 5 of the original manuscript.--Dated Wednesday, the tenth of Ramadan, in the year "D," the first, which corresponds to the year 1251 of the Hegirah of the Prophet Mohammed, may the best of God's mercy and blessing be his. This day his majesty our master, the Sultan Jamalul [126] Kiram [127] has granted Adak an official title by virtue of which he will be known as Khatib [128] Abdur [129] Razzak. [130] This is done in conference and consultation and with the consent of all the people, without dissent.

By the will of God the most High.

(Signed) The Sultan Jamaul Kiram.

[The End.]

CHAPTER III

RISE AND PROSPERITY OF SULU

SULU BEFORE ISLAM

The Genealogy of Sulu is a succinct analysis of the tribes or elements which constituted the bulk of the early inhabitants of the island and is the most reliable record we have of the historical events which antedated Islam.

The original inhabitants of the island are commonly referred to as Buranun or Budanun, which means "mountaineers" or "hill people." This term is occasionally used synonymously with Gimbahanun, which means "people of the interior," and with Manubus in the sense of "savage hill people" or "aborigines." Some of the old foreign residents of Sulu maintain that they recognize considerable similarity between the Buranun and the Dayaks of Borneo, and say that the home utensils and clothes of the Sulus in the earlier days closely resembled those of the Dayaks.

The capital of the Buranun was Maymbung. The earliest known ruler of Maymbung was Raja Sipad the Older, of whom nothing is related except that he was the ancestor of Raja Sipad the Younger. In the days of the latter there appeared Tuan Masha'ika, about whose ancestry there seems to be considerable ambiguity and difference of opinion. According to the Genealogy of Sulu he was supposed to have issued out of a stalk of bamboo, and was held by the people as a prophet. The traditions state that Tuan Masha'ika was the son of Jamiyun Kulisa and Indira Suga, who came to Sulu with Alexander the Great.

Jamiyun Kulisa and Indira Suga are mythological names [131] and in all probability represent male and female gods related to the thunderbolt and the sun, respectively. The former religion of the Sulus was of Hindu origin. It deified the various phenomena of nature and assigned the highest places in its pantheon to Indra, the sky; Agni, the fire; Vayu, the wind; Surya, the sun. The ancient Sulus no doubt had many myths relating to the marriages and heroic deeds of their gods by which natural phenomena were explained, and it is not unlikely that the above story of Jamiyun Kulisa was one of those myths. Taken in this light, the above legend may express the belief of the ancient Sulus that, by the marriage of the gods, Jamiyun Kulisa and Indira, rain fell and life was so imparted to the soil that plants grew.

The word Masha'ika is so written in the Malay text as to suggest its probable formation from two words Masha and ika. The Sanskrit word Masha means "pulse" or "plant." Ika or eka means "one." On the other hand masha-ika may represent the two parts of the Sanskrit mashika which means "five mashas." It may not therefore be improbable that masha-ika refers to the subordinate deity which assumes the form of a plant or signifies the first man, whom the deity created from a plant. It is not an

uncommon feature of Malay legends to ascribe a supernatural origin to the ancestor of the tribe, and Tuan Masha'ika probably represents the admission into the Buranun stock of foreign blood and the rise of a chief not descended from Rajah Sipad the Older. The tarsila [132] adds that he married the daughter of Raja Sipad the Younger, Iddha, [133] and became the forefather of the principal people of Sulu.

The common belief among the Sulus that Alexander the Great invaded their island is one of many indications which lead one to think that most of their knowledge and traditions came by the way of Malacca or Juhur, and possibly Tuan Masha'ika came from the same direction. It does seem therefore as if the dynasty of Sipad was supplanted by a foreign element represented by Tuan Masha'ika.

These two elements were later augmented by the Tagimaha who settled at Bwansa and along the coast west of that point, and by the Baklaya who settled on the same coast east of the present site of Jolo. The four tribes thus brought so closely together mixed very intimately and later lost their identity in the development of a single nation, which reached its maturity under the guiding hand of a Mohammedan master. In spite of later immigrations to the island and in spite of conquest and defeat, the national character thus formed has remained unchanged throughout history and the Sulu of to-day still maintains that same individuality which he acquired in his earlier days.

The noted emigration of the Bajaws or Samals of Juhur must have begun in the earlier parts of the fourteenth century, if not earlier. These sea nomads came in such large numbers and in such quick succession as to people the whole Tawi-tawi Group, the Pangutaran and Siasi Groups, all available space on the coast of Sulu proper, the Balangingi Group, and the coasts of Basilan and Zamboanga, before the close of the century and before the arrival of the first Mohammedan pioneers.

The Samals exceeded the Sulus in number, and the effect of such overwhelming immigration must have been considerable; but, nevertheless, the Sulu maintained his nationality and rose to the occasion in a most remarkable manner. The newcomers were taken into his fold and were given his protection, for which they rendered noteworthy service; but their relation was never allowed to exceed that of a slave to his master or that of a subject to his ruler, and the Samals thus remained like strangers or guests in the land until a late date.

Besides the Samals, some Bugis [134] and Ilanun emigrants gained a foothold on the northern and northeastern coast of Sulu. The Bugis appear to have lost their identity, but the Ilanun are still recognizable in many localities, and some of the principal datus of Sulu still trace their origin to Mindanao.

The numerous and extensive piratical expeditions undertaken by the Sulus from time immemorial must have been a great source of further influx of foreign blood. The earliest traditions say that, in the days of the Timway, [135] Orangkaya Su'il, slaves or hostages were sent by the raja of Manila to secure the friendship of the Sulus. These slaves were, according to some accounts, of six colors, but the written records give them as four--red-eyed, white-eyed, blue-eyed, and black-eyed. The people do not entertain any doubt relative to the truth of these statements, and the

custom is current even among the Samals of referring to the origin of some person as descended from the red-eyed slave, in making distinction as to whether he comes from a noble or is of low birth and as to the part of the country to which he belongs. According to general opinion the red-eyed slaves lived at Parang, the western section of the island; the white-eyed at Lati, the northern section lying to the east of Jolo; the black-eyed at Gi'tung, the middle and southern section; the blue-eyed at Lu'uk, the eastern section.

This color distinction is difficult to explain, but it must have arisen out of the established custom of dividing slaves and captives, after returning from a piratical expedition, among the great chiefs of the various parties which composed the expedition. These parties as a rule belonged to four sections representing the four great districts of the island, over each of which one chief formerly was in authority. [136]

The number of elements which have thus entered into the constitution of the Sulu people must be great, for there was not a single island in the Philippine Archipelago which was spared by these marauders. Indeed, the nation owes its origin and its chief characters to piracy. As pirates these people took refuge in this island and lived in it, and as pirates they have stamped their reputation on the annals of history.

However, the Sulus do not differ in this particular point from the Malays of other countries. All Malays were equally addicted to piracy. "It is in the Malay's nature," says an intelligent Dutch writer, "to rove on the seas in his prau, as it is in that of the Arab to wander with his steed on the sands of the desert. It is as impossible to limit the adventurous life of a Malay to fishing and trading as to retain a Bedouin in a village or in a habitation. * * * This is not merely their habit; it may be termed their instinct." [137]

"As surely as spiders abound where there are nooks and corners," says another, "so have pirates sprung up wherever there is a nest of islands offering creeks and shallows, headlands, rocks, and reefs--facilities, in short, for lurking, for surprise, for attack, and for escape. The semibarbarous inhabitant of the Archipelago, born and bred in this position, naturally becomes a pirate. It is as natural to him to consider any well-freighted, ill-protected boat his property as it is to the fishing eagle above his head to sweep down upon the weaker but more hardworking bird and swallow what he has not had the trouble of catching."

So we are told that before the days of Makdum and Raja Baginda, Sulu had long been an emporium not only of regular traders from most nations, but the headquarters of those piratical marauders who there found a ready market for enslaved victims.

INTRODUCTION OF ISLAM AND THE RISE OF A MOHAMMEDAN DYNASTY IN SULU, 1380-1450

To this period belongs the Mohammedan invasion of the Archipelago. If the Buranun [138] were Dayaks in origin, they certainly did not keep their Dayak characteristics very long. For in all probability Tuan Masha'ika, the Tagimahas, and the Baklayas were Malays [139] who came into Sulu from the west, and the dynasty

established by Masha'ika must have exercised due influence on the Buranun. Whatever religion or customs these Malay conquerors had in their original land, they no doubt continued to practise in their new home. It does not appear that the Samals produced any change in this respect, and the same worship and social organization which the Sulus had remained unchanged until the Mohammedans reached the Archipelago.

The two prominent characters who mark this era are Makdum and Raja Baginda. Makdum was a noted Arabian judge or scholar who arrived at Malacca about the middle of the fourteenth century, converted Sultan Mohammed Shah, the ruler, to Islam and established this religion throughout the state of Malacca. He evidently practised magic and medicine and exerted an unusually strong influence on the people of Malacca. Continuing farther east, he reached Sulu and Mindanao about the year 1380. [140] In Sulu, it is said, he visited almost every island of the Archipelago and made converts to Islam in many places. The Island of Sibutu claims his grave, but the places at which he was most successful are Bwansa, the old capital of Sulu, and the Island of Tapul. It is said that the people of Bwansa built a mosque for him, and some of the chiefs of the town accepted his teachings and faith. The Tapul people claim descent from him, and some of them still regard him as a prophet.

Makdum's success in preaching a new faith to people as independent in their individual views and as pertinacious in their religious practices, beliefs, and customs as the Sulus must have been in his time, is certainly remarkable and creditable to a high degree. The results of his mission to Malacca and Sulu throw a new light on the history of Islam in the Philippine Islands and modify the opinion formerly held relative to its introduction by the sword. How much of a lasting effect the teachings of Makdum could have had on Sulu is very difficult of estimation, but in all probability the new sapling planted in the soil of Sulu would have withered before long had it not been for the future current of events which watered it and reared it to maturity.

Some time after Makdum (the Genealogy of Sulu says ten years) there came into Sulu a prince from Menangkabaw called Raja Baginda. Menangkabaw [141] is a rich, high region in central Sumatra, from which many Malayan dynasties seem to have come. Raja was the usual title applied to all Malayan kings. Baginda is said to have touched at Sambuwangan (Zamboanga) and Basilan before reaching Sulu. The nature of such a move can not be explained unless he followed the northern route leading from Borneo to Kagayan Sulu, Pangutaran, and Zamboanga, which route seems to have been taken by all Mohammedan missionaries and invaders mentioned in the tarsila.

The written records of Baginda's arrival and his later history are exceedingly brief. When he arrived at Bwansa, the Sulus came out to engage him in battle, as we would naturally expect; but, the tarsila continues, on learning that he was a Mohammedan, they desisted from fighting, invited him to stay with them, and seem to have entertained him very hospitably. Such an account is absurd on the face of it. Raja Baginda was not a trader nor a traveler touring the Archipelago. He was accompanied by ministers and no doubt came to Bwansa to stay and rule. His coming was an ordinary kind of invasion, which proved successful. When Abu Bakr reached

Bwansa, as we will learn later, he was directed to Raja Baginda, who must have been the supreme ruler of Bwansa. Accordingly we find all the chiefs of Sulu enumerated in the tarsila at the day of Baginda's arrival subordinate in rank, having no "rajas" among them.

The Genealogy of Sulu is as misleading as the tarsila of Magindanao in that it pictures the arrival of Baginda as peaceful as that of Kabungsuwan. Some of the chiefs who were Mohammedans possibly intrigued against their former overlords, and, joining Baginda's forces, defeated their opponents; but the dearth of information relative to this early Philippine history renders it impracticable to secure any more light on the subject. It may not, however, be out of place to remind the reader that the fourteenth century was marked by unusual activity in methods of warfare. Gunpowder, which was known and used as an explosive long before that date, had not been made use of in throwing projectiles in battle. The Arabs, we know, used firearms early in the fourteenth century, and we may conjecture that they introduced such weapons into Malacca and other parts of Malaysia as they moved east. It is not improbable then that a prince coming from Sumatra was provided with firearms which overawed the ignorant inhabitants of Bwansa and subdued the valor and courage of the Sulu and Samal pirates of those days. The statement made in the tarsila of Magindanao that, after the people of Slangan came down the river to where Kabungsuwan was anchored, "He beckoned (or pointed his finger) to them, but one of them died on that account, and they were frightened and returned," is the only kind of evidence found which can possibly be interpreted to indicate that a firearm was used. Lacking confirmation as this may be, yet we positively know that when the Spaniards reached these Islands, these people had an abundance of firearms, muskets, lantaka [142] and other cannon, and we may be justified in saying that probably firearms existed in the land in the century preceding the arrival of the Spaniards. This brings us approximately down to Baginda's days.

In considering the etymology of the titles of the Sulu chiefs mentioned in the time of Baginda, we observe that they are of three classes. The first class were the datus. These had mantiri or ministers and probably represented the descendants of Raja Sipad and Tuan Masha'ika. The second class were the sayk. "Sayk" is probably derived from the Arabic "Sheikh" meaning "chief." These were the Tagimaha chiefs, and their rank was evidently subordinate to that of datu. The third class were the orangkaya, the Baklaya chiefs. These are also subordinate in grade and could not have been higher than the sayk. The words datu and orangkaya it must be remembered are of Malay origin, while raja and baginda are Sanskrit, baginda being the highest and being often used as equivalent to emperor, while raja means only king.

Jawa is the Malay term for Java. The incident related in the tarsila relative to the gift of two elephants sent by the raja of Java to the raja of Sulu is interesting, in that it explains the existence in Jolo of the elephants found there during the earlier Spanish invasions. It further indicates that Raja Baginda was not an insignificant chief and that he kept up some kind of communication with the rajas of western Malaysia.

The elephants received by Baginda were let loose, the story says, and they lived and multiplied on Mount Tumangtangis. On the declivity of this mountain there is a place still called lubluban-gaja, which means the "habitat or lying-place of the elephant." The people relate several stories which make mention of the elephant, one of which declares that the chief who killed the last wild elephant was given the hand of the sultan's daughter in marriage, in admiration of his strength and bravery.

ESTABLISHMENT OF THE MOHAMMEDAN CHURCH IN SULU AND THE REIGN OF ABU BAKR, 1450-1480

Brevity is without exception a marked characteristic of all Moro writings. Their letters, unlike those of the Malays and Arabs, are brief and devoid of compliment or detail.

It is very difficult to pick out a superfluous word or phrase from the text of the Sulu tarsila. In fact, the narrative of events throughout the manuscript is so curtailed as to be reduced to a mere synopsis of headlines. It gives a very dim view of the general subject and leaves out much that is desired. Thus, the whole question of establishing Islam in Sulu and organizing its sultanate is dispensed with in one short paragraph briefly enumerating the following facts: That Sayid Abu Bakr came to Bwansa from Palembang by the way of Bruney; that he lived with Raja Baginda and taught and established a new religion for Sulu; that he was greatly respected by the people; and that he married Paramisuli, the daughter of Baginda, and became sultan.

The traditions of the country, notwithstanding their brevity, add some further but less reliable information. It is the common belief that Abu Bakr was born in Mecca and that he lived some time at Juhur (or Malacca). Others state that it was his father, Zaynul Abidin, who came from Mecca and that Abu Bakr was born of the daughter of the Sultan of Juhur at Malacca. He came to Pangutaran first, the narrative continues, then to Zamboanga and Basilan. His younger brother, who had accompanied him, continued eastward to Mindanao, while he remained at Basilan for a short while. Having heard of Abu Bakr, the people of Sulu sent Orangkaya Su'il to Basilan to invite him to Bwansa to rule over them. This invitation was accepted and Abu Bakr was inaugurated sultan over Sulu soon after his arrival there.

From the annals of Malacca we know that Abu Bakr was a famous authority on law and religion and that his mission to Malaysia was prompted by enthusiasm for the promulgation of the doctrines of Abu Ishaq, which were embodied in a book entitled "Darul-Mazlum, or The House of the Oppressed or Ignorant." After preaching these doctrines in Malacca with success, he evidently proceeded farther east, stopping at Palembang and Bruney and reaching Sulu about 1450. The hospitality with which he was received at Bwansa points to success in his mission to a degree that enabled him later to marry the Princess Paramisuli, the daughter of Raja Baginda. He established mosques there and taught religion and law; and the people and chiefs actually abandoned their former gods and practiced the new religion and observed its commandments. This process of reformation and conversion was no doubt slow and gradual, but it was real and sure.

There is no evidence to show that Abu Bakr had any military forces by virtue of which he could assume military authority and rule after Baginda's death. But it is perfectly credible that Raja Baginda, being without a male heir, appointed Abu Bakr, his son-in-law and chief judge and priest, as his heir, and delegated to him all the authority he exercised over Bwansa and the Island of Sulu. This it appears was acquiesced in by the native chiefs who accepted Abu Bakr as their temporal overlord, as well as their spiritual master. Claiming descent from Mohammed, he assumed the powers of a caliph and entitled himself sultan. The Sulus as a rule refer to him as As-Sultan ash-Sharif al-Hashimi, meaning the Sultan, the Hashimite Sharif or noble. The words Mohammed and Abu Bakr are generally left out when he is mentioned in prayer or in ordinary discourse.

Having established the church, his next aim, after ascending the throne of Sulu, was the political reorganization of the government. This he undertook to frame on the same principles as those of an Arabian sultanate, giving himself all the power and prerogatives of a caliph. In enforcing such claims of absolute sovereignty, Abu Bakr declared to the people and their local chiefs that the widows, the orphans, and the land were his by right. This the people hesitated to submit to, and another measure was adopted which reconciled the interests of all parties. They agreed that all the shores of the island and all that territory within which the royal gong or drum could be heard should be the sultan's personal property, and that the rest of the island should be divided among the subordinate chiefs and their people. The island was accordingly divided into five administrative districts, over each one of which one panglima exercised power subject to the supervision and superior authority of the sultan. These districts were again divided into smaller divisions, which were administered by subordinate officers or chiefs called maharaja, orangkaya, laksamana, parukka, etc. The districts were called Parang, Pansul, Lati, Gi'tung, and Lu'uk. The boundaries which it seemed necessary at that time to define were marked by large trees, none of which is living at present. Thus a sangay [143] tree separated Parang from Pansul. The location of this tree was at a point near Bud Agad and the stream Agahun, which runs down from Tumangtangis toward Maymbung. A bawnu [143] tree separated Pansul from Lati. This tree was located at a place called Indung, intermediate between Asturias and the walled town of Jolo. A mampalam [143] tree called Tarak separated Lati from Lu'uk. It was in the vicinity of the settlement of Su'. A variety of durian tree named Siggal-saggal formed the boundary of Lati and Gi'tung.

According to later usage, these districts are defined as follows: Parang is the western district lying west of a line passing through a point east of the summit of Tumangtangis and a point on the southern coast 3 miles west of Maymbung. A line passing through Mount Pula and a point a little east of Maymbung marks the boundary between Pansul on the west and Lati and Gi'tung on the east. The watershed is generally considered as the dividing line between Lati and Gi'tung. A line joining Su' on the north and Lubuk on the south separates Lati and Gi'tung from Lu'uk. A sixth district has lately been carved out and termed Tandu, forming the easternmost part of the island. A line joining Sukuban on the south and Limawa on the north divides Tandu and Lu'uk.

The government thus organized was conducted in conformity with local customs and laws modified to such an extent as not to be repugnant and contrary to Mohammedan laws and the precepts of the Quran. To preserve this consistency, a code of laws was made and promulgated by Abu Bakr. This, once established, became the guide of all the subordinate officers of the state, who, as a rule, observed it and carried out its instructions. The general lines on which Abu Bakr conducted his government seem to have been followed very closely by all his successors. Such an adventurous and aggressive man as he was could not have stopped within the limits of the island. In all probability he pushed out in various directions, but no records have so far been found which give any account of the conquests he made or the limits of his empire. Abu Bakr lived thirty years in Sulu and died about 1480.

EARLY DAYS OF THE SULTANATE, 1480-1635

SUCCESSORS OF ABU BAKR

The dynasty founded by Abu Bakr ruled with a firmer hand and attained considerable power and fame. The new organization establishing law and order, consolidated the forces of the state and increased its influence on the outside world. Islam added a new element of strength and another stimulus to campaign and conquest. The Sulus never exceeded 60,000 in number, yet we learn that, prior to the arrival of Magellan, their power was felt all over Luzon and the Bisayan Islands, the Celebes Sea, Palawan, North Borneo, and the China Sea, and their trade extended from China and Japan, at the one extreme, to Malacca, Sumatra, and Java at the other.

Abu Bakr was succeeded by his second son, Kamalud-Din. Alawad-Din, the elder son, was weak-minded and was evidently not supported by the ministers of the state. The next three sultans who followed were Diraja, Upu, and Digunung. Their full names are, the Sultan Amirul Umara [144] Maharaja Diraja, the Sultan Mu`izzul Mutawadi`in [145] Maharaja Upu, the Sultan Nasirud-Din Awal [146] Digunung [147] (or Habud [148]).

The sixth sultan was Mohammedul Halim [149] Pangiran Buddiman. During his reign Governor Sandé equipped and directed large expeditions to Borneo and Sulu. The armada sent to Sulu was commanded by Capt. Esteban Rodriguez de Figueroa and reached the town of Jolo in June, 1578. It is asserted that Rodriguez defeated Pangiran and exacted tribute from the Sulus. Rodriguez, however, did not occupy Jolo, and no permanent advantage was derived from his victory.

FIGUEROA'S EXPEDITION AGAINST SULU

This invasion marked the beginning of a state of war between Sulu and Spain, which covered a period of three hundred years and caused considerable devastation and loss of life. It cost Spain an immense loss of men and money and finally brought on the decline of Sulu and its end as an independent state. The magnitude of this strife, its far-reaching effects, and its bearing on the Spanish and American occupation of

Sulu, invites special attention to the causes of the war and the Sulu character which it depicts.

The expedition to Jolo formed part of and immediately followed the expedition which was directed by Governor Sandé against Borneo. There is no doubt that, besides the reasons Sandé gave for the expedition to Borneo, he was really actuated by jealousy of the Portuguese, whose influence had reached Bruney and the Moluccas, and by a strong desire to conquer Borneo, Sulu, Mindanao, and the Moluccas. His reasons for sending the expedition against Sulu are best given in his letter of instructions to Capt. Rodriguez de Figueroa, which is extremely interesting and is herein quoted in full: [150]

That which you, Capt. Esteban Rodriguez de Figueroa, shall observe on the expedition which you are about to make, God our Lord helping, is as follows:

From this city and Island of Borneo, God willing, you shall go to the Islands of Sulu, where you shall endeavor to reduce that chief and his people to the obedience of his Majesty. You shall bargain with them as to what tribute they shall pay, which shall be in pearls, as they are wont to give to the King of Bruney. You shall exercise great care and, if possible, much mildness; for it is of importance that those islands should not become depopulated; therefore, in case they receive you peaceably, you shall treat them well. And, in addition to the above, you must order that, besides the tribute that they are to pay in pearls, they shall obtain as many of them as possible, so that we, the Spaniards or Castilians, may buy them; that they must trade with us from now on; that every year Castilians will go to their lands with cloths and merchandise from China, of whatever they shall declare that they may need. You shall inform yourself of their needs; and if they wish to come to our settlements you shall give them permission to go freely to Manila and to come to Borneo, although not to steal.

Item: You shall find out from them the whereabouts of the artillery and anchors of a ship lost there some three years ago; and you shall seek it and see that it be brought you with all haste. You shall keep close watch over the artillery, ammunition, vessels, sails, and other like things pertaining to the armed fleet; and you shall deprive them of those supplies, for it is notorious that those people are common marauders.

And because of my information that the chief who calls himself lord of Sulu is a Bornean, and owns houses in this city of Bruney; that he fought against us in the naval battle, and that he fled to Sulu, where he is now; and since I am told that he took two galleys and three small vessels, artillery and ammunition, you shall exercise the utmost despatch to obtain the said galleys, vessels, artillery, and ammunition. If he acquiesce, you shall give him a passport. You shall see whether he has any children; and if so, you shall take one, and tell him that he must come to see me in Bruney in February.

And, as I have said, this must be done if possible gently, in order that no people may be killed. You shall tell him that it will be to their advantage to be vassals of his Majesty and our allies. If they do not act respectfully, and it shall be necessary to punish them in another manner, you shall do so. And inasmuch as the Sulus, as is well

known, are open pirates, whose only ambition is to steal, and to assault men in order to sell them elsewhere--especially as they go annually for plunder among all the Pintados [151] Islands, which are under his Majesty's dominion--you shall try to ascertain the Pintados slaves among them, in order to return such to their homes, especially those who are Christians. And, as I have said, you shall deprive them of such vessels as seem to be used for raids, leaving them their fishing vessels, so that if the said lord of Sulu so desire, he can come to confer reasonably with me. Thus you shall ascertain who has vessels, and who can inflict injuries; and you shall command them expressly to settle down on their land, to cultivate, sow, and harvest, develop the pearl industry, and cease to be pirates. You shall order them to raise fowls and cattle. You shall try to ascertain their number, and bring it to me in writing, in order that I may see it, together with the distance from these islands to the Sulu Islands, information regarding the food, water, and healthfulness of that land, and other things that may occur to you. And you shall tell the people in my name that they shall tame for me a couple of elephants, and that I shall send for those animals and pay for them.

After having finished affairs in Sulu, if time permits, you shall, God willing, go to the Island of Mindanao. There you shall try, by the most convenient methods and with friendliness, to reduce the chief of the river of Mindanao, and the other chiefs of that island, and of those near by, to the obedience of his Majesty, giving him to understand what they will gain in becoming his Majesty's vassals and our allies, and in having trade with us.

And, in order that the tribute may not prevent them from making peace with us, you shall not ask them for any tribute; but you shall take what they give freely, and nothing more, and in such form as they are willing to give. Thus you shall suit their convenience in everything pertaining to them, and cause them to understand the great expenses of his Majesty in this land. You shall also tell them that the gain therefrom affects them chiefly, since we come to teach them our civilization, and most of all the service of God, our Lord, who created and redeemed them, and of whom they are ignorant; and how to live in accord with natural law, as is their obligation. For this purpose you shall tell them that you are going to their land for two principal reasons:

The first is that they should cease to be pirates, who rob and harry the weak, and enslave wherever and whomsoever they can, selling their captives outside of their own island, and separating them from their wives and children; and that they must cease to commit other like cruelties and thefts, and must become good and virtuous men, who shall grow to merit the second and principal reason for going to their lands. You shall give them to understand that they are ignorant of God, our Lord, who created and redeemed them, so that when they know him they may serve him and become good. It is quite evident that they will gain very much in these things, and therefore it is right that they aid us and give us something. This shall be at their own will, as above said.

Item: You shall order them not to admit any more preachers of the doctrine of Mohammed, since it is evil and false, and that of the Christians alone is good. And

because we have been in these regions so short a time, the lord of Mindanao has been deceived by the preachers of Bruney, and the people have become Moros. You shall tell them that our object is that he be converted to Christianity; and that he must allow us freely to preach the law of the Christians, and the natives must be allowed to go to hear the preaching and to be converted, without receiving any harm from the chiefs.

And you shall try to ascertain who are the preachers of the sect of Mohammed, and shall seize and bring them before me and you shall burn or destroy the house where that accursed doctrine has been preached, and you shall order that it be not rebuilt.

Item: You shall order that the Indians [152] shall not go outside of their island to trade; and you shall seize those vessels used for plundering excursions, leaving them those which, in your judgment, are used for trade and fishing. You shall take also what artillery and ammunition they have.

You shall ascertain the harvest seasons and products of the land; the gold mines and the places where they wash gold; the number of inhabitants and their settlements; and their customs. You must especially secure information regarding cinnamon, in order to ascertain if it is found along the river, or if one must go to Cavite for it, and why it is not as good as that which the Portuguese take to Castilla. You shall ascertain how they cut and strip it from the tree, and if it be of importance that it dry on the tree, or in what other manner it should be treated, for I have been told that that obtained from these districts in the past has not been good and has not a good sale in Spain.

And, since it might happen that the people will not make peace, and may offer fight, and show disrespect, then you shall punish them as you deem best, taking special care not to trust them; for it is evident that before all else they will, if possible, commit some treachery. You must not await such an occasion, for we know already their treachery against his Majesty's fleet commanded by Villalobos, certain of whose men they killed under assurances of safety; and they seized a boat. In that treachery all the inhabitants of the islands were participants; for four or five thousand of the said natives attacked one small boat, which contained four or five Spaniards. Likewise many people took part in the killing of the said Villalobos's master-of-camp, and other soldiers, in that same year. You shall remind them of these things, and warn them; for, from now on, we shall destroy them and their generation.

And, since it might happen that, without any occasion of war or peace, the said natives flee to the mountains, you shall order that certain of the said natives summon them; and, when they have come, you shall discuss the matter with them. If they refuse to come, you shall, in conformity with your orders, remain there a given time. And if they continue to refuse to come down, you shall leave them, and shall return, without permitting their houses to be burned or their palm trees to be cut down. Neither shall anything be stolen from them; but you shall take only what is absolutely necessary for food and the food and other things necessary to provision your vessels for the return trip.

You shall try to secure information of the Island of Linboton, as well as of Batachina and Celebes, so as to advise me thereof; and you shall do this in accord with the time limit I have set for you to make this exploration, and you shall observe the same rule as in that of Mindanao.

In order that we may allot in encomiendas [153] whatever people are found in these districts, you shall bring me a signed notarial writ. Thus, as those lands have no other owner, the natives thereof may be reduced to the obedience of his Majesty, according to his will--and by war, if the natives begin it, so that war on our part may be just, and that the same justice may continue, so that we can compel them to obey, and impose tributes upon them. You shall exercise much diligence in this and see to it that these orders be carried out carefully and intelligently.

God willing, I shall be in Bruney by the end of the month of January next--or, at the latest, by the eighth of February--with the fleet and all the necessaries that must be brought from Manila, and that which is here. And at that time your grace shall come to Bruney with the fleet that you have, and with all the people that you have or shall have in the Pintados, so that we may do here whatever is proper for the service of his Majesty, to which we are bound. These instructions must not be disregarded in any point, unless I advise you to the contrary by letter. And to this end you shall see that all who live and dwell there be commissioned for the above, in addition to their own duties. Given at Bruney, May twenty-three, one thousand five hundred and seventy-eight.

If the natives of Mindanao or of any other place shall give tribute according to the above, you shall act according to the usual custom in these islands--namely, you shall take one-half and place it to the account of his Majesty, while the other half shall be distributed among the soldiers. Given ut supra.

Doctor Francisco de Sandé.

Before me: Alonso Beltran, His Majesty's notary.

REASONS FOR HOSTILITIES

The above shows clearly that Governor Sandé intended, first, to reduce Sulu to a vassal state; second, to exact tribute in pearls; third, to secure the trade of Sulu for the Spaniards; fourth, to punish the Sultan of Sulu for the help he rendered the Sultan of Bruney against the Spanish forces; fifth, to rescue the Christian slaves in Sulu; sixth, to deprive the Sulus of their artillery and ammunition and of all vessels except fishing vessels, in order to stop their piracy; seventh, to compel the Sulus to become peaceful agriculturists; eighth, to uproot the "accursed doctrine" of Mohammed and to convert the Sulus to the Christian religion.

The leader of the expedition was directed to carry out these instructions as carefully and as gently as possible; and there is no reason to think that he failed to comply with his orders to the letter. But no matter how careful and faithful Captain Rodriguez could have been, it was not difficult for the Sulus to understand the purpose of the expedition and the motives of the Spanish Government, and it does not

stand to reason that such people would yield to vassalage and receive a direct insult to their religion without resentment and without a struggle. Governor Sandé knew the reputation of the Sulus, but he must have underestimated their strength and failed to provide garrisons for the occupation of the conquered territory and the protection of peaceful natives.

In January, 1579, Governor Sandé sent an expedition to Mindanao, commanded by Capt. Gabriel de Ribera, under instructions similar to those given to Captain Rodriguez. Ribera had additional orders to visit Jolo and collect the tribute for that year, and special stress was laid on procuring from the Sultan of Sulu "two or three tame elephants." Ribera accomplished nothing in Mindanao; the natives abandoned their villages and fled to the interior. On his return to Kawite or Caldera, he met a deputation from Jolo, which brought insignificant tribute and informed him of the existence of famine in Sulu and the extreme distress of the people. He returned their tribute, receiving in its place a cannon, which the Sulus had obtained from a wrecked Portuguese galley. Ribera then returned to Cebu, without producing any significant effect on conditions in Sulu.

In April, 1580, Governor Sandé was relieved by Governor Gonzalo Ronquillo, who did not take the same interest in Borneo and Sulu. In the same year the kingdom of Portugal and its rich eastern colonies were annexed to the Spanish domain. No danger could then be expected from the direction of Borneo and Sulu, and the ambitious new Governor-General turned his attention to more desirable fields of conquest.

Piracy was not the primary cause of this invasion of Sulu. Public sentiment was not so strong against slavery in those days as it is now; for the Spaniards and other leading civilized nations were then diligently pursuing a profitable trade in it between the west coast of Africa and the West Indies and America. Piracy is always a crime among nations, but it can not be urged as the principal and leading cause of this war or as sufficient reason in itself for the early precipitation of such a deadly conflict between Sulu and Spain. Religion, on the other hand, was declared by Governor Sandé to be the "principal reason for going to their lands." He ordered the Sulus not to admit any more preachers of Islam, but to allow the Spanish priests to preach Christianity to them. The Mohammedan preachers he directed to be arrested and brought to him, and the mosques to be burned or destroyed and not to be rebuilt.

Part of the instructions the Adelantado [154] Miguel Lopez de Legaspi received before embarking on his expedition to the Philippines read as follows:

And you shall have especial care that, in all your negotiations with the natives of those regions some of the religious accompanying you be present, both in order to avail yourself of their good counsel and advice, and so that the natives may see and understand your high estimation of them; for seeing this, and the great reverence of the soldiers toward them, they themselves will hold the religious in great respect. This will be of great moment, so that, when the religious shall understand their language, or have interpreters through whom they may make them understand our holy Catholic faith, the Indians shall put entire faith in them; since you are aware that

the chief thing sought after by his Majesty is the increase of our holy Catholic faith, and the salvation of the souls of those infidels. [155]

In 1566, a petition was sent from Cebu to the King of Spain, bearing the signatures of Martin de Goiti, Guido de Labezari, and the other leading officers under Legaspi, setting forth, among other requests, the following:

That the Moros, "because they try to prevent our trade with the natives and preach to them the religion of Mohammed," may be enslaved and lose their property. That slave traffic be allowed, "that the Spaniards may make use of them, as do the chiefs and natives of those regions, both in mines and other works that offer themselves." [156]

In a letter addressed to Legaspi King Philip II said:

We have also been petitioned in your behalf concerning the Moro Islands in that land, and how those men come to trade and carry on commerce, hindering the preaching of the holy gospel and disturbing you. We give you permission to make such Moros slaves and to seize their property. You are warned that you can make them slaves only if the said Moros are such by birth and choice, and if they come to preach their Mohammedan doctrine or to make war against you or against the Indians, who are our subjects and in our royal service.

In a letter addressed to King Philip II Bishop Salazar writes, June 27, 1588, as follows:

The second point is that, in the Island of Mindanao, which is subject to your Majesty, and for many years has paid you tribute, the law of Mohammed has been publicly proclaimed, for somewhat more than three years, by preachers from Bruney and Ternate who have come there--some of them even, it is believed, having come from Mecca. They have erected and are now building mosques, and the boys are being circumcised, and there is a school where they are taught the Quran. I was promptly informed of this, and urged the president to supply a remedy therefor at once, in order that that pestilential fire should not spread in these islands. I could not persuade them to go, and thus the hatred of Christianity is there; and we are striving no more to remedy this than if the matter did not concern us. Such are the calamities and miseries to which we have come, and the punishments which God inflicts upon us. [157]

In drawing a contract with Capt. Esteban Rodriguez de Figueroa, in 1591, for the pacification and conquest of Mindanao, the Governor and Captain-General Gomez Perez Dasmariñas makes the following declarations:

His Majesty orders and charges me, by his royal instructions and decrees, as the most worthy and important thing in these islands, to strive for the propagation of our holy faith among the natives herein, their conversion to the knowledge of the true God, and their reduction to the obedience of His holy church and of the king, our sovereign. * * *

Moreover, the Island of Mindanao is so fertile and well inhabited, and teeming with Indian settlements, wherein to plant the faith, * * * and is rich in gold mines and

placers, and in wax, cinnamon, and other valuable drugs. And although the said island has been seen, discussed, and explored, * * * no effort has been made to enter and reduce it, nor has it been pacified or furnished with instruction or justice--quite to the contrary being, at the present time, hostile and refusing obedience to his Majesty; and no tribute, or very little, is being collected. * * *

Besides the above facts, by delaying the pacification of the said island greater wrongs, to the offense and displeasure of God and of his Majesty, are resulting daily; for I am informed that the king of that island has made all who were paying tribute to his Majesty tributary to himself by force of arms, and after putting many of them to death while doing it; so that now each Indian pays him one tae [158] of gold. I am also told that he destroyed and broke into pieces, with many insults, a cross that he found, when told that it was adored by the Christians; and that in Magindanao, the capital and residence of the said king, are Bornean Indians who teach and preach publicly the false doctrine of Mohammed, and have mosques; besides these, there are also people from Ternate--gunners, armorers, and powder-makers, all engaged in their trades--who at divers times have killed many Spaniards when the latter were going to collect the tribute, * * * without our being able to mete out punishment, because of lack of troops. By reason of the facts above recited, and because all of the said wrongs and troubles will cease with the said pacification; and, when it is made, we are sure that the surrounding kingdoms of Bruney, Sulu, Java, and other provinces, will become obedient to his Majesty: therefore, in order that the said island may be pacified, subdued, and settled, and the gospel preached to the natives; and that justice may be established among them, and they be taught to live in a civilized manner, and to recognize God and His holy law, I have tried to entrust the said pacification to a person of such character that he may be entrusted with it. [159]

It is plain, therefore, that the sentiment of the times justified war on the Moros for the cause of religion alone, and that, though the primary object was conquest, no doubt the religious motives of the Spaniards were stronger than their desire to check piracy. But, of all the Christian nations, the Spaniards should have been most aware of the tenacity, determination, and courage with which the Mohammedans defend their faith, and the Sulus were no exception to the rule, for they had been born and reared in that religion for more than four generations.

A wiser policy on the part of Governor Sandé would have either let the Moros of Sulu and Mindanao alone, or effected a complete reduction of the state of Sulu and immediate occupation of the coasts of Mindanao with strong forces; for it appears from all accounts that neither the Sulus nor the Magindanaos were as strongly organized then as they were a generation later, and either alliance or war should have been easier then than afterwards.

The Spaniards at that time were excellent warriors. Their conquests of the Bisayan Islands and Luzon were rapid and brilliant, but it appears that the system of government which they inaugurated there met with distinct failure the minute it was extended to the more organized communities and the greater forces they encountered in the south. The Sulus, on the other hand, fought in the defense of their national independence and religion, and never found life too dear to sacrifice in that

cause. They resented the treatment of Spain, and in their rage and desire for revenge built stronger forts and fleets and became fiercer pirates.

RULE OF BATARA SHAH TANGAH

Pangiran must have died about 1579 and was followed by Sultan Batara Shah Tangah, who is in all probability the Paquian or Paguian Tindig of the Spanish writers. Tangah's claim to the sultanate was strongly contested by his cousin, Abdasaolan [160] who ruled over Basilan. The latter attacked Jolo with a strong force, but failed to reduce its forts. Tangah, however, felt insecure and went to Manila to request Governor Sandé's aid and returned to Sulu with two Spanish armed boats (caracoas). [161] Abdasaolan, whose power had in the meantime increased, prepared for defense and watched for the advance of the Sultan's boat. Finding that the caracoas were at a considerable distance from the Sultan's boat he manned two light salisipans [162] with a strong force and dispatched them, with speed to intercept Tangah. The Sultan's party was completely surprised, and in the fight that resulted Tangah was killed. On reaching Jolo the Spanish forces attacked the town. The Sulus fought valiantly, but their fort was reduced. The officers in command of the caracoas assembled the people and had Raja Bungsu, who was wounded in the fight, elected sultan to succeed Tangah. The full title of Bungsu was "The Sultan Muwallil Wasit Bungsu." [163]

FIGUEROA'S EXPEDITION AGAINST MINDANAO

In 1596 Capt. Esteban Rodriguez led an expedition into Mindanao, for its conquest and pacification.

It is maintained that he proceeded up the Mindanao River as far as Bwayan, the capital of the upper Mindanao Valley.

Don Esteban Rodriguez prepared men and ships, and what else was necessary for the enterprise, and with some galleys, galleots, frigates, vireys, [164] barangays, [164] and lapis, [165] set out with two hundred and fourteen Spaniards for the Island of Mindanao, in February of the same year, of 1596. He took Capt. Juan de la Xara as his master-of-camp, and some religious of the Society of Jesus to give instruction, as well as many natives for the service of the camp and fleet.

He reached Mindanao River after a good voyage, where the first settlements, named Tampakan and Lumakan, both hostile to the people of Bwayan, received him peacefully and in a friendly manner, and joined his fleet. They were altogether about six thousand men. Without delay they advanced about 8 leagues farther up the river against Bwayan, the principal settlement of the island, where its greatest chief had fortified himself on many sides. Arrived at the settlement, the fleet cast anchor and immediately landed a large proportion of the troops with their arms. But before reaching the houses and fort, and while going through some thickets [cacatal] [166] near the shore, they encountered some of the men of Bwayan, who were coming to meet them with their kampilan, [167] carazas [168] and other weapons, and who

attacked them on various sides. The latter [i.e., the Spaniards and their allies], on account of the swampiness of the place and the denseness of the thickets [cacatal], could not act unitedly as the occasion demanded, although the master-of-camp and the captains that led them exerted themselves to keep the troops together and to encourage them to face the natives. Meanwhile Governor Esteban Rodriguez de Figueroa was watching events from his flagship, but not being able to endure the confusion of his men, seized his weapons and hastened ashore with three or four companions and a servant who carried his helmet in order that he might be less impeded in his movements. But as he was crossing a part of the thickets [cacatal] where the fight was waging, a hostile Indian stepped out unseen from one side and dealt the governor a blow on the head with his kampilan that stretched him on the ground badly wounded. [169] The governor's followers cut the Mindanao to pieces and carried the governor back to the camp. Shortly after the master-of-camp, Juan de la Xara, withdrew his troops to the fleet, leaving behind several Spaniards who had fallen in the encounter. The governor did not regain consciousness, for the wound was very severe, and died next day. The fleet after that loss and failure left that place, and descended the river to Tampakan, where it anchored among the friendly inhabitants and their settlements.

The master-of-camp, Juan de la Xara, had himself chosen by the fleet as successor in the government and enterprise. He built a fort with arigues [170] and palms near Tampakan, and founded a Spanish settlement to which he gave the name of Murcia. He began to make what arrangements he deemed best, in order to establish himself and run things independently of, and without acknowledging the governor of Manila, without whose intervention and assistance this enterprise could not be continued. [171]

Bwayan was 30 miles up the river and 25 miles above Magindanao or Kotabato where Bwisan, the Sultan of Magindanao, was strongly fortified. It is difficult to believe that Rodriguez could advance so far even with a small scouting party. A careful review of the Spanish reports referring to these early campaigns in Mindanao indicates that Bwayan has been erroneously used in place of Magindanao, the ancient capital of the sultanate of Magindanao.

Bent on the conquest of Mindanao, Governor Tello prepared another expedition under Gen. Juan Ronquillo [172] and dispatched it by the way of Cebu. At Caldera, it was joined by the fleet of Mindanao and the whole force proceeded east in the direction of the Mindanao River, on the 6th of February, 1597. Captain Chaves arrived with his frigates at the river on the 8th of January. In a battle fought at Simway to capture Moro vessels going to seek aid from Ternate he had a leg cut off and received a shot in the helmet above the ear. Ronquillo arrived at the mouth of the river on February 21, and on the 17th of April he engaged a Moro fleet with 40 arquebusiers and defeated them, killing a number of their brave men and some Ternatans without losing any of his men except 5 Bisayans. Leaving a guard of 34 men under Chaves at the fort of Tampakan he advanced up the river with a force of 230 sailors and gunners. The enemy retired behind some parapets as soon as the artillery opened upon them, and brought some artillery to bear on the flagship (one of

the galleys), but could not retard the Spanish advance.

"I answered their fire with so great readiness," said Ronquillo in his report, "that I forced them to withdraw their artillery. But, as if they were goblins, they remained here behind a bush or a tree, firing at us without being seen." Reinforced by the chief of the hill tribes, Lumakan, with 500 natives, Ronquillo resumed the fighting after the delay of a few days. "Finally," continued Ronquillo, "I planted my battery of eight pieces somewhat over 100 paces from the fort. Although I battered the fort hotly, I could not effect a breach through which to make an assault. All the damage that I did them by day, they repaired by night. * * *

"I was very short of ammunition, for I had only 3,000 arquebus bullets left, and very few cannon balls; and both would be spent in one day's fighting, during which, should we not gain the fort, we would be lost--and with no power to defend ourselves while withdrawing our artillery and camp. * * *

"I reconnoitered the fort and its situation, for it is located at the entrance of a lagoon, thus having only water at the back, and swampy and marshy ground at the sides. It has a frontage of more than 1,000 paces, is furnished with very good transversals, and is well supplied with artillery and arquebuses. Moreover it has a ditch of water more than 4 brazas [173] wide and 2 deep, and thus there was a space of dry ground of only 15 paces where it was possible to attack; and this space was bravely defended, and with the greatest force of the enemy. The inner parts were water, where they sailed in vessels, while we had no footing at all."

"Again, I reflected that those who had awaited us so long, had waited with the determination to die in defense of the fort; and if they should see the contest ending unfavorably for them, no one would prevent their flight. Further, if they awaited the assault it would cost me the greater part of my remaining ammunition, and my best men; while, if the enemy fled, nothing would be accomplished, but on the contrary a long, tedious, and costly war would be entered upon. Hence, with the opinion and advice of the captains, I negotiated for peace, and told them that I would admit them to friendship under the following conditions:

"First, that first and foremost they must offer homage to his Majesty, and pay something as recognition" (a gold chain). Second, "that all the natives who had been taken from the Pintados Islands [Bisayan Islands] last year, must be restored." Third, "that they must break the peace and confederation made with the people of Ternate, and must not admit the latter into their country." Fourth, "that they must be friends with Danganlibor and Lumakan, * * * and must not make war on their vassals." Fifth, "that all the chiefs must go to live in their old villages." [174]

Ronquillo later reported the place indefensible and was authorized to retire to Caldera.

Ronquillo must have advanced as far as the settlement of Kalangnan or possibly Magindanao (Kotabato), the capital of Sultan Bwisan. The report he rendered relative to the country, its people and chiefs, is very interesting and an excerpt of the same is herewith quoted because of its bearing on conditions throughout Moroland:

The leading chiefs collect tribute from their vassals. * * * These Indians are not like those in Luzon, but are accustomed to power and sovereignty. Some collect five or six thousand tributes. * * *

Hitherto it has not been possible to tell your lordship anything certain of this country except that it will be of but little advantage to his Majesty, but a source of great expense. It has far fewer inhabitants than was reported, and all are very poor, so that their breakfast consists only in cleaning their arms, and their work in using them, and not in cultivating the land, which is low and swampy in this river. There is no chief who can raise 20 taes of gold. Rice is very scarce; in the hills is found a small amount, which is used for food by the chiefs only. There are some swine, and a few fowls that are very cunning, and less fruit. [175]

These early expeditions of the Spaniards against the Moros undoubtedly aroused in the latter a great desire for vengeance. The forces the Spaniards sent to conquer Mindanao and Sulu were very small. Such forces would have been strong enough to reduce any island of the Bisayan group, or even Luzon, but against the Moros they proved insufficient and inadequate. They however succeeded in provoking bitter hostilities and marked the beginning of a long period of terror and bloodshed.

MORO RAIDS [176]

In 1599 combined Moro fleets invaded and plundered the coasts of the Bisayan Islands, Cebu, Negros, and Panay.

Captain Paches, who was in command of the fort of Caldera, attacked the northern coast of the Island of Sulu. After landing at some point, it was observed by the Sulus that his fuses were wet and that his guns could not fire well. They then rushed his position, killed him, and dispersed his forces.

The following year saw the return of a larger and still more dreadful expedition. The people of Panay abandoned their towns and fled into the mountains under the belief that these terrible attacks had been inspired by the Spaniards. To check these pirates, Juan Gallinato, with a force of 200 Spaniards, was sent against Sulu, but like so many expeditions that followed his, he accomplished nothing. * * * "From this time until the present day" (about the year 1800), wrote Zuñiga, "these Moros have not ceased to infest our colonies; innumerable are the Indians they have captured, the towns they have looted, the rancherias they have destroyed, and the vessels they have taken. It seems as if God has preserved them for vengeance on the Spaniards that they have not been able to subject them in two hundred years, in spite of the expeditions sent against them, the armaments sent almost every year to pursue them. In a very little while we conquered all the islands of the Philippines, but the little Island of Sulu, a part of Mindanao, and the other islands nearby, we have not been able to subjugate to this day." [177]

Gallinatos's expedition occurred in 1602. [178] After three months of protracted fighting at Jolo, he was unable to reduce the fortifications of the town and retired to Panay.

In 1616 a large Sulu fleet destroyed Pantao in the Camarines and the shipyards of Cavite and exacted large sums for the ransom of Spanish prisoners. Moro fleets in 1625 sacked Katbalogan in Samar.

In 1628 Governor Tavora sent an expedition to Sulu under Cristobol de Lugo. Cristobol disembarked half of his infantry, sacked the town of Jolo, set part of it on fire and sailed back to Cebu.

In 1629 the Moros raided Samar and Leyte. In 1630 an armada composed of 70 vessels and having 350 Spanish and 2,000 native soldiers, under Lorenzo de Olaso Ochotegui, arrived at Jolo. Olaso misdirected his forces and, advancing too near to the wall of the fort, was wounded in his side and fell. He was rescued by the officers who followed him, but the troops were demoralized and retired. The expedition, however, landed at various points on the coast and burned and pillaged small settlements. [179]

In the same year P. Gutierrez came to Mindanao on a mission to Corralat. [180] On his return he met Tuan Baluka, wife of Raja Bungsu, at Zamboanga. Baluka urged P. Gutierrez to delay his departure from Zamboanga and warned him of the danger of meeting the Sulu expedition under Datu Ache. He, however, continued on his way and was overtaken by Datu Ache's force, but on account of the message and flag he delivered to Ache from Tuan Baluka, he was allowed to proceed safely.

For some time the Jesuits had been urging upon the Philippine Government the occupation of the southern coast of Mindanao. This meant an advance into the enemy's camp and a bloody struggle for supremacy in the southern seas. The consequences of such a step were foreseen by the Government and very few governors would have dared undertake such a grave responsibility. In 1635, Governor Juan Cerezo de Salamanca was petitioned by the Jesuits to establish an advance post of the Spanish forces at Zamboanga for the protection of missionaries and the Christians who had to navigate in the southern seas. Salamanca granted their request and sent Capt. Juan de Chaves, who disembarked at Zamboanga on the 6th of April, 1635. The force under Captain Chaves consisted of 300 Spanish and 1,000 native soldiers. In June they began the construction of a stone fort on a plan designed by the Jesuit missionary P. Melchor de Vera, who was an expert engineer.

The advantages to be derived from the position of this garrison were demonstrated before the year was over. As a piratical fleet was returning from Cuyo, Mindoro, and the Kalamian Islands, the favorable opportunity was watched for, and as the two divisions of the fleet separated, the Spanish forces pursued Corralat's pirates and dealt them a deadly blow in the neighborhood of Point Flechas, killing about 300 Moros and saving 120 Christian captives. [181]

FIRST SPANISH CONQUEST AND OCCUPATION OF SULU, 1635-1646

Gen. Sebastian Hurtado de Corcuera relieved Salamanca before the end of the year 1635 and continued the same policy with additional vigor and great ability. He

quickly resolved upon attacking the Moros in their own strongholds, and thought that by crushing their power at home he would be able to put an end to their piratical raids.

He arrived at Zamboanga February 22, 1636, proceeded first to Mindanao, fought Corralat and destroyed some of his forts and sailed back to Manila. [182] Corcuera returned to Zamboanga in December, 1637, and prepared for an expedition against Sulu. On January 1, 1638, he embarked for Sulu with 600 Spanish soldiers, 1,000 native troops, and many volunteers and adventurers. He had 80 vessels all told and arrived at Jolo on the 4th. [183]

Anticipating an invasion, Sultan Bungsu had strengthened his garrisons and called for aid and reënforcements from Basilan, Tapul, and Tawi-tawi. On his arrival Corcuera found the town well fortified and the enemy strongly intrenched. The Moros were well disciplined and had a well organized guard. The forts occupied strategic points and were strongly defended; the trenches were well laid, and the Moros shot well and fought fearlessly.

Corcuera besieged the town with all his forces and attacked it repeatedly and valiantly using powerful artillery, but he could not reduce it. Several efforts to tunnel the walls or effect a breach in them by mines were frustrated by the vigilance and intrepidity of the Sulus. The siege lasted three months and a half, at the end of which time the Sulus evacuated the town and retired to the neighboring hills, where they intended to make the next stand. Corcuera, taking possession of the town, reconstructed its forts and established three posts, one on the hill, one at the river, and one on the sandbank in front of the town. The garrison he established there consisted of 200 Spanish soldiers and an equal number of Pampangans, under the command of Capt. Ginés Ros and Gaspar de Morales. In May Corcuera returned to Manila with all the triumph of a conqueror, leaving Gen. Pedro Almonte, the senior officer next to himself in command of the expedition, as governor of Zamboanga and Ternate and chief of the forces in the south.

Soon after the establishment of the Jolo garrison, the Sulus under Datu Ache attacked the soldiers in the quarry and killed a few Spaniards and captured 40 Chinese and Negroes (galley slaves). This and other depredations committed by the Sulus from time to time, some of which were provoked by the ill behavior of the Spanish officers and troops, forced Almonte in June, 1639, to come over to Sulu and take the field a second time. With 3 captains and 1,200 Spanish and native soldiers, he marched over the island, attacked the Sulus in their homes, burned their houses and killed every man he could reach. It is said that he hung 500 heads on the trees, liberated 112 Christian captives, and captured quantities of arms. When he asked the Gimbaha Sulus (at one of the settlements of Parang) to submit to the sovereignty of Spain, they refused to recognize his authority, challenged his forces, and fought him desperately. They wore helmets and armor and used spears and swords. On one occasion, Captain Cepeda engaged them in battle and returned with 300 captives, leaving on the field 400 dead, a fearful lesson to those who survived. Cepeda lost 7 Spaniards and 20 natives only, but he had a large number wounded.

Not satisfied with the havoc he wrought on the Island of Sulu, and desiring to follow and catch the fugitive sultan, Almonte invaded the other large islands and followed the sultan and the datus all over the Archipelago. At Tawi-tawi, however, he met with a reverse, and the captain who led the expedition returned with considerable loss.

Soon after Almonte's departure, the Sulus who had fled returned and lost no time or opportunity in harassing the garrison. Several piratical excursions invaded the Bisayas and Camarines. Soon Dutch vessels, invited by Sulu emissaries sent to Java, appeared in the vicinity of Zamboanga and Jolo and threatened the Spanish garrison and incited the Moros to resist the Spaniards and attack their forces. Anticipating trouble with the Dutch, and foreseeing the danger of maintaining a garrison at Jolo under the circumstances, the Spaniards planned to evacuate the town. Accordingly on the 14th of April, 1646, they left Jolo. Before withdrawing their troops, they managed to make a treaty with the Sulus, which took the form of an alliance both offensive and defensive. The purpose of the treaty was declared to be the maintenance of peace between both parties and mutual aid against foreign enemies. In case of assistance against a foreign nation, the expenses of the war were to be defrayed by the party requesting aid. The Spanish Government recognized the supreme authority of the Sultan of Sulu from Tawi-tawi to Tutup and Pagahak, reserving sovereignty rights for the King of Spain over Tapul, Siasi, Balangingi, and Pangutaran only. In return for the evacuation of Jolo, and as a sign of brotherhood, the Sultan of Sulu promised to send yearly to Zamboanga three boats, 8 fathoms long, full of rice, and to allow the Jesuit priests to come to Jolo unmolested. Other provisions were inserted in the treaty for the exchange and redemption of slaves, criminals, or others who happened to run away from Zamboanga to Sulu and vice versa.

This treaty did not remain in force for any great length of time, for we hear again in 1647 that the Sulus invaded the Bisayas and harassed the vicinity of Zamboanga.

SULU SUPREMACY IN THE ARCHIPELAGO, 1647-1850

SUCCESSORS OF BUNGSU

Bungsu had a very long reign marked with reverses and misfortunes. He died before 1640, and was succeeded by Sultan Nasirud Din II and Sultan Salahud Din Karamat. The latter was known to the Spanish writers as Baktial, which was his Sulu name before the sultanate. During the reign of Karamat the Philippines were threatened by a Chinese invasion from the north and by war with Holland, and the government, under the circumstances, decided to abandon Zamboanga and the Moluccas. This purpose they carried out in 1663. In the days of Karamat the Sulus became very active and made many raids in various directions. The decline of Spain's political power and her inactivity in the century that followed the evacuation of Zamboanga caused obscurity in the Spanish records of the history of Sulu and Mindanao. The events of this century are, with few exceptions, lacking in significance and interest.

[184]

The sultans who followed Karamat are, in the order of their succession, Shahabud Din, Mustafa Shafi`ud Din, Badarud Din I, Nasarud Din, and Alimud Din I, better known as Amirul Mu'minin (Ferdinand I of Sulu). The first three were brothers, the sons of Karamat, while the last two were the sons of Badarud Din.

In 1718 Governor Bustamante reoccupied Zamboanga for the purpose of waging war against piracy. "The citadel (Fuerza del Pilar) was rebuilt on an elaborate plan under the direction of the engineer, Juan Sicarra. Besides the usual barracks, storehouses, and arsenals, there were, within the walls, a church, a hospital, and quarters for the Pampangan soldiers. Sixty-one cannon were mounted upon the defenses."

In 1725, a Chinese named Ki Kuan was sent to Manila to arrange for peace and returned with two Spanish commissioners, who made a treaty with the sultan of Sulu providing for trade between Manila and Jolo, the return or ransom of captives, and the ceding to Spain of the Island of Basilan. Notwithstanding this treaty Moro raids continued either by toleration of the sultan and datus or at their instigation.

In 1730 a brother of the sultan commanded an expedition of 31 vessels, which attacked the fort of Taytay and ravaged the coast of Palawan. Another expedition spent nearly a whole year cruising and destroying among the Bisayas.

In retaliation a large Spanish fleet united at Zamboanga and, under Ignacio de Irebri and Manuel del Rosal, invaded the shores of Sulu and ravaged and burned some settlements. At Bwal they found the settlement well protected and extensively fortified, so they contented themselves with destroying some plantations and burning outlying houses. At Tapul considerable damage was inflicted. A force of 600 disembarked, dispersed the Sulus, burned their settlements, destroyed many farms, the salt works, and many boats, and returned to Zamboanga. In 1732 similar raids were made and hostilities continued until 1737.

REIGN OF SULTAN ALIMUD DIN I

One of the earliest events in the reign of Alimud Din I was his ratification of the treaty of 1737. The sultan was represented in Manila by Datu Mohammed Ismael and Datu Ja`far, who signed the document. The treaty was drawn in January, 1737, by Governor-General Fernando Valdés y Tamon and contained five articles.

The first article declared the determination of both parties to preserve permanent peace between the two states, all differences or grievances to be settled amicably, and hostilities between subjects or vassals to be strictly prohibited and punished; the second provided for alliance and mutual aid against any foreign foe. European nations were, however, excluded from the provisions of this article; the third provided for free trade between the two states, restricted by the use of passports to be issued by superior authority; the fourth provided that each state should be held responsible for all infractions of the peace committed by its subjects and should be bound to punish the same and make proper amends to the proper party; the fifth provided for

the exchange of captives and return of all church images and ornaments in the possession of the Sulus.

To all appearances Alimud Din I was a man of peace and a reformer. He kept his part of the treaty faithfully and piracy was actually suppressed during the whole period in which he held the reins of government. He revised the Sulu code of laws and system of justice. He caused to be translated into Sulu parts of the Quran and several Arabic texts on law and religion. He strongly urged the people to observe faithfully their religion and the ordained five daily prayers. He even went so far as to prescribe punishment for failure to observe this rule. He wanted all pandita to learn Arabic and prepared Arabic-Sulu vocabularies as a preliminary step to making the Arabic the official language of the state. He coined money, organized a small army, and tried to establish a navy. His name is foremost in the memory of the Sulus, partly because of his able administration and partly on account of the fact that he is the grandfather of all the present principal datus of the Sulus.

In September, 1746, a special commission from Manila carried to Alimud Din a letter written by King Philip V in 1744, requesting the admission of Jesuit missionaries to Jolo with permission to preach the Christian religion to the Sulus. The sultan entertained the commission very hospitably and gave in their honor a royal reception and a review of the troops. A council was held in which the sultan conferred with the leading datus of Sulu and granted the request of King Philip V. He further authorized the building of a church and recommended the erection of a fort at some convenient locality for the safe protection of the missionaries. In return for this favor he requested that the Spanish Government give him, as an aid in building a navy, the sum of P6,000, 12 piculs [185] of gunpowder, 12 piculs of nails, and 1 picul of steel. This, he represented, was needed to enable him to suppress piracy and to check the depredations of his enemies in Borneo. This request the Spanish Government granted, and Jesuit missionaries entered Jolo, translated the catechism into Sulu, and distributed it freely among the people.

The liberties exercised by the Jesuits in their endeavor to proselyte the Sulus and the strong friendship the sultan manifested toward them created great dissatisfaction among the people, and an opposition party was formed, under the leadership of Prince Bantilan, for the purpose of expelling the missionaries and deposing Alimud Din. Bantilan was the son of Sultan Shahabud Din and had as much right to the sultanate of Sulu as any son of Sultan Badarud Din. After the death of the latter the sultanate should have reverted to the line of Shahabud Din; but it happens very often that the sons of the last sultan are either older than those of the former or meet with more favor and are, as a rule, supported by the majority of the council of datus; thus the regular order of descent changes in favor of the stronger person. Probably Bantilan was preceded by both Nasarud Din and Alimud Din for some such reason as the above. This he resented at heart, but suppressed his resentment until this favorable opportunity offered itself. He then headed the opposition to the sultan and the missionaries and won the majority of the datus and panditas to his side. Hostilities soon increased and civil war was imminent. In an effort to assassinate the sultan, Bantilan thrust a spear at Alimud Din and inflicted a severe wound in his side

or thigh. During the disturbances and confusion which followed it became dangerous for the missionaries to remain at Jolo. One of the ministers of the sultan provided them with a salisipan in which they escaped without harm and withdrew to Zamboanga. This occurred late in 1748. Overpowered, disheartened, and grieved, Alimud Din left Jolo with his family and numerous escort and came to Zamboanga, seeking the aid of Spain against Bantilan. The latter proclaimed himself sultan with the title of Mu`izzud Din, [186] strengthened the defenses of his capital, and waged war on all the datus who had supported Alimud Din. His power soon became supreme, and he reigned with a strong hand.

At Zamboanga Alimud Din is said to have given the officers many presents and offered the Governor Zacharias 40 male Papuan slaves, who were well dressed. Zacharias, unreasonably prejudiced and distrustful, suspected some ill design and refused the present. Not receiving sufficient attention and consideration at Zamboanga, Alimud Din asked leave to go to Manila. This granted, he sailed and arrived at Cavite January 2, 1749. At Manila "he was received with all the pomp and honor due to a prince of high rank. A house for his entertainment and his retinue of seventy persons was prepared in Binondo. A public entrance was arranged which took place some fifteen days after he reached the city. Triumphal arches were erected across the streets, which were lined with more than 2,000 native militia under arms. The sultan was publicly received in the hall of the Audiencia, where the governor promised to lay his case before the King of Spain. The sultan was showered with presents, which included chains of gold, fine garments, precious gems, and gold canes, while the Government sustained the expense of his household." [187]

Following this reception, steps were taken for his conversion. His spiritual advisers cited to him the example of the Emperor Constantine whose conversion enabled him to effect triumphant conquests over his enemies. Under these representations Alimud Din expressed his desire for baptism. The governor-general, who at this time was a priest, the bishop of Nueva Segovia, was very anxious that the rite should take place; but this was opposed by his spiritual superior, the archbishop of Manila, who, with some others, entertained doubts as to the sincerity of the Sultan's profession.

"In order to accomplish his baptism, the governor sent him to his own diocese, where at Paniki, on the 29th of April, 1750, the ceremony took place with great solemnity. On the return of the party to Manila, the sultan was received with great pomp, and in his honor were held games, theatrical representations, fireworks, and bull fights. This was the high-water mark of the sultan's popularity. [188]

At his baptism the sultan received the name of Ferdinand, and Spanish authors often referred to him as "Don Fernando de Alimud Din I, Catholic Sultan of Joló." It is further stated that two datus and five of his principal followers were baptized. The crown prince, Raja Muda Mohammed Israel and his sister Fatimah attended school in Manila and learned Spanish manners and customs.

A year and a half passed and no action was taken by the authorities to restore Alimud Din. In the meantime Bantilan's fleets were busy ravaging and pillaging the Bisayas. In July, 1750, a new governor, the marquis of Obando (Francisco José de

Obando) arrived in Manila. After some deliberation he resolved to reinstate Alimud Din and punish Bantilan and his pirates. [189] Accordingly, on May 19, 1751, the sultan and his retinue were sent on board the Spanish frigate San Fernando and were convoyed by a squadron composed of seven war vessels under the command of Field Marshal Ramon de Abad. Falling in with bad weather off the shore of Mindoro, the San Fernando was disabled and made for Kalapan. The squadron, however, continued its voyage uninterrupted to Jolo, arriving there on the 26th of June. After some desultory fighting, Abad arrived at an understanding with the Sulus and arranged for Datu Asin to come to Zamboanga with sufficient boats to escort the sultan back to Jolo.

The sultan in the meantime stopped at Iloilo where he changed boats. Meeting with contrary winds he was carried off his course to Dapitan, and from there he set sail again for Zamboanga, which he reached on July 12.

Before Ferdinand I left Manila, he had addressed a letter to the sultan of Mindanao, at the instance of the Spanish Governor-General. The original was written by Ferdinand I in Moro; a version in Spanish was dictated by him, and both were signed by him. These documents reached the governor of Zamboanga, but he had the original in Moro retranslated and found that it did not at all agree with the sultan's Spanish rendering. The translation of the Moro text runs thus:

"I shall be glad to know that the Sultan Mohammed Amirud Din and all his chiefs, male and female, are well. I do not write a lengthy letter, as I intended, because I simply wish to give you to understand, in case the sultan or his chiefs and others should feel aggrieved at my writing this letter in this manner, that I do so under pressure, being under foreign dominion, and I am compelled to obey whatever they tell me to do, and I have to say what they tell me to say. Thus the governor has ordered me to write to you in our style and language; therefore, do not understand that I am writing you on my own behalf, but because I am ordered to do so, and I have nothing more to add. Written in the year 1164 in the month Rabi`-ul Akir. Ferdinand I, King of Sulu, who seals with his own seal."

This letter was pronounced treasonable. Impressed with, or feigning this idea, Governor Zacharias saw real or imaginary indications of a design on the part of the sultan to throw off the foreign yoke at the first opportunity. [190]

After the landing of Datu Asin and his followers at Zamboanga, the governor found out by his spies that they had many arms and quantities of ammunition in their boats which lay in the roadstead opposite the town and fort. Suspicious and distrustful from the beginning, Zacharias interpreted these facts as positive proof of an intention on the part of the sultan and Datu Asin treacherously to attack the town when an opportunity offered itself. He then at once confiscated part of the arms, ordered the boats to leave the port, imprisoned the sultan and Datu Asin and all their retinue, and communicated his suspicions and the action taken to Manila. Among the prisoners were the sons and daughters of the sultan, several datus and dignitaries and panditas, and many male and female followers and servants. In all 217 persons entered the prisons of the fort, most of whom were later transferred to Manila and

confined in Fort Santiago.

Zacharias's interpretation of the action of the sultan and Datu Asin was simply absurd and his behavior reflected considerable discredit on his ability as an officer and administrator. It was further most regrettable that his views were accepted as true by higher authority in Manila where no clemency or redress was extended to the unfortunate sultan and datus.

By a degree of the Governor-General, the following accusations were set forth against the sultan and Datu Asin, viz:

1. That Prince Asin had not surrendered captives; 2. That whilst the sultan was in Manila, new captives were made by the party who expelled him from the throne; 3. That the number of arms brought to Zamboanga by Sulu chiefs was excessive; 4. That the letter to Sultan Mohammed Amirud Din insinuated help wanted against the Spaniards; 5. That several Mohammedan, but no Christian books, were found in the sultan's baggage; 6. That during the journey to Zamboanga he had refused to pray in Christian form; 7. That he had only attended mass twice; 8. That he had celebrated Mohammedan rites, sacrificing a goat, and had given evidence in a hundred ways of being a Mohammedan; 9. That his conversation generally denoted a want of attachment to the Spaniards, and a contempt for their treatment of him in Manila, [191] and, 10. That he still cohabited with his concubines.

The greatest stress was laid on the recovery of the captive Christians, and the governor added, that although the mission of the fleet was to restore the sultan to the throne (which, by the way, he does not appear to have attempted), the principal object was the rescue of Christian slaves. He therefore proposed that the liberty of the imprisoned nobles and chiefs should be bartered at the rate of 500 Christian slaves for each one of the chiefs and nobles, and the balance of the captives for Prince Asin and the clergy. [192]

It is not therefore surprising to hear of the extraordinarily revengeful activity which the Sulus exhibited during the period of humiliation to which their sultan and nobles were subjected in Manila.

Bantilan was a man of strong personality, a warrior, and a leader. The expeditions which he organized against his enemies were unusually strong and left havoc everywhere. The towns he pillaged and the captives he carried away alarmed the Spanish Government to a high degree. A high council of war was convened in Manila in 1752, which declared for an unmerciful campaign and a war of extermination to be conducted with the utmost conceivable cruelty. Volunteers and Bisayan corsairs were called to aid the regular troops. Unlimited authority was granted them to annihilate the foe, burn his villages, destroy his crops, and desolate his lands. The corsairs were exempted from all taxes. They were allowed to keep or sell all female captives and all males under 12 and over 30 years of age. Old men and crippled persons were to be killed. Male captives between 12 and 30 years of age were to be turned in to the government; the captors to receive in compensation from P4 to P6 per man. Nursing children were ordered to be baptized. At first the corsairs were required to turn in to the government one-fifth of all valuables looted, but this was soon afterwards revoked

and all corsairs who equipped themselves retained all their booty.

As part of the general campaign, Field Marshal Abad made another attack on Jolo with a force amounting to 1,900 men. The fleet cannonaded the forts for seventy-two continuous hours. A division of the troops landed and engaged the Sulus, but after suffering considerable loss retreated disastrously.

The raids of the Spaniards and Bisayans helped to increase the vigilance of the Sulus and excited them to extreme cruelty and an abnormal degree of revenge. [193]

The year 1753 is stated to have been the bloodiest in the history of Moro piracy. No part of the Bisayas escaped ravaging in this year, while the Camarines, Batangas, and Albay suffered equally with the rest. The conduct of the pirates was more than ordinarily cruel. Priests were slain, towns wholly destroyed, and thousands of captives carried south into Moro slavery. The condition of the Islands at the end of this year was probably the most deplorable in their history. [194]

In the meantime Prince Asin died of grief in his prison.

Early in 1753 Alimud Din petitioned the governor to allow Princess Fatimah to go to Jolo for the purpose of arranging a peace with Bantilan. This request was granted on condition that she deliver 50 slaves to the Spanish Government on her arrival at Jolo. This she complied with faithfully, adding one Spanish captive to the 50 Christian slaves wanted. Her mission was apparently successful and she returned to Manila with Datu Mohammed Ismael and Datu Maharaja-Layla, a commission sent by Bantilan. They brought a letter from Bantilan, which was transmitted to the governor by Alimud Din together with a draft of a treaty for the restoration of peace between Spain and Sulu. Bantilan expressed deep regret for Alimud Din and the existing condition of hostility and gave strong assurance of his desire for the return of the sultan and the reëstablishment of peace with Spain.

The governor acceded to the petition of the sultan and sent a letter to Bantilan with the commission, requesting that all hostilities stop for the period of one year pending the consideration and completion of the new treaty. In 1754 Governor Arandia assumed command and approved of the proposed treaty. To expedite matters he sent the commanding officer of the southern forces to find out what had been done by Bantilan toward the fulfilment of the conditions agreed upon. Bantilan met the commanding officer in a most friendly manner and discussed the questions frankly and ably. He explained in clear and impressive manner the principal causes of hostility and strongly blamed the governor of Zamboanga for his unjust imprisonment of the sultan and Datu Asin and his unbearable treatment of the messengers and representatives of the Sulu authorities. He declared his wish and true desire for peace and delivered to the commanding officer 68 Christian captives and two Spanish sloops. The officer was strongly impressed with the integrity of Bantilan and with the honesty of his intentions, and gave to the governor a very favorable report of both Alimud Din and Bantilan. He assured him that the sultan was not a traitor at all, but a man of good intentions, who was simply unable to carry out some of his plans and promises because of the determined resistance of many of the principal datus.

A general council was held in Manila early in 1755, in which it was resolved to set the sultan free and return him to Jolo if the Sulu authorities carried out the terms of the following conditions:

1. That all captives within the sultanate of Sulu be delivered within one year.

2. That all valuable property and ornaments looted from the churches be returned within one year.

General Zacharias who had attended the council set out from Manila in September to take charge of the government of Mindanao. He brought back to Jolo 6 princes, 5 princesses, 20 women, and 130 men of the sultan's retinue. He had letters from Alimud Din and the Governor-General to Bantilan and was authorized to conduct the preliminaries of a peace treaty. Other ambassadors who accompanied Zacharias were empowered to ratify the same. The ships arrived at Jolo on October 4, and the ambassadors were well received by Bantilan. The latter agreed to all the conditions imposed in as far as it was in his power to carry them out. But he stated that many captives were bought from Mindanao chiefs and were owned by datus on Basilan and other inaccessible places, who were unwilling to give them up unless they were justly compensated. He added that many such datus were in alliance with datus in Mindanao and were planning to attack Zamboanga, and that the time was very inopportune for him to force them to deliver all captives.

The terms were actually impossible of execution and the endeavor to make the treaty and ratify it proved fruitless.

Alimud Din remained in prison until 1763, when the English, after their conquest and occupation of Manila, reinstated him on the throne of Sulu. During the period of his imprisonment he felt greatly humiliated, but lived as a Christian and with one wife only. At the death of his wife, in 1755, he was allowed to marry a Sulu woman who had been his concubine, but who had professed Christianity and was living at the College of Santa Potenciana.

The Sulus received their former sultan with a good heart and Alimud Din resumed his former authority as Sultan of Sulu. The people had evidently acquired strong sympathy for him and Bantilan had either undergone a change of heart or felt convinced that it was of no avail to go against such strong popular sentiment and fight the English forces. Withdrawing from Jolo he moved to Kuta Gubang near Parang, where, a few years later, he died.

In return for the favors which he received from the English, Alimud Din ceded to them that part of North Borneo lying between Cape Inarstang and the River Frimanis with the adjacent Island of Balambangan and the Island of Tulayan. Balambangan was soon after that occupied and garrisoned by English forces.

In the later days of his reign, Alimud Din was addressed as Amirul Mu'minin (The Prince of the Faithful) by which name he is better known to the Sulus. Moro incursions increased at that time and the Sulus became so daring as to invade the Bay of Manila in 1769, carry away captives from the wharves of the city, and appear at the Plaza del Palacio at retreat before they were repulsed or even detected.

Becoming old and weak, Amirul Mu'minin abdicated the sultanate in favor of his son Israel, in November, 1773.

REIGN OF SULTAN ISRAEL

Sultan Israel followed the same progressive policy which characterized his father's administration. However, his succession was contested by rivals, and the people were not unanimous in his support. In his foreign relations with the English and Spaniards he was at the beginning uncertain as to the side toward which to lean. Both powers had an eye on Sulu and appeared interested in its affairs. However, before long he refused the request of the English to be allowed to move their factory from Balambangan to Tandu-dayang, in the neighborhood of Jolo, and exchanged messages of friendship with King Carlos III, who congratulated Israel on his succession to the sultanate and thanked him for his action relative to the removal of the Balambangan factory to Sulu Island. [195] The early education Israel received in Manila, together with the consideration with which the Spanish authorities treated him at that time, helped to win his sympathies to the Spanish side and to form a sort of an alliance between Sulu and Spain against Great Britain. Such an alliance was further needed to strengthen his hand in Sulu, for the purpose of checking any insurrection that might be fomented by rival datus or unfriendly chiefs. The Spaniards promised to help him in his endeavors to organize an army and a navy; and, he on his part, agreed to open the ports of Sulu for free commerce with the Philippine Islands. He further asked the Spanish Government for capital to work his mines, promising to pay back one-fifth of the output.

In 1774 and 1776, Jolo was visited by Captain Thomas Forrest, who in his "Voyage to New Guinea" described the town and country as he saw them. His account is so interesting and so clear that the following extracts [196] are quoted therefrom:

They have a great variety of fine tropical fruits; the oranges are fully as good as those of China. They have also a variety of the fruit called jack, or nangka, durians, a kind of large custard apple named madang, mangos, mangustines * * *. The Sulus having great connection with China, and many Chineses being settled amongst them, they have learned the art of ingrafting and improving their fruits * * *.

The capital town is called Bawang, [197] situated by the seacoast, on the northwest part of the island, and containing about 6,000 inhabitants. Many of them were Ilanun * * *.

This island * * * is well cultivated, affording a fine prospect from the sea, on every side far superior to that of Malay countries in general * * *.

Here are wild elephants, the offspring, doubtless, of those sent in former days, from the continent of India [198] as presents to the kings of Sulu. Those animals avoid meeting with horned cattle, though they are not shy of horses. After harvest the Sulus hunt the elephants and wild hog, endeavoring to destroy them * * *. Sulu has spotted deer, abundance of goats, and black cattle.

The pearl fishery * * * proves also to the Sulus the cause of their consequence amongst their neighbors, as being a nursery for seamen, ready to man a fleet of praus upon an emergency * * *. The praus [boats] of the Sulus are very neatly built, from 6 to 40 tons burden, sail well, and are all fitted with the tripod mast. [199] * * *

The arts are in greater forwardness here than at Mindanao. * * * In the common market is also a copper currency, a convenience much wanted at Mindanao, where, as has been said, the market currency is rice.

The Sulus have in their families many Bisayan, some Spanish slaves, whom they purchase from the Ilanun and Magindanao cruisers. Sometimes they purchase whole cargoes, which they carry to Passir, on Borneo, where, if the females are handsome, they are bought up for the Batavia market. The masters sometimes use their slaves cruelly, assuming the power of life and death over them. Many are put to death for trifling offenses, and their bodies left above the ground. An attempt of elopement is here seldom pardoned, or indeed at Magindanao. Yet, the distance being so small from either Sulu or Slangan, [200] to the Spanish settlement, I have wondered how any stay, as they are not closely confined.

The Bisayan slaves play often on the violin, and the Sulus are fond of European music. [201] I have seen the Sultan Israel, who was educated in Manila, and his niece, * * * dance a tolerable minuet. I have also seen the datus go down a country dance, but as they wore heavy slippers, they did it clumsily.

The Sulus are not only neat in their clothes, but dress gaily. The men go generally in white waistcoats, buttoned down to the wrist; with white breeches, sometimes strait, sometimes wide. * * * Both sexes are fond of gaming. * * *

In the cool of the evening, I had the pleasure of seeing the Sultan's niece and another princess. They wore waistcoats of fine muslin close fitted to their bodies; their necks to the upper part of the breasts being bare. From the waist downward they wore a loose robe, girt with an embroidered zone or belt about the middle, with a large clasp of gold, and a precious stone. This loose robe like a petticoat came over their drawers, and reached to the middle of the leg; the drawers of fine muslin reaching to the ankle. They rode across with very short stirrups, and wore their hair clubbed atop, Chinese fashion. They often put sweet oils on their hair which give it a gloss. The ladies sat their horses remarkably well; and this is an exercise women of fashion indulge all over the island.

"The Island Sulu is far from being large; but its situation between Mindanao and Borneo makes it the mart of all the Moorish kingdoms. I do not find that the Portuguese ever pretended to settle, much less to conquer these islands; but they visited them frequently for the sake of trade; and in those days, there was greater commerce in these parts than can well be imagined. For, while the trade was open to Japan, there came from thence two or three ships laden with silver, amber, silks, chests, cabinets, and other curiosities made of sweet-scented woods, with vast quantities of silks, quilts, and earthenware, from China. For these the merchants of Golconda exchanged their diamonds, those of Ceylon their rubies, topazes, and sapphires; from Java and Sumatra came pepper, and spices from the Moluccas."

(Harris' History of the Portuguese Empire, p. 685.)

About fifteen datus * * * make the greater part of the legislature. * * * They sit in council with the Sultan. The sultan has two votes in this assembly, and each datu has one. The heir apparent, * * * if he side with the sultan, has two votes; but, if against him, only one. There are two representatives of the people, called mantiris, like the military tribunes of the Romans. The common people of Sulu * * * enjoy much real freedom, owing to the above representation.

The state of Sulu is small, * * * containing scarce above 60,000 inhabitants; yet are these powerful, and have under them, not only most of the islands that compose that Archipelago, but a great part of Borneo, some of which they have granted to the English. They have the character of being treacherous, and of endeavoring always to supply by fraud what they can not effect by force. * * *

Only seven years have elapsed since the Sultan of Kulan * * * on the northeast of Borneo, was at war with the Sultan of Buru, on the same coast. One of them applied to the Sulus for assistance. The datus Alimud Din and Nukila went; and watching their opportunity, attacked both the sultans, plundered them, and carried them with their wives, children, and many of their headmen to Sulu. They were sometime after sent back, on condition that they should become tributary, which they are at this day.

The intentions of the East India Company in fortifying Balambangan were regarded with suspicion by the Spaniards, who employed every method possible to incite hostilities between the Sulus and the English. The English agents at Jolo won the sympathy of a party headed by the strong datus in chief command of the Sulu forces. The Spaniards had the sultan and his party on their side. This question of national policy was a matter of serious and important concern to the people. It stirred up the whole Sulu community, and party issues were ardently and publicly discussed.

The jealousy which the English and Spaniards exhibited toward each other and the methods they used to secure alliance with Sulu, had the effect of exciting the suspicion of the Sulus toward both nations. Besides that, the Spanish officials at Zamboanga showed exceedingly poor judgment, and their action aroused the indignation of all parties in Sulu, and led to the renewal of hostilities.

In 1773 a majority of the leading datus favored an alliance with England against Spain. In 1775 the English party weakened and the garrison of Balambangan was treacherously attacked and destroyed by Sulu agents and forces secretly sent there by Sultan Israel and his council. The conduct of the Sulus in this incident depicts very clearly a marked trait of the Sulu character. A full description of this incident is given herewith in the words of Captain Forrest, who had an intimate knowledge of the conditions at Balambangan and the causes leading to the massacre.

When John Herbert, esq. went to Balambangan early in the preceding year [1774], he found great want of buildings to accommodate the company's servants, civil and military; those gentlemen who had just been saved from the shipwreck of the Royal Captain on the shoals of Palawan, as well as the crew of that ship. About this time, one Tating, a Sulu datu, and first cousin to Sultan Israel, came with many of his vassals to Balambangan, offered his service as a builder, was employed by Mr.

Herbert, and, in the whole of his behavior, gave satisfaction. The datu, falling sick, went home to Sulu for the recovery of his health. This blessing soon obtained, he returned to the prosecution of his task at Balambangan.

He now brought from the sultan and council letters recommending him as a trustworthy person, to erect whatever warehouses or buildings might be wanted. With him came two other datus, Muluk and Nukila. But Datu Tating took care to show only part of his numerous followers, concealing the rest in the Island of Banguey, and even in some recesses of Balambangan, which, being covered with wood, as those islands generally are, there was no great fear of discovery.

Surmises, however, had some days begun to spread reports of a plot, while Tating proceeded with such address, that the chief and council, who were not without their suspicions, apprehended no danger very nigh.

During the night strict watch was kept all over the settlement. At dawn, the gun, as usual, announced the morning, and for a few moments tranquillity reigned. A house at some small distance suddenly fired proved the signal to the Sulus. They rushed into the fort, killed the sentries, and turned the guns against the Bugis guard. The few settlers, lately rendered fewer by death, were fain to make their escape in what vessels they could find. [202]

The governor and five others escaped on board a vessel, leaving behind a great quantity of arms and wealth. The English factors who were at Jolo fled in a Chinese junk. In the same year Tating attempted a similar attack on Zamboanga, but failed. During 1776 and 1777 he and other Sulus harassed the Bisayas and ravaged the coast of Cebu.

MORO PIRATES

Sultan Israel was poisoned in 1778 by his cousin Alimud Din II, the son of Bantilan. During the reign of Sultan Alimud Din II, hostilities between Sulus and Spaniards increased, and for the period of ten years or more traffic between Luzon and the southern islands was paralyzed. About 500 Spanish and native Christians were every year carried into captivity by the Moros. The government was greatly exercised over this grave situation, and in 1789 the Captain-General Mariquina reported to the King that "war with the Moros was an evil without remedy."

In the latter part of 1789 Sharapud Din, the son of Alimud Din I, ascended the throne of Sulu. While a youth he was imprisoned with his father in Zamboanga and accompanied the latter to Manila. Very little is known of his reign except that he was animated by the same spirit and principles which characterized his father's reign and that of his brother Israel. He coined money, and one of his coins which was obtained from Jolo bears the date 1204 A. H., which was probably the date of his succession. Sultan Sharapud Din was followed by his sons Alimud Din III and Aliyud Din I.

The continued presence of the Moros in Mindoro, where they haunted the bays and rivers of both east and west coasts for months at a time, stealing out from this island for attack in every direction, was specially noted by Padre Zuñiga, and indicated how

feebly the Spaniards repulsed these pirates a hundred years ago.

It was the last severe phase of Malay piracy, when even the strong merchant ships of England and America dreaded the Straits of Borneo and passed with caution through the China Sea. Northern Borneo, the Sulu Archipelago, and the southern coasts of Mindanao were the centers from which came these fierce sea wolves, whose cruel exploits have left their many traditions in the American and British merchant navies, just as they periodically appear in the chronicles of the Philippines.

Five hundred captives annually seem to have been the spoils taken by these Moros in the Philippine Islands, and as far south as Batavia and Macassar captive Filipinos were sold in the slave marts of the Malays. The aged and infirm were inhumanly bartered to the savage tribes of Borneo, who offered them up in their ceremonial sacrifices. The measures of the Spanish Government, though constant and expensive, were ineffective. Between 1778 and 1793 a million and a half of pesos were expended on the fleets and expeditions to drive back or punish the Moros, but at the end of the century a veritable climax of piracy was attained.

Pirates swarmed continually about the coasts of Mindoro, Burias, and Masbate, and even frequented the esteros [203] of Manila Bay. Some sort of peace seems to have been established with Jolo and a friendly commerce was engaged in toward the end of the century, but the Moros of Mindanao and Borneo were increasing enemies. In 1798 a fleet of 25 Moro bancas passed up the Pacific coast of Luzon and fell upon the isolated towns of Baler, Kasiguran, and Palanan, destroying the pueblos and taking 450 captives. The cura of Kasiguran was ransomed in Binangonan for the sum of 2,500 pesos. For four years this pirate fleet had its rendezvous on Burias, whence it raided the adjacent coasts and Katanduan Island. [204]

Governor Aguilar assumed command in 1793 and made every effort to remedy this condition of affairs. He divided the Archipelago into six divisions, each of which was provided with a fleet of six gunboats. He repaired the forts of the Bisayas, Mindoro, Tayabas, Batangas, and Zamboanga. While preparing for defence, he negotiated with the Sulu and Mindanao Moros for peace and partially succeeded in establishing a condition of truce with Sulu.

In 1798 he convened a council to consider further measures for the suppression of piracy. All records pertaining to Moro affairs were submitted to Rufino Suarez, "Asesor del Gobierno," who was directed to report on this subject. The report was rendered in April, 1800, and contained full information and recommendations as to the best measures and methods that the government could undertake for that purpose. Aguilar, however, did not act on the recommendations of Suarez, but continued his negotiations with the Moros who became peaceful and remained so until 1803. In this year the English attacked Zamboanga unsuccessfully, instigated hostility between Sulu and Spain, and reoccupied the Island of Balambangan, which they held for three years only.

In 1805 a treaty was made between Sulu and Spain whereby it was agreed that no foreign resident would be permitted in Sulu without the consent of the Spanish Government, and that in case of war between Spain and any foreign country, the

Sultan's ports would be closed against Spain's enemies. Between 1805 and 1815 detailed accounts of piratical raids are infrequent.

Sultan Aliyud Din died in 1808 and was succeeded by his pious brother Shakirul Lah. It is related that Shakirul Lah slept on boards and covered himself with sarongs only. He used to leave his home at night, search for the poor and needy and feed them.

In 1815, the raiders took 1,000 native prisoners and captured several Spanish, British, and Dutch vessels. In October, 1818, a Spanish fleet under Pedro Esteban encountered 25 Moro vessels in the vicinity of Albay, seized nine of them and sank the rest.

Sultan Shakirul Lah was succeeded in 1823 by Sultan Jamalul Kiram I, the son of Alimud Din III. In the same year, Governor Antonio Martinez, impressed by the superior policy and success of Corcuera, organized an expedition under Alonso Morgado and attacked the pirates in their home lairs, at Basilan, Pilas, Sulu, and Mindanao. The Spanish fleet consisted of 2 schooners, 4 gunboats, 6 tenders, 2 junks, and 1 transport schooner. The expedition reached Pilas in March, 1825, took the fort by assault and killed 50 Moros. At Jolo it cannonaded the town for ten hours and then left for Mindanao, where it inflicted considerable damage. It destroyed Moro boats at Illana Bay, Pollok, and Dumankilis Bay.

General Ricafort sent another expedition, in 1827, to Jolo, consisting of 20 vessels and 500 troops; but Jolo was so well fortified and the Moro forces so numerous that the Spanish soldiers could not disembark, and the expedition returned without accomplishing any results.

The seal of Sultan Jamalul Kiram I bears the date 1239 A. H., or about 1823 A. D., which in all probability indicates the year of his succession. He issued regular appointment forms for his subordinate officers of state and dated his communications, using the current Malay and Mohammedan dates combined. In the estimation of the Sulus he was a strong and very prosperous sultan.

On the 23d of September, 1836 A. D. or 1252 A. H., he signed a commercial treaty with Capt. José M. Halcon as the representative of Captain-General Salazar. [205] The principal part of the treaty was an agreement regulating boat licenses and the duties to be paid by Sulu boats in Manila and Zamboanga and by Spanish vessels in Jolo. In another document bearing the same date and signed by the same parties, an alliance was declared guaranteeing general peace and safety to Sulu boats in Philippine waters and to Spanish and Filipino craft in the Sulu Sea. The sultan further consented to have a Spanish trading house constructed at Jolo for the safe storage of merchandise under the charge of a Spanish resident agent.

TREATY OF 1836 WITH THE SULTAN OF SULU

TEXT OF THE TREATY

Articles of agreement arranging the duties to be paid by Sulu craft in Manila and Zamboanga, and by Spanish craft in Jolo, which schedule can not be changed except by a new agreement.

Article 1. Sulu craft which, with proper license, go to Manila, may import products of the Islands subject to the Sultan, by paying a consumption duty of 2 1/2%.

Article 2. Wax and cacao may be deposited in the Manila Custom-House by paying 1%; but if these articles are imported the established 14% will be paid.

Article 3. Sulu craft that trade in Zamboanga will pay a duty of 1% on products of the islands subject to the Sultan.

Article 4. All these duties will be paid in silver to the Protecting Spanish Government on the basis of one-half the appraised value.

Article 5. Spanish craft in Jolo will pay the following duties in kind:

Pesos Ships of three masts from Manila, with Chinese passengers 2,000 The same, without passengers 1,800 Brigantine from Manila, with Chinese passengers 1,500 The same, without passengers 1,300 Schooner from Manila, with Chinese passengers 1,400 The same, without passengers 1,200 Pontin (small trading boat) from Manila, with Chinese passengers 1,400 The same, without passengers 1,200 Galley from Manila or other ports of the Philippines, with cargo of rice (palay), sugar and saguranes [206] 300 The same for the Philippine Islands with cargo of merchandise 500

Article 6. These duties fixed for Spanish craft will be paid in kind in accordance with the values laid down in the following schedule, one-half of which will be selected by the Sultan's government officials from the cargo and the other half shall consist of such articles as the captain of the boat may select, valuation to be in accordance with the schedule. Articles not in the schedule can not be exacted from the captain, nor will he give such payment:

Articles	Quantity	Value (pesos)
Rice	One laga	2.00
Sugar	One pilon	5.00
Coconut oil	One tinaja	6.50
Chapas (plates)	Per thousand	1.00
Cambayas ordinarias (cloth)	Per thousand	9.00
Carancali (cloth)	Per piece	11.00
Coco, black and blue, (cloth)	11 yards	4.50
Coquillo blanco, (cloth), 6 brazas (12 yards)	1 piece	6.50
Coco blanco, (cloth), 22 brazas (44 yards)	1 piece	16.50
Javal de caranclan (cloth)	1 piece	26.00
Cacha (cloth)	1 piece	4.00
Manta coleta (shirting)	1 piece	1.00
Plain muslin, 12 varas	1 piece	10.00
Fancy muslin	1 piece	5.00
Colored muslin, 12 varas	1 piece	15.00
Unhusked rice	One laga	1.00
Paños de Costa (cloth)	1 piece	11.00
Ordinary cambric kerchiefs	1 kerchief	.50
Ordinary stamped kerchiefs	Per dozen	3.00
Woolens	1 piece	6.00
Common woolens	1 piece	5.00
Printed cotton with flowers	1 piece	9.00

Article 7. Sulu ships found trading in ports without a license or passing contraband will be treated as smugglers in accordance with the Spanish laws laid down for such. Spanish schooners and small trading craft (galeras) that show by manifest in Jolo that they carry a cargo of Philippine produce, and are afterward discovered to have, in place thereof, a cargo of merchandise (géneros), and to have discharged such cargo in the port to be sold therein, will be fined 500 pesos as per values in Jolo, two-thirds of said sum to go to the Sultan, and one-third to the Royal Treasury of the Protecting Spanish Government.

Article 8. Should the import duties on any articles of commerce produced in the Sulu Islands be reduced in Manila or Zamboanga to a lower rate than that now established, the Spanish Government will also make a reduction so that Sulu ships may always pay less, as has been agreed.

Should the Sultan of Sulu collect smaller duties from any foreign ship than those established for Spaniards, either as a tax or by a reduction of the valuation of the dutiable articles, he will be obliged to make such a reduction in duties for Spanish craft as will give the advantage to the flag of His Catholic Majesty as stipulated.

Last Article. Should the text of these articles of agreement differ in the two languages, the Spanish text will be literally adhered to.

Palace of Jolo, September 23, 1836, which is the 14th of the moon Jamadul Akir, 1252.--José M. Harun,--Rubric,--Sultan Mohammed Jamalul Kiram,--Datu Mohammed Harun,--Datu Mohammed Buyuk,--Datu Bandahala,--Datu Muluk,--Datu Sabalmar,--Datu Mamancha,--Datu Juhan,--Datu Maharaja-Layla,--Datu Sabuwayan,--Datu Muluk Kahar,--Datu Nay.

I, Don José María Halcon y Mendoza, Frigate Captain of the Royal Navy, etc., Special Commissioner appointed by the Captain General of the Philippines to establish these articles of agreement (capitulaciones),

Certify that when I received from the hands of the Sultan of Sulu the copy herewith, in the act of the exchange, by which I handed him the duplicate with the ratification of the Governor General, I remarked at the end of the present a writing in Malay, on the page following that of the seals and signatures which is the reverse of folio six, on which it can be seen.

I also certify that having examined the contents of said improper addition which, although unauthorized, appears in writing in the present document, it was found to be the text of the circular of the Sultan to his people, in four articles, whose translation, made by the Datu Muluk-Bandarasa, and verified separately by several persons, reads as follows:

Article 1. The people of Sulu who wish to go to Zamboanga or Mindanao shall ask the Sultan of Sulu for a passport so that they may suffer no harm if they meet ships belonging to the Navy.

Article 2. Passports shall be issued stating the number of people on board and the cargo when requested.

Article 3. I give this order for the safety of those who travel by sea, as instead of being pursued by the ships of the Navy, they shall be helped.

Article 4. I give you the present patent so that when you meet the ships of the Navy of the King of Spain, my brother, they may not harm, but help you.

And in proof thereof, I make out the present certificate, written of my hand and attached to the Articles of Agreement, of which it is impossible to make a new copy, on account of the absence of some of the Datus who were present when they were agreed to, and approved them.

Given on board her Majesty's schooner "Tirol" in the roadstead of Jolo on the 29th of March 1837.

José Ma. Halcon, (His flourish).

RATIFICATION OF THE TREATY OF 1836 BY THE QUEEN REGENT OF SPAIN

Isabel II, Queen of Spain, by the Grace of God and the Constitution of the Spanish Monarchy, and in her Royal name and during her minority, the Queen Dowager her mother, Doña María Cristina of Bourbon, Regent of the Kingdom:

Whereas on the twenty-third of September of last year, at the palace of Jolo, a treaty of peace, protection and commerce having been drawn up, concluded and signed by the frigate-captain of the national fleet, Don José María Halcon, commander in chief of the naval forces anchored in the roadstead of Jolo, representing the Captain General of the Philippine Islands, and the Sultan Jamalul Kiram and Datus; which said treaty, composed of six articles, word by word, is as follows:

Capitulations of Peace, Protection and Commerce, executed to the most Excellent Sultan and Datus of Sulu, by his high Excellency the Captain-General, Governor of the Philippine Islands, in the name of the high and powerful Sovereignty of her Catholic Majesty, being drawn up and agreed to by both parties, to wit: representing the Spanish Government as plenipotentiary of his high Excellency the Captain General, Don Pedro Antonio Salazar, Governor of the Philippines, the frigate-captain of the royal fleet, Don José María Halcon, commander in chief of the naval forces anchored in the roadstead of Jolo; and upon the other part, the Sultan Jamalul Kiram, Raja of Sulu and Datus who subscribe, which parties enacted as follows:

Article 1

His high Excellency the Captain-General, Governor, for her Catholic Majesty, of the Philippine Islands, assures the most excellent Sultan and Datus of Sulu, for the present and forever, of the most stable peace between the Spaniards and natives of all the islands subject to the Crown of Spain and the tributaries of the lands governed by the Sultan and Datus. He offers the protection of his Government and the aid of fleets and soldiers for the wars which the Sultan shall find necessary to wage against enemies who shall attack him, or in order to accomplish the subjection of the peoples

who rebel in all the confines of the islands which are found within Spanish jurisdiction, and which extend from the western point of Mindanao as far as Borneo and Palawan, except Sandakan and the other lands tributary to the Sultan on the coast of Borneo.

The Sultan of Sulu, upon his part, accepting the friendship of the Spanish Government, binds himself to keep peace with all the vassals of her Catholic Majesty, and further binds himself to consider as his enemies those who hereafter may be such to the Spanish nation, the Sulus proceeding with armed men to the wars which may arise, in the same manner as if they were Spaniards; in case of his furnishing such aid, the provisions for the support of the Sulus shall be supplied by the Royal exchequer of her Catholic Majesty, as they are for the other soldiers and people of her army and navy.

The sense of the second clause of the Capitulations of one thousand seven hundred and thirty-seven, that they are not bound to furnish assistance for wars against European nations, is hereby renewed and affirmed.

Article 2

In accordance with the friendship and protection which unite Sulu with the Spanish provinces of the Philippines, the Sulu boats shall navigate and trade freely with the open ports of Manila and Zamboanga, and the Spanish vessels with Jolo, where not only will both be well received, but shall find protection and the same treatment as the natives.

In a separate Capitulation are determined the duties which the Spanish vessels shall pay in Jolo, and those which the Sulus shall pay in Manila and Zamboanga; but by these Capitulations it is agreed that whenever the Sulus convey cargoes of products of the islands, they shall pay in Manila and Zamboanga less than foreign vessels, and the Spanish vessels shall not pay in Jolo as much as is charged the ships of other nations.

Article 3

In order that the traffic of Spanish vessels in Jolo shall not suffer the injuries and delays occasioned by the difficulties of their market, the Sultan and Datus consent to the construction of a factory or trading house, with safe warehouses, where merchandise may be stored without risk: and the Sultan and Datus agree always to respect this place, in which there will be a resident Spanish agent, who shall assume charge of all the business entrusted to him. If the Sulus should desire to do likewise in Manila, they shall be permitted; but the Spanish Government receives for storage merchandise from the Custom-house of that city upon payment of fees of but one per centum.

The Sultan shall designate the proper place for the location of the warehouses, which shall be convenient for loading and unloading and the Government shall request the Sultan to furnish, and shall pay for, the materials and workmen that may be necessary.

Article 4

In order that the Spanish and Sulu vessels may navigate and trade with safety, free from the piracies of the Hanuns and Samals the Spanish Government will strengthen its fleets in Mindanao waters, which same will protect equally those of both nations; and in order that good may not be confused with evil persons, the following rules shall be observed:

1st. All Spanish vessels arriving at Jolo shall show to the Sultan their permit upon anchoring, and the same shall be sealed upon sailing; without which the captain shall be punished at Manila.

2d. All Sulu vessels which proceed to Manila or Zamboanga, shall carry the permit of the Sultan, and in possession of the same shall be free and unmolested.

3d. All Spanish or Sulu vessels which shall proceed for trading to Mindanao, shall go first to Zamboanga to notify the Governor, who shall sign their permit without cost.

4th. Every Spanish or Sulu vessel which shall be found by the fleets of Illana or Sindangan bays, without permit of the Governor and Sultan as aforesaid, shall be seized and shall lose all her merchandise, of which two-thirds shall be awarded to those making the capture and one-third to the Sultan of Sulu, if the vessel is Sulu, and to the Spanish Government if the vessel is Spanish.

5th. The Governor of Zamboanga shall determine the procedure in the case of vintas [small sail boats] of the towns of Pilas and Basilan Islands friendly to said Plaza [Zamboanga].

6th. Sulu merchant vessels proceeding outside the islands of the Sultan or to Mindanao with a permit, should not flee from the fleets which they encounter, because the latter are intended to defend them and run down evil-doers. Commanders of the fleets shall be ordered to receive and aid the advice-boats of the Sultan.

Article 5

The Sultan and Datus of Sulu pledge themselves to prevent the piracies of the Ilanuns and Samals in the Philippines, and if they are unable, the Sultan shall so report in order that the Spanish Government may afford assistance or undertake the task alone.

Last Article

If the sense of these Capitulations is not conformable in both languages, the same shall agree with the literal Spanish text.

Palace of Jolo, September 23, 1836, which is the fourteenth of the moon Jamadul Akir of one thousand two hundred and fifty-two. The seals.--Sultan Mohammed Jamalul Kiram.--Seal--signed.--José María Halcon.--Datu Mohammed Harun.--Seal.--Datu Mohammed Buyuk.--Seal--Datu Bandahala.--Seal--Datu Amilbahar.--Datu Muluk.--Datu Sabalmar.--Datu Mamancha.--Datu Juhan.--Datu Maharajah-Layla.--Datu Sabuwayan.--Datu Muluk Kahar.--Datu Nay.

Therefore, the Government of our August Daughter, having been duly authorized by the decree of the Cortes of the thirteenth of the present month, for the ratification of the inclosed treaty, and the same having been seen and examined by Us, we have approved and ratified and by these presents do hereby approve and ratify the contents thereof as a whole, in the best and most complete form possible, promising on the faith and the word of Queen Regent, in the name of our August Daughter, to comply with and observe the same, and compel wholly the compliance with and observance of the same. In witness whereof, we command the disposition of the same, signed with our hand, and sealed with our own private seal by the First Secretary of State. Done at Madrid, this October twenty-ninth, one thousand eight hundred and thirty-seven.

I the Queen Regent.

[A shield in wax.]

Eusebio de Bandaxi y Azara.

EXPEDITION OF GOVERNOR CLAVERIA

In 1842 the Spanish Government built the stone fort at Isabela de Basilan. The Balangingi and Basilan Moros appear about this time to have become a menace to the peace and to the commerce of nations. To punish Datu Usak of Malusu for depredations committed against French vessels, Basilan was blockaded by a French fleet in 1843. Aspiring for Chinese trade and for the possession of a port in the neighboring seas the French in 1844 concluded a treaty with the Sultan of Sulu for the cession of the Island of Basilan for a considerable sum of money. The terms of this treaty do not appear to have been carried out, but this act and the frequent appearance of English, Dutch, and French vessels in Sulu waters aroused the Spaniards to active measures for the subjugation of the Sulu Archipelago.

This year Jamalul Kiram I died, and his son Mohammed Pulalun succeeded to the sultanate. The "Luntar" or "Sulu Annals" begin January, 1844, and appear to have been started by Sultan Pulalun.

In 1845 a frigate attacked the Island of Balangingi, but it was repulsed and gained no advantage except that of ascertaining the strength of the enemy. The shores of Basilan and the principal islands lying between it and the Island of Sulu had numerous forts, the strongest of which were on the island of Balangingi, the chief stronghold and headquarters of the Samal pirates. Realizing the seriousness of the situation Governor Claveria took the matter in hand and with energy and enthusiasm made every effort to strengthen the fleet and increase its efficiency.

In 1848 he secured three steam war vessels called Elcano, Magallanes, and Reina de Castilla which were built by the English and were the first steam gunboats the Philippine Government ever employed. Steam was certainly destined to mark a new epoch, one which saw the beginning of the end of Moro piracy.

With two additional pilot boats and three transport brigs the expedition, headed by Governor Claveria in person, left Manila in January and, coming by the way of

Dapitan, reunited at Caldera Bay, where it received additional troops from Zamboanga.

The Island of Balangingi is scarcely 6 square miles in area, low, flat, surrounded by shoals, and covered to a great extent by mangrove swamps. Most of its settlements had their houses built over the water and little dry land could be seen in the vicinity. Part of this land was covered with coconut trees. A labyrinth of small, narrow channels led to the various settlements and divided the island into four distinct parts. Four strong forts were built by the Moros at points difficult of access and surrounded by swamps. These forts were constructed of thick trunks of trees driven into the soil as piles and set close to each other and in 3 rows of varying heights, to afford suitable positions for the artillery, part of which was set in covered inclosures commanding the channel leading to the fort. The walls of these forts were 20 feet high and could not be scaled without ladders. The immediate vicinity of the fort was set with sharpened bamboo sticks and pits to hinder and trap the attacking forces. The fort of Sipak, the strongest of the four, was provided with redoubts and towers and showed considerable skill in its construction.

The Spanish troops consisted of three regular companies of infantry, two of volunteers, and detachments of artillery, pikemen, engineers, and laborers. They experienced some difficulty in landing and attacked the most accessible fort first. The fighting was heroic and desperate on both sides. The Moros, it is said, fought like fiends; but they were completely overpowered in the end. In the fort of Sipak many women and children were gathered and considerable property was stored. The Moros had hoped to save all within its impregnable walls. When these walls were entered, some of the defenders in their desperation thrust their spears and krises into their wives and children, killed them first, and then dashed themselves against sure death at the point of Spanish bayonets. The Moros consider such action most valorous and honorable and do it in order not to allow their wives and children to fall into slavery or be killed by the hand of the enemy.

In the fight at the first fort 100 Moros perished and 14 pieces of artillery were captured. The Spaniards lost 7 dead and 50 wounded. After the reduction of the second fort at Sipak 340 Moros were burned in one pile and 150, mostly women and children, were taken as prisoners; others, who sought refuge in the swamps or tried to swim away, were killed by the fire of the fleet and their bodies were washed ashore by the waves. The Spanish losses in this engagement amounted to 17 dead, 4 officers and 13 men, and 155 wounded. Three hundred slave captives were rescued and 66 pieces of artillery were captured. Quantities of ammunition, silks, silver and gold vessels, bracelets and other ornaments, jewels, utensils and arms of all sorts, and books of prayer were found inside the fort.

The troops investing the third fortification at Sungap found the fort evacuated, but the first Spaniard who scaled the wall fell dead from a kampilan blow at the hand of the only Moro who refused to run away and remained at his post to meet what he considered an honorable death. Thirteen cannons of small caliber were found in this fort. The Moros who had fled to the fourth fort at Bukutingal did not make any determined stand, but soon fled leaving several cannons behind. The Spaniards

desolated the island, burned its forts and settlements, and cut down more than 8,000 coconut trees.

The conquest of the Balangingi Samals was complete and the expedition returned to Manila in triumph. Here great rejoicings, parades, and festivities were held in honor of the event. Governor Claveria was decorated and promoted by the Queen and many of the officers and men were variously rewarded.

The Balangingi Samals rivaled the Sulus in power, bravery, and wealth, but the signal victory of Claveria crushed them so completely that they have never since had any considerable force. The Samals who were carried away were transplanted to the Province of Kagayan in northern Luzon, where they remained until a late date.

VISITS TO JOLO OF CAPTAIN HENRY KEPPEL AND SIR JAMES BROOKE

In December, 1848, Jolo was visited by Capt. Henry Keppel, in command of the Maeander, and his description of the town contained in the following extracts taken from his "Visit to the Indian Archipelago" will be of unusual interest: [207]

The town is built partly on land and partly on the sea. That part which is on the land, and which might almost be called the citadel, was at the time of our visit, strongly stockaded and flanked with batteries mounting heavy guns * * *. That portion of the town which is not within the stockades is built in regular Malay fashion, on piles. The houses run in rows, or streets; and outside of them is a platform about 6 feet wide to walk upon. This is supported underneath by a light scaffolding of bamboo. These rows of birdcage-looking buildings extend into the sea for half a mile over a shoal which is nearly dry at low water. The population is numerous, composed principally of fishermen and Chinese traders. The said platform runs the whole length of the rows: and its planks were so carelessly thrown across that it seemed wonderful how the children could escape, if they always did escape, falling through the yawning spaces which invited them to a watery, or a muddy grave; they were crawling about these rickety stages in vast numbers; if the tide was out when they fell, they would be received into 3 feet deep of soft mud, supposing always that they did not break their little backs across the gunwales of the canoes beneath, which were made fast to the scaffolding. * * *

What we saw of the country [in the neighborhood of Jolo] was highly cultivated, consisting, with intervals of jungle, of pasture grounds and gardens, very flourishing and pretty, with abundance of cattle. * * *

The day after we had commenced [watering] was a market day. The mountaineers came down in parties of from six to twelve, mounted on well-formed little horses, or oxen, according to their rank and means; on these they sat with graceful ease, spear in hand--they were all well armed besides, with shield and kris; in some instances also we observed the heavy two-handed Ilanun sword [kampilan]. They had a wild and independent bearing; and, when seen in groups, some standing, some squatting, the women all chattering, under the wide spreading tree, they much increased the

interest of the already picturesque scene. They seemed indifferent as to the sale of their stock, which was conducted chiefly by the women, who freely accompanied them, and were by no means ill favored. The townspeople, who met and traded with these mountaineers, were dressed in gayer colors, but not so well armed. * * * Though the market on this occasion was well attended, the trade was slack; but I doubt not that, in the palmy days of active piracy, a considerable amount of business was transacted under this old banyan tree. * * *

December 30 was the day appointed for Sir James Brooke's interview with the Sultan of Sulu. We landed in full costume at 10 o'clock. Having walked over the sea suburbs, and arrived at the beach, we found a guard of honor and attendants waiting to conduct Sir James to the Sultan's presence; they were a motley group, but made themselves useful in clearing the way.

Passing within the outer stockade, we arrived, after a few minute's walk, at the royal residence. It was walled in and fortified: a large space was inclosed by double rows of heavy piles driven into the earth, about 5 feet apart, and the space was filled up with large stones and earth, making a very solid wall of about 15 feet in height, having embrasures, or rather portholes, in convenient places for cannon, out of which we noticed the rusty muzzles of some very heavy guns protruding. A great part of the town was stockaded in a similar way; and the country houses of the datus and mountain chiefs of any importance were also walled in and had guns mounted.

Passing through a massive gateway, pretty well flanked with guns and loopholes, we entered a large court, in which some 2,000 persons were assembled, armed and in their best apparel, but observing no sort of order; it was a wild and novel sight. Malays are always armed. The kris to them is what the sword was to an English gentleman in the feudal times. Every person who, by virtue of his rank or on any other pretext, could gain admittance was in attendance on this occasion; for our Rajah had become a justly celebrated man in the great Eastern Archipelago, and was an object of curiosity.

We were conducted through the crowd to a corner of the courtyard, where a building inferior to a small English barn, was pointed out as the Sultan's palace. We entered it by a flight of broad wooden steps (for the palace was raised on piles), through a narrow passage thronged with guards * * * and we found ourselves in the royal presence.

The audience chamber was not very large; a table, covered with green cloth, ran across the center of it; above the table, and around the upper end of the room sat a very brilliant semicircle of personages, the Sultan occupying a raised seat in the middle. The cortège consisted of his grand vizier, the members of the royal family, and the great datus and officers of state. Behind these stood the guards and attendants, dressed in silks, the colors being according to the fancy of their respective masters.

The Sultan gave us a gracious reception, shaking hands with each officer as he was presented. This ceremony over, chairs were placed for Sir James and his suite; while those of our party, who could not get seats, formed a semicircle on the other side of

the table. The scene was striking and gay.

The Sultan is a young-looking man, but with a dull and vacant expression, produced by the too free use of opium: his lips were red with the mixture of betel nut and cere leaf, [208] which he chewed.

He was dressed in rich silks, red and green the predominant colors. A large jewel sparkled in his turban, and he wore jewels also profusely on his person.

The hilt of his kris, the great distinguishing ornament of all Malays, was beautifully decorated with gold wire, curiously twisted in. Immediately behind the Sultan, in closest attendance on his person, stood the cupbearer, a fine young man dressed in green silk, who held in his hand a purple finger glass, which was constantly held to his royal master's mouth, to receive the filthy-looking mixture which is in such favor with these people--composed of the juice of the betel leaf, with the areca nut and gambier. The other personages composing the circle were dressed with equal gaudiness, in bright silks; in the selection, however, of their colors they displayed considerable taste. Many of the guards were dressed in very ancient chain armor, consisting of skull caps and tunics, covering the arms and reaching from the throat to the knee.

Those armed with sword, spear, and kris did not look amiss; but two sentries, placed to guard the entrance to this ancient hall of audience, each shouldering a very shabby-looking old Tower musket, of which they looked very proud, had an absurd effect.

After a reasonable time passed by each party in admiration of the other, the conversation was opened by Sir James Brooke, who, as Her Majesty's commissioner in these regions, submitted to the Sultan certain propositions on matters of business.

To these His Majesty expressed his willingness to accede; and he graciously reminded Sir James that the royal family of Sulu were under considerable obligations to the English; inasmuch as his great-grandfather, Sultan Amir, [209] having been once upon a time imprisoned by the Spaniards in the fortress of Manila, was delivered from durance vile and reinstated on the throne of his ancestors by Alexander Dalrymple----A. D. 1763. This was now the more liberal on the part of His Majesty, because his royal ancestor had not at the time allowed the service to be altogether unrequited; for he ceded to the English Government a fine island adjoining Sulu (of which, by the bye, no use appears to have been made), together with the north end of Borneo and the south end of Palawan, with the intervening islands.

At length we took leave of his Majesty, retiring in much the same order as that in which we had entered. Although no actual treaty was concluded with the Sultan, Sir James paved the way for opening up commerce and for cultivating a better understanding with the natives.

In the afternoon we visited one Datu Daniel, a powerful chief, very friendly, and well disposed toward the English. His stronghold was at a short distance in the country, at the foot of one of the mountain slopes, fortified in much the same way as the Sultan's, but on a smaller scale; his stockades were, however, quite as strong, and

his guns in better order. His inclosed court, being likewise a farmyard with a good supply of live stock, looked as if he was better prepared than his royal master to stand a long siege; his wives looked happy, his children merry, and, on the whole, his domestic life appeared tolerably comfortable. * * *

Considering that Sulu was the great commercial center of these seas, we were surprised at not seeing more large praus; there were none afloat, and very few hauled up; the number, however, of building sheds and blacksmith's forges showed that they have the means of starting into activity at short notice.

Who could have thought that, after such devastation and havoc as the Spaniards wrought on Balangingi, another chief would have the courage to settle on such a hateful spot again! Yet we learn that in spite of the contrary advice of the Sultan and his council, Datu Tampang, as early as December, 1848, stationed himself at Pa'at, Balangingi Island, and constructed a fort with the intention of defying the Spanish forces and fighting them again. An isolated case like this can not be explained except on the ground of foolhardiness, for Tampang was soon after that dislodged by the governor of Zamboanga. But it appears that it was necessary again for the Spaniards to send another squadron under Manuel Quesada, consisting of two steam gunboats and other sloops and vessels, to clean up Balangingi once more and to strike at the Moros of Basilan and Pilas. Nor was this sufficient, for we learn that before the end of the same month of December, 3,000 Sulus and Samals attacked the Spanish forces on Basilan, probably at Isabela, and were repulsed. In 1849 the Spaniards retaliated and reduced to ashes the settlements of Bwal, Samalang, and Gumbalang. Undaunted, the Moros of Tonkil, together with others, in 1850 raided the Islands of Samar and Kamigin and carried away more than 75 natives.

CHAPTER IV

DECLINE OF SULU, 1851-1896

EXPEDITION AGAINST JOLO

The fearlessness of the Moros in battle, their determination, persistence, and fortitude must have disheartened the Spaniards very often in their weary attempts to conquer and pacify Sulu. The Sulus have never had any standing army. Every able-bodied male was a soldier and a sailor. Thousands of Sulus and Samals stood ready at a moment's notice to man a fleet and defend a fort. Every fort the Spaniards reduced the Sulus could rebuild in a short time; every fleet destroyed they could replace with little expense. They had enough pearls to purchase guns and ammunition, and a few months after a defeat they were ready to fight again, better prepared than before. War with Sulu, in the way it was conducted, meant a war of extermination and hostilities without end. Its worst evils befell the helpless natives of the coast settlements of the Bisayas and southern Luzon to whom Spain was unable to afford safe protection. The Moros would slip through in the night or take advantage of a favorable wind and attack the Spanish forces or the defenseless

villages while they were unaware of danger or unprepared for a fight. For a long while it seemed beyond the power of the Philippine Government to reëstablish peace or restrict hostilities to Sulu waters. The magnificent victory of Claveria was hailed as marking the beginning of a new era of safety and glory, but its effects did not last long, and the fear of the Moros beset the hearts of the Bisayans once more.

In the light of such profound experience as the Philippine Government had had with Moro affairs Governor Urbiztondo might have contented himself with punishing the Moros of Tonkil and their abettors and allies, but another element of serious concern entered into the problem which threatened not only to render it more vexatious and unsolvable, but dangerous in the extreme. It was not so much the evils of disturbed relations with Sulu as the harm that would arise from English occupation of or alliance with Sulu that Urbiztondo feared, for in 1849, Sir James Brooke visited Jolo and made a treaty with the Sultan of Sulu, [210] the seventh article of which declared a promise made by the Sultan of Sulu not to make any cessions of territory within his dominion nor recognize sovereignty rights nor promise fealty to any nation without the consent of Great Britain. The overt object of this treaty was "to keep open for the benefit of the mercantile world that improvable field for commercial enterprise," but the ultimate purpose of such an agreement was not difficult to foresee. The governor of Zamboanga went to Jolo and protested strongly, declaring such a treaty an act of disloyalty to Spain, for which the Sultan and his council would be held responsible. The subject was debated with considerable feeling on both sides. The governor remained at Jolo twenty-seven days and returned without advantage.

The treaty was never ratified by Great Britain, but such endeavors on the part of a strong maritime European power made it necessary for Spain to act decisively and expeditiously. Urbiztondo then pressed to the attention of Sultan Pulalun and his council the necessity of punishing the Samals of Tonkil for their depredations on Samar and Kamigin and requested the return of the captives whom they carried away. Considerable controversy followed and the Sulus pretended that they were unable to punish Tonkil, but offered no objection to its castigation by the Philippine Government.

Aware of the seriousness of the situation, Urbiztondo made preparations for war and decided to attack not Tonkil only, but Jolo also, repeating there the example of Balangingi, and to bring Sulu under the control of Spain. Referring to this cause, Captain Keppel, in his "Visit to the Indian Archipelago," makes the following remarks:

His [the Sultan's] fortified position gave him weight, which he had frequently thrown into the scale of humanity: and it must now be feared that many whom he was able to hold in check will again follow their evil propensities unrestrained, as they did under previous dynasties.

The resentment of Spain, as visited upon the Sultan of Sulu, seems equally impolitic and unjust. The pretext was piracy, of which some solitary instance may very possibly have been established against a Sulu prahu; but the Sultan was certainly sincere in his wish to coöperate against that system. There is ground to fear that national jealousy was desirous of striking its puny blow at an European rival,

through the degradation of the Sultan of Sulu--that he has incurred, in fact, the resentment of the Spanish colonial governors, by those commercial treaties with ourselves which were but lately concluded by Sir James Brooke. [211]

On the 11th day of December, 1850, Urbiztondo left Manila in command of a force consisting of 100 troops of artillery, 500 of infantry, 2 mountain howitzers, and a number of irregular troops and workmen. Two steamboats, one corvette, and one brigantine carried the troops to Zamboanga, where they arrived on the 20th. Here 2 companies of infantry and 102 volunteers and 6 tenders under the command of the governor of Zamboanga joined the expedition. At Belun they burned 250 houses and 20 vintas. A small force of Moros was encountered, of which they killed 3 and captured 17 prisoners, one of whom was a panglima. The chief of Bukutwan surrendered and promised to remain obedient to Spain. At Tonkil bad weather was encountered and the whole expedition turned toward Jolo.

Jolo was well fortified. It had five forts on the sea front, the strongest two of which were that of the Sultan on the right and that of Datu Daniel on the hill. Three other forts were located on prominent points at the base of the hills. The town was further defended by a double line of trenches, other fortifications and much artillery. The population was estimated at 6,000 Moros and 500 Chinese.

The fleet saluted the town and anchored in the roadstead. Two officers were sent ashore to notify the Sultan of the presence of the Governor-General and of his wish to have an interview with the Sultan and two of his datus, on board. The people were excited to such a high degree, that the mob grew violent and uncontrollable as the officers drew near the shore. Insults and weapons were hurled at them from every side, and the people shouted to them to return lest they be killed. They, however, pushed on in the direction of the Sultan's fort, where some datus came out to meet and protect them. Even then spears were thrown at them, and one of the datus had to use his kampilan in order to enforce his orders. The Sultan at last came out personally, embraced the officers, and conducted them to the audience hall. There the message was delivered to the Sultan and his council, but they all refused to go on board. The officers met the same difficulty in leaving the Sultan's house as in coming in, and as soon as they embarked five shots were discharged at them by the mob. The officers reported that the town had more than 10,000 fighting men and that it was well provisioned and well defended, and that all the women and children were removed to the mountains. Urbiztondo decided that his forces and provisions were inadequate for the occasion and did not risk a combat. On January 1, 1851, as the fleet was preparing to sail away, the Sulus fired at it, killing seven, wounding four, and damaging the hulls of some of the vessels. The fleet returned the fire, but kept moving, and sailed away in the direction of Tonkil. Here the expedition met no organized resistance. Six hundred men were disembarked, fought some armed parties, caught 4 and killed 25 men, and rescued 29 captives. About 1,000 houses and 106 boats were burned, and the fleet then returned to Zamboanga.

Here Urbiztondo made further and extensive preparations to strengthen his expedition. The commanding marine officer was sent to Manila with special instructions to augment the fleet and bring sufficient ammunition and provisions. The

Augustinian friar Pascual Ibañez raised a force of 750 Cebuans and 21 barangay, or large boats, and volunteered his help. Lumber was cut at Basilan, and lankan, [212] rafts, and ladders were constructed. Volunteers were further called for, and a large fleet of war vessels and transports was assembled at Zamboanga February 12, 1851.

Besides the staff, engineers, surgeons, and chaplains, the reënforced expedition contained 11 officers and 253 privates of artillery, 1 officer and 30 privates of sappers, 123 officers and 2,593 privates of infantry, 525 volunteers from Cebu, 100 from Iloilo, and 300 from Zamboanga; in all 142 officers, 2,876 privates, and 925 volunteers, besides rowers and other workmen. The vessels carrying the forces were 1 corvette, 1 brigantine, 3 steamboats, 2 gunboats, 9 tenders, 9 transports, and 21 barangay, with various vintas, [213] lankan, and rafts. On February 19 mass was celebrated and the expedition started for the haughty and arrogant city.

Jolo was reached on the 27th and the fleet anchored in two divisions opposite both sides of the town. The troops disembarked at dawn next morning and engaged the enemy as both divisions of the fleet began a simultaneous bombardment of the town and forts. The marksmanship of the Sulus and Spaniards was splendid, and the guns of the forts were very active. The spectacle was magnificent, the attack was most valorous, and the defense most valiant. In the heat of battle one friar was killed as he was scaling the wall and three officers fell by his side and lay surrounded by 70 corpses of Sulus. After several attempts one of the forts on the northeast side was taken by storm and the escaping Sulus made for Daniel's fort. As they were admitted into the latter, it was rushed by the Spanish troops who entered in spite of the desperate resistance the Sulus made. As the inner inclosure was gained the Sulus hurled themselves from the parapets and fled. The fighting continued until next day, when every fort was reduced, and the Sulus evacuated the town. The casualties of the attacking forces were 36 dead and 92 wounded, while the Sulus lost 300 dead. The whole town was burned to ashes and 112 pieces of artillery were taken. After four days, the Governor-General and his council decided to evacuate the town and sailed away, leaving it ungarrisoned. They evidently thought that their purpose was accomplished and that they could not afford to leave a force sufficiently strong to defend the place.

On April 30 a treaty was made with Sultan Pulalun by the politico-military governor of Zamboanga, Col. José Maria de Carlos. The treaty was declared to be "an act of incorporation of the sultanate of Sulu to the Spanish Monarchy." The Sulus understood it to be a firm agreement and friendly union with Spain. They, however, appear to have recognized the supremacy of Spain and accepted her protectorate. They agreed to use the Spanish flag and prohibit piracy. They further bound themselves not to make any treaties with any nation other than Spain nor to build forts nor to import firearms without her permission. Spain promised to respect and recognize the ranks of the Sultan and datus and to protect Sulu boats everywhere and to the same extent as Spanish boats. Duties on foreign boats were to be paid to the Sulus. Religious liberty was guaranteed. The Sultan issued passports to the Sulus and countersigned Spanish passports given to people entering the ports of Sulu.

It was agreed that Spain would build a trading post at Jolo and establish a small garrison for its protection. The Sultan and the datus resumed their residence in the town of Jolo, with apparently very little change from former conditions.

In consideration of the losses incurred by the Sultan and datus through the destruction of their houses and town, and on condition that the Sulus aid in the construction and protection of the Jolo trading post, annuities were granted to the Sultan, three datus, and one subordinate chief.

The treaty was written in both Spanish and Sulu and was signed and sealed by both parties. Complete and exact translations of the Spanish and Sulu copies of this treaty have been carefully made and are here given in full. The Sulu copy of the treaty appears to have been written or dictated by interpreters not versed in Sulu, and the difference in text is such as would easily explain the frequent misunderstandings between the Spanish officials and the Sulu authorities in cases pertaining to the application of the terms of this treaty.

TREATY OF APRIL 30, 1851

SULTANATE OF SULU

Act of Incorporation into the Spanish Monarchy, April 30, 1851

Solemn declaration of incorporation and adhesion to the Sovereignty of Her Catholic Majesty Isabel II, Constitutional Queen of Spain, and of submission to the Supreme Government of the Nation, made by His High Excellency the Sultan of Sulu, Mohammed Pulalun, Datus Mohammed Buyuk, Muluk, Daniel Amil Bahar, Bandahala, Muluk Kahar, Amil Badar, Tumanggung, Juhan, Sanajahan, Na'ib, Mamancha and Sharif Mohammed Binsarin, in the name and in representation of the whole island of Sulu, to Colonel José María de Carlos y O'Doyle, Politico-Military Governor of the Province of Zamboanga, islands of Basilan, Pilas, Tonkil, and those adjacent thereto, as Plenipotentiary specially authorized by His Excellency Antonio de Urbiztondo, Marquis of Solana, Governor and Captain-General of the Philippine Islands.

Article I. His Excellency the Sultan of Sulu, for himself, his heirs and descendants, Datus Mohammed Buyuk, Muluk, Daniel Amil Bahar, Bandahala, Muluk Kahar, Amil Badar, Tumanggung, Juhan, Sanajahan, Na'ib, Mamancha and Sharif Mohammed Binsarin, all of their own free will, declare: That, for the purpose of making amends to the Spanish Nation for the outrage committed against it on the first of January of this year, they desire and request that the island of Jolo and all its dependencies be incorporated with the Crown of Spain, which for several centuries has been their only sovereign and protectress, making on this day a new solemn declaration of adhesion and submission and recognizing Her Catholic Majesty Isabel II, Constitutional Queen of Spain, and those who may succeed her in this supreme dignity, as their rightful Sovereign Lords and Protectors, in virtue of the treaties made in old times, of the treaty of 1836 and the additions made thereto by the present governor of Zamboanga in August, and also and very particularly of the recent conquest of Jolo on the 28th of February of the present year by Captain-General Antonio Urbiztondo, Marquis of

Solana and Governor-General of the Philippine Islands.

Article 2. The Sultan and Datus solemnly promise to maintain the integrity of the territory of Sulu and all its dependencies as a part of the Archipelago belonging to the Spanish Government.

Article 3. The island of Sulu and all its dependencies having been incorporated with the Crown of Spain, and the inhabitants thereof being part of the great Spanish family which lives in the vast Philippine Archipelago, the Sultan and Datus shall not be empowered to make or sign treaties, commercial agreements or alliances of any kind with European powers, companies, persons or corporations, and Malayan sultans or chiefs, under pain of nullity; they declare all treaties made with other powers to be null and void if they are prejudicial to the ancient and indisputable rights held by Spain over the entire Sulu Archipelago as part of the Philippine Islands, and they ratify, renew and leave in force all documents containing clauses favorable to the Spanish Government that may have been drawn up before this date, however old they may be.

Article 4. They renew the solemn promise not to carry on piracy or allow anybody to carry on piracy within the dominions of Sulu, and to run down those who follow this infamous calling, declaring themselves enemies of all islands that are enemies of Spain and allies of all her friends.

Article 5. From this day forth the island of Sulu shall fly the Spanish national flag in its towns and on its ships, and the Sultan and other constituted authorities shall use the Spanish war flag, under the principles in use in other Spanish possessions, and shall use no other either on land or on sea.

Article 6. The island of Sulu and its dependencies having been declared an integral part of the Philippine Archipelago, which belongs to Spain, commerce under the Spanish flag in all the ports of the Sultanate shall be free and unmolested, as it is in all the ports belonging to the Nation.

Article 7. The Sultan and Datus of Sulu, having recognized the sovereignty of Spain over their territory, which sovereignty is now strongly established, not only by right of conquest but by the clemency of the conqueror, they shall not erect fortifications of any kind in the territory under their command without express permission of His Excellency the Governor-General of these Islands; the purchase and use of all kinds of firearms shall be prohibited except with a license issued by the same supreme authority, and craft found with arms other than the edged weapons which have from time immemorial been in use in the country shall be considered as enemies.

Article 8. The Spanish Government, as an unequivocal proof of the protection which it grants the Sulus, will give the Sultan and Datus adequate Royal titles establishing their authority and their rank.

Article 9. The Spanish Government guarantees with all solemnity to the Sultan and other inhabitants of Sulu the free exercise of their religion, with which it will not interfere in the slightest way, and it will also respect their customs.

Article 10. The Spanish Government also guarantees the right of succession to the present Sultan and his descendants in the order established and as long as they observe these agreements, and equally guarantees the rank and dignities of the privileged classes, which shall retain all their rights.

Article 11. Sulu ships and goods shall enjoy in Spanish ports, without any distinction whatever, the same privileges and advantages granted the natives of the Philippine Islands.

Article 12. Except in the case of Spanish ships, the duties that constitute the income with which the Sultan and Datus maintain their respective ranks shall remain in force, so that they may continue to keep up the proper splendor and decorum of their station; for this purpose said duties shall be paid by all ships coming to their ports; other measures will be taken later on to enhance their dignity and increase their prestige.

Article 13. For the purpose of assuring and strengthening the authority of the Sultan, and also of promoting a regular trade which may enrich the island of Sulu, a trading post, garrisoned by Spanish forces, shall be established as soon as the Government so orders, and in accordance with Article 3 of the Treaty of 1836; for the building of the trading post the Sultan, Datus, and natives shall give all the assistance in their power and furnish native labor, which will be paid for, and all necessary materials, which they will charge at the regular market prices.

Article 14. The trading post shall be established at the place called Daniel's Kuta, next to the roadstead, as it is the most suitable place; but care shall be taken not to encroach in any way on the native cemetery, which has to be religiously respected, and no buildings whatever shall be erected in said cemetery, so as to avoid the trouble that would ensue to those who might build there.

Article 15. The Sultan of Sulu may issue passports to all persons within his dominions that may request them, and fix the amount of the fees; he is also authorized to countersign or place his seal on the passports of Spaniards visiting his place of residence.

Article 16. In view of the Sultan's declarations regarding the losses suffered by him in the destruction by fire of his forts and palace, and convinced of the reality of the losses, the Spanish Government grants him an annuity of 1,500 pesos in order to indemnify him in a certain way for these losses and at the same time to help him to maintain, with proper splendor, the decorum due his person and his rank. The same considerations induce the Spanish Government to grant Datu Mohammed Buyuk, Muluk and Datu Daniel Amil Bahar 600 pesos per annum each, and 360 pesos to Sharif Mohammed Binsarin on account of his good services to the Spanish Government.

Article 17. The articles contained in this solemn Act shall go this day into full effect, subject however to the superior approval of His Excellency the Governor-General of these Philippine Islands. Any doubt which may arise in regard to the text of this Act shall be resolved by adhering to the literal meaning of the Spanish text.

Signed at Jolo on the 19th of April 1851.--Seal of the Sultan.--Seals of Datus Muluk Kahar; Tumanggung; Sanajahan; Mamancha; Muluk Bandahala; Amil-Badar; Juhan; Na'ib; and signature of Sharif Mohammed Binsarin.--The Politico-Military Governor of the province of Zamboanga etc.: José María de Carlos y O'Doyle.

I, Don Antonio de Urbiztondo y Eguía, Marquis de la Solana, Knight Grand Cross of the Royal American Order of Isabel the Catholic, Knight of the Royal Order of San Fernando of the first and third class, and of that of San Hermanegildo, Lieutenant-General of the National Forces, Governor and Captain-General of the Philippine Islands, President of the Royal Audiencia of the Philippine Islands, Judge-Subdelegate of Post Office Revenues, Vice-Royal Patron, and Director-General of the troops, etc., approve, confirm and ratify this capitulation in the name of Her Majesty Isabel II.

Manila, April 30, 1851.--Antonio de Urbiztondo.

True copy.--Seal of the Captain-General of the Philippines.

Royal order approving the salaries assigned to the Sultan and Datus of Sulu, December 14, 1851.

The Queen (whom God save), in view of the letter of Your Excellency of May 3rd last, No. 1236, and of the report of the Secretary of State on the subject, has been pleased to approve the salaries assigned by Article 16 of the Capitulation to the Sultan and Datus of Sulu, and amounting to 1,500 pesos for the Sultan, 600 pesos for each of the Datus Mohammed Buyuk Muluk and Daniel Amil Bahar, and 360 for Sharif Binsarin.

By Royal order etc.

Madrid, December 14, 1851.

The Intendant of the Philippines.

TRANSLATION OF THE SULU TEXT OF THE TREATY OF 1851

A statement of firm agreement and union (in friendship) made by the Queen Spain Isabel II, Constitutional Queen of all Spain, and the honorable officers of her government, with the Mawlana Sultan Mohammed Pulalun and the Datus Mohammed Buyuk, Muluk, Amil Bahar, Bandahala, Muluk Kahar, Amil Badar, Tumanggung, Juhan, Sawja'an, Na'ib, Mamancha, and Tuan Sharif Mohammed Binsarin.

The King was represented here by Colonel Don José María de Carlos y O'Doyle, Politico-Military Governor of the Province of Zamboanga and islands of Basilan, Pilas, Tonkil, and others, who was given power and authority by General Don Antonio de Urbiztondo, Marquis of Solana, Governor and Great Captain of the Philippine Islands.

Article I. The Mahasari Mawlana Sultan of Sulu and his ministers together with the datus mentioned above have the great desire to state that they had good intentions toward the people of Spain, on January 1, of this year. They also state that the

relation of Sulu and its dependencies to Spain has been one of intimate union from the first until now.

They make anew, to-day, a firm agreement of union in friendship with the Queen of Spain Isabel II, Constitutional Queen of All Spain, and all her honorable officers, to reaffirm the previous agreement of 1836, as also the agreement of last year made with the governor of Zamboanga, in the month of August, which fully affirmed the "Kunkista" [214] of Sulu which was effected on the 28th of February, this year, by Señor the excellent Don Antonio Urbiztondo, Marquis of Solana, Governor and great Captain of the Philippine Archipelago.

Article II. The Sultan and Datus promise with firm intention and brotherhood not to revoke their agreement to the occupation of Sulu and its dependencies, regarding them as dependencies of Spain.

Article III. Sulu and her dependencies alike use the Spanish flag; the people of Sulu and her dependencies are one with the people of Spain, and ally themselves to the Philippine Islands.

It shall not be right for the Sultan and the Datus to make treaties with Malay datus or any nation other than Spain, whether that nation is Spain's ally or not. Should such treaties be made they would be null. So also they can not make any contracts with any persons other than Spaniards, nor any agreement contrary to the previous ones. Such agreements, if made, will not be binding because Spain is in all the islands of Sulu as she is in her Philippine Islands, and Sulu has previous friendship treaties with Spain.

Article IV. New promise: Pirates shall not be allowed at all here in Sulu. Should they commit any crime they shall be punished wherever they may be.

Article V. The subordinate rulers, and all boats, from this day on, shall use the Spanish flag, but the Sultan and the Datus can use a war flag like the Spanish officials. They will not use any other flag.

Article VI. The Island of Sulu and all its dependencies large and small, being the same as the Philippine Islands in that they belong to Spain, all Spanish officers and all ships flying the Spanish flag may navigate through the Sulu Archipelago without any objection.

Article VII. It is recognized by the Sultan and the Datus that the King of Spain is powerful these days and is just and merciful in acquiring "Kunkista," and that it is not right to build forts without informing the Spanish Government nor to buy arms without having also informed the Spanish Government, nor to have boats carry any arms except the kris and the spear, for other arms are signs of enmity.

Article VIII. The Spanish Government, wishing to promote fellowship with the people of Sulu, gives the sultan and the datus titulu (titles) to increase their respect and honor.

Article IX. The Spanish Government assures the Sultan and all the people that it will let their religion alone, and that it will not try to change their religion, nor object

to the free exercise of their worship and the customs of their race.

Article X. The Spanish Government does also promise the people and the Sultan that it will not break its word. It also promises to recognize the ranks of the Sultan and the Datus, and also those of subordinate rulers and the people.

Article XI. Sulu boats and goods may go to Spanish countries without any objection, in the same manner as if they belonged to that country.

Article XII. All ships that come to Sulu, except those of Spain, pay duties as previously, in order that the Sultan and the Datus may get a share of the income of their towns, and may adopt measures which will improve and benefit the town.

Article XIII. If the power of the Sultan is well established and sustained, he may be able to secure other profits besides this, by helping the Spanish Government, in accordance with Article 3 of the treaty of 1836, providing for the building of a trading post which would be guarded by Spain. It will be proper for the Sultan and the Datus to help in the erection of this trading post, and all labor and lumber shall be paid for according to the custom of the place.

Article XIV. This trading post shall be built near the site of the fort of Amil Bahar. [215] It shall not encroach upon nor cause any injury to the cemetery of the Mohammedans, but out of due respect to their religion no house shall be erected there, and in case any be erected it shall be destroyed.

Article XV. The Sultan of Sulu has the right to give passports to all of his people who request it, sign those which he issues, and countersign Spanish passports coming to Sulu.

Article XVI. The Spanish Government, forgiving the previous offenses of the Sultan, and in consideration of the destruction by fire of his palace and his fort, grants the Sultan a yearly sum of P1,500 as a help and an indemnity for his losses. The Spanish Government also grants to each of the Datus Mohammed Buyuk, Muluk, and Amil Bahar, P600 a year, and to Tuan Sharif Mohammed Binsarin P360 on account of his good services to Spain.

Article XVII. The articles of this treaty shall take effect to-day. They shall be shown to the Captain-General of the Philippine Islands lest he would not agree to them. They are also in Spanish.

This treaty gained its purpose in that it checkmated the agreement of Sir James Brooke, but it certainly did not receive as much consideration at Jolo and Zamboanga as it did at Madrid and London. Its effect was temporary only. As early as 1854 a town on Kapul was burned by the Spanish forces from Basilan. In 1855 the Sulus made a dash upon Zamboanga and burned the best part of the town. The "Light Fleet" issued from Isabela de Basilan in 1857, surprised Simisa, rescued 76 captives, and took 116 prisoners. The chiefs against whom the expedition was directed presented themselves later to the governor of Zamboanga and exchanged the Moro prisoners for 60 Christian captives, 1 priest, and 1 European woman. Many pirates continued to scour the remote parts of the Archipelago. In 1858 Governor-General Norzagaray published a proclamation calling the attention of chiefs of provinces and

municipalities to the approach of the season at which the pirates appear, and invoking their aid to caution the people and to take proper measures for the defense of their towns. Rewards were also offered for catching or killing pirates and for seizing their boats wherever found, but this had no important effect. In 1860 about 400 Moros raided the Straits of San Bernardino and plundered several settlements.

The year 1861 marks a new era in the history of piracy and a new step in the organization of government for Mindanao and Basilan. At this time Spain and the Philippines were passing through a period of progress. Alive to the truth that commerce and piracy can not coexist, the government provided a competent naval force by which it was able to maintain unquestionable supremacy in the Sulu Sea. It purchased eighteen steam vessels in England and used them for chasing Moro pirates and for blockading the port of Jolo. The operations conducted by these vessels drove away hordes of pirates from Philippine waters, and, in the course of a decade, terminated that long term of piracy under which the Islands had suffered for three centuries.

POLITICO-MILITARY GOVERNMENT OF MINDANAO AND ADJACENT ISLANDS

Affairs in Mindanao had progressed so satisfactorily that Pollok, Kotabato, and Davao were occupied by permanent garrisons, and peace and tranquillity reigned over the Celebes Sea. A politico-military government was then established for all the pacified territory of Mindanao and Basilan, and was designated as the Government of Mindanao. It comprised six districts, the first five of which belonged entirely to the Island of Mindanao. The sixth was called the district of Basilan and was defined as "comprising Basilan and the Spanish possessions in the Archipelago of Sulu." Sulu was not brought under this organization until 1878, when an additional district was created for this purpose. The form of this government and its chief characteristics are best described in the words of the royal order creating it, which is herein given in full because of many points of interest which are contained in the text and form of the decree, and which can not be well illustrated otherwise:

Superior Civil Government

Office of the Deputy Superintendent of the Philippine Treasury

CIRCULAR

The Minister of War and Colonies communicated to this Superior Civil Government, on the 31st of July of last year, the following Royal order:

Your Excellency: The Queen (whom God protect) has been pleased to issue the following Royal decree: Pursuant to the reasons laid before me by the Minister of War and Colonies, and in accordance with the opinion of the Council of Ministers, I hereby decree the following:

Article I. A politico-military Government is hereby established for the island of Mindanao and adjacent islands.

Article II. The Government of Mindanao shall be divided into six districts: 1. the Zamboanga District, formed of that part of the province of the same name which includes all of Sibugay Bay, and the west coast of the island as far as Murciélagos Point; 2. the District of the North, including, in the northern part of the island, all the territory between the boundary line of the 1st District and Dapitan Point, on Tutwan Bay; 3. the Eastern District, between Dapitan Point, and Karaga Bay; 4. the Davao District, beginning on the boundary line of the 3d District and including the Bay of Davao and all the southern extremity of the island; 5. the Central District, including Illana Bay, situated between the 1st and 4th districts; 6. the District of Basilan, comprising the Spanish possessions in the Archipelagoes of Sulu and Basilan. The capital of the Government shall be in the Central District, the most advantageous place at the mouth of the Mindanao River being chosen. These districts shall be divided into two classes; to the first class shall belong the Northern, Central and Eastern districts, and to the second those of Zamboanga, Davao and Basilan.

Article III. The Governor of Mindanao shall receive 6,000 pesos as salary, and 2,000 pesos as entertainment fund. The latter shall be supplied from the revenues from Government real estate and licenses. The Governor's residence shall also be supplied by the State.

Article IV. This Governorship shall correspond to the class of brigadier generals; but the first Governor appointed may be a colonel, who will be entitled, as a reward, to an appointment as brigadier general after three years.

Article V. The Governor of Mindanao shall be succeeded in his command by the officer of the highest rank in the island, pending the appointment of another Governor, or such action as the Captain General may deem advisable. In the districts, the Governor shall be succeeded by the officer next in rank, until the Governor of Mindanao appoints an Acting Governor and requests the Captain General to take such action as may be called for by the regulations in force.

Article VI. The duties and powers of the Captain General in regard to the Government of Mindanao, and those of the Governor of the island, shall be the same as those provided for the Bisayas in my Royal decree of this date. As military authorities, they shall observe the usual relations between Captains General and Commanders General of Provinces. The Governor of Mindanao shall forward each month to the Captain General of the Philippines a tabulated record of the resolutions taken by him in the exercise of his authority, so that the latter may be able to exercise with efficiency the general supervision to which he is entitled. The Captain General shall forward to the Supreme Government, through the proper channels, both this tabulated record, and a statement of the action he has taken in the premises.

Article VII. The districts of the first class shall be governed by lieutenant-colonels and those of the second class by senior majors.

Article VIII. The duties of these district governors shall be those specified, up to the present time, for the politico-military Governors of the island.

Article IX. The Governor of Mindanao shall have a Secretariate with the following personnel: a Secretary at 2,500 pesos per year; one clerk, class one, at 1,200; one clerk, class two, at 1,000, and one clerk, class three, at 800. 1,000 pesos are furthermore provided for the salaries of copyists, and 500 for office supplies.

Article X. There is hereby created for Mindanao a Revenue Office which shall serve as depositary of the revenues, and shall have charge of collecting all taxes, and of the administration of the Army. It shall have the following personnel: an Administrator at 2,500 pesos; a Controller at 2,000; one clerk, class one, at 1,000; two clerks, class two, at 800, and a cashier at 800. 1,500 pesos are provided for the salaries of copyists and other auxiliary employees, and 600 for office supplies.

Article XI. The chiefs of districts shall remain in charge of the collection of taxes in the manner hitherto established, and shall be entitled to the allowances provided for that purpose. The provisions of this article shall not interfere with those already made for the departments of the administration which exist at the present time in Mindanao and their dependencies.

Article XII. For expediting their official business the district governors shall have a secretary at a salary of 800 pesos in districts of the first class, and 600 in those of the second class. To each secretary's office 75 pesos are assigned for office supplies, and 150 for a copyist.

Article XIII. The mission of the Jesuits, which has already been sent to Mindanao, shall look after the spiritual wants of the island, and Jesuits shall take the place of the other priests as soon as the mission has a sufficient personnel, and in the manner which may be deemed most convenient.

Article XIV. The first and principal object of the mission shall be to secure the conversion of the races which have not yet been subjected, and even after the parishes of the island are provided for it shall maintain a sufficient number of missionaries for that purpose; each missionary shall be aided to the extent of 800 pesos a year from the Royal Treasury.

Article XV. The War and Navy Departments, together with the Colonial Office, shall decide what forces of the army and navy are required for Mindanao; the Captain-General shall have authority to make such changes as the circumstances may require, but he shall always report such changes to the respective Ministers for approval.

Article XVI. The Governor can use the naval forces whenever he finds it necessary, with the assent of the commanding officer thereof.

Article XVII. It shall be the constant duty of the army to explore and to occupy the country; for that purpose, two columns at least shall be detached each year from each district, and go through said districts in different directions. The chiefs of these columns shall make out a report about the territory reconnoitered by them; said reports shall be included in a general report made by the Governor, which shall be forwarded to the Department of War and Colonies through the Captain-General of the Philippines; this information will allow the Governor to give, in the following years his

instructions to the columns sent out to explore the country, without losing sight of the advantage of establishing friendly relations with the tribes which inhabit the island, and the necessity of maintaining communication between the different districts. These columns shall be provided with everything that may be required to overcome the obstacles they will find on their way; and during the expedition, officers and soldiers shall receive field rations, issued in kind, according to the advice of the Military Health Department. For this purpose 10,000 pesos shall be carried on the budget for the first year, and 100 pesos shall be given for each expedition to the officer commanding a column, for extraordinary expenses.

Article XVIII. Two special agents shall be appointed by the government for the purpose of studying means of developing all the natural resources of the island of Mindanao.

Article XIX. In order to encourage colonists to settle in such parts of the island as may be deemed best, they will be furnished, at their request, the tools and implements required for their work or trade. The Governor is furthermore authorized to pay the traveling expenses of colonists who may wish to settle in the island without exceeding the sum hereinafter provided, the expenditure of which shall be duly accounted for. The new settlers shall be entitled to the foregoing privileges for ten years, and 12,000 pesos shall be appropriated for that purpose during the first year, from the revenues accruing from government real estate and licenses. The new settlers shall be exempt from tribute; the same favor shall be granted all tribes that submit peacefully.

Article XX. The laws and regulations in force in the other islands of the Philippines shall be observed in all the offices of the Treasury Department. The prohibitions mentioned in the tariff shall apply to the custom house of Zamboanga; articles imported into the island in Spanish bottoms, and for local consumption, shall pay, during the next ten years, 2 per cent ad valorem, if of Spanish origin and 5 per cent if of foreign origin. If brought under a foreign flag said articles shall pay double the amounts specified above. If, after importing an article for use in the island, it is reëxported to some other Spanish island, it shall pay, on arrival at the latter the difference between what has been paid in Mindanao and the regular duty established in the tariff.

Article XXI. Lands now under cultivation, and those placed under cultivation during the next ten years, shall pay no other impost than that required by the regulations now in force, per quiñon of land, as an acknowledgment of ownership. [216]

Article XXII. The Government shall always have on hand a reserve fund of 10,000 pesos to meet any urgent and unexpected need that may arise; in such cases only, the Governor shall assume the responsibility of using this sum, or part of the same, and shall account for the expenditure, in the usual manner.

Article XXIII. A sum of 3,000 pesos per year is placed at the disposal of the Governor for presents to the independent tribes, for the purpose of gaining their friendship; the same amount is assigned to the mission of the Jesuits. These funds

shall be expended and accounted for in the best possible form.

Article XXIV. For the expenses of installation a special estimate shall be drawn up, and action shall be taken thereon as provided by the laws for urgent cases.

Article XXV. No extra pay or allowances of any kind shall be given except such as are provided in the present decree, and the per diems usually granted military engineers when they are sent out on official business.

Article XXVI. The War, Navy, and Colonies Departments shall execute the present Decree in the parts which respectively concern them, and shall work in common for the execution of such parts thereof as may belong to two or more Departments.

Article XXVII. So many of the laws and orders in force as are inconsistent with the provisions of the present decree are hereby repealed.

Given at San Ildefonso on the 30th of July, 1860.

Rubric of Her Majesty.--The Minister of War and Colonies. Leopoldo O'Donnell.--Communicated to you by Royal order for your information and action.

Sultan Pulalun was regarded by the Sulus as an able administrator and a just ruler. His influence and fame and that of his father endeared the house of Jamalul Kiram to the people to such an extent as to restrict the succession of the sultanate to their direct line of descent for a considerable period of time. Following the steps of his father, he published a revised code of Sulu laws and conducted the affairs of his government with care. Pulalun died September 24, 1862, and was followed by his son, Jamalul A`lam.

The succession of Jamalul A`lam was contested by Datu Jamalul Kiram, the grandson of Sultan Shakirul Lah. The wife of Datu Jamalul Kiram was the daughter of Datu Daniel Amil Bahar, and the latter was inclined to support his son-in-law. Jamalul A`lam, however, had the majority of the council of the datus on his side, and a Spanish commission sent to Jolo in November, confirmed his sultanate. Espina states that at that time the sultan was living with Datu Asibi, and that the portrait of Queen Isabel II was placed before the sultan when he made his declaration before the commission to recognize the authority and sovereignty of Spain over all the dominions of Sulu, including her dependencies in Borneo.

It is noted in the Sulu Annals, under date of February 1, 1867, that a Spanish war vessel arrived at Jolo and demanded the punishment and delivery of three men, one of whom was called Imam Mindang. The sultan arrested all these men and had them executed on February 9 in the presence of the officer in command of the vessel. It appears that in spite of the vigilance of the Spanish navy, piratical expeditions were kept up by discontented Moros not fully submissive to the sultan. This led to further activity on the part of Spanish gunboats, and war was consequently carried into Sulu waters and territory.

Another note in the Sulu Annals, under date of March 5, 1872, states that 13 Spanish vessels attacked Jolo, killed 3 men and 1 woman and lost 2 officers and 100 soldiers. That same year the famous warrior Datu Daniel Amil Bahar died; and Puerta

Princesa, capital of Palawan, was garrisoned by native troops. A naval blockade of Jolo was established and hostilities between Sulu and Spain were resumed. In 1873-1875 considerable damage was done by the fleet throughout the Archipelago, and two German vessels were seized while carrying contraband of war to the Sulus.

In the estimation of the Sulus, Jamalul A'lam was one of their best rulers. He carried out many public improvements, built roads and bridges and mosques, enforced public attendance at the Friday church services, and executed the laws with justice and force. He was as able a ruler as any sultan Sulu had since the days of Abu Bakr, but the vicissitudes of fortune were certainty against him. Before his reign ended, Spain's hand fell upon him strong and heavy, his capital was wrested from him, and his power waned.

CHAPTER V.

SULU UNDER SPANISH SOVEREIGNTY

OCCUPATION OF JOLO

The Sulu sultanate remained practically independent for four hundred and twenty-five years. Its decline was not caused by national retrogression or political dissension, but by the hostility and aggression of its adversary. Sulu's power arose through the introduction of firearms into eastern Malaysia and began to decline at the introduction of steam war vessels into the Philippine Archipelago. The mobility and speed of steam war vessels put to disadvantage all Moro sailing and rowing craft. Pirates were chased on the sea and hunted in their lairs. The fear which steamboats struck in the hearts of Moros made them run away from their homes and settlements and hide in the jungles whenever they heard the whistle of a steamboat, or saw it approaching from a distance. The steamboats purchased by Governor Claveria in 1848, which crushed the power of the Balangingi Samals, were referred to by Captain Keppel in the following words:

"On the 14th of January [1849] we left Zamboanga, getting under weigh in company with such a fleet of gunboats as would have done credit to any nation."

The vessels purchased in 1861 increased the efficiency of the navy to such a degree as to make it possible to carry war into Sulu territory, attack many remote islands and settlements and blockade the port of Jolo so effectively as to check the importation of firearms and ammunition, and restore a condition of safety and peace on the sea.

The campaign of 1876 was a very significant event in the history of Sulu. It decided the fate of this state and definitely fixed its relation to the Philippine Archipelago. Spain's determination to conquer Sulu never waned and seemed stronger then than ever before. The Governor-General was a man of great ability and aspired to the highest military honors. Moro raids recurred occasionally and the strained relations of the two states became so tense that rupture was inevitable.

In reviewing the history of Spanish campaigns in Sulu up to this time, one is strongly impressed with the futility of conquest without occupation. To invade a Moro settlement, defeat its forces, burn its houses, kill some of its inhabitants, and carry some away as prisoners, is not very different in character and effect from a Moro raid. Such methods incited the Moros to revenge themselves by waging war on their invaders. This they did by raiding, which is their established method of warfare. Up to this time natural advantages remained on the side of the Sulus and Spanish forces could accomplish no permanent results, in spite of their superior methods of warfare and excellent military organization.

Since the days of the great Corcuera, no Spanish general appears to have recognized the importance of the occupation of Sulu as an essential factor in its pacification. Their apparent inability to comprehend the real solution of this question might have arisen from consciousness of their inability to provide an adequate force for the purpose. However that may have been, the honor of such an achievement remained for Governor-General Malcampo, who carried it out with credit to himself and to the government which he represented. With a clear understanding of the task to be accomplished, he resolved to conquer Sulu and occupy it, and then suppress piracy by striking the pirates at home. He left Manila on the 5th of February, 1876, with a large force composed of one battalion of the peninsular regiment of artillery, one company of mountain artillery, five regiments of infantry, ordnance, engineers, sanitary and prison detachments, and two companies of the Guardia Civil. [217] At Zamboanga, the expedition was reinforced by 864 volunteers, 400 of whom were from Zamboanga and 464 from Kagayan de Misamis commanded by the Augustinian friar, Ramon Zueco.

The whole expedition, estimated at 9,000 troops, left Zamboanga on the 20th of February. They were conveyed in 10 steamboats and 11 transports, and were escorted by a fleet of 12 gunboats under the admiral in command of the Philippine naval forces. The Island of Sulu was reached on the 21st, and next morning a force disembarked at Patikul, 4 miles east of Jolo. The Moros at this place offered some resistance and caused some casualties, but later in the day abandoned the place and fled. Here a considerable column was detached to reconnoitre the interior and advance on Jolo from the land side. This plan proved impracticable and the column suffered severely from heat and thirst and returned next day to the beach at Tandu, 2 miles east of Jolo. On the 29th, a general advance was made on Jolo by land and sea. The fleet opened fire on the town, while the land forces rushed the forts and trenches on the sides. The main force was directed against the fort of Daniel, which was captured after a sharp fight. The Moros in the other forts made a fiercer resistance, but were soon overcome by the fire of the Spanish artillery and the whole town was taken by assault. On the 30th, the fort of Panglima Adak, situated at the base of the hills, was taken. Not content with this brilliant victory and intent upon striking a decisive and deadly blow, Malcampo directed various expeditions against the other strongholds of Sulu. A force of marines and volunteers destroyed 80 boats and burned 90 houses on Tapul. On March 16 an expedition to Lapak destroyed its forts and reduced the settlement to ashes. On March 22 the forts of Parang were reduced, the settlement was burned, and many Sulus killed. On the 24th Maymbung was

similarly destroyed.

A large garrison was established at Jolo, consisting of two regiments of infantry, one company of artillery, one company of engineers, and two companies of disciplinarios. [218] Capt. Pascual Cervera, a captain of frigate of the navy was given command of the garrison, under the title of politico-military governor of Sulu. General Malcampo was given the title of "Count of Jolo," while many decorations were awarded to gallant officers, and a medal was struck for each participant in the campaign.

The step thus taken by the Philippine Government appears to have been well planned and firmly resolved. No sooner was a footing gained than measures were undertaken to quarter the troops and fortify the place. Barracks were constructed on favorable spots on the edge of the swamps, and the forts Alfonso XII and the Princess of Asturias were erected on the site of Daniel's and Panglima Adak's kuta, respectively. Plans were further laid out at this early time for the building of a town and the founding of a colony. Governor Cervera, to whom this task was first entrusted, was a vigorous, prudent, and circumspect chief. He prosecuted the work with energy and kept a vigilant watch on the movements of the enemy. He began the construction of a military hospital and established the office of captain of the port. Small expeditions were made to Bwan, Mapaid, Balimbing, and South Ubian for the chastisement of pirates who took refuge there. The kuta of the first three of these settlements were destroyed and their armaments were taken. This year saw considerable sickness in the garrison of Jolo; a large number of patients were removed to Zamboanga and 318 to Cebu.

On October 1, Governor Cervera was temporarily relieved as governor of Sulu by Col. Eduardo Fernandez Bremon, and on December 31, 1876, Brig. Gen. José Paulin assumed permanent command of the garrison as the second governor of Sulu. The latter continued the peace negotiations which were commenced by Governor Cervera and expended a good deal of energy in trying to conciliate some datus and their followers. His measures were, however, resented by the Sulus and hostilities increased. He left Jolo April 30, 1877, and the command was temporarily held by Lieut. Lopez Nuño and José Marina, for three months and one month and a half, respectively.

RULE OF SULTAN JAMALUL A'LAM

After the fall of Jolo and its destruction by General Malcampo, Sultan Jamalul A'lam removed to Bud Datu and later to Likup. The datus dispersed in all directions, but Datus Asibi and Pula, the strongest chiefs after the sultan, remained in the neighborhood of Jolo, at Tandu and Patikul. The Sulus were united at that time and formed one party, which was faithful and loyal to the sultan. They regarded the establishment of a Spanish garrison at Jolo as an intrusion upon their soil and an intolerable humiliation and offense. The common people resented the invasion as bitterly as the datus. A few years before they regarded themselves the lords of the southern seas. The Bisayan and the Kalamian Islands, Paláwan, and eastern Borneo

were their hunting grounds. They sailed proudly on the seas and had the dignity of masters of innumerable vassals and slaves. But now like fierce tigers driven back to their dens or packs of hungry wolves chased to their haunts, they waited for no word of command or organized resistance, but hurled themselves recklessly at the Spanish soldiers wherever they encountered them. Individuals and small parties lost no chance of firing a rifle from behind the bushes or throwing a lance from across the ditches. Venders in the market who saw a chance to strike a blow at the soldiers, could not resist the temptation, but recklessly darted at the enemy with a kris or barong [219] brandished in hand. A vender from Lu'uk who did not have a barong of his own snatched one from a neighbor and rushed at the guard. The soldiers were attacked in the forest while cutting lumber or firewood, at the river while getting drinking water and at the beach while bathing. Juramentados [220] crept on the sentinels in the dark and from ditches and the beach and inflicted considerable loss and damage. Some desperate characters entered the trenches and fought the soldiers on guard, while others slipped into the barracks and caught soldiers and officers off their guard and threw torches on the roofs of the warehouses.

Jamalul A'lam discouraged all overtures for peace, and for more than two years could not be reconciled to the new conditions and political status. Early in 1877 he encouraged hostilities of all sorts. Juramentados and small attacking parties harassed the garrison frequently. On the 25th of February a force of more than 2,000 Sulus advanced against the garrison, but were easily repulsed. Small parties surprised pickets and attacked laborers. On the 9th of September about 800 Sulus charged the town from the land side and from the sea and 300 attacked Fort Asturias. They were repulsed in the afternoon, but resumed the attack at night and retreated with great loss. Another general fight occurred on the 11th, but the Moros were again overpowered and driven back. Undaunted by these failures, the Sultan called a council of the datus and planned for another attack in the future. The juramentados became more treacherous and intrepid. They hid their barongs inside their trousers and in bundles they pretended to be taking to the market and attacked the guard unawares and after admission into the plaza. This state of affairs continued until June, 1878.

CESSION OF POSSESSIONS IN BORNEO TO BRITISH NORTH BORNEO COMPANY

In January, 1878, Sultan Jamalul A`lam ceded the Sulu possessions in Borneo to the Sabah or British North Borneo Company. He granted the authorized representative of this company, Baron von Overbeck, absolute ownership and dominion over that large territory for a money consideration of $5,000, Mexican currency, per annum. The Sabah Company was preceded in 1865 by an American company started by Mr. Torrey on the Kimanis River. The concessions of the American company were obtained from the Sultan of Bruney; but this enterprise proved a financial failure and its rights were bought by the Austrian Baron von Overbeck and the English merchant Mr. Alfred Dent.

"In spite of the opposition of Spain, which claimed that the Sultan of Sulu being a Spanish vassal could not dispose of his territory without her consent, the English company organized by Mr. Dent succeeded in obtaining a charter of incorporation under Act of Parliament, 1st November, 1881, as the 'British North Borneo Company' with right to acquire other interests in, over, or affecting the territories or property comprised in the several grants." Baron von Overbeck and Mr. Dent obtained from the Sultans of Bruney and Sulu a series of charters conferring on them sovereign authority in North Borneo under the titles of Maharaja of Sabah, Raja of Gaya, Raja of Sandakan, and Datu Bandahara. The territory governed by the British North Borneo Company has a coast line of over 600 miles and an area of more than 30,000 square miles. The form and text of the commission granted by Sultan Jamalul A`lam appointing Baron von Overbeck Datu Bandahara and Raja of Sandakan is herein quoted as given in the annual report of Gen. George W. Davis, commanding the Department of Mindanao, under date of August 1, 1902:

"To all nations on the face of the earth whom these matters may concern: We, Mahasari Padukka Mawlana as-Sultan Mohammed Jamalul A`lam bin al-Marhum Mahasari Padukka as-Sultan Mohammed Pulalun, Sultan of Sulu and its dependencies, send greeting:

"Whereas, we have seen fit to grant unto our trusty and well-beloved friends, Gustavus Baron von Overbeck and Alfred Dent, esquire, certain portions of the dominions owned by us, comprising all the lands on the north and east coast of the Island of Borneo, from the Pandasan River on the northwest to the Sibuco River on the east coast, including amongst others the states of Paitan, Sugut, Bangaya, Labuk, Sandakan, Kina Batangan, and Mumiang and all the lands and territories in Darvel Bay as far as the Sibuco River, together with all the lands belonging thereto, for certain considerations between us agreed, and,

"Whereas, the said Baron von Overbeck is the chief and only authorized representative of his company in Borneo:

"Now, therefore, know ye that we, Mahasari Padukka Mawlana as-Sultan Mohammed Jamalul A`lam bin al-Marhum Mahasari Padukka as-Sultan Pulalun, Sultan of Sulu and its dependencies, have nominated and appointed and do hereby nominate and appoint the said Baron von Overbeck supreme and independent ruler of the above-named territories, with the title of Datu Bandahara and Raja of Sandakan, with absolute power over life and death of the inhabitants of the country, with all the absolute rights of property over the soil of the country vested in us and the right to dispose of the same as well as the rights over the productions of the country, whether mineral, vegetable, or animal, with the rights of making laws, coining money, creating an army and navy, levying customs dues on home and foreign trade, and shipping and other dues and taxes on the inhabitants as to him may seem good or expedient, together with all other powers and rights usually exercised by and belonging to sovereign rulers, and which we hereby delegate to him of our own free and sovereign will.

"And we call upon all foreign nations with whom we have formed friendly treaties or alliances, and we command all the datus, nobles, governors, chiefs, and people owing allegiance to us in the said territories to receive and acknowledge the said Datu Bandahara as the supreme ruler over the said states and to obey his commands and respect his authority therein as our own. And in case of the death or retirement from office of the said Datu Bandahara then his duly appointed successor in the office of supreme ruler and governor-in-chief of the company's territories in Borneo shall likewise, if appointed thereto by the company, succeed to the title of Datu Bandahara and Raja of Sandakan, and all the powers enumerated above be vested in him.

"Done at the palace of the Sultan, at Likup, in the Island of Sulu, on the nineteenth of Muharam, A. H. 1295, being the 22nd day of January, A. D. 1878."

TREATY OF JULY, 1878

Col. Carlos Martinez became Governor of Sulu on the 28th of September, 1877. This distinguished commander applied himself to his work with unusual enthusiasm and assiduity, and by tact and sagacity succeeded in restoring order and peace, in the form of a treaty signed by him and by Sultan Jamalul A`lam in July, 1878. Great credit for the success of the negotiations belongs to Datu Harun ar-Rashid, who spared no effort to convince the Sultan that peace and loyalty to Spain were preferable to a condition of continued hostility, which meant ruin to the state of Sulu. The treaty laid stress on the submission of Sulu to Spanish sovereignty, and the terms of the Sulu text expressed the same fairly well and without evasion. This being the last treaty entered into by both states, it may be considered to define the final relation that existed between them and the exact position which Sulu occupied in the Philippine Archipelago during the last period of the Spanish régime. The best account of this relation is given in the words of the treaty itself, careful translations of which have been prepared from both the Spanish and Sulu texts and are herein added for full information:

TRANSLATION OF THE SPANISH COPY OF THE TREATY

Decree

Office of the Governor-General of the Philippines,

Manila, August 19, 1878.

The Supreme Government having approved the bases of pacification and capitulation which are submitted through me to his Majesty, the King, by the Sultan of Sulu and the Datus of Sulu, and the act to that effect, which I confirmed and ratified on the 15th instant, having been drafted and signed by the commission appointed for that purpose by me in representation of my authority, and the Sultan and Datus, in representation of the sultanate of Sulu, I hereby direct that a copy of said act be published in the Official Gazette of Manila, in order that said bases be officially and publicly known.

Moriones.

[Copy referred to.]

An Act drafted on the bases of pacification and capitulation presented by the Sultan of Sulu and the Datus to His Majesty the King Alfonso XII, through His Excellency the Governor-General of the Philippine Islands, acknowledging the sovereignty of Spain over the territory of this sultanate.

In the town of Likup, Sulu, and in the palace of His Excellency the Sultan of this Archipelago, on the 20th of July 1878, 23rd day of the month Rajab, year of the Hegira 1295:

Present: Carlos Martinez y Romero, Colonel of Infantry and Politico-Military Governor of Jolo, Francisco Fernandez de Alarcon y García, Colonel of Marine Corps, Frigate Captain and Commander of the Naval Station of Jolo, and interpreters, Alejo Alvarez y Villasis and Pedro Ortuoste y García, these constituting a commission representing His Excellency, the Governor-General of the Philippines:

Also present: Padukka Mahasari Mawlana, Sultan Mohammed Jamalul A`lam and the Datus Padukka Raja Muda, Mohammed Badarud Din, the Padukka Mohammed Zaynul `Abidin Raja Lawut, the Padukka Datu Mohammed Harun ar-Rashid and the Datu Padukka Muluk Bandarasa, in the name and representation of the Sultanate of Sulu;

The object of the meeting was to read and sign the articles of pacification and capitulation presented by the Sultan and Datus to the Governor-General on February 24th, of this year, and approved by His Majesty Alfonso XII, on May 3rd last; the reading of the articles being proceeded with as follows: Bases of pacification and capitulation presented by the Sultan and Datus of Sulu, to his Majesty the King of Spain Don Alfonso XII, through His Excellency the Governor-General of the Philippines, acknowledging the sovereignty of the King of Spain over the territory of the said sultanate.

Article 1. We declare that the sovereignty to Spain over all the Archipelago of Sulu and its dependencies is indisputable, and as a natural consequence of this declaration we constitute ourselves loyal subjects of His Majesty King Alfonso XII, and of his successors to the power.

Article 2. The Spanish Government shall give the Sultan a yearly salary of 2,400 pesos, 700 to the heir of the sultanate Datu Badarud-Din and 600 to each of the Datus Padukka Raja Lawut Zaynul `Abidin, Padukka Datu Harun ar-Rashid, Padukka Datu Muluk Bandarasa Pula, members of the Sultan's Council, to compensate them in some way for the losses they have suffered.

Article 3. Spain has the right to occupy such points in the Sulu Archipelago and its dependencies as may seem necessary to the Spanish authorities, respecting towns, families and property; in case of forcible appropriation for the public good, compensation shall be paid according to appraisement; we beg that exception be made for the land extending from Sinungan Point to the south coast of Kadungdung, which we would use for our residences; it could be occupied by the Government in

case of war with a foreign power.

Article 4. The Sultan shall be empowered to collect duties from foreign merchants and ships trading with places not occupied by the Government.

Article 5. The Sultan shall be allowed to communicate directly with the Governor-General whenever he has a complaint to make against the Governor, or the commander of war ships.

Article 6. The Sultan shall be authorized to issue licenses to carry muzzle-loading firearms when requested by Sulus, after presenting two honorably known witnesses who will guarantee their proper use both on land and sea.

Article 7. The Sultan shall be allowed to issue passports to Sulu craft; but when any of said craft has to leave the Sulu Archipelago, the owners will first have to go before the Governor; the principal datus and some other persons serving under commissions from the Sultan are to be excepted from this formality; but the Sultan shall report all such cases to the Governor.

Article 8. We will use all our efforts to cause pirates and malefactors to desist from their evil inclinations; and, if we can not prevent them, we will inform the Governor of Jolo for him to take the necessary measures, whenever we know the whereabouts of said pirates and malefactors; but we will not be held responsible if we have no information concerning them; we furthermore agree to render all assistance in our power in running down such pirates and malefactors.

Article 9. We shall be allowed the free exercise of our religion and customs. Catholic missionaries will have liberty to visit and reside in any place in Sulu, and its dependencies, and will give us notice before going, so that in case of danger we may furnish an escort; failure to give us notice will relieve us from all responsibility for any mishap that may befall them. The same caution applies to any European or Christian Indian native who may wish to visit the interior.

Article 10. We pledge ourselves to deliver to the Spaniards all Christian delinquents and criminals, and all Moros in the same case shall be returned to us.

Article 11. Sulu and its dependencies shall raise the Spanish flag on vessels and in towns; however, if a boat does not fly said flag it shall not be held at fault if it has a passport; at the place of the Sultan's residence he shall fly the Spanish war flag.

Article 12. All the articles of the foregoing capitulation shall be observed without alteration, except by mutual agreement.

Both commissions unanimously agreeing to the foregoing articles as read, said articles being identical with those whose copies were in the hands of the Governor and of the Sultan of Sulu, the latter and the persons with them signed this document on the spot, place, day, month and year aforesaid.

The Sultan of Sulu,--His rubric and stamp,--the Governor of Sulu, Carlos Martinez,--Mohammed Harun ar-Rashid,--the Commander of the Naval Station, Francisco Fernandez de Alarcon y García,--Mohammed Zaynul `Abidin,--Mohammed Badarud Din,--Mohammed Pula,--interpreters, Alejo Alvarez, Pedro Ortuoste.

I, Don Domingo Moriones y Murillo, Lieutenant-General of the National Army, Marquis de Oroquieta, Knight Grand Cross of the Royal and Military Order of San Hermenegildo, of the Royal and Distinguished Order of Carlos III, of that of Military Merit, Red and White, and many others for feats of arms, Governor and Captain-General of the Philippine Islands, etc., etc., in the name of His Majesty the King of Spain, Alfonso XII, whom God keep, do confirm and ratify the above act of pacification and capitulation, in all its parts.

Manila, August 15, 1878.--Domingo Moriones.--True copy.--Tomas Aguirre de Mena.

TRANSLATION OF THE SULU TEXT OF THE TREATY OF 1878

This document is intended to confirm the treaty which was agreed upon by Padukka Mahasari Mawlana Sultan Mohammed Jamalul A`lam and all the datus and chiefs of Sulu. These statements which we make shall be sent to His Majesty, the King of Spain, Don Alfonso XII, through His Excellency the Governor-General of the Philippines. All the country that the Sultan rules shall obey the orders of the King of Spain.

This in Likup, in the palace of Padukka Mahasari Mawlana Sultan Mohammed Jamalul A`lam, on Monday the 22nd of July, 1878 A. D., or the 23rd of Rajab, 1295 A. H.

There met the Politico-Military Governor of Sulu, Señor Don Carlos Martinez y Romero, Colonel of Infantry; and the Commander of the Naval Station of Sulu, Colonel of Marine Infantry and Frigate Captain, Señor Don Francisco Fernandez de Alarcon y García and Señor Captain Alejo Alvarez, and Señor Don Pedro Ortuoste y García, the representatives of His Excellency the Governor-General of the Philippines.

Also present: Padukka Mahasari Mawlana Sultan Mohammed Jamalul A`lam of Sulu, and Padukka Datu Mohammed Badarud Din, and Padukka Datu Raja Lawut Mohammed Zaynul `Abidin, and Padukka Datu Muluk Bandarasa Mohammed Pula, and Padukka Datu Mohammed Harun ar-Rashid who are properly obeyed by all their subjects.

The object of the meeting was to read, confirm, and sign the agreement presented by Padukka Mahasari Mawlana Sultan Mohammed Jamalul A`lam and all the datus, to His Excellency the Governor-General, on the 22nd day of Safar, 1295 A. H., or the 24th of February, 1878 A. D., which was approved by His Majesty the King of Spain, Alfonso XII, on the 3rd day of May, of this year, or the 2nd of Jamadil-Awal.

The following is the copy of the statements that were read:

This is the treaty of Spain with the Sultan and Datus of Sulu which was sent to His Majesty the King of Spain, Don Alfonso XII, through His Excellency the Governor-General of the Philippines.

Article I. All the people of Sulu and its Archipelago shall obey only the King of Spain, Alfonso XII, or whosoever shall succeed him. This being our wish, we will not change or turn away to any other nation.

Article II. The Spanish Government shall pay the Sultan an annual salary of 2,400 pesos, Mexican currency, and Padukka Datu Raja Muda Mohammed Badarud Din 700 pesos. It shall also pay 600 pesos to each of the three following datus, namely: Padukka Datu Raja Lawut Mohammed Zaynul `Abidin, Padukka Datu Muluk Bandarasa Mohammed Pula, and Padukka Datu Mohammed Harun ar-Rashid; this is to compensate them for the losses they suffered.

Article III. The Spanish Government may occupy any place it chooses along the northern coast of the island, from Sinungan to Bwal and as far as Kadungdung, but the southern coast of the island from Kadungdung to Sinungan shall be left for the Sultan; on condition, however, that it may be occupied by the Spanish Government in case of trouble with foreigners, at any future time. In case the plantations or fields of the people are appropriated for such occupation, they shall be compensated for. Houses, however, shall not be removed.

Article IV. The Sultan shall have the right to collect duties from all foreign merchants and ships of whatever nationality they may be, in case they come to our ports; but we have no right to collect duties from them when they come to ports occupied by the Spanish Government.

Article V. In case of disagreement between us and the governor of Sulu, or the commanders of war ships, the Sultan shall have the right to communicate with the Captain-General direct.

Article VI. All the people of Sulu can, if they choose, use muzzle-loading rifles and lantaka. [221] They will, however, be required to present a certificate from two or three free people, of good reputation, to the effect that they (who use the firearms) are good and well-behaving people and that they do not use such arms for mischief. Under such conditions the Sultan may give a license.

Article VII. The Sultan has the right to give passports to Sulus wishing to travel for commercial purposes to whatever place they may go, on condition that they pass by Jolo to inform the Spanish governor of their destination. In case those of noble birth or the datus do not stop at Jolo, the Sultan himself shall inform the Governor, for they, as a rule, have the former's consent to travel.

Article VIII. We will try to suppress all pirates; but in case we are unable to do so we will notify the Governor of their location. But in case we do not know where they are, we can not be held responsible for such information. We will also aid the Government with as many men as we can afford to bring together, and we shall be pleased to give guides who can tell the hiding places of such pirates.

Article IX. Our customs and usages, including our religion, shall not be changed. If there is any priest who desires to travel around in this country, he ought to inform the Sultan, so that he may send a companion with him; but in case he fails to ask permission and travels around without obeying this rule and is killed, the Sultan can

not be held responsible for such results. The same condition shall govern in the case of all Spaniards and soldiers or any one else who may desire to live outside of the places agreed upon.

Article X. We guarantee to deliver all Christians who run away on account of crime; so also must the Spaniards treat us Mohammedans in case our servants and people run away to them. It would not be right for the Spaniards to hold or protect them.

Article XI. The Sulus and all the Sultan's subjects have the right to trade in small or large boats whether they use flags or not; this on condition that they have passes; but in case they like to use a flag they must use the Spanish flag. The Sultan shall not use a flag of his own, but that of the King of Spain. All other datus and chiefs of the islands, whenever they use any flag, must use the Spanish commercial flag.

Article XII. The Spaniards and the Sultan shall fully observe the articles of this agreement which has to be ratified by the Spanish Government. We sincerely beg that, whenever there is any disagreement between us and the Spanish Governor concerning some crime, careful and proper investigation be made, without any undue haste to fight. We have full trust and confidence in the Spanish Government and expect that the Spanish Government will have similar trust in us.

Article XIII. It shall not be right to alter the articles of this agreement without the mutual consent of both parties.

Both parties having understood all the articles of this treaty do hereby confirm it all and certify to it. Said articles being identical with those which were presented by Padukka Mahasari Mawlana Sultan Mohammed Jamalul A'lam, signed by us in the palace in Likup, on the day mentioned above in this document.

I, Don Domingo Moriones y Murillo, Lieutenant-General of the National Army, Marquis de Oroquieta, Knight Grand Cross of the Royal and Military Order of San Hermenegildo, of the Royal and Distinguished Order of Carlos III, of that of Military Merit, Red and White, and many others for feats of arms, Governor and Captain-General of the Philippine Islands, etc., etc., in the name of His Majesty the King of Spain, Alfonso XII, whom God keep, do confirm and ratify the above act of pacification and capitulation, in all its parts.

Manila, August 15, 1878 A. D.

(18, Sha'ban, 1295 A. H.)

The status of Sulu as defined by this treaty resembled that of a protectorate rather than a dependency. The internal administration of Sulu, its customs, laws, and religion were fully respected and were not subject to Spanish jurisdiction, confirmation, approval, or interference of any sort, except in matters pertaining to regulations for the use of firearms.

The foreign political relations of Sulu were made subject to the full control of the Philippine Government. This control (or sovereign right) was the chief motive for the war and was declared by the treaty indisputable. On the strength of this both England

and Germany, in 1885, concluded a treaty with Spain recognizing her full sovereignty over the whole Sulu Archipelago, including Balabak and Kagayan Sulu. In that same treaty Spain relinquished all claims to that part of northeastern Borneo formerly ruled by the Sultans of Sulu; this being the territory administered by the British North Borneo Company. The commercial relations of Sulu with foreign countries were not submitted to Spanish supervision or control outside of the territory occupied by the garrisons, and the sultan was empowered to collect duties from foreign merchants and ships trading with Maymbung, Siasi, and other places not occupied by the Philippine Government.

The treaty on the whole secured for Spain the fruits of her conquest and established a stable condition of peace and safety throughout the whole Archipelago and in the neighboring southern seas. Foreign interference ceased, commerce revived, and trading routes were resumed without danger or risk.

Governor Martinez had a brilliant term of service marked by important results and excellent public improvements. He began the titanic labor of filling the swamps and brought the town of Jolo to its present level. He laid out its streets, plazas, parks, and trees, finished the tower of the Queen (blockhouse No. 2), and constructed the blockhouse of the playa at Tulay, the military hospital, the light-house and various bridges. A great part of this work was done by prison labor, 400 prisoners having been transferred from Manila to Jolo for this purpose. His administration marked the beginning of a period of prosperity to the colony and temporary peace with the Sulus. He reëstablished friendly relations with the sultan and datus and had success in many undertakings. Early in 1880 he fell sick and to the regret of all parties left Jolo for Manila.

Governor Martinez was relieved by Col. Rafael Gonzalez de Rivera, the fourth governor of Sulu, on February 3, 1880. Rivera followed in the steps of Martinez, but circumstances changed as the sultan's health declined, and the sultana's political intrigues divided the state into two hostile parties. On March 30 the scouts at the tower of the Queen were attacked by a band of Sulus, who killed 2 privates, and wounded 1 sergeant and 6 privates. However, the Sulus were repulsed, losing 12 men dead. The sultan, when called upon to punish the transgressors, responded promptly, went to Lu'uk and chastised them severely. In December of the same year Datu Pula reported some juramentados in the suburbs, two of whom were encountered by the troops; one was killed and the other fled.

After the treaty of 1878, Jamalul A'lam established his official residence at Maymbung and acted in a dignified and creditable manner. He observed the terms of the treaty faithfully until his death. He was intelligent, vigorous, and willing to learn. He received Spanish and native visitors with befitting courtesy and was well respected and endeared himself to everybody who knew him. Following the example of his father, he published a code of laws which is said to have been milder than that of his predecessors. It is no doubt a modification or a reproduction of the code used by Pulalun and Jamalul Kiram I. It was in current use in the country at the time of the Spanish evacuation in 1899.

Jamalul A'lam lived an honorable life and kept one wife only for the greater part of the time. He repudiated the mother of his eldest son, Badarud Din, and loved tenderly Pangian Inchi Jamila, the mother of his second, Amirul Kiram. Inchi Jamila was not very beautiful, but she was attractive, intelligent, active, and comparatively young. She associated with her husband in the administration of affairs and wielded considerable influence on the chiefs and council of state. She was very generous and entertaining, and won the respect of the majority of the datus. Wishing to secure the sultanate for her son, Amirul Kiram, she attempted to alienate Badarud Din from his father and used her influence on the council to that end. Intrigues followed and the state divided into two factions, partisans of Amirul Kiram and Pangian Inchi Jamila and partisans of Badarud Din, the rightful heir. Jamalul A'lam managed affairs with a strong hand and kept all parties united, but early in 1881 his health began to decline rapidly and his favorite wife meddled all the more with the affairs of the state. The knowledge of her schemes soon spread, and as it became known that Jamalul A'lam was actually failing, disorder arose and a condition bordering on anarchy prevailed. On the 22d of February armed Sulus attempted to force the gates of Jolo, but they were repulsed and most of them were killed. The sultan grew worse and disturbances increased. The front of the plaza of Jolo became an arena of war, several attacks were made on the town, and conditions became so bad that Rivera requested reënforcements from the Governor-General and permission to take the field against the hostile parties. The request was forwarded through the governor of Mindanao, who indorsed the communication, recommending that he be empowered to decide whether reënforcements were needed or not, and in case they were needed, to lead the troops himself. This being granted, the governor of Mindanao came to Jolo, reported unfavorably, and returned to Zamboanga.

RULE OF SULTAN BADARUD DIN II

Jamalul A'lam died April 8, 1881, but before his death he caused word to be sent to the governor of Sulu informing him that an attack on Jolo was imminent. At 3 a.m. on the 10th, the Sulus issued from the woods and made a general attack on the garrison, which resulted in failure and in the loss of 103 Sulus, who fell dead in the ditches.

The garrison of Jolo amounted, at that time, to 27 officers and 753 men. All that Colonel Rivera could do was to protect the plaza and keep himself well informed about matters in general. On April 14, Panglima Adak brought letters from Inchi Jamila relating to the succession to the sultanate. She announced that the late Sultan directed in his will that Amirul Kiram be elected sultan, and she endeavored to influence the governor in his favor. Rivera expressed himself in favor of Badarud Din, declaring this to be the only course he could take in conformity with the terms and intentions of the treaty. This put a quietus on the cause of dissension and the council of datus voted unanimously in favor of Badarud Din II, who had just completed his nineteenth year.

In the meantime, disturbances in Sulu had caused some alarm at Manila and prompt action was taken by the General Government. Brigadier-General La Corte, who was intending to inspect the fortifications of the south, was directed temporarily

to assume command of the government of Mindanao and personally to conduct what operations it might be necessary to undertake on the Island of Sulu. La Corte came by the way of Cebu and Zamboanga and brought the Sixth Regiment of Infantry from Cebu and two companies of the Second Regiment of Infantry from Zamboanga. Soon after his arrival at Jolo, he addressed a strong letter to Sultan Badarud Din requesting the punishment of the Sulus who attacked the Plaza of Jolo on April 10. Badarud Din responded promptly and commissioned Datu Pula to go to Lu'uk and Taglibi and punish the transgressors. This, however, was not carried out, for Panglima Sakandar of Lu'uk, who was loyal to the Sultan, placed himself at the service of Badarud Din and promised to bring the aggressors alive or dead. The Sultan's forces attacked the rancheria of Maharaja Abdulla, the chief aggressor, and killed nine men and one datu. The maharaja and the chiefs of seven other rancherias of Lu'uk then surrendered themselves and swore allegiance to Spain. The sultan and the chief datus later presented themselves before General La Corte and reaffirmed their fealty to the Spanish Government. The Governor-General subsequently wrote a letter to the Sultan, expressing his pleasure and recognizing the sincere efforts of the latter to reëstablish peace and tranquillity.

In June, 1881, General La Corte authorized the construction of the loopholed wall with towers and embrasures to complete the defenses of the town. He recommended frequent reconnaissances of the interior and target practice for the forces of the garrison, and advised the governor to strengthen the hand of the Sultan and to require from him at the same time strict enforcement of all obligations that tended to prove the loyalty of his people to the Spanish Government. General La Corte left Jolo on the 29th of June, taking back the troops of the Second Regiment of Infantry to Zamboanga.

Governor Rivera was relieved on November 15, 1881, by Col. Isidro Gutierrez Soto. The new governor exhibited unusual coolness and personal courage. He visited Maymbung without military escort and attempted in every way to strengthen his friendship with the Sultan and datus and to encourage them to have similar confidence in the Spanish officials; but dissensions among the Sulus and the jealousy of Pangian Inchi Jamila frustrated all his efforts. Without opposition Badarud Din might have ruled fairly well, but the plotting of Inchi Jamila and the unfriendliness of her party made a coward of him. He became inconsistent and seemed at times to lack confidence in the Spanish Government. He projected a secret trip to Sandakan and the Spaniards notified him that in case he left Sulu without the permission of the Government another sultan would be appointed in his place.

In January, 1882, Bangao was occupied by troops, and part of the southern squadron was stationed there. In May Siasi was similarly garrisoned. On April 29, 1882, Governor Soto became ill and left for Manila. He was relieved temporarily by Brig.-Gen. José Paulin, who was on a tour of inspection in the south and had come to Jolo to conduct some official negotiations with the sultan.

On the 2d of June, Col. Eduardo Fernandez Bremon took office as governor of Sulu. Soon after this time Sultan Badarud Din left Jolo on a pilgrimage to Mecca and delegated his authority to Datu Aliyud Din in conjunction with the Sultana Inchi

Jamila. Governor Bremon's command was very eventful and difficult. Cholera came from Singapore and overran the whole Archipelago. Disturbances increased, the turbulent inhabitants of Lu'uk became restless and hostile, and juramentados came so frequently that they actually besieged the town. The wall and towers and the defensive Barracks of Victory were finished and these completely checked the entrance of hostile Sulus into the town. Ladrones and wandering parties infested the suburbs and hills and communication with Maymbung was broken. In August Governor Bremon fell ill and asked to be relieved of his command. In September a general attack on the plaza of Jolo was planned by the Sulus and conditions assumed a very serious aspect. For one whole month, it is said, the gates of Jolo were not opened.

The charge of Sulu affairs at this critical stage was intrusted to General Paulin, who arrived at Jolo on October 1, accompanied by Col. Julian Gonzalez Parrado, who was appointed to relieve Colonel Bremon as governor of Sulu. The Sulu squadron was increased and the garrison of Jolo reënforced. General Paulin conducted an expedition to Lu'uk to chastise the rancherias of Tu'tu' and Bwal, which were reported to be the chief centers of hostility and disturbance on the island. He first called at Maymbung, and pressed upon Datu Aliyud Din and the council the necessity of their doing their part toward the punishment of the guilty parties, and Datu Aliyud Din at the head of a small force accompanied the expedition. Troops were disembarked at Pandang-pandang, Kadungdung, Tampukan, and Bwal; they burned parts of these rancherias and made some advances inland. The fighting was not severe and the Sulus harassed the troops to a considerable extent. The navy coöperated with the troops, but the expedition was small and accomplished no significant results.

In his report to the Governor-General, General Paulin recommended the repetition of such expeditions in order to impress the Sulus with the superiority of Spanish arms and to punish all transgressors. Commenting upon the nature of the warfare the expedition experienced he considered the natural difficulties attending campaigns in the island as being difficult to overcome. The art of war, he said, has no application as against Moros. The Sulus, he continued, are either treacherous wild beasts or fanatical heroes, according to the sentiment which at the time impels them to fight. They are savage warriors who hide in order to attack and rise at the feet of the enemy when least expected. They conceal themselves in clumps of trees and cliffs or ditches, and when ready to fight, discharge their firearms or throw lances and bolos, while howling and dancing frantic war dances. They flee after an attack, but in their flight they attack the rear guard.

Governor Parrado was a man of considerable ability and tact. Confidence and peace were reëstablished, the datus often came to town and the people attended the market in large numbers. In December, 1882, Tata'an, on the northwestern coast of Tawi-tawi, was occupied by troops.

On his way back from Mecca, Sultan Badarud Din was met at Singapore by a representative of the Philippine Government, who requested that he return to Jolo by the way of Manila. The sultan declined, stating that the recent death of his son made

it imperative for him to return directly to Maymbung, but he promised to visit Manila later. He reached Sulu in January, 1883. After his arrival he exhibited vigor and watchfulness and soon prepared to go to Manila. This project seemed to excite unusual disturbance, bordering on panic at Parang and Lu'uk, and for fear of undesirable consequences he changed his mind and gave up the trip.

By his pilgrimage to Mecca, which was the first ever taken by a Sultan of Sulu, Badarud Din gained respect and influence, but no sagacity. Desiring to strengthen his authority and to imitate the European nations by organizing a police force for the sultanate, he brought 2 Egyptian officers and 30 Sikhs from Singapore and made arrangements with an English house in Singapore for the purchase of 200 breech-loading rifles. The rifles caused the Spanish Government some anxiety, but thorough investigation and inquiry proved that they never went beyond Labuan. The Sikhs were not paid for two months after arrival at Maymbung and left the service at once. Such organization meant a first step toward reform, but Badarud Din had no education worthy of the name and lacked the requisite ability, strength, and character for carrying on such measures. Soon he acquired the opium habit and methods of licentious living. He finally lost his hold on affairs in general.

Datu Aliyud Din removed to Matanda, where a large house was built for him by the governor of Sulu; and a village of 400 people soon arose around his residence. The blockhouse of Jovellar was then built near the beach for his protection and help.

So far the governor of Sulu addressed the sultan as his son, the sultan addressed the governor as his father and relations were friendly and pleasant. But in June, 1883, three juramentados slipped into the post, killed two officers and wounded one officer and two soldiers before they could be dispatched. Governor Parrado addressed a strong letter to the sultan requesting the immediate and proper punishment of the district from which the juramentados came. The sultan neither responded nor did he send information relative to the place from which the juramentados came. Governor Parrado then took matters into his own hand, made an expedition to Taglibi and chastised its chief Sahibud Din. Soon after, two soldiers were killed in the vicinity of Jolo while cutting bamboo and another expedition was undertaken to Buhanginan to punish the murderers. An expedition was also made to South Ubian, where the pirate Panglima Jami was reported to have taken refuge. Jami was not found at this place, but the local chiefs burned Jami's kuta and house and promised to deliver him to the government when he returned to Ubian.

Governor Parrado proved himself an efficient and able administrator. He recognized the absurdity of a policy of extermination, and felt conscious of the lack of a uniform, well-planned and settled policy on the part of the General Government toward Sulu. He realized that the Moros possessed a form of civilization and could not be treated like savages. He used his influence for good in times of peace and employed his forces to reëstablish peace with justice in times of hostility. He was strong and sagacious in most of the measures he undertook.

Datu Pula, a strong chief worthy of trust and a man of prestige, died before the expiration of the year 1883. Pula's influence always tended toward peace with Spain

and the support of Badarud Din against his rival. His death was consequently a loss to both sides. The sultan and the governor continued on good terms of friendship during January and February, 1884, and the affairs of Sulu were conducted smoothly and peacefully, but on the 22d of February, 1884, Badarud Din died; the state was soon rent by dissension and another period of trouble and disturbance followed.

STRUGGLE FOR THE SULTANATE

The question of a successor to Sultan Badarud Din II proved to be very vexatious, both to the Sulus and to the Spanish Government. At that date the eligibles to the sultanate belonged to three houses--that of Sultan Jamalul Kiram I, the house of Sultan Shakirul Lah, and that of Datu Putung, the son of Sultan Alimud Din I. These houses were represented by the three candidates, Raja Muda Amirul Kiram, Datu Aliyud Din, and Datu Harun ar-Rashid.

Amirul Kiram was the oldest brother of the three sons of Sultan Jamalul A'lam from Pangian Inchi Jamila. He was born on the 27th of March, 1868, and was at one time the rival of Badarud Din II, his older brother. The sultanate remained in the line of Jamalul Kiram I for four consecutive generations and the majority of Sulus had come to consider the sons of Jamalul A'lam as the direct heirs to the throne. The influence of Pangian Inchi Jamila was a strong factor in itself and the claims of Raja Muda Amirul Kiram were vigorously pressed upon the council of state.

Datu Aliyud Din was the son of Datu Israel, the son of Sultan Shakirul Lah. He urged that the descendants of Sultan Shakirul Lah had an equal right to the sultanate with the descendants of Jamalul Kiram I, and protested against the injustice of electing a minor in preference to older and maturer members of the family.

Datu Harun ar-Rashid had no sultan in his line for five generations and consequently did not press his claim to the succession. He was a cousin of Pangian Inchi Jamila and a close friend of Jamalul A'lam. He was the only living signer of the treaty of 1878, but since that date he had removed to Palawan, where the Spanish Government intrusted him with the rule of the Moro population of Palawan, Balabak, and the neighboring southern islands, and where he had rendered very creditable service.

Datu Aliyud Din and his party were so determined in their opposition to Pangian Inchi Jamila and Raja Muda Amirul Kiram that they would not entertain any proposals of compromise or attend the council of state at Maymbung. The country was agitated and all datus and subordinate chiefs took sides with one or the other of the two candidates. The majority of datus and chiefs were in favor of Amirul Kiram. Datus Pula-pula, Uyung, Marachak, Kalbi, and Julkarnayn, who were as a rule united, and who wielded the strongest authority on the island next to that of the sultan, remained almost neutral, but at heart indorsed the claim of Aliyud Din. In general the southern and greater half of the island supported Amirul Kiram of Maymbung, while the northern half favored Aliyud Din, who had in the meantime moved his residence to Patikul.

Governor Parrado offered his good offices and tried to overcome the difficulty by suggesting that Amirul Kiram be elected sultan, but that Aliyud Din should act as regent during the minority of the former. He went so far as to name a new and general council of state to meet at Maymbung and decide the question. He submitted this proposition to both parties threatening to leave them to their fate in case they did not comply with his advice. The Maymbung party accepted the governor's proposition, but the Patikul party did not; consequently both candidates were proclaimed sultans, one at Patikul and one at Maymbung, and both prepared to fight. Ambuscades, skirmishes, surprises, robberies, and cattle stealing followed. Governor Parrado remained neutral until July when he made friendly visits to Maymbung and Patikul and again counseled concord and compromise. Datu Harun arrived in Sulu on the 17th of November and both parties solicited his support and consulted him; but he failed to effect any agreement. A little later he accompanied the governor of Sulu to Manila where he received much attention because of the success that attended his services at Palawan. He remained in Manila about one month and returned to live at Matanda, filled with a strong desire to better himself and his country. A year passed and no agreement could be reached, nor did the Spanish Government officially recognize any of the claimants. Amirul Kiram indulged in licentiousness and Aliyud Din took to opium.

Governor Parrado during his administration completed the Cuartel de España and the market building and improved the forts Alfonso XII and the Princess of Asturias. The majority of the nipa houses were replaced by better structures of brick with iron roofs. A system of waterworks was put in and Jolo was declared an open port. On July 23, 1885, Parrado was succeeded by Col. Francisco Castilla.

Governor Castilla followed the policy of his predecessor and remained neutral. Amirul Kiram had in the meantime massed a large force and attacked Aliyud Din. The latter's party had weakened and only 800 remained to defend Patikul and its kuta. The Maymbung forces greatly outnumbered their adversaries, defeated them, destroyed the kuta, and burned the settlement. Datu Aliyud Din fled to Basilan and lived for a while with Sharif Aqil. Raja Muda Amirul Kiram then requested the Spanish Government to recognize his succession to the sultanate and a commission was sent from Manila to investigate the matter and report on it. After five months' service as governor of Sulu Colonel Castilla asked to be relieved at the end of the year and Col. Juan Arolas succeeded him in January, 1886.

Governor Arolas devoted himself to his work with unusual enthusiasm and exemplary energy. Public works and sanitation received his best attention. Trees were planted, the streets were improved, the gutters and sewers were repaired and renewed, and the town was kept thoroughly clean. The death list of the garrison was reduced from 102 in 1885 to 51 in 1886. A good road was constructed outside the wall and a beautiful street was extended from the southern gate of the town to Tulay and Asturias on both sides of which coconut and shade trees were planted. The streets of Tulay were planned on the same scale as those of the walled town, and fillings on a large scale were commenced for this purpose. Excellent waterworks were completed and iron pipes were laid throughout the walled town and Tulay for

the use of the garrison and the public.

As a result of the report of the commission appointed to investigate Sulu affairs and the subject of succession to the sultanate, directions were received from Madrid and Manila to the effect that Datu Harun should be appointed subsultan and Amirul Kiram sultan, and that both be requested to go to Manila, take the oath of fidelity to Spain, and be invested with authority by the Governor-General. Datu Harun had made himself very agreeable to Governors Parrado and Castilla and a strong friendship had grown up between them. Arolas soon learned to like Harun and trusted him. Amirul Kiram was then 18 years old and his age probably suggested the necessity of having a regent who would be competent to take charge of affairs and who would be favorable to the policy of the Spanish Government. The wish and opinion of the Sulu nation and the desire of the ambitious sultana to be regent herself were not fully respected and could not be approved, and the dictates of the Spanish Government had to be complied with. Harun, as might have been expected, obeyed the royal directions. Amirul Kiram refused to go to Manila, considered it a humiliation for him to have a regent and to be compelled to visit Manila for the approval of the Spanish Government. He felt that he was the rightful heir and the choice of the Sulus and that the treaty of 1878 well guarded his rights and granted the Sulus the full privilege of electing their chiefs. The Sulu character asserted itself in his action and the nation stood by him and counseled noncompliance to directions prejudicial to their own rights and national honor.

RULE OF SULTAN HARUN

Datu Harun went to Manila alone and Governor Arolas recommended his appointment as sultan. Governor-General Terrero cabled to Madrid and obtained authority for this action on September 11, 1886. Harun was officially announced in Manila as Sultan of Sulu, and his appointment on the 24th of September was made the occasion of some formality.

Sultan Harun placed his hands upon the Quran, his Minister Sheikh Mustafa bin Ahmad officiating, and his high Excellency the Governor-General administered to him the oath in the following form: "Do ye swear to uphold steadfastly all the stipulations covenanted in the capitulations and to give faithful obedience to His Majesty, the King?" To this Sultan Harun answered: "I swear to comply with the terms of the capitulations and with the commands of His Majesty, the King." And His Excellency replied: "May God and men help ye if ye do this and if ye do not, then may God and the Government punish you!"

Sultan Harun arrived at Jolo in October, and, escorted by 200 Spanish soldiers, one gunboat, and one steam launch, he proceeded to Parang where he expected the Sulus to declare their allegiance to him. However, their reception was not as warm as he expected and he soon found it to his advantage to retire to Jolo. The Sulu chiefs appealed to arms and prepared to defend the rights of Amirul Kiram at the cost of their lives. Desiring to support his nominee in the sultanate Governor Arolas visited Parang in company with Sultan Harun on the 2d day of November and an additional

number of chiefs, including Panglima Damang, swore allegiance to Sultan Harun.

Such measures aroused the activity of Amirul Kiram and his party and several places in Parang were attacked by the Maymbung forces and considerable unrest prevailed. Harun's sultanate seemed unacceptable to the great majority of datus, and hostilities arose in many localities. Murders and juramentado attacks occurred in the vicinity of Jolo. The kuta of Bwisan and Timahu were attacked and reduced, the settlements burned, and much blood was shed. Hostilities extended to Siasi and the kuta of Datu Hiyang was attacked. In February, 1887, a force of 3,000 Sulus started from Maymbung and attacked Jolo. The garrison repulsed the attack, but juramentados and hostile bands harassed the town. Small expeditions reconnoitered Tapul, Lugus, and Siasi; but no active measures could be taken against Maymbung until reënforcements could arrive from Zamboanga and Kotabato.

At that time General Terrero headed a campaign in the upper Mindanao Valley against Datu Utu and forces were drawn from Zamboanga and Jolo to coöperate at Kotabato. With the return of the troops in April the war vessels which operated on the Mindanao River also came to Jolo and Governor Arolas began preparations at once to fight Amirul Kiram who was strongly intrenched in Maymbung. The gunboats, some marines, and Sultan Harun's small force attacked the settlement by sea. Governor Arolas led the land troops himself and marched against Maymbung at night. The Moros of the interior harassed the advancing troops from all sides, but everything that could be reached was burned and more than 40 Sulus were disabled or killed before the fort of Maymbung was reached. The latter was a square 75 meters on each side, built partly on land and partly in the water. The walls on the land side were constructed of coral rock, while those toward the sea were built of double rows of piles filled behind with stone and earth. Large cannon and breech-loading rifles were abundantly used by the Sulus and one rapid-firing gun commanded the main approach on the land side. The fighting was fierce and heroic on both sides. Out of a large force of Sulus defending the fort and town 250 lay dead after the battle was over. The Spaniards lost 17 dead and 96 wounded. The sea forces, after caring for the Chinese population, set fire to the whole town and reduced it to ashes. Governor Arolas was highly praised in Manila and Madrid and was later promoted to be a brigadier-general.

If military operations, war, and death are efficient and suitable measures to daunt the Sulus, coerce their will, and make them yield to superior authority, this Maymbung campaign should certainly have produced the desired result. Many thought that the moral effect of this victory was excellent beyond measure and for that reason entertained great hopes. Governor Arolas felt the cause of Spanish sovereignty and suzerainty to be amply vindicated and Spanish honor strongly and proudly upheld, but as early as the 9th of May another fight stared him in the face. Arolas and Sultan Harun had to march against Parang and invest the kuta of Panglima Damang. After the surrender of Damang an expedition was sent to Lati and another to Tapul Island. This latter campaign was extremely difficult and trying. The country was rough, the forest thick, and the enemy fierce. Panglima Sayadi would not recognize Harun's sultanate and would not obey the mandates of the governor of

Sulu, so his chastisement was decreed and Tapul was attacked. Sayadi and his men fought like tigers at bay, and Governor Arolas was compelled to lead his troops in person. Sayadi was defeated after two days' fighting, 90 of his men were killed, and the fort was demolished. The Spanish casualties were 13 dead and 155 wounded. Sultan Harun reconnoitered the shores and interior of the island, destroyed small forts, and obtained the surrender of several chiefs.

On the 29th of July, 1887, Pangian Inchi Jamila presented herself at Jolo and expressed her submission and that of Raja Muda Amirul Kiram to the governor of Sulu and to Sultan Harun. Governor Arolas insisted that Amirul Kiram should come personally and express his surrender, and allowed him ten days in which he could come with safety and impunity. After her return Pangian Inchi Jamila sent Sultan Harun the seal of the sultanate; but neither the chiefs nor Amirul Kiram himself agreed to the personal surrender requested. Governor Arolas was disposed to make Spanish sovereignty over Sulu a fact, absolute and complete, and required implicit obedience. The Sulus had a different view of the respective rights of the two governments and continued their resistance. Another campaign was necessary on Siasi Island, and Datu Hiyang and many Moros were killed.

Another expedition was directed against Kadungdung and southern Lu'uk and another against the Island of Pata. Innumerable hardships were sustained by the troops and many Sulus were killed. Sultan Harun and his forces coöperated with the Spanish forces and reconnoitered inaccessible places. The partisans of the young Raja Muda Amirul Kiram were supposed to have been completely vanquished and the young prince was expected to humiliate himself before Sultan Harun at any time. Such hopes were, however, false, for on October 30 Bwal and the northern Lu'uk district had to be punished. After some fighting the Sulus evacuated Bwal and fled to the mountains and 53 houses were reduced to ashes; nor was this sufficient, for in 1888 expeditions amounting in some cases to 1,500 troops, comprising from two to four companies of artillery, were conducted against Purul, Tambang, Patikul, Taglibi, Buhanginan, Pandan, Sari`ul, and Pigi-Dahu. Hundreds and probably thousands of Sulus were killed, but notwithstanding, Arolas's cruel efforts to force Sultan Harun upon the people resulted in failure. The Sulus scorned Sultan Harun and his apparent supremacy, persisted in their resistance, and kept their allegiance to Amirul Kiram. True to their traditions they remained faithful to the candidate whose right to the succession was in their estimation and conviction stronger than any other claim backed by the forces of General Arolas.

Before the end of the year 1886 Datu Uyung invited Datu Aliyud Din back to Patikul, where he remained for about one year. Datus Kalbi and Julkarnayn joined the party of Aliyud Din and defended him against Amirul Kiram and Sultan Harun.

In 1887 Patikul and Lati were attacked by Governor Arolas and Datu Aliyud Din fled to Siasi and Laminusa, from there he returned, late in 1888, to Bunbun and Patikul; there he lived quietly until his death, about 1892.

The administration of Governor Arolas was the longest in duration, the most eventful, the most interesting, and the most warlike administration Sulu had under

Spanish rule. The difficult situation the governor found at his arrival, his misunderstanding of the Sulu character and underestimation of Sulu public opinion, his integrity, his exalted opinion of Spanish sovereignty and honor, his disregard of treaties and precedent, his ability as a commander of troops, and his warlike policy, all combine to make a picture vivid in its colors and unique in its make-up. Governor Arolas can not be held responsible for what had transpired prior to his appointment as governor, and the policy he followed was probably dictated for him in general from Manila; but it is difficult to conceive of a man executing his duty with such vigor, earnestness, and thoroughness as General Arolas did, unless his heart and soul approved of such a policy and added enthusiasm and zest to the impetus of duty. Furthermore, there are many reasons for believing that Governor Arolas recommended the main lines of the policy he pursued. At all events he impersonates, as far as the object of this work is concerned, that combined agency of government which is responsible for the significant events of his administration of Sulu affairs. In commenting upon his policy it would therefore be proper to refer to him personally, without the least intention of fixing the blame on anybody, or indeed of finding fault at all, but with the sole intention of eliciting the facts and showing the actual condition of affairs in their proper light.

In going over the long list of expeditions and campaigns conducted by General Arolas and of the casualties on both sides, one can not help but express admiration, surprise, or blame as to the justice or advisability of the policy pursued, its motives, conduct, and effect. For, if the treaty of 1878 was still in force--and there is no reason to suppose that it was abrogated--why did Governor Arolas institute new rules and conditions pertaining to the sultanate and render compliance with them necessary for qualification and confirmation? If by virtue of the prerogative of sovereignty it was deemed necessary to interfere with Sulu internal affairs and customs for a beneficial and good purpose, why was it not right then to oppose and check Datu Aliyud Din as soon as it became evident that the majority of the Sulus wanted Amirul Kiram as sultan and Aliyud Din had refused to honor the governor's proposals and recommendations? Why was it not considered right for the Government to object to war between the contending parties from the beginning and to assume for itself all the powers and prerogatives of a protector or arbitrator? If the good of the Sulus was the ultimate object sought, why was not the rightful heir supported from the beginning and advantage taken of such an opportunity to enlist the sympathy of one party, at least, on the side of the Government, strengthen the weak head of the nation, and bring order and tranquillity out of chaos and anarchy?

Apparently the worthy cause of peace and Sulu welfare were completely overlooked, while the main object of asserting power and gaining supremacy was pressed and prosecuted at the expense of a thousand souls and war with every strong chief throughout the whole Archipelago. Governor Arolas trampled on the treaty, assumed arbitrary and absolute authority, and treated noncompliance with his wishes as disloyalty and insurrection. This attitude might have been due to his peculiar military training and ideas, but it was certainly unjust and overbearing. Nations can not be trampled under foot without bringing about resentment and retaliation and people can not be treated as privates in a company of disciplinarios or deportados.

The result of such coercion is hatred, and the effect of abuse is enmity. Such methods do not tend to civilize a country or better its chances of progress. They kill ambition, harden the heart, and dull the senses. The first step toward the progress of a subordinate nation is imitation of its superior; but imitation is generally engendered by admiration and kindly influences, and cruel warlike measures are certainly disposed to kill such good agencies.

Sulu military operations ceased soon after the arrival of Governor-General Weyler in Manila, and some of the Jolo forces were withdrawn.

General Arolas left Jolo in 1893 and was succeeded by Col. Cesar Mattos, who was in turn followed by Gen. Venancio Hernandez before the end of the same year. The successors of General Arolas did not have similar motives for upholding Harun's sultanate against overwhelming odds. They saw in him a weak and vacillating sultan who was a burden to the state. Consequently Sultan Harun was relieved in 1894, and he returned to his home in Palawan. During his incumbency Sultan Harun lived at Mubu in the vicinity of Jolo. The house he occupied was the best building ever occupied by a Sulu sultan. He was ambitious and willing to reform his people, but he never had a strong following and was very unfortunate in that he had to fight so hard and so often for a nominal allegiance and false support from his people.

RULE OF SULTAN JAMALUL KIRAM II

Raja Muda Amirul Kiram, who fought and suffered so long for the throne of his father and brother, succeeded Sultan Harun and assumed the name of Sultan Jamalul Kiram II. He was not obliged to go to Manila in order to be vested with proper authority by the Governor-General, but it seems that he pledged himself in one way or another to pay some tribute to the Spanish Government, and consequently a decree was issued by Governor-General Blanco on March 1, 1894, directing a general census of the Moros of the Sulu Archipelago and the collection of a tax of 1 real [222] from each individual. The proceeds of this tribute, after deducting the allowances made for the interpreters and collectors, were to be devoted to the development of the institutions of Jolo, and especially to the construction of roads. It is said that the sultan was unable and unwilling to collect the tribute so decreed, but that he paid from his own purse the sum of P10,000 or its equivalent on the basis of a population of 100,000 and at the rate of 1 real per person. The collection of this tax was abandoned in the following year and was never resumed.

The Sulus' adherence to the cause of Jamalul Kiram II was not based on any personal influence he exerted on the people, but on the influence of his mother and the people's devotion to the house of Jamalul Kiram I. Datu Aliyud Din's claim was theoretically strong, but for various reasons his party weakened; while Amirul Kiram, though a fugitive, gradually gained in influence and rose to power.

The administration of Governor Hernandez was the longest in duration next to that of Governor Arolas and was, on the whole, peaceful and tranquil. On one occasion in 1895 hostilities broke out with Datus Julkarnayn and Kalbi, and the Sulus of Lati and Patikul attacked the town of Jolo causing several casualties. However, peace was

soon restored by Governor-General Blanco and no further hostilities occurred. Governor Hernandez built the direct road, known as the Asturias Road, which leads from the gate of the walled town to Fort Asturias. About 1897 General Hernandez was relieved by Col. (later Brig.-Gen.) Luis Huerta, the last Spanish governor of Sulu.

Spain evacuated Sulu in May, 1899, and Jolo was garrisoned by American troops on the same day. On the 20th of August Gen. J. C. Bates concluded a treaty with Sultan Jamalul Kiram II, generally known as the "Bates Agreement," and the sovereignty of Sulu passed from Spain to the United States of America. [223]

CHAPTER VI

CONCLUSION

POLITICAL STATUS OF SULU AT THE TIME OF SPANISH EVACUATION

The cause for which Governor Arolas shed the blood of several hundred Spanish soldiers and killed some thousands of Moros was utterly defeated. The tenacity with which the Sulus resisted Spanish domination, their obdurate opposition and bravery in battle, and their obstinate passive resistance in peace, baffled all Spanish efforts to subvert their political organization or gain a single point of advantage without paying too dearly for it. The Sulus succeeded at last in inaugurating their candidate as Sultan of Sulu. Their laws and the administration of their internal affairs were not interfered with. Their religion, social conditions, national usages and customs were unaffected by any change whatsoever. Spanish influence and jurisdiction did not extend beyond the limits of the garrison and no material reform or progress reached the Moro community through that channel. No effort was made by Spain to educate the Sulus and no adequate measure was proposed by her governors which was applicable to the needs of the Sulus and acceptable to their ideas. The Sulus felt that there was a strong inclination on the part of the Spanish Government or some of its recognized agents to change their religion and destroy their national unity, and consequently they never had complete confidence in Spanish officers and representatives and repulsed every influence that tended to establish close relations between them and the Christians of the Spanish garrison.

No tax or tribute was collected from the Sulus, and their territory was exempted from the operation of the laws of the Philippine Islands. Sulu imports could come in Sulu craft free of duty and unhampered by any vexatious regulation. Duties could be collected by Sulus at all ports unoccupied by Spain; and if hostilities could have been brought to an end, the Sulus, in their pursuit of the peaceful vocations of life, might have felt no appreciable difficulty or inconvenience from Spanish occupation of Jolo, except the loss of the revenues of the ports of Jolo and Siasi and some control over the trade of the Chinese.

Slavery remained an established institution of the land and its continued practice among the Moros was neither denounced nor restricted. The pearl industry remained in the hands of the Sulus and pearl fishers and shell dealers paid a variable tax to the sultan and local chiefs. Piracy was completely suppressed, and the invasion of Christian communities and the capture of Christians as slaves by Sulus terminated at the conquest of Jolo in 1876.

Before the campaign of 1876 the sultan ruled with a strong hand, lived in state, was prosperous and had considerable wealth. The principal datus lived at Jolo, and the Sulu forces were united. Jamalul A`lam remained rich until his death, but subsequent wars and licentiousness reduced the estate of his sons. The separation and dispersion of the datus, however, weakened the Sulus more than any other cause. Each datu began to feel more or less independent of the other, their jealousies increased and became more intense and effectual; their forces were disunited, and each chief relied solely upon his own fortifications and following. United action was ignored or became impracticable. Soon the subordinate chiefs began to feel their importance, gradually asserted their rights, and assumed greater dignity and power in proportion to their prosperity and the following they could command. Jamalul A`lam ruled firmly, had every chief under his control, and held the state intact. Three chiefs outside of his house were sufficient to sign the treaty he made with Spain. These were Datu Harun, Datu Raja Lawut Zaynul `Abidin (Asibi), the father of Datus Kalbi and Julkarnayn, and Datu Muluk Bandarasa Pula, the son of the famous Datu Daniel, and the father of the present Datu Pula-pula of Mubu or Tandu. No maharajas or hadjis figured prominently in those days, and the panglimas served as state messengers.

As soon as it became known that Jamalul A`lam was dying a condition bordering on anarchy arose and disorder prevailed as in the days of Badarud Din. Things grew worse during the regency of Datu Aliyud Din, and worse still during the civil strife between the latter and Raja Muda Amirul Kiram. General Arolas and Sultan Harun had to fight every chief in his turn and every island by itself. Each chief felt independent of the rest of the country and had his own ideas as to who should be appointed sultan. Each datu was defended by his own men only and each had to meet the Spanish forces by himself unaided. Even Maymbung had to face the mighty foe with forces which could be assembled from the immediate neighborhood only. Small detachments did sometimes reënforce the forts of their neighbors, but the proportion of help so extended to the actual strength of the forces that could have been united was so insignificant that no account can be taken of such coöperation.

Thus the total or combined strength of Sulu was reduced to small, insignificant and disunited entities; the power of resistance to outside invasion was diminished, but at the same time the susceptibility of the country to foreign influence became nil. It was an easy matter for General Arolas to defeat one party or chief alone, but the necessity of fighting each chief by himself defeated his purpose and efforts in the end. Unconsciously, Spain brought on an abnormal condition of affairs in Sulu, extremely difficult to manage and for which she never found the proper remedy. The ruling sultan, though well supported by the greater mass of the people, had neither the

knowledge, the tact, nor the strength necessary to correct the wrong done, and things in general tended rather to the worse than to the better. The parties created by the civil strife of 1884 existed in 1899 with very little change, and their enmity had become deeply rooted and ineradicable. The whole northern portion of the island east of Jolo and eastern Tandu represented a distinct party unfavorable to Jamalul Kiram II and at times seemed to be wholly under the leadership of the two brothers, Datus Kalbi and Julkarnayn. Similar parties existed in Tapul, Lugus, Siasi, and the Tawi-tawi Group, many settlements having two chiefs, one representing the sultan and the other the hostile party. To add evil to existing wrong, the chiefs took advantage of this condition and vacillated in their alliance from one party to another as it seemed to them more advantageous for the time being. General Arolas fought both parties, incurred the bitter enmity of all chiefs and gained for himself and the cause of prosperity no advantage whatsoever. All the Sulus hated Spain at heart and welcomed the end of her sovereignty, with the hope of having more peace and better relations with her successor.

SPANISH POLICY

ATTITUDE OF THE MOROS

The vivid picture presented by the history of Sulu thrills the reader with scenes of horror, cruelty, and misdirected energies. On one page we read of how a rich and mighty sovereign stretched his hand across the border of his domain into the territory of his weak neighbor and coveted his jewels and treasure, and, being refused, struck terror, desolation, and destruction in the home of the latter. On another page we read how, as if possessed by a mighty demon, that weak and petty king-neighbor summoned the powers of the wind and sea to his aid, marched upon his strong enemy in the night, assailed him while unaware, robbed his house, and carried his people away to work for his homely sustenance. The mighty sovereign wakens in the morning, and in his rage curses his wretched neighbor and swears vengeance upon him and his wicked fellow nomads of the sea, but the rich and mighty lord of the north has enemies and rivals in the west and far south and does not dare leave his home unguarded. Part of his available warriors he thought would be sufficient, and their valor and patriotism were counted on as an additional asset and a sure guaranty of victory. The sails of a gigantic fleet were unfurled and chariots and steeds were provided for the triumphal march into the enemy's pearl land. But the mighty sea rolled and the furious winds blew and the giant did not prove a match for the weak, for man can not go against nature, and valor is a poor aid against overwhelming odds. Yet some men's hearts are made of stone and one or two experiences do not teach them enough; so we see the same scene repeated time and time again, until an opportune moment arrived and a new chapter was opened in which we find the rich sovereign richer and mightier. This time nature takes sides with might and turns the scales against the weak and petty king of the south and leaves him wrecked and stranded on his coral reefs.

The Sulu is a Malayan of prominent type, reared in his infancy by a Brahman priest and brought up to maturity under the care of a Mohammedan instructor. He rejected his idols as early as 1450 and had been for more than a century prior to the arrival of Legaspi at Cebu, a faithful and devoted worshipper of "Allahu Ta'ala," the Almighty and only God, according to the teaching of the prophet Mohammed and the holy Quran. He had laws, an established government, an organized state, an alphabet, and a system of education. By trade he was a planter and fisher, and both land and sea yielded him plenty. He turned the timber of his rich forests into boats and utilized the currents of the sea and the movements of the wind. Navigation came natural to him, and he sailed to distant lands and traded his pearls for silks and spices. He had a wide range of experience, and his knowledge of the world was by no means restricted to one island or to one limited group of islands.

The dominion of the Sultan of Sulu was complete and his power was well respected throughout the Archipelago. Between Mindanao and Borneo 150,000 people--Yakans, Samals, and Sulus--lived and obeyed one man. True, the Sulus had no standing army or navy, but they had innumerable boats, forts, and firearms, and every able-bodied man was a soldier and a sailor, always armed, and always ready for a call to arms. His immediate neighbors were pagans, or "infidels," who paid him homage and tribute. He was the master of the land and the lord of the southern seas. He was chivalrous in his manners and received his friends with liberal hospitality; but he wasted no sympathy or kindness on his enemy. The enemy of the state was also an enemy to "Allahu Ta'ala," and no life was deemed too dear to sacrifice for the cause of home and God. It was the idea of his home that started the blood rushing through his veins, and religion fittingly fanned the flame and heated his blood to the boiling point. There is honor even among thieves, and a nation made up of fierce pirates need not go begging for dignity, gallantry, and self-pride. Let the Sulu be idolatrous or a fire worshiper and he will "go juramentado" on the strength of his faith in wooden or fire gods before he yields to a master or serves as a slave. He will die before he surrenders. Such metal is what makes the Sulus brave, independent, and unyielding.

The Sulus watched the progress of Legaspi at Cebu, Panay, and Luzon, saw how the pagan chiefs were subjugated, and witnessed the expulsion of their brother Mohammedans from Manila. They had played this rôle themselves, and when the enemy reached their shores they needed no word of explanation or stimulus to resist, except that which they had in their breeding and general make-up. Spain instigated hostilities and coveted their domain; it was not their part to yield, but it was Spain's clear duty to reëstablish peace before the evils resulting from war outweighed the good obtained. This she failed to do, and the Sulus were invaded repeatedly and harassed constantly. Bitter animosity filled the hearts of the Sulus, and a desire for revenge prompted them to retaliate; and what can be expected from people of their race and civilization except cruelty and barbarity in war! We know that "war is hell" among highly civilized nations and why should we expect of the Sulus a moral conduct out of proportion to their intellectual development and the influences of their civilization and religion? The life of an "infidel" was not a matter of religious concern to them at all. The Prophet himself led his people against nonconformists and promised them reward instead of pardon or intercession before God. The Quran

taught them that patriotism is a part of their religion, and love of home and family left no place for cowardice and no patience with humiliation. They therefore fought well and fought cruelly. They raided the enemy's country, robbed him, and carried away many slaves. Slavery was also sanctioned by their religion and formed an established custom or method of punishment which took the place of imprisonment and saved the expense of jails and guards.

Humanity called for different action on both sides; but it evidently made no impression on the Sulus. Not satisfied with just measures of war and direct retaliation, they developed an abnormal propensity for piracy, invaded the Spanish domain frequently for the procurement of slaves and for other wicked purposes, and committed unspeakable horrors and atrocities. But to treat evil with evil adds no virtue to the credit of the other side. We rarely read of wounded Moros after an engagement, and, strange to say, all wounds of Moros were invariably immediately fatal. If few Moros were ever kindly treated after battle, certainly many more were promptly dispatched in a manner that terminated suffering and life at the same time.

MISTAKES AND DIFFICULTIES OF SPANISH RULE

Had Spain exerted more effort to increase the Jolo garrison in 1646 and trusted the charge of this garrison to an able and upright administrator, the fruits of the brilliant conquest of General Corcuera would not have been lost, and in all probability the trouble with Sulu would have been ended before the termination of the seventeenth century. However, instead of this course, weak characters were charged with the management of affairs, and in place of permanent and strong occupation of the land an insignificant treaty was made with the Sulus with no intention on the part of Spain of keeping it permanently and with no hope that it would be kept by the Sulus. Similar mistakes were frequently repeated and a cruel inhuman strife marked with an astounding profuseness of bloodshed and terrible loss of life and evil of all sorts, was prolonged for the space of three hundred and twenty years without any advantage that is worth considering.

In consequence of all this, the Sulu has been pictured to the outside world as a black devil incarnate, borne in mischief and conceived in iniquity; without a human characteristic, barbarous and savage as his second cousin the orang-utan of Borneo. The Sulu had no means or chance of pleading his cause before an international court, and his cry could not be heard or registered by a foreign hand or press. He was not met except with a predetermination to fight him. He was not approached except with the intention of sharing his treasure. He was not invited except to surrender his right of government and no alternative was offered him except tribute or death. It is out of reason to expect such people to abandon their customs, traditions, government, and religion without a struggle. It is out of reason to expect them to yield to threats and be daunted by a bombshell shot from a distance. The jungle is thick and extensive, their boats and sails are ready and light; they know the routes of the sea and can follow the currents of the ocean in the dark as well as in the light. The coasts of Borneo and the Celebes are not too far from them, and living there is as cheap and easy as at home. It is beyond reason to expect that all sultans, datus, and panglimas

will resign their offices, give up their rank and privileges, and be content to plant corn on the hillside or catch fish along the beach. The laws of nature are not ambiguous, and man is man whether his skin is white or brown.

The chief difficulties Spain had to contend with in the south arose out of the natural weakness of her system of administration. Her Governors-General changed frequently. The Moro question received a secondary attention, and no definite policy or settled course of action was ever systematically worked out and followed. What Corcuera planned was not carried out by his successors, and measures which were approved by General Terrero were disapproved by General Weyler and ignored by General Blanco. Had Governor-General Urbiztondo preceded Governor-General Claveria, Jolo might have been attacked and conquered before 1851, and had Governor-General Malcampo preceded Governor-General Urbiztondo, the garrison of Jolo might have been established twenty-five years earlier.

The policy of Governor Parrado was not followed by Governor Arolas, and the plans and pledges of the latter were not fully respected by his successors. Treaties were made to be broken rather than to be obeyed, and at the end of three hundred and twenty years of protracted relations with Sulu, no satisfactory policy can be said to have been decided upon at either Madrid or Manila. The treaty of 1878 was a temporary expedient. It was not intended to express a policy nor did Spain intend to restrict her influence to the provisions of a treaty nor to tie her hands so fast for any length of time. Spain was intent on the complete conquest of Sulu, the assimilation of all the Moro tribes, and the unification of government, religion, and civilization throughout the Philippine Archipelago. This ideal was the hope of all governors of Sulu and formed a concealed motive that prompted their actions and guided their administration. The governors of Sulu differed only in their ideas as to the length of time which should pass before the Sulus should be denied their autonomy, and the methods by which the change could be best brought around. There were opportune and inopportune times to interfere, which were left for the Governor-General to decide, and in the majority of cases his decision was controlled not by the immediate needs of the occasion, but by interests pertaining to the general administration of the Archipelago, which left partial attention and inadequate means available for the solution of the vexatious difficulties in the south. Generals who were anxious to distinguish themselves, took the first opportunity that offered itself, but satisfied themselves with the immediate results of victory or the simple correction of the wrong calling for military action, without bearing in mind the general situation and the requirements of the next step that should be undertaken as part of a course planned for the carrying out of a settled general policy. Thus bound to observe the general provisions of the treaty of 1878, and limited in the authority granted them from Manila and in the strength of the garrison assigned to Jolo, the governors of Sulu felt their hands completely tied, and consequently they could not accomplish much and left matters to drift with the current of events.

During the governorship of General Terrero, Governor Arolas was given a free hand and sufficient troops to carry out his plan; but Arolas was not much more than a fighting man and an excellent post commander, and the evils of his strenuous

measures outweighed the good he accomplished; and when the Jolo garrison was subsequently reduced by Governor-General Weyler his policy could not be continued and was necessarily doomed to utter failure.

However, nobody was quicker to note such mistakes and to observe the needs of the situation than the Spanish officers themselves, especially inspectors-general who were commissioned to investigate matters and conditions in Sulu, and historians who made a study of Sulu affairs.

REPORT OF BALTASAR GIRAUDIER

Of works of this nature we give brief accounts of the estimable report of Baltasar Giraudier, Director of the "Diario de Manila," which was presented to the Governor-General, Domingo Moriones, in 1880, and the noteworthy remarks and recommendations of the author of "Apuntes sobre Jolo," Miguel A. Espina, colonel of infantry.

Baltasar Giraudier accompanied General Malcampo to Jolo in 1876 and made special inquiry into the situation in the south. He clearly stated that the terms of the treaty of 1851 could not be carried out (to advantage). Failure to observe this treaty provoked the sultan and Sulus to impatience, resistance, and a rebellious attitude. Referring to the Jolo campaign of 1876 he estimated the strength of the attacking army at approximately 11,000 troops, and described Jolo as an actual churchyard, held in a constant state of siege, and a great cost to the nation in men and money. Naked facts, he asserted, did not justify former expeditions, and hostilities were often provoked for ulterior motives. Considerable harm resulted from such misdirected measures, while much good to both nations could have been derived from a policy of attraction, frank, loyal, and disinterested. He called the attention of the authorities to the necessity of a faithful observance of the terms of treaties, in order to expect and demand with right and respect a reciprocal observance of such treaties by the Moros; to the advisability of honoring and strengthening the authority of the sultan in order to secure his good will and coöperation in maintaining peace and harmony and in repressing the evil tendencies of rebellious datus and subchiefs; to the great advantages that may arise from reëstablishing the salary of the sultan and promoting those friendly relations which tend to strengthen the Sulu alliance and render this state a stronghold and a protecting wall against invasion from foreign countries. He condemned the treaty of 1878 as limiting the government's freedom of action and checking the progress and success of the nation's policy.

He reiterated that there is great need and necessity of defining the policy of the nation relative to Sulu and the Moro country in general. Such a grave question should be settled on a firm basis and should not be subject to the caprice of an individual governor or commander of a war vessel. No opportunity should be allowed for ignorance, malice, false pretexts, and ulterior motives that defame the national honor, weaken the policy of the government, or work to the detriment of the people and the country. He pointed to several incidents of wrong conduct or imprudence on the part of officials which provoked trouble and war and left on the Moros an

impression that the Spaniards were acting deceitfully and in bad faith. The general policy he outlined for the information of the government and for the uniform conduct of all officials was submitted in the form of recommendations, the most important of which are briefly noted as follows:

1. The sultan and datus should be treated with respect and consideration.

2. Immediate justice and impartiality should be strictly administered and practiced in all cases and under all conditions, especially when crime or outrage is committed against the Moros; for such action would demonstrate in an impressive manner an upright conduct which would command the fullest respect of the Moros and obedience to law and order.

3. It is of the utmost importance that the belief, temples, and cemeteries of the people be respected.

4. The speedy punishment of all Moro misconduct and aggression should be secured through the datu or chief.

5. The fleet should make frequent visits to various islands to familiarize the people with the flag, to map the country, and to study conditions in general.

6. Religion should be fully tolerated in the same manner as in India and Java. Proselytism should be prohibited.

7. The sultan should be invited to live in Jolo; an edifice should be constructed for his residence which would increase his dignity in the eyes of his people; and he should be given a high office in connection with the government (as secretary) which would engender and promote his interest in the government and its welfare and secure needed and desirable coöperation between officers and chiefs.

In conclusion, Giraudier pointed to the wisdom of English and Dutch policy in affording education to the sons of native princes and chiefs at public expense, to the necessity of large sacrifices at the beginning which would be amply compensated for by a general pacification of the Archipelago in the end.

VIEWS OF ESPINA

Colonel Espina assumed that retrogression was out of the question and that the flag which was waving over Sulu must be defended and supported. Sulu could not be abandoned to her fate and Spanish sovereignty had inevitably to be exercised. Extermination of Moros he held to be absurd and impossible, and measures so directed he regarded as injurious and unwise. He entertained strong hopes, amounting to actual conviction, that Moros could become Spanish in political organization, sympathy, and civilization, and that their religion did not form an obstacle to their reformation and assimilation unless conversion into the Christian religion was insisted upon and rigorously kept up. He thought that the cause of religion alone was sufficient to prolong the war indefinitely and lead the Government to a policy of extermination and failure. Instead of that he advised a prudent and tolerant policy declaring absolute noninterference with religion and hearty

coöperation with the Sulus in matters of general concern and public welfare. He considered it of great importance to occupy all the principal islands of the Archipelago with garrisons and to establish colonies and agricultural stations at the most desirable localities and harbors. He wrote at considerable length on the organization of a rural police force to maintain order and carry out the various measures of his policy. He pointed out the advisability of strengthening the authority of the sultan over Sulus, of rendering his appointment subject to the approval or choice of the Spanish Government, and of selecting a council of state loyal to the Spanish Government and serving under salary. The chief features of the policy he outlined are as follows:

1. The organization of the sultanate should be made or continued in accordance with the laws and customs of the country, but in a manner agreeable to the interests of the Spanish Government. Rank, order, and religion should not be interfered with.

2. The sultan and members of the council of state should be appointed by the Governor-General and should have salaries.

3. A new treaty should be made in order to rectify those clauses of the treaty of 1878 pertaining to the maintenance of peace and the guarantee of safety of life and property.

4. Slavery should be abolished, radically and thoroughly.

5. Compulsory tribunals of justice or courts should be established to relieve datus and chiefs of the exercise of such functions.

6. Commerce should be encouraged and rendered free for all boats for a period of twenty-five years.

7. Roads should be constructed to facilitate communication and transportation from the central region of the island to its principal harbors.

8. Agriculture should be developed and colonies encouraged.

9. Necessities should be created for the Moros, providing them at the same time with means for satisfying them. Children of the sultan and datus should be educated in Manila, and schools for the Moro dialect should be established and made accessible to the public.

PURPOSE OF SPAIN

A few closing remarks on the purpose and interests of Spain in Sulu and the resources she had available for carrying out this purpose may not be out of place in order to give the reader a clear idea of the final policy which Spain had for Sulu and to enable him to grasp the scope, complexity, and difficulties of this problem. However, in discussing these subjects and the changes they were intended to bring about it must be remembered that every project on the part of the sovereign nation or Spain calls for consideration from two points of view--the first is whether the agency employed was sufficient and adequate to impose the change and carry it through; the second is the amount of resistance such a project encountered on the part of the

subject nation or Sulu, and in case the resistance could be overcome, whether or not a nation like that of the Sulus was developed sufficiently for the requirements of the change and for subsequent adaptation to the system it was proposed to inaugurate.

Inasmuch as the treaty of 1878 was not abrogated and no distinct effort was actually made to disregard it, it should be regarded as the official and most authentic expression of Spain's relation, rights, and purpose in Sulu. The terms of this treaty gave Spain indisputable sovereignty over Sulu, the right to occupy all necessary points and to establish military garrisons wherever needed, the right to establish custom-houses at occupied points, the right to limit or control the importation of firearms, the right to suppress piracy and to demand the Sultan's coöperation in its suppression.

The degree or amount of sovereignty Spain was to exercise over Sulu was very indefinitely stated. The term "indisputable" does not signify "complete," as some hasty reports on Moro affairs have expressed it. The aim of the treaty was to exclude Great Britain, Germany, and other foreign nations from the Spanish sphere of influence over Sulu, and the word "indisputable" should be interpreted in this sense, which is clearly expressed in the Sulu text of the treaty. At that time there was no intention on the part of Spain to assume the control of Sulu internal affairs and the Sulus endeavored to guard their complete freedom and right to continue their political organization, laws, and religion by specifying those powers which Spain had a right to exercise over them and by declaring emphatically that all their customs, usages, and religion should not be changed. The Sulu word for "customs" signifies laws, organization, and administrative methods. It is the political not the social sense of the word about which they were so very particular. The treaty did not entitle Spain to interference, or to institute any measure that tended toward political change or reform in Sulu. The sultan was left supreme in the exercise of his authority over Moros. The treaty simply secured undisputed Spanish control over Sulu's foreign relations and commerce and incorporated Sulu into the Philippine Archipelago in this sense only. It further established peace within the Archipelago by checking any possible revival of Sulu piracy. It appears that both distinguished governors, Martinez and Parrado, interpreted the treaty in this sense, and the Sulus certainly so understood it.

Two important steps were taken by Spain later than 1878 in order to modify the relations established by the treaty. The first of these steps was a resolution to appoint the Sultan of Sulu or control the succession to this office. This occurred in 1886 when Sultan Harun was declared by the Spanish Government, in answer to the requests of Governor-General Terrero and Governor Arolas, as the legitimate sultan. By this act the Madrid Government asserted its right to a degree of actual sovereignty over Sulu internal affairs and backed its assertion with the necessary force and partially carried it through at the hands of Governor Arolas. Jamalul Kiram II finally recognized, to a certain extent, Spain's authority in this matter and accepted her right of approval or confirmation of the election.

The second step was an attempt to exact tribute from the Sulus. This was done by a decree issued in 1894 by Governor-General Blanco directing that a census be taken

of Sulu and a poll tax of 1 "real" per capita be collected. Advantage was taken at that time of the strong desire of Raja Muda Amirul Kiram to become sultan. Sultan Harun was persuaded to resign, and the measure adopted for the collection of the tribute resulted in the payment of a sum of money or its equivalent by Amirul Kiram and the latter's appointment as sultan. The scheme was a compromise by which Spain attempted to assume more control over Sulu, and Amirul Kiram secured his appointment as sultan without having to go to Manila for this purpose. However, the attempt to impose a tribute on the Sulus appears to have failed completely. No census was taken and no tribute was asked in later years.

The purpose of Spain, in accordance with her official declarations, may therefore be summed up as follows: 1. Complete control of Sulu foreign relations; 2. Complete control of Sulu commerce; 3. The right to appoint the sultan; 4. The right to impose tribute on the Sulus.

The first two propositions were legitimate and proper. Both could be accomplished and retained by virtue of Spain's naval power, merchant marine, and friendly foreign relations with the European nations. The Sulus had no navy and no steam vessels. Their native boats could not offer any significant resistance and were powerless to oppose the Spanish navy. Ever since 1844 the latter was in the ascendant and by 1870 it had completely overpowered the Sulu naval forces. Both these propositions were conceded to Spain in the treaty of 1878 and were justly held ever since. They strengthened the unity of the Philippine Archipelago and secured strength and permanent internal peace.

The third proposition, the right to appoint the sultan, was in effect defeated. It was poor policy. At the end of the bloody struggle that arose because if it, Spain retained only the right to confirm the choice of the nation. Had Governor Arolas confined himself to this point he would have won without a contest and without engendering hostility and ill feeling toward his Government. Had a test of arms been the sole arbiter of the question Governor Arolas might be said to have won his point completely, for his forces defeated those of the Sulus in every encounter; but the tenacity of purpose, persistence, and patriotism of the Sulus outlived his determination, and what was won by force and cruelty was given up in the end as inadvisable and impolitic.

The fourth proposition fell through. The best argument that can be advanced in its favor is that a tribute was actually paid by the Sultan Jamalul Kiram II in 1894 and that the tax was not imposed in later years because of the extensive campaign conducted in Mindanao and the frequent changes of Governor-General, and also because of the Tagalog insurrection of 1896. Such argument is more in the nature of an apology than a defense. There is some significance in exacting tribute from the Sultan of Sulu, but the principal of the tribute was utterly defeated. The sultan evidently evaded the question entirely as soon as he felt secure in his office. Such a measure would certainly have been opposed by the Sulus. They would have risen to a man and sacrificed more life and treasure in this cause than in the previous one of the appointment of their candidate for the sultanate. The nation was somewhat divided in the former case, but in the matter of resisting the payment of a tribute

there was not a dissenting vote. They would have fought most vigorously and unitedly. Governor Arolas did not exhaust their fighting powers; they could have fought just as well in 1888 as in 1886-87. One party alone advanced against Jolo in 1895, and a band attacked landing soldiers in 1897. To pay tribute to a foreign power meant vassalage in their opinion, and this they could not tolerate. They would fight, not on the strength of a careful and intelligent estimate of their power as compared to that of Spain, but because they would not tolerate the idea and their national honor would prompt them to exhaust their strength before they would yield to such a humiliating proposition. Their fighting power was only one unit of their national resources; their national independence, national character, unity and stability of organization were other units which added considerable strength to their resistance. What they could not defeat they would have left alone; what they could not tolerate they would have evaded; what they could not evade they would have run away from.

An exaggerated degree of honor and self-pride, uncontrolled by a certain degree of intelligence, culture, and moral courage, is dangerous. Courage unencumbered by prosperity or wealth and spurred by abnormal religious sentiment, becomes desperate, reckless, and fanatical. Moreover the treatment by a highly civilized nation of another limited in culture and development is under moral restrictions similar to those pertaining to the treatment by a man of mature age of a minor. A minor can not be blamed for lack of mature reason, and no more can be expected of him than he is able to do. He must further be treated with equity and justice, though he is weak and helpless. It was impossible for the Sulus to change their character at once. It was absurd to expect of them any action contrary to their natural disposition and national character. It was the duty of the sovereign nation to recognize the national character of her inferior and treat her wisely and justly. Tact might have been mightier than an army and wise measures might have worked wonders. Nations can be educated and can develop like individuals and force is a poor agent where the carrying out of a certain measure is intended to bring about reform.

Spain imposed tribute upon the Sulus without being prepared to enforce its collection and before the Sulus were ready for such a measure and the relation it involved. Granting that the funds derived from the tax were to be used for the benefit of the Sulus the principle underlying the institution of the tax is repugnant to the people and no means were used to remedy this feeling or train the people for its tolerance. No savage or semicivilized nation can be reformed and governed without initial expense, nor can reform be effected in a day, although forces and funds are available in plenty.

RESOURCES OF SPAIN

In their bearing on the subject under consideration the resources of Spain may be divided into three divisions--her fighting power, her government machinery or system of government, and her racial influence.

Her fighting power includes all the forces of the army and navy which she could bring to bear on Sulu and her ability to support them. The largest Spanish force that

ever assembled on the soil of Sulu was that commanded by Governor-General Malcampo in the expedition of 1876; this was estimated at from 9,000 to 11,000 troops. In January, 1888, the military forces of the Philippine Islands numbered 12,800 men, of whom 1,400 were Spaniards and the rest natives. Governor Arolas never commanded more than 2,000 troops in his various expeditions and never needed more than that number. A garrison force of 700 men proved sufficient to repulse a general attack on Jolo in 1881. We may therefore safely conclude that a force of 2,000 native troops stationed in Sulu was sufficient for all purposes and considerations. Such a force should have been kept in Sulu all the time. The moral effect of maintaining it would be to suppress any attempt at opposition and to check the tendency to mischief or rebellion. The fact that there is a ready force behind an order or request prompts obedience and conformity, before deceit or plots can have time to grow. Wise measures are more effective and peace is assured. Besides, the honor of the sovereign power is constantly maintained and no chances for disregard or dishonor are allowed. Force back of a wise administrator is a potent factor for good. It need not be used except rarely and when absolutely necessary. Force is evil only when it is allowed to rule the head of the administrator and, like every other agency, it is good only when it is wisely directed. It was therefore necessary and, in as far as it was needed to back a competent administration, it should have been provided. Spain could have easily kept such a force in Sulu all of the time. She had the troops and the means to support them. She, however, did not do this, and only part of the time did the Sulu garrison have the required strength. However, the facility of transporting troops from Zamboanga to Jolo and the preponderance of her naval forces reduced this deficiency to a minimum and the fighting power of Spain may, as far as our purpose is concerned, be deemed to have been adequate to rule Sulu.

The chief weakness in the Spanish régime lay in her system of government. Her government machinery proved ineffective and inadequate. No competent men were educated into the needs of the situation and given permanent charge of Sulu affairs. Temporary military commanders were put in command without the necessary preparation for the requirements of the office. No special ability was needed to conduct an office already organized, to execute laws already established, or to carry out a system of government already laid out; but it required higher abilities to establish sovereignty over a new state like Sulu, lay down a definite, settled, and wise policy, and carry out the regeneration and reform of a nation. Besides too frequent changes in the office of Governor-General, the governors of Sulu were also allowed too short terms. More than thirteen governors ruled Sulu in the course of twenty-three years, from 1876 to 1899. Not one of these felt that it was his duty to institute a permanent policy for Sulu, or believed that he was going to stay long enough to carry it through, and that he was going to be held responsible for its conduct, whether it failed or succeeded.

The government of a state is entitled to as much consideration as any business undertaking and there is no reason why it should not be conducted on sound and businesslike principles. Such methods as characterized the government of Sulu would have ruined any business establishment and could not have done justice to any nation

or body of men it represented. The men in responsible positions trusted the transmission of all official actions and communications to interpreters of limited capacity and strength of character. No governor could speak Sulu and verify the translation of his letters and orders. His knowledge of Sulu affairs and his ideas and opinions were necessarily colored by the opinions or designs of his interpreters. The strength of Spain's assertion and declaration of her rights to rule Sulu, exclude foreign interests, appoint the Sultan of Sulu, and impose tribute on the Sulus was based on the meaning of the word "sovereignty" which does not appear at all in the Sulu text of the treaty of 1878. The Sulu copy of the treaty uses in this connection the word "agad" which means "follow." In the translation of this document from Sulu into English a point was stretched and "agad" was interpreted as "obey." While the Sultans of Sulu felt that they were independent and free in their administration of Sulu internal affairs, and that they were only obliged to give Spain preference, and ally themselves on her side when foreign nations interfered, governors like Arolas read the word "sovereignty" in the Spanish text and tried to inforce its full and actual sense. The Sulus felt that the Spanish governors were thus transgressing the limits of their authority, and the Spanish governors thought at the same time that the Sulus were unreliable and deceitful, a most undesirable and unfortunate condition of affairs.

The missionaries in the northern islands acted differently. They talked the language of the natives and performed their duties creditably and with unquestionable success. They understood the people, knew their real conditions, sympathized with them, and worked out their religious regeneration admirably. The governors of Sulu did not take any such view of their duties; they had some zeal, but they lacked that understanding of human nature and the forces of regeneration that the missionaries mastered. They had no idea of how a Sulu law or custom could be modified and reformed, for they never acquainted themselves sufficiently with the laws and customs of the people and never paid much attention to the feelings and public opinion of the Sulus. They trusted every measure to force and could not think of reform without compulsion. A missionary who observed the intense fear of demons on the part of some pagan Filipinos converted several of them by means of a picture of hell and satan, and gradually taught them the principles of Christianity. But the governors of Sulu could never detect any relation between Sulu and Spanish laws and could never find a method of approach from one side to the other. Their form of government failed to adapt itself to the conditions of the country and could neither merge into the Sulu organization nor adapt the Sulu organization to its system. No sympathies bound the two races or the two organizations, and no foundation for unification and subsequent assimilation could be laid. Spanish jurisdiction remained within the garrison, and its machinery could find no application outside the walls of Jolo.

The amount of force needed to reduce and reform Sulu varies in accordance with the policy pursued. Considerable light can be thrown on this subject by a study of the circumstances and causes which gave rise to Datus Ayunan, Mandi, Piang, Ara, and Pedro Cuevas or Kalun.

Datu Ayunan lived at Taviran and was much lower in rank and influence than either the Sultan of Bagumbayan or Datu Utu. Having grievances against Datu Utu he shrewdly allied himself with the Spanish forces and rendered them valuable assistance. In a short time he rose to power, dignity, and fame and died greater in the estimation of the country than his overlord, the Sultan of Bagumbayan.

Datu Piang married the daughter of Datu Ayunan and learned his methods. As soon as Datu Utu's attitude toward him became unbearable and hostile he offered his services to the Spanish authorities and won their protection and support. By shrewd tactics he dispossessed his former master Utu of his best lands, attracted most of his following and caused his downfall. At the time of the Spanish evacuation he had become the richest Moro in Mindanao and the most influential chief in the island.

Datu Ara had Chinese blood in him. He married his daughter to the Gugu [224] of Magindanao, won the favor of the governor of Kotabato, and ruled over all Moros on the southern branch of the Mindanao River below Tamontaka. He was strong and well respected.

Datu Mandi married the daughter of a Samal chief of Zamboanga and through his tact and ability to speak Spanish established for himself a respectable position over the Samals of Mindanao. He served the interests of Spain faithfully and bore arms in her behalf against Bisayans and Lanao Moros. The recognition and support he obtained from the Spanish Government raised him to the rank of a datu and gave him supremacy over all the chiefs of the peninsula of Zamboanga. A close observation of Datu Mandi's ability and attitude toward the government renders it clear that the influence this man could bring to bear on his people was immense. It is no exaggeration to state that had his influence been tactfully utilized, he could have easily, with the aid of one company of Spanish troops, reduced to submission all Moros and Subanuns living between Point Flechas and Sindangan on the outskirts of Dapitan. There never existed a Moro chief more tactful, pliable, forceful, and favorable to the reorganization of the Moro community and its system of government along modern and civilized lines.

With little aid from the governor of Zamboanga, Pedro Cuevas made himself the real lord of northern Basilan. His power was further well respected throughout all the Basilan Group of islands. With no more than two companies of troops at his disposal he could have acted as the Spanish representative and subordinate ruler or governor of all the Basilan and Balangingi Groups of islands and could have effected any reform desired.

By tact and ability these men obtained Spanish influence and support and rose from the lowest ranks of the people to positions of great power and dignity. Had the Spanish Government employed such men to further its influence by enlarging their following and extending their territories and spheres of activity, there is no doubt that a very significant step would have been taken which would have made clear to the Spanish authorities successful methods of procedure and new lines of policy that lead to success.

Similar lines of action could have been adopted in Sulu by taking advantage of existing parties and factions. Once the sympathy of one Sulu party was obtained and its forces bore arms on behalf of or on the same side with Spain, the door would have been opened for effective influence and wise measures directed along the line of cleavage would have been bound to produce results. A minimum of force would then be needed, and strained relations and discord would give way to friendship and concord. The history of Sulu is not wanting in proof that wise attractive methods have been more effective than force and arbitrary rule, and, once we reflect upon Abu Bakr's rule and the wonderful reformation he worked out, then we realize what was and what was not a wise policy for Sulu.

Little attention has, as a rule, been given to race characteristics as a potent factor in a nation's policy. The racial character of the sovereign nation bears on the ruled nation in several ways--in the conduct and demeanor of officials in their official and social relations with the chiefs and common people, in the demeanor of soldiers and civilians in their social intercourse with the mass of the people, and in the industrial or business relations of the two nations.

The Sulu datus and chiefs are very courteous and polite and are unusually keen to notice personal discourtesy. Impulsive and unconciliatory methods are bitterly resented, and an abrupt manner may in itself be sufficient to defeat any measure. The people in general have no patience with an impetuous officer and hate to be discourteously treated even by their datus. Treated with disrespect by the authorities or disregarded by the ruling race, they become exclusive, evasive, indifferent, unsympathetic, and discontented. The ruling race can be polite, courteous, and civil in all its social relations with those under it and yet retain its racial supremacy and social position, and win the respect and submission of the ruled race. If ordinary civil duties require good breeding and good manners, the duties of the Spanish officer toward the native chiefs certainly demanded the highest qualities of a gentleman and the most sympathetic, upright, and firm disposition possible. Many Spanish officers possessed these qualities and conducted their offices with full dignity and credit, but it can not be said that all officers were so fully qualified. Such facts in themselves are sufficient to determine the quality of the person to whom state affairs in Sulu should be trusted.

Further, the reform of a nation can never be fully accomplished without the aid of her chiefs and leaders. The coöperation of the natives is a very potent factor for good, and a system of government which aims at the elevation of a conquered nation must find a place in its machinery for the activities of natives of ability and influence. Hence the necessity of successful coöperation with natives and the importance of securing higher qualifications in men holding the highest offices of government. The fewer such officers are and the abler they are, the better and safer the result will be. Such men can overcome racial prejudices and national sentiments and grievances and by the manner in which they discharge their duties, they can command the approval and respect of the ruled nation, gain its sympathies to the side of the government, and maintain peace, prosperity, and good relations between the governing and the governed nations. However, these results were not obtained by

Spain in Sulu. The religion and racial prejudices of the two nations were never overcome and the Sulus maintained a feeling of revulsion and distrust toward Spaniards and Christian Filipinos.

Great aid is rendered the government when the ruling race is competent and resourceful enough to utilize the services of the ruled race and at the same time give it sufficient space and latitude for the exercise of its energies and the satisfaction of its ambitions. A most favorable industrial relation can be maintained, if the capital of the sovereign nation can find opportunities to invest in the conquered territory, buy up its crude products, and promote its natural resources. The natives then find work to do, increase in prosperity, and look upon the existence of the ruling race as favorable for their development and progress, but in case the subjugated nation is crowded out of its territories and robbed of its resources by keen competition, greed, or undue domination on the part of the ruling race, hostilities are bound to arise and disaffection extends from industrial relations to politics and may lead to trouble and rebellion.

Many Spaniards seemed to regard Sulu as a very desirable country for colonization and offered many suggestions as to the most favorable sites for factories, the best industries that could be developed, and the best methods and means of exploitation. Several farms were started in the vicinity of Jolo, but they were abandoned even before the evacuation of the islands, and no effective step can be said to have been taken by Spain to colonize Sulu except the building up of the town of Jolo itself. This subject has therefore played no important part in the policy exercised by Spain in Sulu and very little can be said in this connection. It must, however, be stated that the lands of the Archipelago of Sulu are extremely limited in area and should have been reserved for the Sulus. Perfect disinterestedness should have been exhibited by the Spaniards in this regard. [225]

APPENDIXES TO PART II

APPENDIX I

THE PACIFICATION OF MINDANAO BY RONQUILLO

[Sucesos de las Islas Filipinas, Dr. Antonio de Morga, Mexico, 1609.] [226]

Shortly after Don Francisco Tello had taken over the governorship, news was brought of the death of Esteban Rodriguez de Figueroa in Mindanao by Brother Gaspar Gomez of the Society of Jesus. The latter brought the body for burial in the college of Manila, of which Don Esteban was patron. Juan de la Xara wrote that he had charge of affairs, that he had settled in Tampakan, [227] that he intended to continue the pacification and conquest of the island as should seem most advisable, and that reënforcements of men and other things should be sent him. It was learned that he intended to make an ill use of the government, and would not remain dependent on, and subordinate to, the governor of the Philippines; and that he was depriving the heirs of Esteban Rodriguez of what lawfully belonged to them. It was

learned that, in order to make himself safer in this respect, he was sending his confidants to the town of Arévalo in Oton where Don Esteban had left his wife, Doña Ana de Osseguera, and his two small daughters, with his house and property, to persuade Doña Ana to marry him. This resolution appeared injurious in many respects, and the attempt was made to rectify matters. But in order not to disturb the affairs of Mindanao, the matter was left alone for the present, until time should show the course to be followed. And so it happened that when Juan de la Xara left the camp and settlements of Mindanao, and came hurriedly to Oton to negotiate his marriage in person--although the widow of Don Esteban had never been favorable to it--Don Francisco Tello sent men to arrest him. He was brought to Manila, where he died while his trial was being conducted.

After the imprisonment of Juan de la Xara, Don Francisco Tello immediately sent Captain Toribio de Miranda to Mindanao, with orders to take command of the camp and to govern until some one should agree to continue the enterprise. When he arrived at Mindanao and the soldiers saw that Juan de la Xara's schemes had been defeated, and that the latter was a prisoner in Manila, with no hope of returning, they obeyed Toribio de Miranda and the orders that he brought.

In Manila the governor was considering carefully the necessary measures for continuing the war, since the island of Mindanao was so near the other pacified islands, and the island itself contained some provinces that professed peace and were apportioned as encomiendas and had Spanish magistrates, such as the rivers of Butuan, Dapitan, and Karaga, so that it was desirable to pacify the whole island and subject it to His Majesty. The royal treasury was spent and could not bear the expense; and Esteban Rodriguez had bound himself by a legal writ to carry the war to entire completion at his own expense, in accordance with the terms of his agreement. The guardian of his children and heirs brought the matter before the court, and refused to fulfill this obligation on account of Esteban Rodriguez's death. In order not to lose time, for what had been commenced had to be continued in one way or another, the governor decided to prosecute it, drawing the necessary funds from the royal treasury, either on its own account or on the account of Esteban Rodriguez's heirs, if such should be according to law. The governor then searched for a person to go to Mindanao, and selected Don Juan Ronquillo, general of the galleys. The latter was given the necessary reënforcements of men and other things, with which he reached Mindanao. He took command of the Spanish camp and fleet which he found in Tampakan. He confirmed the peace and friendship with the chiefs and people of Tampakan and Lumagan, restored and set in better order the Spanish settlement and fort, and began to make preparation for the war against the people of Bwayan. [228] He spent many days in making a few incursions into their land and attacks on their forts, but without any notable result, for the enemy were many and all good soldiers, with plenty of arquebuses and artillery, and had fortified themselves in a strong position. They had many other fortifications inland and went from one to the other with impunity, whenever they wished, and greatly harassed the Spaniards, who were little used to so swampy a country. The latter found themselves short of provisions without the possibility of getting them in the country on account of the war, inasmuch as the camp contained many men, both Spaniards and the native servants and

boatmen, and it was not easy at all times to come and go from one part to another in order to provide necessities.

Meanwhile Don Juan Ronquillo, seeing that the war was advancing very slowly and with little result, and that the camp was suffering, drew up a report of it, and sent letters in all haste to Governor Don Francisco Tello, informing him of the condition of affairs. He wrote that it would be better to withdraw the camp from Mindanao River, so that it might not perish; and that a presidio could be established on the same island in the port of La Caldera, which could be left fortified, in order not to abandon this enterprise entirely, and so that their friends of Tampakan and Lumagan might be kept hostile to the people of Bwayan. Meanwhile he and the rest of the camp and fleet would return to Manila, if permitted, for which he requested the governor to send him an order quickly. Upon the receipt of this dispatch, Governor Don Francisco Tello resolved to order Don Juan Ronquillo, since the above was so and the camp could not be maintained, nor the war continued advantageously, to withdraw with his whole camp from Mindanao River. He was first to make a great effort to chastise the enemy in Bwayan, and then to burn the Spanish settlement and fort and go to La Caldera, fortify it, and leave there a sufficient garrison with artillery, boats, and provisions for its maintenance and service. Then he was to return to Manila with the rest of his men, after telling their friends in Tampakan that the Spaniards would shortly return to the river better equipped and in great numbers.

Silonga [229] and other chiefs of Bwayan were not neglecting their defense, since, among other measures taken, they had sent a chief to Ternate to ask assistance against the Spaniards who had brought war into their homes. Thereupon the King of Ternate dispatched a numerous fleet of caracoas and other boats to Mindanao with cachils [230] and valiant soldiers--more than 1,000 fighting men in all--and a quantity of small artillery, in order to force the Spaniards to break camp and depart, even could they do nothing else. When the news reached Bwayan that this fleet was coming to their defense and support, they made ready and prepared to attack the Spaniards, who also having heard the same news were not careless. Consequently the latter turned their attention more to the main fort, and reduced the number of men in the smaller forts on Butil [231] River and other posts, mouths, and arms of the same river. These served to strengthen the garrison of the main fort and the armed galleys and other smaller craft, in order to use the latter to resist the expected attack of the enemy. The enemy having gallantly advanced to the very fort of the Spaniards with all their vessels and men, attacked and stormed it with great courage and resolution, in order to effect an entrance. The Spaniards within resisted valiantly, and those outside in the galleys on the river assisted them so effectively that together, with artillery and arquebuses, and at times in close combat with swords and kampilan, they made a great slaughter and havoc among the men of Ternate and those of Bwayan, who were aiding the former. They killed and wounded a great number of them and captured almost all the caracoas and vessels of the enemy, so that very few boats escaped, and they were pursued and burned by the Spaniards, who made many prisoners and seized immense booty and many weapons from the enemy. As soon as possible after this, the Spaniards turned against the settlements and forts of Bwayan where some of their results were of so great moment that the enemy, seeing themselves hard

pressed and without anyone to help them, sent messages and proposals of peace to Don Juan Ronquillo, which were ended by their rendering recognition and homage, and the renewal of friendship with the people of Tampakan, their ancient enemy. In order to strengthen the friendship, they sealed it by the marriage of the greatest chief and lord of Bwayan with the daughter of another chief of Tampakan, called Dungunlibur. Thereupon the war was apparently completely ended, provisions were now to be had, and the Spaniards with little precaution crossed and went about the country wherever they wished. The people of Bwayan promised to dismantle all their forts immediately, for that was one of the conditions of peace. Then the Spaniards returned to their fort and settlements at Tampakan, whence Don Juan Ronquillo immediately sent dispatches to Governor Don Francisco Tello, informing him of the different turn that the enterprise had taken. In view of the present condition he requested the governor to issue new instructions as to his procedure, saying that he would wait without making any change, notwithstanding the arrival of the answer which he expected to his first report, for conditions had now become so much better than before that the governor's decision would be different.

The governor had already answered Don Juan Ronquillo's first dispatch, as we have said above, when the second dispatch arrived with news of the successes in Mindanao. Suspicious of the men in the camp who had constantly shown a desire to return to Manila, and little relish for the hardships of war, and fearing lest they would return at the arrival of the first order, executing that order and abandoning the enterprise which had reached such a satisfactory stage; and thinking that it would be unwise to abandon the river, the governor made haste to send a second dispatch immediately by various roads, ordering them to pay no attention to his first orders, but to remain in Mindanao, and that he would soon send them what was necessary for further operations.

It seems that this message traveled slowly; for, the first having arrived, they obeyed it without any further delay, and camp was raised and the country abandoned. To their former enemy of Bwayan they gave as a reason that the governor of Manila had summoned them; and to their friends of Tampakan they said that they would leave men in La Caldera for their security, and that assistance would be sent them from Manila. This news caused as much sorrow and sadness to the latter as joy to the people of Bwayan. Then, after burning their fort and settlement, the Spaniards embarked all their forces as soon as possible, left the river, and went to La Caldera, 24 leagues farther down in the direction of Manila. Having entered port, they built a fortress and left there a garrison of 100 Spaniards, with some artillery, provisions, and boats for their use.

At this juncture the governor's second message to General Don Juan Ronquillo arrived, to which the latter replied that he was already in La Caldera, and could not return to the river. Then, without any further delay, Don Juan Ronquillo went to Manila with the balance of his fleet, by way of the Provinces of Oton and Panay. The governor, having heard of his coming, sent to arrest him on the road before he entered the city, and proceeded against him by law for having withdrawn the camp and army from Mindanao River, without awaiting the orders he should have expected

after the favorable turn that affairs had taken. Don Juan Ronquillo was set at liberty on showing a private letter from the governor, which the latter had sent him separately with the first instructions, to the effect that he should return to Manila with his troops in any event, for they were needed in the Islands for other purposes; and because of this letter Don Juan had determined not to await the second order.

APPENDIX II

THE PACIFICATION OF MINDANAO [232]

[Concerning the pacification of the Island of Mindanao in the year 1600.] [233]

In the relation of the last year you will have learned how occurred the death, in the pacification of the Island of Mindanao, of Esteban Rodriguez de Figueroa, who offered to carry out this pacification under the conditions which he stipulated with Gomez Perez Dasmariñas, formerly governor of these islands, copies of which were sent to His Majesty and to Master-of-Camp Juan de Lajara, formerly of the said expedition, who succeeded to his place when the camp was abandoned, and came to Manila. Don Francisco Tello, Governor and Captain-General of the said Philippine Islands, who at that time had taken possession of the government, was considering how to aid and stimulate the said pacification at the expense of the heirs of Esteban Rodriguez, and with the agreement of the captains and persons who were long resident and experienced in war in the said islands. Don Juan Ronquillo was appointed commander of the galleys to prosecute the said pacification, and in the meantime, in order to be present and continue the expedition, Capt. Toribio de Miranda was sent forward to encourage and animate the troops, under orders to keep them in his charge; and in case the post should be abandoned, and a retreat made to Manila, he should detain the troops and return to Mindanao. The said Capt. Toribio de Miranda having arrived at the Island [234] of La Caldera, which lies 40 leagues from the river of Mindanao, there found the whole camp, which was returning from the said islands. Conformably to the orders which he had, he turned back and fortified the site where they had first been, which was on the river, 4 leagues from the forts of the enemy. Juan Ronquillo, having been dispatched to Mindanao, had taken the camp in his charge, and begun to achieve some success. He achieved a victory in the battle which he fought with the Ternatans, who had entered with 800 men to give aid to the people of Mindanao. Before these successes, he had written a letter in disparagement of that country (a copy of which was sent to His Majesty), on account of which, in a council of war which had been held, the General Don Ronquillo had been ordered to make a last effort against the Mindanaos, doing them all possible damage. He was then to come to the Island [235] of La Caldera and there build a fort, to be garrisoned with a hundred Spanish soldiers, with artillery, arms, and munitions, and leave them there as a check upon Ternate and Mindanao, in charge of a good soldier, one of the captains of the camp, and with the rest return to Manila. Although Don Juan Ronquillo received this order, after having won considerable victories, he again wrote that he would not abandon that place, even if such were the order, because it would not be expedient to retire from the camp and comply with what had

been ordered, when he was leaving the Island of Mindanao already pacified, the chiefs, with whom he had used gentle means, that they might all be more contented, having again rendered submission to His Majesty, and likewise as the King of Sulu again rendered obedience and submission. Confiding in this, Capt. Cristobal Villagra, whom Don Juan Ronquillo had appointed commander of the garrison of La Caldera, had sent 30 soldiers to the Island of Sulu for supplies. They found at this time in Jolo a Mindanao chief, an uncle of the King of Mindanao and a brother-in-law of the King of Sulu, who had been driven out of Mindanao because he was rebellious. He treacherously killed 13 Spanish soldiers. When news of this was brought, Juan Pacho was sent to take the troops of La Caldera in charge, and, when it should seem best to him, to try to inflict punishment with 600 Spaniards; the enemy unfortunately killed the said Juan Pacho and 29 Spaniards, the rest of them retiring without any success. This news having come to the governor, he sent in place of Juan Pacho, Capt. Toribio de Miranda, a person in whom he had entire confidence, with an order not to attempt any punishment until he had force enough for it. After this Capt. Toribio de Miranda arrived at La Caldera on the 26th of August, 1599. When the garrison was given into his charge he put the defensive works in order, and with the arms which he brought, and those which he found in the fort, he armed all the troops, amounting to 114 soldiers. As directed by an order of the governor, he sent a chief of the Pintados [Bisayans] to Mindanao with letters to the chiefs of the island, in which he informed them that they would be protected, favored, and upheld in justice, as vassals of His Majesty, and that with this object a garrison had been placed in La Caldera; and that to aid in maintaining it, and in covering the expenses which they had caused in the war by their disobedience, the largest possible quantity of tributes would be collected for His Majesty, and that he would send for them shortly, which had not been done earlier because the Mindanaos had been so spent and afflicted. Having arrived on the 2d of September at the river of Mindanao, and delivered his dispatch, this chief was well received, and found the people in the settled state in which Gen. Don Juan Ronquillo had left them. Raja Muda, the main chief of Mindanao, in the name of them all, sent him back on the 15th of the said month, offering to give to His Majesty all the tribute which they could collect.

At this time news from the chief captain of Malacca having reached the governor, to the effect that in the Sunda, [236] 150 leagues from that port, there had been seen a number of English ships, whose designs were not known; and, a little later, word from the commander of the fort of Maluco that there were at Ternate, within the port, two English ships with 400 men and 50 pieces of artillery; a council of war was held as to what was best to do. The said council decided to withdraw the garrison from La Caldera to Cebu, so that the enemy should not take that place; and, if they should attempt to do damage to that province, they would find it in a state of defense. Accordingly an order was sent to Capt. Toribio de Miranda to withdraw with the troops, arms, artillery, and munitions, dismantling the fort; he was also told that he could return shortly to the island; with more troops and arms, in order to assist in its defense. On the 9th of September Capt. Toribio de Miranda arrived at Cebu, with all the troops, artillery, arms, and munitions; and at the same time Gen. Don Juan Tello arrived at Cebu with a hundred men, who came as reënforcement from the city of

Manila. Having spent six months there and commenced to build a fort of stone, the governor, as they had no more news of the English referred to, sent an order to the said Don Juan to come to the city of Manila--which he did with the hundred men. leaving the Province of Cebu in a prosperous condition, with the troops which are usually kept there, and those of the garrison of La Caldera, which in all amounted to 250 Spaniards.

After all this, in June of 1600, the governor received news, by way of Malacca, that the ships which had passed to the South Sea belonged to Dutch merchants, who had come to load with spices in the Maluco Islands. Having transacted their business, they had returned to their own country by way of India, without doing any damage to the islands of the west; it therefore seems that we are safe, notwithstanding the news received of those enemies.

APPENDIX III

THE MORO RAIDS OF 1599 AND 1600

[Sucesos de las Islas Filipinas, Dr. Antonio de Morga, Mexico, 1609.] [237]

The Spanish garrison left in La Caldera, at the withdrawal of Don Ronquillo's camp from the river of Mindanao, passed into command of Captain Villagra at the death of Capt. Juan Pacho in Jolo, and was suffering for lack of provisions; for neither the people of the river could give them to the Spaniards, nor would the Sulus furnish any on account of the war declared upon them. Therefore the garrison urgently requested Governor Don Francisco Tello either to aid their presidio with provisions, soldiers, and ammunition, or to allow them to retire to Manila--a thing of which they were most desirous--since there they gained no other special result than that of famine, and of incarceration in that fort, and of no place wherein to seek their sustenance. The governor, in view of their insistence in the matter, and having but little money in the royal exchequer, with which to provide for and maintain the said presidio and for the same reason the punishment that was to be inflicted upon the Sulus for their outrages upon the Spaniards, and their insurrection was deferred--and thinking that the return to Mindanao matters would be a long question, he was inclined to excuse the difficulty and anxiety of maintaining the presidio of La Caldera. In order to do it with a reasonable excuse he consulted the Audiencia and other intelligent persons, and requested them to give him their opinion. But he first communicated his wishes to them and gave them some reasons with which he tried to persuade them to give him the answer that he desired. The Audiencia advised him not to remove or raise the garrison of La Caldera, but to reënforce and maintain it, and to attend to the affairs of Sulu and the river of Mindanao as soon as possible, even if what was necessary for those two places should be withdrawn from some other section. They said that this was the most urgent need, and the one which required the greatest attention in the islands, both in order to pacify those provinces and to keep them curbed; lest, seeing the Spaniards totally withdrawn, they should gain courage and boldly venture still farther and come down to make captures among the Pintados [Bisayans] and carry

the war to the very doors of the Spaniards. Notwithstanding this reply the governor resolved to raise and withdraw the garrison, and sent orders to Captain Villagra immediately to burn the fort which had been built in La Caldera, to withdraw with all his men and ships, and return to Manila. This was quickly done, for the captain and the soldiers of the garrison waited for nothing more than to dismantle the fort and leave. When the Sulus saw the Spaniards abandoning the country, they were persuaded that the latter would return to Mindanao no more, and that they had not sufficient forces to do so. Thereupon they gained fresh resolution and courage, and united with the people of Bwayan on the river, and equipped a number of caracoas and other craft, in order to descend upon the coast of Pintados (Bisayas) to plunder them and make captives. The people of Tampakan, who lost hope of receiving further help from the Spaniards, and of the latter's return to the river, since they had also abandoned the fort of La Caldera and left the country, came to terms with and joined the people of Bwayan, their neighbors, in order to avoid the war and injuries that they were suffering from the latter. Then all turned their arms against the Spaniards, promising themselves to make many incursions into their territory and gain much plunder. Accordingly they prepared their fleet and appointed as leaders and commanders of it two of the experienced chiefs of the river of Mindanao, called Sali and Silungan. [238] They left the Mindanao River in the month of July of the year 1599, in the season of the vendabals, [239] with 50 caracoas, containing more than 3,000 soldiers armed with arquebuses, kampilan, carasas, [240] other weapons with handles, and many culverins, and steered toward the islands of Oton and Panay, and neighboring islands. They passed Negros Island and went to the river of Panay, which they ascended for 5 leagues to the chief settlement, where the alcalde-mayor and some Spaniards were living. They sacked the settlement, burned the houses and churches, captured many native Christians--men, women, and children--upon whom they committed many murders, cruelties, and outrages. They pursued these in boats more than 10 leagues up the river, and destroyed all the crops. For the alcalde-mayor, and those who could, fled inland among the mountains, and accordingly the enemy had a better opportunity to do what they pleased. After they had burned all the vessels in the river, they left the river of Panay with their boats laden with pillaged goods and captive Christians. They did the same in the other islands and towns which they passed. Then they returned to Mindanao, without any opposition being offered, with a quantity of gold and goods and more than 800 captives, besides the people whom they had killed. In Mindanao they divided the spoil, and agreed to get ready a larger fleet for the next year, and return to make war better prepared. [241]

This daring attack of the Mindanaos worked great injury to the Pintado Islands [Bisayas], both on account of their deeds there and also on account of the fear and terror with which they inspired the natives; because of the latter being in the power of the Spaniards, who kept them subject, tributary, and disarmed, and neither protected them from their enemies, nor left them the means to defend themselves, as they used to do when there were no Spaniards in the country. Therefore many towns of peaceful and subjected Indians revolted and withdrew to the tingues, [242] and refused to descend to their houses, magistrates, and encomenderos. [243] As was

reported daily, they all had a great desire to revolt and rebel, but they were appeased and reduced again to subjection by a few promises and presents from their encomenderos and religious who showed great pity and sadness over their injuries. Although in Manila people regretted these injuries, and still more those which were expected in the future from the enemy, they did nothing but regret them--since the governor was ill provided with ships and other necessities for the defense--and reckon them with the loss which they had suffered for having raised the camp on the river of Mindanao and dismantled the presidio of La Caldera.

As soon as the weather permitted, the Mindanaos and Sulus returned with a large fleet of more than 70 well-equipped ships and more than 4,000 fighting men, led by the same Silungan and Sali, and other Mindanao and Sulu chiefs, to the same Islands of Pintados [Bisayas], with the determination of taking and sacking the Spanish town of Arévalo, which is situated in Oton. Capt. Juan García de Sierra, alcalde mayor of that province, having heard of this expedition and of the designs entertained by the enemy, took the most necessary precautions, and gathering into the town all the Spaniards who lived there and in its neighborhood, shut himself up in it with all of them. Then, having repaired, as well as possible, a wooden fort there, he gathered there the women and their possessions. He and the Spaniards--about 70 men--armed with arquebuses, awaited the enemy. The latter, who intended to attack the river of Panay again, passed Negros Island and made for the town of Arévalo, where they anchored close to the native settlement. Then they landed 1,500 men armed with arquebuses, kampilan, and carasas, and, without stopping on the way marched against the Spanish town which was the object of their attack. The Spaniards, divided into troops, sallied forth and opened fire with their arquebuses upon the enemy with such vehemence that they forced them to retreat and take refuge on board their caracoas. So great was the enemy's confusion that many Mindanaos were killed before they could embark. Capt. Juan García de Sierra, who was on horseback, pursued the enemy so closely to the water's edge that the latter cut off the legs of his mount with their kampilan and brought him to the ground, where they killed him. The enemy embarked with a heavy loss of men, and halted at the Island of Gimarás, [244] in sight of Arévalo. There they counted their men, including the dead and the wounded, who were not a few, and among whom was one of the most noted chiefs and leaders. Then they sailed for Mindanao, making a great show of grief and sorrow, and sounding their bells [245] and tifas. [246] They made no further delay at Pintados [Bisayas], deriving little profit or gain from the expedition but much injury, and loss of men and reputation, which was felt more deeply upon their arrival in Sulu and Mindanao. In order to remedy this disaster, it was proposed to renew their expedition against the Pintados at the first monsoon with more ships and men, and it was so decided.

APPENDIX IV

GALLINATO'S EXPEDITION TO JOLO

[Sucesos de las Islas Filipinas, Dr. Antonio de Morga, Mexico, 1609.] [247]

The daring and audacity of the Mindanaos and Sulus in making incursions with their fleets into the Islands of Pintados [Bisayas] had reached such a state that it was now expected that they would come as far as Manila, plundering and devastating. In order to check them, at the beginning of the year 1602, Governor Don Francisco Tello, deriving strength from weakness, determined that the expedition against Sulu should be made at once, without more delay, in order to punish and pacify it, with the forces and men whom Capt. and Sargento-mayor Juan Xuarez Gallinato held in Cebu and in the Pintados [Bisayas] together with more men, ships, and provisions, which were sent him, accompanied by the necessary documents and instructions for him to enter the island, chastise its king and inhabitants, and pacify and reduce it to the obedience of his Majesty. By this means, until there should be an opportunity to settle the affairs of Mindanao, which is quite near Sulu, the audacity of the enemy would be checked; and by bringing the war into his own country, he would not come out to commit depredations. Captain Gallinato set out on this expedition with 200 Spanish soldiers, ships, artillery, enough provisions for four months--the time which it was thought the expedition would last--and with Indians as rowers for the ships and for other services that might arise. When he arrived at Sulu, at the bar of the river of this island, which is 2 leagues from the principal town and dwellings of the king, he landed his men, artillery, and the necessary provisions and left his ships under a sufficient guard. The islanders were all in the town and dwellings of the king, which are situated on a very high hill above some cliffs, and have two roads of approach through paths and roads so narrow that they can be reached only in single file. They had fortified the whole place, intrenched it with palms and other woods and a number of culverins. They had also collected provisions and water for their sustenance, besides a supply of arquebuses and other weapons. They had neither women nor children with them, for they had taken them out of the island. They had requested aid from the people of Mindanao, Bruney, and Ternate, and were awaiting the same, since they had been informed of the fleet which was being prepared against them in the Pintados [Bisayas]. Gallinato determined to pitch his camp near the town before this aid should arrive, and to attack the fort. After he had quartered himself at a distance of one-half league, in a plain facing the ascent, he sent interpreters with messages to the king and chiefs of the island, calling on them to surrender, and telling them that good terms would be given them. While waiting for an answer, he fortified his quarters in that spot, intrenching himself wherever necessary. He mounted the artillery in the best position for use, and kept his men ready for any emergency. A false and deceptive answer was returned, making excuses for the excesses that had been committed, and for not complying just then with what had been asked of them, and making loud promises to do so later. All this was with the object of detaining the captain in that place, which is very unhealthy, until the rains should set in, his provisions run short, and the arrival of the expected aid. After this answer had been received the Sulus, thinking that the Spaniards had become more careless on account of it, swarmed down quickly from the said fort in a large body of probably somewhat over one thousand; and armed with arquebuses and other weapons with handles, kampilan, and caraças, attacked and assaulted the quarters and camp of the Spaniards. This could not be done so secretly as not to be seen by the Spaniards and allow them opportunity to prepare to receive the Sulus before their

arrival. This the Spaniards did, and having permitted the natives to come all together in a body to the very inside of the quarters and trenches, as soon as the Sulus had discharged their arquebuses the Spaniards opened fire upon them, first with their artillery, and then with their arquebuses, killing many, and forcing the rest to retire in flight to the fort. The Spaniards pursued them, wounding and killing to the middle of the hill. But seeing that farther on the paths were so narrow and rough, they retreated before the heavy artillery fire from the heights and the large stones hurled down upon them and returned to their quarters. Upon many other days efforts were made to reach the fort, but without any result. Thereupon Gallinato, in consideration of the war being prolonged beyond what had been expected, built two forts, one where he kept his ships in order to defend them and the port; and the other one-half league farther on in a suitable place where they could take refuge and communicate with the camp. The forts were built of wood and fascines and fortified with the artillery from the ships. The Spaniards shut themselves up in these forts, whence from time to time they sallied, making incursions as far as the enemy's fort. The latter always remained shut up in their fort without ever choosing to come down or to yield; for he was convinced that the Spaniards could not remain long in the island. When Gallinato saw that the rains were fast setting in, that his men were becoming ill, and that his provisions were failing without his having accomplished the desired task, and that it could not be accomplished with his remaining resources, and that the enemy from Mindanao with other allies of theirs were boasting that they were gathering a large fleet in order to drive the Spaniards from Jolo, he sent news of all that had occurred to the governor of Manila, with a plan of the island and fort and a relation of the difficulties which the enterprise presented. He sent this in a vessel, by Capt. and Sargento-mayor Pedro Cotelo de Morales, toward the end of May of the year 1602, in order to obtain instructions as to his procedure, and the necessary reënforcement of men and provisions. The captain was charged to return quickly with the answer. * * *

At the same time that Governor Don Pedro de Acuña entered upon his administration, the captain and sargento-mayor, Pedro Cotelo de Morales, arrived from Jolo with the advices and report of Juan Xuarez Gallinato concerning the state of affairs in that island, whither he had gone with the fleet at the beginning of that same year. The governor, on account of the importance of the matter, wished to make every effort possible, and determined to send him supplies and a reënforcement of some men, which he did as soon as possible. He was ordered to at least make an effort to punish that enemy, even if he could do nothing more, and whenever the opportunity presented itself, to go to do the same thing in the river of Mindanao, and return to the Pintados [Bisayas]. When this commission reached Jolo Gallinato was already so worn out, and his men so ill, that the reënforcements only made it possible for him to get away from there; accordingly without seeing to another thing, he broke camp, burned the forts which he had built, embarked, and went to Pintados, leaving the people of that Island of Sulu and their neighbors, those of Mindanao, emboldened more than ever to make raids against the Pintados, and the islands within, which they did.

The governor, without delaying any longer in Manila, hastily started for the Island of Panay and the town of Arévalo, in a galliot and other small vessels, to see their

needs with his own eyes, in order to provide for them. He left war matters in Manila, during his absence, in charge of Licentiate Don Antonio de Ribera, auditor of the Audiencia.

As soon as the governor left Manila, the auditor had plenty to look after, because a squadron of 20 caracoas and other vessels from Mindanao entered the islands as far as the Island of Luzon and its coasts, making captures. Having taken some ships bound from Cebu to Manila, they captured 10 Spaniards in them, among them a woman and a priest and Capt. Martin de Mandia, and they took them off with them. They entered Calilaya, burned the church and all the town, and captured many persons of all classes among the natives. Thence they passed to the town of Balayan to do the same, but the auditor, having received news of the enemy in Manila, had it already in a state of defense with 50 Spaniards and a captain and some vessels. Consequently, they did not dare to enter the town or its bay, but crossed over to Mindoro, where, in the principal town, they captured many men, women, and children among the natives, seizing their gold and possessions, and burning their houses and church, where they captured the prebendary Corral, curate of that doctrina. They filled their own ships, and others which they seized there, with captives, gold, and property, staying in the port of Mindoro as leisurely as though in their own land, notwithstanding that it is but 24 leagues from Manila. Capt. Martin de Mendia, prisoner of these pirates, offered, for himself and the other Spanish captives that, if they would let him go to Manila, he would get the ransom for all, and would take it, or would send it within six months, to the river of Mindanao, or otherwise he would return to their power. The chief in command of the fleet agreed thereto, with certain provisions and conditions, and caused the other captives to write to the effect that what had been agreed upon might be fulfilled, and then he allowed the captain to leave the fleet. The latter came to the city, and upon receiving his report, the auditor sent munitions, ships, and more men to Balayan than there were there already, with orders to go in pursuit of the enemy without delay, saying that they would find him in Mindoro. Capt. Gaspar Perez, who had charge of this in Balayan, did not start so quickly as he should have done in order to find the enemy in Mindoro, for when he arrived he found that he had left that port six days before, laden with ships and booty, to return to Mindanao. Then he went in pursuit of him, although somewhat slowly. The enemy put into the river of a little uninhabited island to get water and wood. Just at that time Governor Don Pedro de Acuña, who was hastily returning to Manila, from the town of Arevalo, where he had learned of the incursion of those pirates, passed. He passed so near the mouth of the river, in two small champanes [248] and a virrey, [248] with very few men, that it was a wonder that he was not seen and captured by the enemy. He learned that the enemy was there, from a boat of natives which was escaping therefrom, and then he met Gaspar Perez going in search of the enemy with twelve vessels--caracoas and virreys and some large champanes. The governor made him make more haste and gave him some of his own men to guide him to where he had left the pirates the day before, whereupon they went to attack them. But the latter espied the fleet through their sentinels whom they had already stationed in the sea, outside the river. Accordingly they left the river in haste, and took to flight, throwing into the sea goods and slaves in order to flee more lightly. Their flagship

and almiranta caracoas protected the ships which were dropping behind and made them throw overboard what they could and work with all the strength of their paddles, assisted by their sails. The Spanish fleet, the vessels of which were not so light, could not put forth enough strength to overtake all of them, because, furthermore, they went into the open without fear of the heavy seas which were running, inasmuch as they were fleeing. Yet some of the ships of Capt. Gaspar Perez, being lighter, got the enemy's fleet, sunk some caracoas, and captured two, but the rest escaped, although with great danger of being lost. Without accomplishing anything else, the fleet returned to Manila where the governor had already entered, very much disturbed that things should have come to such a pass that these enemies, who had never dared to leave their houses, should have been so daring and bold as to come to the very gates of the city, doing great damage and making captures.

APPENDIX V

OLASO'S EXPEDITION IN 1629 [249]

[Relation of events in the Philippine Islands and other surrounding regions, from the month of July, 1629, until that of 1630.] [250]

I shall commence the affairs of these islands with the expedition to Jolo. It is an island of the Archipelago, rebellious for years past, and its natives, who are Mohammedans, have made a thousand incursions against us in these islands, pillaging whenever opportunity arises, burning villages and churches, and capturing numerous people.

In order to remedy all these evils, Governor Don Juan Niño de Tabora determined to equip a powerful fleet in order to destroy that enemy and conquer a stronghold which nature has made in their island so lofty and so difficult of approach that there is no better stone castle, for the approach to it is by one path, and it has some artillery which defends it. The people are courageous and warlike. For our fleet were collected 1 galley, 3 brigantines, 12 freight champanes (which are like small pataches) [251] and about 50 caracoas. The last named are the usual craft of these islands, and generally have thirty or forty oars on a side. All these vessels together carried about 400 Spaniards and 2,500 Indians, and they had considerable apparatus and war supplies. It was quite sufficient for another conquest of greater importance than the one on which they were going.

All that fleet departed, then, from the port of Dapitan on March 17. Dapitan is the port nearest to the enemy, and the Island of Sulu was reached in [blank space in the Ventura del Arco MS.] days. At dawn our men were landed, and began the ascent to the stronghold. The master-of-camp, Don Lorenzo de Olaso, who was commander in chief of the fleet, preceded the men. The Sulus defended their stronghold with valor. They killed some of our men and wounded eight, among them the master-of-camp himself. He was overthrown, as if dead, and went rolling down the hill. However, he was not dead, but only wounded, nothing more. Our men retired on the run, and to speak plainly, such terror entered into them that they did not dare to attack again.

They skirted the island in their craft, entered the villages, burned, wrecked, destroyed them, and killed a few people. They brought back some captives with them whom the Sulus had taken from us. A violent storm overtook them, which compelled them to weigh anchor, and they retired stealthily. Thus so powerful a fleet as that was lost. It was such a fleet that never has one like it been made for the Indies in these islands. The Sulu enemy were left triumphant, and so insolent that we fear that they will make an end of the Islands of the Pintados [Bisayas] which are the nearest ones to them, and which they infest and pillage with great facility.

APPENDIX VI

CORCUERA'S CAMPAIGN IN JOLO [252]

In my last letter I wrote to your Reverence of the result of the first attack, which was unfortunate, because the Moros repulsed us, as I told your Reverence. Not less unfortunate will be the news that I shall now relate, [253] which it is yet necessary for me to tell, in order to fulfil my duty and to remove the clouds arising from rumors and letters that will go there. I am here and see everything; and there is never a lack of those who tell many new things and exaggerate matters that are not so great as they will relate and descant there, where no one can report and declare what has happened. It is as follows:

Since that attack, we have made two others. The first was with five mines which we had made, with which we expected to blow up a great part of those walls. All of the mines were fired, and thinking that they would cause the same effects as the others our men retired farther than they ought to have done. Four of the mines exploded, and did not a little damage among the enemy. They, full of fear, fled down from their position; but, as the mines did not make the noise that we expected, we did not, accordingly, get there in time, as we were quite distant because of our fear lest the mines do us harm. The Moros retook their position, so that we were repulsed this time, as we had been the other, with the death of a captain, while some men were wounded. The fifth mine was left, and did not explode that time. Hence its mouth was looked for, and having found it, we tried two days after that to make another assault. The assault was made after the mine had exploded. That mine was larger than the others had been, and caused much damage. But the Moros fortified themselves again, with greater strength than they had the last two times, and defended themselves in their trenches, which had been fortified with many stockades and terrepleins, so that we could not enter. We lost some soldiers on that occasion, who tried to show that they were bold and valiant. Among them was the sargento-mayor, Melon, who was struck by a ball which passed through him and carried him off in two days. May God rest his soul! Thereupon, we retired to our posts and endeavored to collect our men and carry away the wounded, who were many. We have lost four captains of renown in these three assaults--namely, Captain Pimienta, Captain Juan Nicolas, Captain Don Pedro de Mena, and Sargento-mayor Gonzales de Caseres Melon. Besides these three assaults, another misfortune happened to us on St. Matthew's day, which was as follows: Captain Rafael Ome, going with forty-six men and two hundred Indians to

make a garo [254] (as we say here), and having taken up quarters in a field, where there was a fortified house, arranged his posts at intervals and ordered his men to be on their guard. But since man proposes and God disposes, the posts were either careless, or God ordained it thus; for suddenly the enemy rushed upon our men, who could not unite, as they were by that time scattered through the forest. The enemy, having caught them off their guard, made a pastime of it, killing twenty-six men, and carrying off arms, powder, balls and fuses. I regard that event as the greatest of all our losses. Among those of our men killed there by the enemy was Captain Lopez Suarez, a fine soldier. Our men were not disheartened by these reverses, except such and such men. The governor well sustains the undertaking with [all his powers of] mind and body. He has surrounded the entire hill with a stockade and a ditch, and has sown the ground with sharp stakes so that the enemy may neither receive aid nor sally out from it. At intervals there are sentry-posts and towers, so close that they almost touch. There were six barracks along it, so that if any tower should be in need the soldiers in them could go to its defense. Some of them have six men, others four, and those which have least three men, as a guard. The enclosure is one league long and surrounds the hill. I do not know which causes the more wonder, the fort of the Moros or the enclosure of the Spaniards which restrains the Moros, so that they issue but seldom, and then at their peril. We are day by day making gradual advances. Today a rampart was completed which is just even with their stockades, so that we shall command the hill equally [with the enemy]. God helping, I hope that we shall reduce their trenches, and then we shall advance from better to better. May God aid us; and si Dominus a custodierit civitatem frustra vigilat qui custodit eam. [255] Father, prayers and many of them are needed. Will your Reverence have them said in your holy college, and excuse me and all of us for what we can not do. I forward this letter, [hoping] for its good fortune in the holy sacrifices of your Reverence, etc. Jolo, March 31, 1638. To the father-prior of Manila.

PAX CHRISTI, ETC.

I would like to be the bearer of this letter, and to fulfil my desires of seeing your Reverence and all the fathers and brothers of your Reverence's holy college. That is a proposition for which credit may be given me, but the time gives space only to suffer; and thus do we have to accommodate ourselves to it, and to check our desires, drawing strength from weakness. I must content myself with writing, which would be a pleasant task, if I could do it at my leisure, and not so hastily as I have made known in certain letters that I have sent to your Reverence--not losing or neglecting any occasion at which I could write. And so that this opportunity should not pass without a letter from me, I have hastened my pen beyond my usual custom, and have written very concisely and briefly--although I could write at greater length, and give account of many things which I leave for a better occasion. That will be when it is the Lord's pleasure for us to see each other. Moreover, I have no pleasant news to write, since that which I could write would all be to the effect that we have not gained this enchanted hill; and that, at the times when we have tempted fortune, we have retired with loss of some men and many wounded.

Continuing, then, in the same style as the last letter, I declare that since the first assault, in which we were driven back with the loss of Captain Don Pedro Mena Pando, Adjutant Oliva, and Alférez Trigita, we have made two other assaults. One was on the twenty-fourth of March, the eve of our Lady of the Assumption. The second was on the twenty-eighth of the same month. In the first, we trusted to the mines that had been made, by means of which we expected to make a safe entrance. We would have made it had our fear of receiving harm from them matched the little fear of the enemy--who, as barbarians, did not prepare for flight, although they knew our designs. Of the five mines, four blew up; and as was seen, and as we afterward learned here from some captives, there was a great loss to the enemy. As soon as they saw the fire, they took to flight; but our men, being at a distance, could not come up to seize the posts that the enemy abandoned, until very late. That gave the Moros time to take precautions, so that when we had come up, it was impossible to gain a single thing which the mines had given us. On that occasion both sides fought very valiantly. The wounded on our side were not many, and our dead even fewer; among the later was Captain Pimienta. We were forced to return to our posts without having gained more than the damage wrought by the mines. The loss of those people was considerable, while not few of them perished because of the severity of our fire. But with the opportunity of the fifth mine which remained (which could not have its effect, because the fire-channel of the others choked it), the third attack was made inside of two days, by first setting fire to that mine, and by arranging the men better than on the day of the previous assault. They were set in array by the governor, who in person came up to these quarters on that occasion. They set fire to the mine, and more was accomplished than on the preceding days. Many of the enemy were killed; but, as the entrance was so deeply recessed, it could not be forced so freely by us, for the Moros were able to defend it from us, with so great valor that we could not take it. Our men fought with so great spirit and courage that it was necessary for the leaders to use force with them in order to get the men to retire, when they saw the so superior force of the enemy. On that occasion they killed seven of our men, besides wounding many. Among the latter was Sargento-mayor Melon, who was shot through the lung by a ball. He died on the second day, to the grief of all this army. Thereupon his Lordship made his men retire to their quarters, and commanded that the fort should not be attacked, but that they should proceed to gain it by the complete blockade of the enemy, as we are doing. By this method, I think that we shall make an entrance into the fort. Already we have one bulwark, which we have made level with their entrenchments; and we are raising our works one and one-half varas [256] above them, so that we are dislodging them with our artillery. They are retiring to the interior of their fort. By this means we hope to gain entrance into all their forts; and, once masters of them, I trust by God's help that we shall conquer their stronghold, and that they will humble themselves to obey God and the king.

Before those assaults, on St. Matthew's day, Captain Raphael Ome went out to make a garo, as they say here, and to overrun the country. In this island the level country is heavily wooded as nearly all of it is mountainous. He took in his company about fifty men (i.e., Spaniards) and two hundred Karaga Indians. The captain reached a field, and having lodged in a fortified house, such as nearly all those houses

are (for those Indians of the mountain, who are called Guimennos, [257] build them for their defense), he placed his sentries and seized the positions that he judged most dangerous. But since non est volentis neque currentis, etc., either because of the great multitude and the wiliness of the enemy, or (as is more certain) because the sentries were careless, and the other men asleep, the enemy came suddenly and attacked our soldiers--with so great fury that they killed twenty-six men, among whom was Captain Lopez Suarez, a brave soldier. The leader and captain, Ome, was in great danger. He fought in person with so great valor that, although run through with a spear, he attacked and defeated his opponent, laying him dead at his feet. Few of our men aided him, and many of them retreated immediately, thus allowing the enemy to capture from us twenty firearms, with fuses, powder, and balls. That was a great loss, and it is certain that we have not hitherto had a greater. And if any loss has occurred, it has been due to the neglect and confidence of the Spaniard.

Today two Basilan Indians came down from the hill to ask for mercy, and for passage to their own country. They say that they are sent by the datus in the stronghold who came from that island of Basilan or Tagima; and that, if permission and pardon were given to them by the pari [i.e., Corcuera], one hundred and thirty of them would come down in the morning. We regard this as a trick of that Moro; and, although it may be as they say, we are taking precautions, and are watching for whatever may happen. If they should come, they will be well received; and that will not be a bad beginning to induce others to come from the hill. I shall advise your Reverence of such event on the first occasion. What we know that they are suffering within [the fort] is the disease of smallpox and discharges of blood, together with great famine; because we have surrounded the entire hill with ditches and stockades, set with sharp stakes, which run around it for more than one and one-half leagues, and within musket-shot [of their fort] is a sentry-post [garita] or tower in which three men and three Bantayas are staying. By that means the enemy cannot enter or go out without being seen; and, when they do that, they are given such a bombardment that scarcely does any one dare to go outside of their walls. The hill is a beautiful sight, and if it were enjoying holy peace instead of war, it would be no small matter of entertainment and recreation to survey the landscape at times. The Moro does not like to see us, and is looking at us continually from his stronghold and yelling and scoffing at us--as they say sometimes that the Spaniards are chickens; again, that they are sibabuyes, [258] and again, that they will come to set fire to us all, and kill us. The Moro is a great rascal and buffoon. I trust in God that in a little while He will be ready for our thanksgivings [for the defeat of the Moros]. Will your Reverence urge His servants to aid us with their sacrifices and prayers. Those, I believe, it will be that must give us the victory, and that must humble the arrogance of this Mohammedan. His Lordship is displaying great firmness and patience, as he is so great a soldier. Already has he almost raised a stone fort on the beach, for he intends to leave a presidio here, and I think that it will be almost finished before he leaves. Nothing else occurs to me. Of whatever else may happen, your Reverence will be advised on the first occasion. If I have gone to considerable length in this letter, it is because I have known, one day ahead, of the departure of this champan. I commend myself many times to the holy sacrifices of your Reverence. This letter will also serve

for our father provincial, etc. Jolo, April 5, one thousand six hundred and thirty-eight.

The Moro has returned today with a letter from the queen and all the stronghold, in which they beg pardon and humiliate themselves. May God grant it, and bring them to His knowledge. I shall advise you of the result. I hear that Datu Ache is dead. If that is so, then the end has come. Today, the sixth of the above month.

PAX CHRISTI.

Deo gratias qui dedit nobis victoriam per Jesum Christum Dominum nostrum. [259] I have written your Reverence another letter, by way of Oton, telling you that it was our Lord's pleasure to give us a joyous Easter-tide, the beginning of what has happened. His Divine Majesty has chosen to bestow upon us an overflowing blessing, by the reduction of these Moros so that they should come, abased and humiliated, to beg His governor for mercy; for, whether it was the latter's plan to go to treat for peace at Basilan for their men, or whether they should send them all, that they might see how the governor viewed their petition, the following day they came with letters from the queen [260] for Father Pedro Gutierrez and his Lordship. Therein she begged the father to protect her, for she wished to come to throw herself at the feet of the hari of Manila, and to beg his pardon for the obstinacy that they had shown hitherto. The father answered for his Lordship, in regard to the pardon, that if they agreed to do what was right, they would be very gladly pardoned; but that in regard to their coming it was not time, until they would humbly give up the arms which they had taken from us, and the captives, vessels, and holy ornaments; and that, even though the queen had so great authority, so long as the king did not come, he must declare and show his willingness to accept what the queen had written. Accordingly, the king wrote to the same father and to his Lordship next day, begging the same thing and more earnestly. But he was not allowed to come--which he urgently entreated--until they should have given up the arms and other things of which they robbed us. Difficulties arose over this point, as to which of the two things was to be done first. The Moro declared that he wished to treat first of the peace, and the points on which they were to agree; and therefore it was necessary to see the hari of Manila first of all. But Don Sebastian, as he was so experienced in these matters of war (in which God has inspired him with so wise resolutions, and given him even better results) held firm to his proposals. Two days passed, but at last the king agreed to the terms, by giving up the pieces of artillery which he had captured from us. There were four iron pieces; and, in place of one which had burst, one of bronze was requested, which many mines had buried. Afterward we found the broken piece, by opening the mouth of one of the mines: and he gave it to us willingly--saying that he had thus brought the broken piece, and that he ought not for that reason to give another in its place; and that which had been asked from him had been bought for forty basines of gold at Makassar. In order that the Spaniards might see what an earnest desire for a permanent peace was in his heart, and that he was greatly inclined to it, he sent also some muskets, although few and poor ones. In what pertained to the captives, he said that he would surrender those that he had, but that he could not persuade his datus to give up theirs; still he would ask them to give their captives. At most, he sent eleven Christian captives, counting men, women, and

children. He had already spent the holy vessels, for, since it was so long a time since they had been brought, he had sold them to the king of Makassar; but he said that he and all his property were there, to satisfy the Spaniards for any injury that they had received. The king petitioned his Lordship to allow him to visit him; and his Lordship granted such permission for Quasimodo Sunday.

The datus [sic] were very angry that the king was so liberal, and because he humbled himself so deeply; accordingly, they opposed his leaving the hill to talk with the governor. They tried to prevent it, but the king overruled by the reasons which he gave to the datus, and which father Gregorio Belin gave to him. His Lordship gave hostages for the king, and ordered Captain Marquez and Captain Raphael Ome to remain as such. They asked for Admiral Don Pedro de Almonte and two fathers, but that was not granted to them. Finally they were satisfied with the two said captains, persons of great esteem and worth; and the king came down to talk with his Lordship, accompanied by many chief men. His Lordship received him with such display as he could arrange at short notice, under a canopy of damask, and seated on a velvet chair, with a cushion of the same at his feet. Another cushion was placed at his side upon a rug. As the king entered the hall, his Lordship rose from his seat, and advancing two steps, embraced the Moro king; then he made him sit down on the cushion that had been prepared. Then his Lordship also seated himself beside the king in his chair, while at his right side was his confessor, and at his left stood a captain of the guard and the sargento-mayor. Grouped behind the confessor were the fathers who were in the quarters on that occasion. There were two Augustinian Recollects, and one Franciscan Recollect, and a secular priest. Then came Father Gutierrez, and Father Gregorio Belin. The king requested permission to rest a little first, for he came, one of his servants fanning him (haciendole paypay), lifting up from time to time the chinina which he wore--open in front, in order to catch the breeze, and to enable him to shelter himself from the heat, or to get rid of the fears with which he had come. His chief men seated themselves after him on that open floor, a seat very suitable for such nobility, who esteemed it as a great favor. Then when the king was rested, or reassured from his fears, they began their discourses or bicharas, talking, after the manner of these people, by the medium of interpreters--namely, Father Juan de Sant Joseph, an Augustinian Recollect, and Alférez Mathias de Marmolejo, both good interpreters. The governor set forth his conditions. The agreement made was: first, that the banners of the king, our sovereign, were to be hoisted on the stronghold; second, that the men from Basilan were to be permitted to leave the stronghold and go to their country; third, that the Macassars and Malays were also to leave and return to their own lands; and fourth, in order that the first condition might be fulfilled without the rattle of arms and the shedding of blood, all the enemy were to come down to our quarters, while the king and queen and their family could come to that of the governor. The Moro king did not like this last point; but, as he saw that matters were ill disposed for his defense, he had to assent to everything. But, before its execution, he begged his Lordship to communicate the terms with his men and datus, saying that he would endeavor to get them all to agree to the fulfilment of what his Lordship ordered; and that in a day and a half he would reply and, in what pertained to the other conditions, they would be immediately

executed. This happened, for the Basilans descended in two days with all their men and families--in all, one hundred and forty-seven. Some fifty or sixty did not then descend, as they were unable to do so. The Macassars refused to descend until they received pardon from his Lordship, and a passport to their own country. Therefore their captain came to talk with his Lordship, who discussed with him what was to be done with him and his men. The latter are very humble and compliant to whatever his Lordship should order. His Lordship answered that he would pardon their insolent and evil actions, and they could descend with security of life; and that he would give them boats, so that they could go away. Thereupon the captain, giving a kris as security that they would come, returned, and immediately began to bring down his property and men. The Malays came with them, for all those peoples had united against the Castilians. They are the ones who have done us most harm with their firearms, and have furnished quantities of ammunition for all the firearms of the Sulus. At the end of the time assigned to the king for answering his Lordship in regard to the matters which he had discussed with him, he was summoned, in order that what had been recently concluded might not be hindered, as his Lordship had many matters to which to attend. If he would not come, his Lordship was resolved immediately to continue his bombardment and fortifications, saying that he would make slaves of all whom he captured. With this resolution, the queen determined to come to visit his Lordship; and, so saying and doing, she summoned her chair, and had herself carried down to the quarters of Don Pedro de Almonte, which is the one located on their hill, and which has given them so much to do. She sent a message to the governor, begging him to grant her permission, as she wished to see him. His Lordship sent a message to her, to the effect that he would be very glad to see her, and that she would be coming at a seasonable time. She came to the hall borne on the shoulders of her men, accompanied by some of her ladies and by her kasis, who was coming with pale face. She alighted at the door of his Lordship's hall. He went out to receive her, and with marked indications of friendship and kindness led her to her seat, which was a cushion of purple velvet; and his Lordship, seated in his own chair, welcomed her through his interpreter, Alférez Mathias de Marmolexo. She responded very courteously to the courtesies of the governor; for the Moro woman is very intelligent, and of great capacity. She did not speak directly to the interpreters, but through two of her men, one of whom was the kasis; and often he, without the queen speaking, answered to what was proposed. The queen petitioned and entreated the governor to desist from entering the stronghold, for the women, being timid creatures, feared the soldiers greatly. And if his Lordship was doing it to oblige her and the king her husband to descend, she said that they would descend immediately, with all their people. Thus did she entreat from him whom his Lordship represented; and I desired that she should obtain this favor. His Lordship answered her that he would do so very willingly; but that he had an express mandate for it [i.e., to gain the fort] from his king, and that, if he did not obey it, he would lose his head. "I do not wish," said Tuan Baluka (for such is the name of the queen), "that the favor which I petition be at so great a price and danger to your Lordship. Consequently, will you kindly grant me three days? and in that time I, the king, and our people will descend without fail." His Lordship thanked her anew, and added that with this she obliged him to fulfil strictly what he had promised her. "Indeed," said the queen, "I have no

doubt of it; for, being in the gaze of so many nations that your Lordship has to conquer, it is clear that you must fulfil what you have promised me; for your Lordship's actions toward me would be understood by all to be those that you would have to perform toward all." This terminated the discussion. His Lordship ordered a collation to be spread for the queen and her ladies; and then his Lordship retired, so that they might refresh themselves without any embarrassment. Then, having dined, the queen returned to her stronghold with the retinue that she had brought. Before she left the quarters she was saluted by the discharge of two large pieces of artillery, which had been made ready for that purpose. She was greatly pleased by that, and the next day began to carry out her promises, by sending down a portion of her possessions. The Makassars and Malays also brought down their property with her, and immediately embarked. I had written up to this point to this day, Saturday, the seventeenth of this month of April, hoping for the end of all these incipient results and expected events regarding this stronghold; the issue has been such as we could expect from Him who has also been pleased to arrange and bring it to pass. Last night the queen came down to sleep in our camp or quarters, with some of her ladies. In the morning she went to report her good treatment to her people; for she was received with a salute of musketry and large artillery, and a fine repast. All that has been done to oblige her to encourage her people, for they were very fearful, to descend immediately. More than two thousand have now descended, and our banners are flying on the hill, and our men are fortified on it. May God be praised, to whom be a thousand thanks given; for He, without our knowledge or our expectations, has disposed this matter thus--blinding this Moro and disheartening him, so that, having been defeated, he should surrender to our governor, and give himself up without more bloodshed. We are trying to secure Datu Ache; if we succeed in this, I shall advise you. Now there is nothing more to say, reverend Father, except to give God the thanks, for He is the one who has prepared and given this victory to us; and to beg all in your Reverence's holy college to give thanks that the college has had (as I am very certain) so great a share in the achievements [here]. The governor is very much pleased and we all regard him in the proper light. The men are full of courage, and even what was carefully done is now improved. I am the humble servant of your Reverence whom I pray that God may preserve as I desire, and to whose sacrifices I earnestly commend myself. Jolo, April 17, 1638.--Juan de Barrios.

All the Sulus descended, in number about four thousand six hundred, to the sea. Finding themselves down and outside the enclosure, they all fled, under cover of a very heavy shower of rain--leaving all their possessions, in order not to be hindered in their flight. Many mothers even abandoned their little children. One abandoned to us a little girl who had received a dagger-stroke, who received the waters of baptism and immediately died. There is much to say about this, and many thanks to give to God, of which we shall speak when it pleases God to let us see each other. Today, the nineteenth of this month of April, 1638.--Barrios.

The governor sent messages to the king and queen by two kasis, asking why they had fled. They replied that since all their people had fled, they had gone after them for very shame, but that they would try to bring them back and to come, and this was the end of the matter. The result was exceedingly profitable for our soldiers and

Indians; for the Sulus, fearful because they thought that, if they became scattered, they would all be killed, abandoned whatever they were carrying--quantities of goods, and chests of drawers--which our soldiers sacked. Above, in the stronghold, they found much plunder. It is believed that the king and queen will return, but not Datu Ache; but this is not considered certain.

LETTER FROM SANBOANGAN [261]

PAX CHRISTI

I am not writing to anyone [else], for the lack of time does not allow me to do so. Therefore will your Reverence please communicate this to the father provincial, Father Hernandez Perez, Father Juan de Bueras, and the father rector of Cavite.

When our men were most disheartened at seeing that the fortress on the hill was so extensive, and that it was becoming stronger daily; that the mines and artillery had seemingly made no impression on it; that we had been repulsed four times; and that our men were falling sick very rapidly: in order that it might be very evident that it was [all] the work of God, ambassadors came from the hill to beg his Lordship for mercy. He received them gladly, and asked them for the artillery that they had plundered from the Christians, etc. They brought down four pieces, which they had taken from the shipyard, and brought to us some Christians. Next day, more than one hundred and fifty people from Basilan descended, who surrendered their arms, and then about fifty Makassars, who did the same; and all were embarked in the patache.

Next day the king and queen went down and slept in the camp of Don Sebastian. On the following day (which was the day agreed upon when all were to descend from the hill), seeing that it was already late, the king and queen said that they would go to get their people. The governor granted them permission, and went to a camp that was located opposite the gate of the stronghold. All the Sulus descended, carrying their goods, arms, etc., to the number of about four hundred soldiers, and more than one thousand five hundred women, children, old men, etc. They reached the governor's camp and Don Pedro de Francia told the king that they must surrender their arms. The latter replied that he would surrender them to none other than to the governor. Thereupon, they went to summon his Lordship; but the Sulus, seeing that they were going to summon him, fled, under a heavy shower that was falling, and abandoned all their goods. A vast amount of riches, many pieces of artillery, and versos, [262] falcons, muskets, arquebuses, etc., were found. The cause of the Moros fleeing was their great fear that they were to be killed. On our part, since Don Sebastian Hurtado held all their stronghold, and had left only thirty men in his quarters (in order that Datu Ache might not escape), and as that number could not resist so many people, the Sulus were, on the contrary, allowed to go without any firearms being discharged.

More than two hundred and fifty of the Sulus have died, and they were perishing in great numbers from dysentery because the women and children were placed under ground for fear of the balls. That and the fear of the mines caused their surrender; for

it was impossible to take their fort by assault. The interior strength of that stronghold is so great that the Spaniards were surprised; and all recognize that it has been totally the work of God, and [a result of] the perseverance of Don Sebastian, who ever said that all must die or capture the stronghold. Somewhat more than two hundred Christian and more than one hundred Moro women have come from the stronghold during this time. All the Moro women are fearful. Up to date eighty-three Spaniards have died from wounds, and many of them from disease.

THE KILLED

Sargento-mayor Melon Captain Don Pedro de Mena Captain Don Juan Nicolas Captain Don Pimienta Captain Don Lope Suarez

DIED OF DYSENTERY

Captain Don Aregita Martin de Avila Adjutant Oliba Adjutant Calderon Alférez Concha Alférez Alonzo Gonzalez

I shall not name others, as they are not so well known, and it will be known later. Up to date about two hundred Bisayan Indians have died, most of them from diseases. Don Pedro Cotoan died while en route from Jolo to Samboanga, in order to take back the Bisayans, who are a most cowardly race. Those who have done deeds of valor are the Karagas, and the Sulus tremble at sight of them. Don Pedro Almonte remains as governor and lieutenant for the captain-general at Samboangan, with one hundred and fifty Spaniards, as has been reported. Captain Jines Ros is to stay as castellan in Jolo with one hundred and eighty men--Captain Sarria being fortified in the stronghold with eighty men, and Jines Ros on the beach in a stone tower that is already eight stones high, with one hundred men. Captain Marquez is going to Buaren with fifty Spaniards, although no succor had been sent to Don Sebastian from Manila. All that has been supplied to excess is truly wonderful, for the winds have brought (and it is incredible) many champanes, with more than twenty thousand baskets of rice, innumerable fowls, and pork, veal, beef, and cheeses from Cebu, which have made a very excellent provision.

They ask for Father Martinez [and] Alexandro at Jolo [and] Father Carrion at Buiaon, but without an associate. I say that, following even to the end of the world, I do not know to what to compare these Moros of Samboangan. They have paid all their tributes. This is a brief relation. I pray your Reverence to pardon me and commend me to God, for indeed what I desire is necessary.

Samboangan, April 23, 1638. [263]

APPENDIX VII

OBANDO'S REPORT ON THE PREPARATIONS TO BE UNDERTAKEN TO RETURN ALIMUD DIN TO SULU, JULY 15, 1751 [264]

Sire: Your Majesty will find in the enclosed report the resolutions adopted by the Committees of the War and Treasury Departments for the purpose of reinstating the king of Sulu, Fernando the First, whom I found in this capital, baptized and protected by Royal briefs insuring him the continuation of the same Royal goodwill as long as he remained a Christian and a friend of the nation, which seems to be his intention hitherto, with the help of 3 galleys, 3 barges, 1 galiot, 2 large champanes and other craft for war and transportation, under the orders of the Master-of-camp of your Majesty's infantry here, to whom I have given the instructions and orders contained in said report, to the effect that he should make port at Zamboanga, and from there try to subdue the rebel vassals, blockade the island of Sulu by sea, cut it off from all communication with its neighbors, prevent food from being introduced, prevent and punish all depredations, acts of piracy and insults on the part of that barbarous nation against the town and vassals of your Majesty of which I receive pitiful complaints every day, and see that the captives are returned and that due observance is given the treaties of peace and other agreements which were made by my predecessor but have not proved to be as satisfactory as might have been hoped, on account of the inconstancy which characterizes that nation.

Before undertaking such an important operation, I decided to order the construction of three average sized galleys, and other small vessels, of which there were none in these Islands; and to arm them I ordered to be cast 100 perrier cannon of calibre 2, with three chambers each, ordering the transfer to the province of Iloilo of General Francisco Domingo Oscoti, as Lieutenant-Intendant-General, with instructions to prepare provisions at the smallest cost for the Treasury, and directing him to issue a proclamation (as he did) calling for volunteers, who would be rewarded according to their merits on the ships plying between Manila and Acapulco, and authorizing the natives to arm boats at their expense, exempting them of all taxes during the expedition. As I was in possession of a rescript of your Majesty addressed to his Field Marshal my predecessor Gaspar de la Torre, ordering him to reconnoiter the island of Balabak, and Ipolote Bay, and other places of Palawan Island for the purpose of building a fort for the protection of the inhabitants against the people of Sulu, Tiron and Borneo, and to build six galleys with which to fight the Moros, with a report on the same object presented by the Province of Saint Nicholas of these Islands, [265] both of which have been communicated to said Committees of the War and Treasury Departments and to persons who had knowledge by experience of the said province and regions; also, in view of the poor condition of the Royal treasury which precluded the possibility of greater expenses it was decided, in accordance with the opinion of your Majesty's Fiscal [Attorney General] in regard to the above mentioned instruments, to incorporate them to said report (or record), [266] as they are of the same nature, to take, when there was a better opportunity, the proper measures for reconnoitering the most favorable position for the intended fort, and to await the result of the expedition for the reinstatement of the king of Sulu, so as to request him, if the result should be favorable, to withdraw his vassals from the fort of Ipolote, and, if not, to secure the safety of the people of the said island by driving them out; and having already ordered, as I have said, the construction of the galleys, which were necessary and made more so by your Royal order, to continue the work

until the six were built, said work being carried on with the utmost care and economy, which I always bear in mind in my zeal for the service of your Majesty.

I will send your Majesty full reports on the progress of these different undertakings, so that your Royal orders may let me know your Royal pleasure, which will always meet with my humble obedience.

God give the Royal and Catholic Person of your Majesty the many years of life which are required by Christendom for the happiness of your vast dominions.

Manila, July 15, 1751.

APPENDIX VIII

OBANDO'S REPORT ON THE CIRCUMSTANCES ATTENDING THE ATTEMPT TO RETURN ALIMUD DIN TO SULU, JUNE 18, 1752 [267]

Sire: In a letter addressed to your Majesty last year, 1751, I forwarded a report and vouchers to the effect that I had sent, with the King of Sulu, Fernando the First, to the fortified station of Zamboanga, a fleet of 3 galleys, two feluccas, two galiots and two large champanes, with other craft, under the Master-of-camp [268] of the Royal troops here, for the purpose of restoring said king to his throne and forcing his rebel vassals to submit, by means of a blockade of the island of Sulu, which would cut it off from all communication with its neighbors and prevent the importation of food to the island, other provisions being made for the purpose of protecting the Christian communities against any further harm on the part of the Sulu people and the Tirons. [269] I have the honor to report now that the said Master-of-camp arrived at Zamboanga with most of the fleet, ahead of the Sultan of Sulu, who had been delayed by various accidents, and sailed at once, in order to avoid the monsoon, for the Bay of Jolo, where he anchored on the 26th of June of that year, at about one mile from the forts. He formed a line of battle, and, noticing two Chinese champanes without flags, that were stationed near the river mouth and were stretching two lines to go up stream, he ordered two long-boats to go and remove them from under the artillery of the enemy; the Jolo forts, four in number, displayed red banners and opened fire with cannon of calibre 8 to 18 on the boats towing the champanes; our fleet answered, and the fire was kept up some time on both sides, until the enemy hoisted the white flag in order to gain time for reënforcing his trenches; the Master-of-camp sent a letter to Prince Asin, informing him that his only purpose was to restore the legitimate king of Sulu to his dominions, and to have the captives delivered; the prince answered that he had no captives to deliver; that he was waiting for the return of the king, who would do as he wished with them, that he was begging the Prophet to send back the king * * *. Finding such an answer vain and impertinent, our ships opened fire again; a suburb was stormed and burned, and our men found out that the negotiations were a pretext to gain time to place artillery behind the palisades; the Moros accomplished this purpose and again requested a truce in order to hold a meeting of their leaders and to deliberate as to what should be done. This was granted, and in a second letter signed by the Datus Prince Asin insisted that the Master-of-camp should retire to Zamboanga, promising to bring over the captives; as the south-west monsoon was

blowing hard and he was short of provisions, the latter decided to go back to Zamboanga; the Datus informed their king Fernando in a letter addressed to him at Zamboanga of what had been agreed; Prince Asin also stated verbally that he would bring to Zamboanga some captives whom he was going to seek in the woods, and asked the Master to leave the port, while he went after the wives and children of the followers of King Fernando, who had been frightened and scattered by the artillery. After a few more answers and objections which showed an utter lack of sincerity, the Master-of-camp sailed back to Zamboanga. The King of Sulu had arrived there on June 22, and as soon as he heard about the truce requested by his brother Asin, and other affairs of the fleet, he declared that the prince was his enemy. This statement was believed at the time, but soon afterwards good-sized boats began to arrive one after the other with many of his principal people on the pretext of Prince Asin's visit to the King, until there were 180 persons, including 32 women between concubines and servants. When the Master-of-camp, Governor of Zamboanga, remarked that all these boats were full of firearms, powder, ball, coats of mail, helmets, and other warlike equipment, that the King of Sulu had secretly sent to his brother Asin, at Basilan, golden buckles and epaulets, and embroidered stockings to make a brilliant appearance at landing in Zamboanga, while he feigned to be his enemy; that Prince Asin had failed to keep his word, since he said that he had been unable to get hold of the captives he was to bring to Zamboanga, when it was known that he was keeping the said captives in a secret place, six of them, including a woman, having escaped by swimming over to the fleet when the latter was at Jolo, and reported that the Moros had many captives concealed in the woods; that Prince Asin had written to the King that all the captives seized during the latter's stay in Manila were still in their power, not one having been sold while awaiting the royal commands; and finally, that the King and his brother were secretly dismissing the concubines only, telling them that the Master-of-camp was sending them away with contumely; he inferred that the King was preparing to surprise the fort. This surmise was strengthened by the face that armed men were steadily coming in each day, despite the Master-of-camp's friendly admonition to the King that his followers enter the fort unarmed. The lying and disingenuousness of the King, which all these indications were making plainer every moment, were finally betrayed by a letter, written in Arabic characters, to the King of Mindanao, in which he stated that he had been compelled, by those in whose power he was, to write the letter he had previously sent him from Manila,--whereas he had enjoyed complete freedom in this capital, so complete, in fact, that he did not perform, during the voyage hence to Zamboanga, a single rite of the Christian religion, as far as known, while he was seen to perform various Moro religious acts, and took with him the Quran in his own language, instead of the numerous Catholic books which had been given him for his instruction. In view of all the foregoing evidence of bad faith, the Master-of-camp, Governor of Zamboanga, and the captains of the fleet decided to arrest at the same time the King, the datus and their men, to seize their boats, arms, and concealed ammunition, and to keep the whole under careful guard, the men being detained in decent quarters, pending the decision of the Captain-General.

In reflecting on this important and critical change in the situation, I bore in mind that the said King of Sulu had been a false friend and a consummate Machiavellian, who had deceived your Majesty's Governor Fernando Valdes Tamon with his feigned promises of peace, which he never kept, and that, instead of releasing the captives and preventing the cruel outrages of his vassals the Moros and Tirons, he had used the considerable supply of arms, which he received from the said Governor and Governor Gaspar de la Torre under the pretence of suppressing supposed rebellions of his vassals, to keep our forces busy in Sulu, so that his vassals the Tiron pirates might ravage the provinces, while our forces were engaged in the Sulu kingdom. He also deceived your Majesty's Governor and Bishop when a fleet was sent against the Tirons; he went as an ally and a pilot for the fleet among the shallows, and the small islands belonging to the enemy, and prevented the destruction of the principal towns, by misrepresenting to the commander of the expedition that said towns belonged to peaceful people who were friends of his, and pledging himself to have the prisoners returned, so that the fleet retired after burning only nine villages without importance, thanks to the cunning of the king. The trouble caused by all these Moros, thanks to his influence, is really astounding, and has nearly drained the Royal treasury, as, since the last peace agreement made by Governor Tamon, 89,744 pesos have been spent from 1736 to 1740, and since then the war expenses have far exceeded that amount. All these criminal and astute antecedents fully justify my distrust in giving careful instructions to the Master-of-camp to avoid a surprise of the fort under the veil of feigned friendship; I really expected this new act of treason on account of what I already knew about the said King of Sulu, and was only held back by the fact that he had been baptized, and the information about him which my predecessor had given me in good faith. As it is, all the members of the Government were glad that the treachery of the King had been foreseen and that he had been arrested. * * *

In Zamboanga, after his arrest, 12 krises, each in six pieces, were found hidden in two cushions belonging to him. * * * Urged by the members of the ministry, I proceeded at once to explain to the Real Acuerdo [270] and the council of war all the difficulty of inflicting the condign punishment that was deserved, and, supported by a majority of votes, I decided to declare war on all the Sulus, Tirons and Kamukons, with the understanding that no capitulations or treaties of peace would be considered, but that they would be treated as rebels, in their persons, their property and their land, and put to the sword in case of resistance; that all their towns would be destroyed and burned; and that the mission of our fleet was not to make conquests, but to punish the rebellion and to blockade the island of Sulu so as to prevent any attempt to bring in food or any other help. I also directed that the King of Sulu, who was under arrest at Zamboanga, should be sent to Manila, there to be kept in confinement until the pleasure of your Majesty be known. The Datus and other Moros were declared to be slaves, and I ordered that they should be branded and marked, not so much for the purpose of guaranteeing the ownership of their masters or punishing their obstinacy, as for that of avoiding all confusion between them and the numerous Indians of these Islands, whom they resemble in color, bearing and language, of crushing their pride, their daring and their evil spirit, experience having shown that 8 Sulus suffice to subjugate a whole town, and principally of preventing

the clandestine introduction of the sect of Mohammed, which would easily spread among the Indians, if the brand did not mark them as enemies from Sulu, it being known that the sect of Mohammed is daily extending its darkness over these regions. * * *

The declaration of war against the Moros was published in all the provinces, which were instructed to be constantly ready for attack or defense; to organize companies of militia, with their officers, in all the pueblos, and have them frequently drilled and reviewed, so as to become skilful in the use of their arms; to send a list of all the arms and ammunition on hand to the Captain-General, who will thus be able to supply them with all he may deem necessary. I furthermore ordered that no boat should leave Manila or any other port without being well provided with men and arms, and issued proclamations calling for privateers, several of whom have already been given letters of marque and have sailed with the hope of doing good service for your Majesty; I issued new instructions on every subject, to be followed in their respective parts according to circumstances; I reserved for my future action the disposal of our prisoners at the best terms, one fifth of the profits going to the Royal treasury; the right of plundering was declared to be free for all, all privateers from the Bisayas were exempted from tribute, and I promised them in the name of your Majesty 6 pesos for each Moro, as an encouragement to pursue and exterminate them. As soon as I heard the news from Zamboanga, I sent there a supply boat with plenty of food, arms and soldiers, in view of the next campaign; I took on myself the care of relieving from time to time the officers and soldiers * * * and I can sincerely assure your Majesty that I have been so provoked and exasperated by the untamable fierceness and the bad faith of the Moros, that I am decided to spare neither work nor efforts in order to punish them thoroughly and to deliver from oppression the Christian communities, so that the glorious name of your Majesty may be feared and respected all through my Government, in compensation for the gross deceit practised by said Moros upon my predecessors. I trust, with the help of God, to punish them as they deserve, and will report to your Majesty the progress of the expedition.

God keep the Catholic and Royal Person of your Majesty many years, as Christendom and the Monarchy have need.

Manila, June 18, 1752.

APPENDIX IX

REPORT ON THE OCCUPATION OF PALAWAN AND BALABAK, APRIL 30, 1753 [271]

Sire: By letter forwarded to your Majesty through confidential channels under date of * * * I reported that I had despatched an embassador to the King of Bruney, informing him of the arrest of the King of Sulu for his inveterate faithlessness, and pressing him to continue our long standing friendship and to form a new alliance against the said king as a usurper of part of his dominions, and against all his enemies, and to cede to your Majesty the Island of Balabak and the territory of Palawan, for the purpose of

better waging war against the Sulus, Tirons and Kamukons; and that, the desired end having been obtained, I found it necessary to use the new rights acquired by the cession referred to. Consequently, with the view of best promoting your Majesty's interests, I resolved to put into execution the idea of an armament composed of our galleys, a tender, three feluccas, and two champanes, supplied with two Spanish companies of one hundred men each, together with another company of Pampanga Indians, which, with the crews, the convicts and the military officers, number nearly a thousand persons, for the glorious object of taking possession of La Pampanga in the ceded part of Balabak and the other adjacent islands, forming this new district into a province called Trinidad, with a separate government from that of the Kalamians; for I have appointed a governor to take charge of nourishing this new plantation with the political regulations and Royal ordinances which the prudent zeal of your Majesty has provided for similar cases, and which, on my part, have been furnished him in the form of brief and clear instructions directed towards civilizing those barbarous natives, so as the better to facilitate the spread of the holy Gospel.

With this in view I am sending two reverend Jesuit priests, persons distinguished in politics and mathematical learning, and the military engineer of this place, for the purpose of making an inspection of the capital of Palawan, as well as of the Island of Balabak, and its adjacent islands, and of examining their bays, ports, inlets, rivers, anchorages and depths, in order to construct a fort--which will be named after Our Lady of the Good End--in the most healthful location, secure by land as well as by sea, for the garrisoning of which an adequate force of artillery has been despatched. It will be kept guarded for the present by a small galley, two feluccas, a company of Spaniards, and another company of Pampanga Indians, besides the galley slaves [272] and the suite of the governor, and officials--all rationed for one year--who will number three hundred, the rest being returned to this capital when possession is once established. And that the taking of possession may be unopposed, useful, and lasting, I have planned for the strengthening of the said fort, with the primary object of having our troops sally from its walls to pacify the Sulu rebels who have been dwelling in certain districts of Palawan, or to exterminate them completely by fire and sword, preventing by means of the new fortress and the little flying squadron, the Kamukons, Tirons, and others, from laying waste the province of the Kalamians, and the adjacent islands; for, there being access to the entire chain of places and all the islands, facilitating attacks, and our vessels being on a constant cruise through those regions, their expulsion will be secured. But the greatest gain of all will lie in becoming acquainted with their lands, rendezvous and places of refuge, in view of the fact that the greatest defense which they have had up to the present time has been our own ignorance and negligence in the premises, they scorning our arms without fear, in the belief that they are unconquerable because the places of their abode are unexplored; wherefore the King of Sulu, pretending to serve us as a pilot among the Tiron Islands laughed at our expedition under the command of your Majesty's Reverend Bishop of Nueva Segovia, leading the Spaniards about with a halter wherever he wished, and wherever he thought they would suffer most fatigue. In view of all this, and of our present experience of the unbridled audacity with which they ravage almost all the provinces, I felt compelled to project this campaign of

reconnaissance so as to test, by the favorable results secured, the surest means of benefiting these Christian communities, for I am in hopes of establishing, through this new colony, an impregnable bulwark against the whole Moro power and a source of reciprocal assistance to the fortress at Zamboanga. And I likewise propose to introduce into those parts, by reason of their proximity, commerce with Borneo, Siam, Cambodia, and Cochin-China, so that, through intercourse, the inhabitants of Palawan may become pacified and tractable and their towns become opulent; so that with the families which in due time will be drafted from the outskirts of this capital, a province of substantial usefulness may be formed, having greater respect for both Majesties; for, by erecting churches to God, a new gem will be added to the Royal crown, namely the glory of giving many souls to the Lord, while the savings of the Royal treasury will in time be appreciable.

Although I intended to make this journey personally, the noble city [273] and the majority of the committee on war opposed this course, and with the sanction of the Audiencia convened in executive session I decided to delegate my authority for this act, in view of the necessity of my remaining in the capital for the despatch of the urgent and arduous affairs which frequently present themselves.

God guard the Royal Catholic Person of your Majesty the many years that Christendom needs him.

Manila, April 30, 1753.

APPENDIX X

BRIEF REPORT ON THE EXPEDITION TO TAKE POSSESSION OF PALAWAN, JULY 17, 1753 [274]

Sire: When the galleon was on the point of sailing for New Spain, the Palawan expedition returned to the port of Cavite, from where the commander of the expedition informs me that he has made a careful and exact survey of the Islands of Palawan and Balabak, beginning on the outward coast, from 9 degrees to Labo. On all that coast he has only found mangrove swamps and reefs, the inhabitants being hostile to everyone and obeying no king; the land is miserably poor; there is no drinking water from Balabak to Ipolote; the climate is so bad that in two months and a half 116 men of the expedition died and 200 were sick, and he finds that all that has been said about Palawan is false.

I have also been informed by the Alcalde Mayor of the Kalamians of the arrival there of one galley, and three feluccas, which had left the fleet since it sailed from Manila, as the Commander also now reports; after the galley had been careened and food provided, one felucca sailed on its course convoying the joanga [275] of the father prior in charge of that district and two small vessels which had been sent by the Alcalde of Komboy and had suffered the misfortune of being captured by the Sulu Moros, most of the people, however, escaping, as explained in the enclosed letter from the Alcalde.

The commander of the expedition has sent me from Cavite a report of the councils of war held by him for the purpose of carrying out his instructions, the most important of which was to take possession of Palawan and adjacent islands in the name of your Majesty, said islands having been ceded by the King of Bruney; accordingly, our fleet took possession of the land with due solemnity, with the express knowledge and consent of the inhabitants; I also received a log of the whole route which seems to have been well kept, with maps and a full explanation of the examination made of the said islands and the operations in connection therewith. A new map of the islands is being made, on account of the errors contained in the former one; as the log and the report of the commander refer to the new map, which is unfinished, and I cannot delay the departure of the galleon, I cannot forward a full report to your Majesty; I wish to make a serious and careful examination of all that has been done, so as to take such action as may be the best for the benefit of the Royal service, and to be able to send your Majesty a full report of the expedition, with my opinion based on a complete knowledge of the facts. This is all the information I can give your Majesty for the present.

God keep the Catholic Royal Person, of your Majesty many years, as Christendom has need.

Manila, July 17, 1753.

APPENDIX XI

LETTER OF THE KING OF SPAIN TO SULTAN ISRAEL, DECEMBER 2, 1774 [276]

To the Captain-General of the Philippine Islands.

Most illustrious Sir: In letters Nos. 322 and 325, your Excellency sets forth the ideas of the English settled in the island of Balambangan, who are displeased with the unhealthfulness of the country and petition that the Sultan of Sulu allow them to settle within his dominions.

With No. 325, the letter of the Sultan was received, and the King, thus informed of the attempts of the Englishmen, and also of the favorable inclination of the Sulu Sultan to establish with our nation friendship and alliance, commands me to direct you to listen to his proposals, to accede to them whenever they are reasonable, and to grant him aid and favor as far as possible, assuring him of Royal protection, and delivering to him the enclosed communication in answer to his own, in which his Catholic Majesty declares his entire satisfaction with his reasonable conduct and promises to reciprocate his friendship as you may understand through the copy of that letter which I enclose. God preserve your Excellency many years.

Madrid, December 5, 1774.

Dr. Julian de Biriaga.

[Copy of the communication referred to in the foregoing letter.]

Most illustrious and excellent prince Mohammed Israel, Sultan of Sulu. Most gratifying has been to me the announcement, which you conveyed to me in your letter of January 20th, of your happy accession to the sovereignty of Sulu, on account of which I offer you many congratulations, wishing you happiness in all things.

The disposition which inclines you to seek my friendship and assistance, as also the friendly relations which you maintain with my Governor of the Philippines, which you desire to establish and perpetuate by means of a mutual agreement, which may secure for the future firm peace and a perpetual alliance between your states and mine, increase my just gratification, especially as my Governor has informed me of the sublime natural gifts which are united in your person, with many and most expressive eulogies thereof.

In view of this, and of the constant fidelity which you promise in your letter, I command my good vassal, Don Simon de Anda y Salazar, to listen to your proposals, to accede to them whenever reasonable, and to grant you all the favor and assistance which the forces and facilities to be found there may allow assuring you of my Royal protection, which I extend to you from now on, confiding in your reciprocal friendship, and noble conduct, and desirous of opportunities of favoring you and of proving the interest which I feel in your good fortunes and the earnestness with which I pray God to preserve you many years.

Madrid, December 2, 1774.

I, the King.

APPENDIX XII

LETTER FROM THE CAPTAIN-GENERAL OF THE PHILIPPINES FORWARDING A COPY OF THE TREATY OF PEACE, PROTECTION, AND COMMERCE WITH SULU, DECEMBER 25, 1836 [277]

Superior Government of the Philippines

Most Excellent Sir: After having reported to your Excellency in my three former communications, the opinion which I have formed with regard to the countries in the vicinity of our possessions in the southern part of the Philippines, of the relations which we ought to sustain with their governments and the policy we should follow until we shall obtain the immense advantages which our position offers us, I have the honor to deliver to your Excellency a copy of the Capitulations of the Treaty of Peace, Protection, and Commerce, which I have concluded through the captain of frigate, Don José María Halcon, with the Sultan and Datus of Sulu.

The articles which need some explanation, are the 1st, 3rd and 4th. With reference to the 3rd and 4th, I mention them in my former communication and indicate their intent; and with respect to the 1st, I copy herewith what has been reported to me by the commissioner, D. José María Halcon, which is as follows:

I must make clear an important point relating to the text of the Capitulations, in the wording of which your Excellency has noted perhaps some ambiguities and

omissions in Article I, which while intended to make the Datus and Sultan of Sulu acknowledge and declare the extent of our rights, seems indefinite on certain points which many irresponsible writers have asserted with confidence.

While considering the protection granted the Sultan, I recognized the inexpediency of making the same include the lands which he has lately acquired in Borneo, and of determining definitely the line of the boundary in Palawan, the title to which island, as also that to Balabak and Balambangan, is very disputable, though at present, the lands where we have not established our settlements of the province of Kalamians are included de facto in his possessions.

Palawan was ceded to the Crown of Spain by the King of Bruney, and Balabak is likewise ceded by an instrument brought back by D. Antonio Fabean when he went there as Embassador under the administration of the Marquis of Obando, which should be in the archives of the Philippine Government; but since these cessions were made on an occasion when the Sultan of Sulu found himself in possession of the lands by virtue of a former cession made in his favor by another King of Bruney, such documentary testimony cannot serve as the basis of our arguments, especially since we did not proceed to found any settlements.

This matter of the cession of Balabak occurred upon the occasion of a visit to Manila, of Sultan Mohammed Alimud Din (Fernando I) who, asserting his right to the island, executed and ratified upon his part the gift, at least in word, through D. Manuel Fernandez Toribio, afterward Governor of Zamboanga, and the Secretary of the Government.

Our writers have misrepresented the subsequent conduct of the said Sultan, and concealed very important facts, but at any rate, the very concealment of the reasons for his fleeing from Manila betokens the lack of liberty in all of the instruments he granted during his stay in that place; moreover the facts in the case justify his later actions, which gave occasion for casting a doubt over the legitimacy of our title to the lands under consideration.

The true reason for the actions of Mohammed Alimud Din, beginning with his flight from Manila, was the fact that he had purchased the secret in a copy of the confidential letter which the First Minister of the Monarchy, Marquis de la Ensenada, wrote to the Captain-General of the Philippines on August 28, 1751, discussing the states of Sulu; which document, when brought to his knowledge, could not fail to ruin all of our political moves, and to dispose him to take every defensive measure against our power, for Mohammed Alimud Din was a man of no mean understanding.

This was the origin of the letters which, on September 17, 1763, the said Sultan wrote from Sulu to the King of England and to the English company, [278] ratifying in favor of the latter the concession of the lands which form the strait of Balabak, in which is comprised the southern part of Palawan from Point Kanipaan to Point Bulilaruan, and this was the origin of their settlements in Balabak and Balambangan which have been abandoned since later events.

Such are the antecedents which induced me to draw up the said article with such ambiguity that it may be construed to the advantage of the Crown without giving

occasion to embarrassing objections.

My aim throughout, most illustrious Sir, has been to promote the national welfare by carrying out the high designs of your Excellency, who by promoting this enterprise has attempted to open up one of the most abundant sources of wealth in the Philippines.

I also deliver to your Excellency a copy of the Capitulations, in which, in consequence of Article 2nd, it has been agreed to determine the duties to be paid by the Sulu vessels in Zamboanga and Manila, and ours in Sulu. For the better understanding of these stipulations, I have thought it expedient to inclose a copy of the explanation with which the said commissioner forwarded them to me.

The present tariff rates have served as a basis for the duties imposed upon the Sulu vessels, it being beyond my authority to alter them. With reference to those which shall be paid by our vessels in Joló, although they may appear to be excessive, it will be sufficient to inform your Excellency that all of the ship-owners who are accustomed to make voyages to Joló, have been satisfied with the very favorable terms we have secured in the agreement, not only because of the high valuation set on the articles in which payment will be made, but because of the regulation and reduction to fixed rules of the charges, that until now have been arbitrary and never less than the stipulated rates. It is true that they have desired not only a greater reduction but still more their complete abolition, as is natural, but it was necessary to conciliate the two parties, as the commissioner says.

Above all, one of the advantages of importance which our merchants recognize in the relations now established, the benefits of which they have begun already to experience, is that the Sultan and Datus together guarantee the credits left in Sulu as a result of commercial operations, which advantage they have not heretofore enjoyed, but waited on the will and good faith of the debtor, who paid if he pleased and when he pleased, or perhaps never, and there existed no means of compelling him as there now is by recourse to the Government.

Likewise through the preference they are now accorded, our merchants have gained greatly, as your Excellency will comprehend. In short, there is not one of them who is not well satisfied with the results of the negotiations, and all appreciate the skill and prudence with which Halcon has conducted himself upon a mission all the more delicate and difficult since he has had to treat with a Government whose lack of enlightenment and poorness of organization equal the barbarism of its people.

Finally, in the answer given by the Chamber of Commerce of which I inclose a copy, your Excellency will perceive the appreciation which the Capitulations have brought him, by having settled the duties to be paid by our vessels in Sulu, as also by having established relations with the Government of that island.

I trust that your Excellency will condescend to bring all this to the notice of her Majesty that she may grant her Royal approval.

God preserve your Excellency many years.

Manila, December 25, 1836.

Most excellent Sir,

(Sgd.) Pedro Antonio Salazar.--Rubricated.

The most excellent the Secretary of State and of the Office of "Gobernación" of the Kingdom.

APPENDIX XIII

ROYAL DIRECTIONS RELATIVE TO A GENERAL POLICY AND THE REGULATION OF COMMERCE WITH SULU, AND THE ADVISABILITY OF MAKING ZAMBOANGA A FREE PORT, JUNE 23, 1837 [279]

Ministry of the Navy, Commerce, and Colonial Administration

Most Excellent Sir: Your Excellency's predecessor, Don Pedro Antonio Salazar, when he reported in detail, in letters of last December, all that he had done in the treaty of friendship and commerce entered into with the Sultan of Sulu, of the mercantile relations which it behooves us to maintain with the Mohammedan possessions to the south of the Philippines, of the opinion which he had formed concerning the war of enslavement, and other matters upon which your Excellency will receive due instructions under Royal order of this date, forwarded separately and privately, in a very secret manner, a communication dated the 17th of the same month, in which he set forth the policy, which, according to his belief, should be adopted toward the said Kingdom of Sulu in consequence of the said treaty. Her Majesty the Queen Regent, having been informed of all this, and having in mind the remark made in the said communication, that the Spanish possessions in the southern region are frequently oppressed by the alcaldes, on account of the present defective system of administration, has decided to direct your Excellency to suppress, with strong hand, these excesses of the alcaldes, that they may not disturb the peace happily established with Sulu; exhorting them to moderation and peaceableness, in order that the odium which the Moro race feels toward us may vanish. Noting also among his remarks, his conclusion that while the war of enslavement is undoubtedly an evil, it produces nevertheless the advantage that those provinces are united more closely to the Government because of their greater need of the same against their enemies; and that by becoming used to a life of freedom and license, those people become also inured to captivity, from which they could sometimes escape but do not, many preferring to turn to piracy, Her Majesty holds these views erroneous and harmful, since no just and paternal government should promote misfortunes among its subjects in order to make itself more necessary, and thus keep them dependent; and because, though there may be some who are content with slavery in Sulu because it affords them a life of unrestraint, it can not be ignored that their families and the Government suffer a great injury from their situation, nor that morality would be greatly outraged, if, for these reasons, countenance were given to slavery, which should be attacked and exterminated at all costs. The idea is advanced in the same communication, that in the countries of the southern part of the Philippines, the system of protection, carried to the point of establishing trading houses, will be almost equivalent to possession and control, when once commercial interests are held

to be the chief interests, and there is set forth a plan to diminish or even cut off the trade [280] with Mindanao, in order to confine the commerce to our channels. Her Majesty, on being informed of this policy of a protectorate, approves of the same, but desires that it be carried out frankly and faithfully with the Sultan of Sulu, in order that he be convinced, through experience, that the Spaniards are his loyal friends, our authorities keeping it in mind that the conquest of those countries is not to the interest of the nation, but rather the acquisition of isolated military and mercantile stations, which may control indirectly without the disadvantages of great expense and of arousing the hatred of the natives. This alliance or friendship with the Sultan should be such, that in whatever war he may be engaged with his rebellious subjects, he shall be aided in good faith, unless his adversary should be of such strength as to insure his triumph, for then the useless defense of the vanquished would subject us to the contempt of the conqueror and we should lose the benefits already acquired. In such cases we should remain neutral, under some plausible pretext of impracticableness or other honorable reason. In other wars, waged by the Sultan with other princes, we should attempt to mediate, with the purpose that, by settling new discords, we may obtain advantages from the two or more belligerents, as rewards for the services rendered them; but in the event of having to oppose some one of them, it should be that one who offers us the least advantages, and has the best chances of triumph, because with our ally victorious, the latter may in the treaty of peace execute articles favorable to our commerce,--trying always, above all things, so to act that the victor shall not become too strong nor the vanquished brought too low. With regard to the policy which it is best to adopt as a general rule in regard to commerce, your Excellency should remember that the best system consists in the greatest possible liberty for our merchandise, and in securing, directly or indirectly, for our own merchandise, or foreign goods carried by the national vessels, the enjoyment of greater privileges than those of any other country, in order that they may be preferred and produce greater profits on the markets.

In the same letter he submits the opinion that the lack of communication of the countries to the south with the Philippines, is a most favorable political measure for Spanish commerce, and recommends that our relations with the Government of Sulu should be strengthened in order to include the same under our dependence at some future time, it being necessary to act with cunning in order to separate it completely from the piratical warfare. Her Majesty commands me to state to you concerning these matters, that the communication of Sulu with the Philippines being purely commercial, should not be restricted, but on the contrary, should be increased in every way possible, encouragement should be given to the establishment of traders and Spanish trading houses in Sulu, where our good conduct and benevolence toward the natives may bring us profit. But it is always to be borne in mind that the Government of Her Majesty does not desire the subjection of other states to itself, but a sincere friendship and a close and useful alliance, and that a just and discreet policy, not crafty nor artful, will accomplish most in withdrawing the Sultan from the interests of the leaders of the pirates.

Your Excellency will note in the draft of the communication from your predecessor, to which I make answer, the proposal of various schemes for establishing ourselves

securely in Sulu. Such would be the establishment of a trading house there, already agreed upon in the treaty, and posting there a garrison, under the pretext that it is for the safety and greater state of the person of the Sultan. Her Majesty deems indispensable the establishment of the trading house, but it should be done in such a manner as not to cause distrust, and fortified and protected from any sudden attack, using in this the greatest prudence, and remembering that a garrison there, though it might be acceptable to the Sultan, might wound the self-love of the people of the country, and so render odious both the Sultan and his protectors. The most essential thing for the Spaniards, in order to become firmly established, is to make themselves popular, to respect the customs of the people, even with veneration, not offending any one for any reason, treating all with courtesy and decorum; not showing themselves domineering nor covetous, not insulting any one, but being very respectful to women, the old and children, not scoffing at anything in their public amusements, nor religious affairs, nor in their meetings. It seems to her Majesty that through these means would be secured a consistent friendship between both countries, and that the most adequate plan for the support and defense of the trading house would be to maintain in the safest harbor a permanent maritime force, in which should be stored all arms and munitions, and sufficient soldiers, in case it should be necessary to defend the building, without arousing the suspicions that would be caused by placing these preparations, concealed or openly, in the house itself; and since for this purpose, for the defense of the country against the pirates, and for maintaining the respect of the people and Government of the protectorate, it is indispensable to keep a well organized sea force, her Majesty had determined that you decide the manner of organizing this maritime force, without losing sight of the great economy which it is necessary to observe on account of the embarrassed condition of the Peninsula, which needs now more than ever before the assistance of her colonial provinces.

Finally, the predecessor of your Excellency further stated that he was attempting to extend his efforts to the establishing of the protectorate over the countries subject to the Sultan of Mindanao: her Majesty approves this policy on condition that in its execution the purposes and measures, which are mentioned above for Sulu, be adopted.

Her Majesty, by whose Royal order I communicate to your Excellency the foregoing, trusts in your zeal to realize the importance of this matter, and, regarding the principles of justice and right which direct the resolutions of her Majesty, to direct all your efforts to the accomplishment of the results desired; carefully reporting your progress in the affair, for the information of her Majesty and further action. God preserve your Excellency many years.

Madrid, June 23, 1837.

Mendizabal.--Rubricated.

The Governor Captain-General of the Philippines.

Ministry of the Navy, Commerce, and Colonial Administration

Most Excellent Sir: The predecessor of your Excellency, convinced of the important advantages to be derived by the Philippines, in making more intimate and more secure our few and doubtful relations with the island of Sulu, determined immediately upon assuming command, to negotiate with the Sultan of the said place, a treaty of peace and commerce which he considered, in every respect, not only useful but indispensable to the prosperity of the country. After having announced this project in various of his communications, he reported in December of last year, having accomplished the same, and furnished in several communications, an exact and detailed account of the history of his labors in the affair, the reasons which he had for undertaking the same, the benefits which he expects as results, and the measures whose adoption he deems necessary in order that these results may be more certain, and at the same time profitable. There were received from him seven letters, all marked with the letter "A," numbered from 14 to 23, and dated from the 15th to the 29th of the said month; with so many points of analogy and similarity between them, that they should be considered as one only. The first, number 14, is intended to furnish information and data relative to Sulu, and the other Mohammedan islands of the south (without which it would be impossible to know their importance) and to detail the relations which we should have with them, considering them both in relation to commerce and with respect to the war of enslavement. In the second, of a confidential nature, he outlines the policy, which, in his opinion, should be adopted in order to obtain all the advantages which our position affords. In the third, number 16, he states the measures which should be adopted for the benefit of the national commerce in those countries. In the fourth, number 20, he transmits a copy of the treaty of peace, protection and commerce concluded with the Sultan of Sulu, and of the stipulations made for the determination of the duties which our vessels should pay in Sulu, and the Sulus in Manila and Zamboanga. In the fifth, number 21, he relates the motives which have led him to direct these matters as he has done, transmitting to her Majesty all the plans referring to it, through this Ministry only. In the sixth, number 22, he gives account of some of the advantages which have been derived from our expedition to Sulu, and amongst others, a treaty of peace concluded between the pueblo of Malusu and the Governor of Zamboanga. And finally, in the seventh, number 23, he sets forth the necessity of retaining at that station, the frigate-captain, Don José María Halcon, who performed the duty of commissioner for the negotiation of the treaty.

I have informed her Majesty, the Queen Regent, of the contents of all these communications, and in this knowledge she has seen fit to approve, in a general manner, all the measures adopted by the aforementioned predecessor of your Excellency, giving suitable orders, that the proper Ministry provide the special approval which some of them deserve, on account of their weight and importance, concerning which your Excellency will soon be informed, and deigning to command me to submit in a separate and particular communication the following advice on the special subject of the letters referred to above.

Her Majesty, feeling assured that conquests in themselves, and later their maintenance, absorb the profits which accrue from the countries already acquired, prefers to any conquest advantageous trade and commerce. Convinced, therefore,

that the most profitable and lucrative policy is to conquer or secure such places as on account of their fortunate location may prove to be at the same time strong military and mercantile posts and so both promote and protect commerce, she cannot but approve the ideas your Excellency's predecessor expresses in his communication numbered 14, and desires, that upon adopting the system in accordance with those ideas, you confine yourself solely, in all enterprises of conquest, to occupation of territory either abandoned or uninhabited, or to that which, notwithstanding its being settled, would cost little and would not give occasion for a costly war. In order to increase our commercial advantages in Sulu, and to raise up rivals to the Portuguese, it would be well to grant protection and reduction in duties to the Chinese junks [281] under the specific condition that they do not sail under the flag of any other nation (without mentioning the Portuguese by name in order not to occasion the resentment of this power) and to secure in Sulu for those who adopt the Spanish flag, a reduction of duties although not as much as that which should be granted to Spanish vessels. Thus it is the will of her Majesty that you be directed, commanding, with the same purpose in view, that your predecessor state to you explicitly, which are the measures that he would have adopted, had he been authorized to do so, in order to avoid the blow to our commerce threatened by the Portuguese, depriving us with the double expedition from Macao and Singapore to Sulu, of the advantage over all other nations which still remained to us in this traffic; and that your Excellency obstruct, by all the means in your power, the association of interests between the commercial houses of Manila with those of Macao and Singapore, if the same were intended to secure special privileges in the island of Sulu to the products of the Philippines to the injury of the national commerce.

With respect to the matter of the war against piracy, referred to also in letter number 14, her Majesty approves all the purposes expressed therein by the predecessor of your Excellency, and commands me to direct your Excellency that, without ever recurring to war or the interruption of traffic with Sulu as means of destroying or diminishing piracy and traffic in slaves, you exert yourself to suppress the same and remedy the evil which it inflicts on the Philippines, by the various means at hand, to-wit; 1st, through negotiations with the Sultan of Sulu; in which measures suitable for the accomplishment of the purpose may be concerted; 2d, securing the increase, by the Sultan, of import duties on slaves who are Spanish subjects, and the lowering of duties on slaves of other countries; 3d, requesting of him assistance in driving out the pirates from their haunts of Balangingi and other places; 4th, watching the rendezvous of these pirates in the Bisayas also, in order to destroy them. In this manner and with hard lessons, with the energetic and continuous warfare spoken of by the predecessor of your Excellency, the extermination of piracy will be accomplished without the evils which would follow upon an unwise and useless war against Sulu, and without the more serious result to which the same would expose us, and which her Majesty desires your Excellency to avoid at any cost, the result referred to being the removal of the Sultan to some other point, which removal England and Holland might turn to great advantage against our trade.

As to the measures proposed in letter number 16, for the benefit of the national commerce, her Majesty will determine which is fit, notifying your Excellency in due season. Meanwhile you should keep in mind, that as long as the Sulus man their ships with slaves, your Excellency should prohibit them from trading in Zamboanga and all other places within the dominions of her Majesty, whenever the ships which they use shall be manned in whole or in part with slaves who are subjects of Spain.

Concerning the treaty of peace, protection and commerce, a copy of which is inclosed in letter number 20, her Majesty has been pleased to resolve, after careful examination, that it be forwarded with favorable comment to the Ministry of State for the approval of the Cortes and the ratification of her Majesty, all of which will be communicated to your Excellency in due time, its policy being carried out and its intent carefully observed in the meanwhile, for the purpose of determining whether there is anything to amend or correct by means of further negotiation, which would be considered as an appendix to the treaty. In view of the explanations concerning the first article of the aforementioned treaty furnished by the commissioner of the negotiation, her Majesty commands me to repeat to your Excellency the necessity for carrying out the policy which is prescribed to your Excellency with regard to acquisition and conquest; in order to claim those lands referred to in the explanations, if perchance such claim should be advisable for the purpose of acquiring some point of military or mercantile value: or in order to set up the claim of the Kingdom of Spain to those countries, in order that by giving it up, we may secure other things which may be of real importance to us, such as reduction in duties, some exclusive privilege, or the possession of some isolated point of great importance.

The predecessor of your Excellency by addressing to this Ministry all communications bearing on this matter, has merited the approbation of her Majesty, because he has avoided many unnecessary steps and useless delay, and thus your Excellency will continue to do, in the manner herein indicated.

And finally, her Majesty having noted with satisfaction the favorable results produced already by the expedition to Sulu, and approving the idea of not using the fifteen hundred dollars sent by the Bishop of Nueva Segovia for the redemption of slaves, she commands me to direct your Excellency to cultivate the friendship of all the chiefs who, like the Orankaya of Malusu, abandon the pursuit of piracy, and that suitable orders be issued by the Division of the Marine of this Ministry, not only that the captain of frigate, Don José María Halcon, who has so well discharged the duty of negotiating the treaty, be assigned to that station, but that he also be duly rewarded for his services as such commissioner; her Majesty not failing to express the gratitude with which she declares her appreciation to the predecessor of your Excellency, the aforementioned Don Pedro Antonio Salazar. All of which is communicated to your Excellency, by Royal order, for your due information and guidance, instructing you with regard to the confidential letter, that you carry out the directions forwarded you separately under this date. God preserve your Excellency.

Madrid, June 23, 1837.

Mendizabal.--Rubricated.

The Governor Captain-General of the Philippines.

APPENDIX XIV

CAMBA'S REPORT ON THE CIRCUMSTANCES ATTENDING THE TREATY OF 1836 AND ITS BASES, NOVEMBER 16, 1837 [282]

Superior Government of the Philippines

Excellent Sir: In compliance with the provision of the Royal order of the 24th of April last, requesting, for the information of her Majesty the record of the correspondence exchanged in regard to the treaty of commerce made by my predecessor with the Sultan of Sulu, and the bases of said treaty, I forward the same to your Excellency, with a few personal observations suggested by a reading of the said papers.

On the 31st of January, 1835, the Tribunal of Commerce forwarded to the Captain-General, approved by it, a report presented by several business men who traded with Sulu, setting forth the deceitful methods of the Datus, or principal people of the island, in their agreements and contracts, and requesting, in order to restrain and intimidate them, that the naval division of Zamboanga, or part of it, be stationed in the port of Jolo during the time the national merchant vessels remain there for the purpose of making their sales and purchases. A decree was issued on the 9th of March of the same year, concurring in the opinion of the Assessor, and declaring that the request could not be granted at that time, but that it would be taken into consideration as soon as the circumstances allowed. This is a brief of the document marked Number 1.

On the 9th of February, 1836, José Dugiols, who had sold goods on credit to the amount of 8000 pesos to the Jolo people, and despaired of getting paid, presented a new petition, similar to that which had been sent 11 months before. The Chamber of Commerce approved it, and requested that a fleet of launches be stationed at Jolo during the business season, there to gather information which would allow the Government to take proper action in the matter; it also insisted that the commander of the fleet be a capable person, who, without compromising the flag, would know how to conciliate the purpose of the naval demonstration with the spirit of peace and concord which he ought to maintain between the crews of our ships and the people of Jolo. This suggestion, which had already been made in the petition presented the year before, was favorably endorsed one after the other by all who intervened in the papers in the case and resulted in the final resolution of May 31st, which contains 14 articles. The first provides that it shall be one of the duties of the commander of the naval division of Zamboanga to protect the Spanish ships while they are at Jolo, and instructions are given him to that effect. The second appoints captain of frigate José María Halcon to take charge, temporarily, of the command of the Division of Zamboanga, and establish relations of friendship and commerce with the Sulu people. The third directs him to inform the Sulu Sultan of his visit in the way he may deem most likely to convince him of the peaceful intentions of this Government. The fourth directs him to make himself recognized by the officers and men of our ships, as the

commanding authority who shall maintain them in peace and good order. The fifth charges him not to allow his men to land, so as to avoid disorder. The sixth directs him to take action in regard to any excess, as provided by the Code. The seventh, to hold in check the crews of our ships, so as to give the Sulus neither reason nor pretence for showing their bad faith. The ninth forbids the commander of the division and all those under his orders to enter into any business speculation whatsoever. The tenth directs the commander to be ever careful to keep all his men within the bounds of duty. By the eleventh he is directed to see that all contracts are religiously fulfilled, and, if necessary, to complain energetically to the Sultan, and by the twelfth to see that our people fulfil their own. Articles thirteen and fourteen direct the commander to obtain information about the political and civil conditions of Sulu and its topographic situation.

After acquainting himself with the foregoing, Captain José María Halcon inquired what would be the minimum importation duty in Manila for articles proceeding from Sulu, and asked for instructions in regard to the importation of arms and ammunition into Sulu by our ships. In answer to the first question, the Board of Tariffs fixed at 2 per cent the duty on all articles imported from Sulu to Manila in its own vessels, [283] except wax and cacao, which would have to pay 14 per cent under a foreign flag and half that amount under the national flag; in regard to the second the importation of arms and ammunition into Sulu by our ships was prohibited.

A letter to the Sultan of Sulu was furthermore given the commander, accrediting him and explaining his mission, the petition presented by Dugiols and endorsed by the Chamber of Commerce, requesting that our business relations with Sulu be granted a protection which experience made each day more necessary, being thus complied with.

On April 15, 1836, Halcon forwarded the capitulations of peace and the commercial agreements made by him in the name of this Government with the Sultan of Sulu. The first consists of 6 articles, by which the Spanish Government grants the Sultan its protection, which is accepted by the latter, with a mutual assurance of coöperation between them against any nation not European. Spanish boats are to be admitted freely in Sulu, and Sulu boats in Zamboanga and Manila. It is agreed that a Spanish factory shall be established in Jolo, so as to avoid damages and delays to our commerce, the same right being given the Sulus in Manila. Certain rules are established in order to distinguish friendly from hostile boats. The Sultan is pledged to prevent piracy on the part of those who recognize his authority; and it is furthermore agreed that in case of any doubt as to the meaning of any article, the literal Spanish text shall be followed. In accordance with the opinion of the Government assessor, these capitulations were approved by decree of January 20 of this year. The commercial agreements contain 9 articles. The first establishes a duty of 2 1/2 per cent on all products brought by the Sulus. The second excepts wax and cacao, as recommended by the Board of Tariffs. The third provides a duty of 1 per cent for the importation in Zamboanga of products brought by the Sulus. The fourth provides that the payment of the duties shall be made in cash in silver. The fifth establishes the dues to be paid by our boats at Sulu. The sixth fixes the value, in

products, of those dues. The seventh, in its first part, declares, that all Sulu boats trading without a license shall be treated as smugglers, under the law of the Kingdom; in its second part it also requires our boats to show a bill of lading in accordance with the cargo, on pain of a fine of P500, two thirds to go to the Sultan and one third to our exchequer. The eighth provides that if the duties are reduced in Manila and Zamboanga on the articles coming from Sulu, the same shall be done in Sulu, and that if the Sultan reduces the dues on foreign ships, he shall do the same for ours. The ninth provides that in case of doubt the literal Spanish text shall be followed. After hearing the opinions of the Boards of Commerce and Tariffs, and in accordance with that of the assessor, the foregoing was approved by decree of the 20th of January of this year, with a small reduction of 1/2 per cent on the duties to be paid by the Sulus in Manila, and an explanation of the proceeding to be followed for the appraisement of their cargoes in Zamboanga and in Manila.

Shortly before this ratification by the Government, it was decreed on the 13th of January, at the request of Commissioner Halcon, that in order to avoid trouble between this Government and that of Sulu, the captains and supercargoes of the Spanish ships should give no credit to the Sulus, except with the authorization of the Sultan, under the penalty of being barred from claiming his protection or that of the Spanish Government for the collection of such credits; and that all settlements of the pay of the crews of our ships should be so made as to avoid the abuse of paying them in kind, instead of currency.

Such is the information which I have found, and am forwarding to your Excellency in regard to the treaties mentioned. The leading idea in said treaties is one of distrust towards the people of Sulu, on account of their treacherous, cruel and perfidious nature. As this is the only idea which prevails in all our relations with the island, as well as in the Royal order of August 28, 1751, and the documents attached thereto, without referring to older time, I can not be persuaded that the policy of peace and alliance adopted with the Sultan of Sulu can give our shipping and commerce any substantial and permanent advantage.

Several Royal decrees find fault with such treaties and even order them to be revoked in case they have been made; and to justify departure from these sovereign instructions, given with a true knowledge of the facts, and in accordance with the opinion of the illustrious members of the Cabinet, there must now be some powerful political reason which I can not discover. If we take into consideration the very weak authority of the Sultan over his subjects, and the scarcity of his means in the midst of datus or chieftains who, with their families and slaves, constitute distinct communities which are haughty, ambitious and dangerous to him, we find that there is in Sulu no moral force on which to rely for the execution of a treaty, even should there be the best faith and good will on the part of the Sultan.

Furthermore, Sulu and the small adjacent islands produce nothing; even the rice and fish which the people use for their food come from our neighboring possessions: what business reasons are there therefore, capable of calling our attention, or whose profits would pay the expenses of a fleet placed in observation there? All the produce of the islands consists of bêche-de-mer and shell which are gathered by the slaves;

[284] the clothing and foodstuffs are furnished them, on credit, by our own ships; gold, wax and edible nests come from Mindanao. Hence commerce is confined to a season outside of which our ships never go near Sulu.

There is therefore little advantage to be derived by our commerce from these treaties, and this is confirmed by the communication just received by me from the commander of the Zamboanga division, which I enclose as number 6. It betrays complete disappointment, and shows the wisdom of the instructions given in the above mentioned Royal decrees.

The policy which we ought to follow with the Sulus is one of continual and perspicacious caution, with well conditioned, well situated and well commanded naval forces, ready to obtain at once satisfaction for any offense to our flag; and I believe that this could be done without much trouble, by using steamships, as the Dutch have done in their settlements in the Moluccas, where they suffered from the piracy of the Moros much as we do in the Philippines.

The foregoing information covers, I believe, all the points mentioned in the Royal order of April 24th, last, and which are the object of the present communication and of the documents which I enclose therewith. May God keep your Excellency many years.

Manila, November 16, 1837.

Andrés G. Camba.

His Excellency the Secretary of State and of the Department of the Navy, Commerce, and Colonies.

APPENDIX XV

CAMBA'S REPORT TO THE COLONIAL OFFICE DISCUSSING THE DIFFICULTIES OF COMMERCE WITH SULU AND THE ADVISABILITY OF MAKING ZAMBOANGA A FREE PORT, FEBRUARY 23, 1838 [285]

Superior Government of the Philippines.

Excellent Sir: I acknowledge to your Excellency the receipt of two Royal orders dated the 23d of June of last year, which, with reference to the treaties made with the Sultan of Sulu, have been transmitted by your ministry; one replying to the seven communications marked "A" which my predecessor made in connection with the same subject; the other confidential, and indicating the policy and measures that should be carried out with the said Sultan of Sulu and the Sultan of Mindanao.

In communication numbered 5, and dated November 16th last, in compliance with one of the provisions of Royal order of last April, I made a minute report accompanied by documentary evidence, of the antecedents which I encountered relative to Sulu affairs, and at the same time, could not but intimate in this connection how little I expected as a result of our treaties, because experience had already caused me to be suspicious, and also because the various Royal orders toward the close of the past century confirmed me in this idea; [286] and indeed the losses which all our

commercial expeditions experienced during the first year of these treaties, the vexations they suffered and the risks to which the crews as well as the vessels and their cargoes were exposed during their stay in Jolo, have fully borne out this view.

Many are the measures and documents which we have here, in which this same fact is laid down; many are the Royal decrees in which, in recognition of this fact, the Governors of the Philippines have even been authorized, by every means in their power and without counting cost or difficulty, to punish severely the intrepidity of those infidel barbarians.

In order to arouse and interest the Royal conscience on that point, it was requisite that there should be repeatedly presented through various channels and at distinct times substantiated accounts, non-conflicting and extremely painful, of the various piracies, cruelties, and vexations, with which those barbarians have kept the Philippine Islands in the south in a state of fear and depression; and needful also was it that there should have been employed, in vain, on account of the religion and the policy of our ancestors, those gentle measures of peace and union which no civilized people could resist; but which are ineffectual with barbarous nations who know no other right than that of force.

From the 14th of April, 1646, when we abandoned possession of Sulu, which our arms had so gloriously conquered, making a treaty of peace whereby the Sulus bound themselves to pay us annually, as tribute, three boatloads of unhulled rice, until the day the Government again entered into a treaty with them, neither have the Filipinos succeeded in freeing themselves from their harassments, nor has the Government reaped any fruit other than continual menace. The English have had the same experience with the perfidy and bad faith of those islanders. After having formed, in the island of Balambangan by a concession made by the Sulus, a settlement destined to be the emporium for the products of the East in connection with their China trade, for which this island offers two good ports, they were two years afterwards surprised by the Sulus themselves, who, knowing the English had despatched their vessels, took advantage of their absence by taking possession of the island and the fort constructed therein, also a great deal of booty, which cost the English East India Company a loss of more than three hundred thousand dollars. In narrating this event, Mr. J. H. Moor, who published last year a brief review of interesting events concerning the islands and lands bordering on the China Sea, agrees with the views I have expressed, namely, that these acts of treachery and cruelty on the part of the Sulus are the offspring of their innate love of robbery and their natural perfidy.

All these facts then will convince your Excellency that the expectations based by my acting predecessor upon the latest treaties referred to are too sanguine. They would produce no illusions on my part, in view of the experience of the past, neither does it seem to me that their results, looked at with calmness and in the light of the most exact data, could be of any great advantage to our commerce. Allowing that the treaties should be religiously complied with, never would they be of any value, in themselves, to improve the brutal condition of those islanders. This condition will always constitute, not only for the Spaniards but also for all civilized nations, a great drawback to mercantile relations, which, although founded on principles of utility and

mutual advantage, cannot continue nor be developed except under the most favorable guaranties. How would our merchants, or the foreign merchants of Sulu obtain them, where there is neither good faith nor justice, and where cunning fraud makes even the Chinese dangerous traders? Commerce is the movement and circulation of wealth. The latter results from production, and production from the full and unrestricted utilization of property. Moreover, when property is insecure, when the laws do not protect it, when the agents of the Government are the first to disregard it, the mercantile spirit is the first to become alarmed and, when defrauded, to flee as far as possible from the place where it does not find that safe haven it requires to expand and to pursue with skill and perseverance the objects of its calling. Thus it is that during the period elapsed since the year cited, 1646, up to the present time, no Spanish merchant has himself had direct dealings with the inhabitants of Sulu, the Chinese alone being engaged in this trade, they being the only charterers of our vessels, so that we do not obtain from said commerce more than interest on the capital invested, subject to great exposure and risk, which has made and always will make, this commerce uncertain and of little value. While lack of security still sets a limit to the extent of our speculation in commerce with Sulu, lack of advantageous reciprocity adds another factor no less appreciable. At the time the Spaniards came to the Philippines, Sulu seems to have been rich in her own natural and industrial products, and richer still through the large commerce which their exchange enabled her to carry on with the Chinese vessels which in large numbers frequented her coasts. Situated almost midway between the Philippines and the Moluccas, close to two rich islands so fertile and densely populated as Mindanao and Borneo, it seemed destined by nature to be the emporium of the commerce of the south. Converted to Islamism by the Arab Sayed Ali, [287] who landed there from Mecca, how much ought this principle of civilization in the midst of barbarous nations have tended to their advancement! But times have changed greatly since then, and brought their always accompanying vicissitudes. As Spanish dominion was extended in the Philippines and the Portuguese penetrated into the Moluccas, they began attracting to their capitals the wealth and traffic that was accumulating in Sulu, and here begins a new era. War and desolation, which for a period of eighty years we inflicted on them, followed, and put in our power this island and its dependencies, and though independence was later restored, it could not divert this rich commerce from the trend it had taken. Meanwhile, their wars and internal dissensions resulted in corrupting their customs, and there only remained for them the habit of piracy, which ever since our appearance, they had embraced for the purpose of harassing us.

Since then Sulu has been converted into a refuge for pirates allured by its favorable position, and these barbarians, being more solicitous of carrying on their devastations than of cultivating their land, have not ceased to be the greatest scourge of our inhabitants of the south. This explains the impossibility of obtaining from them by entreaty anything in the way of peace and tranquillity, which to them as well as to us would be so beneficial.

For this reason, Sulu, which contains a population of pirates and slaves, is nothing more than a shipping point where certain products are collected from the other islands of the south. It is surrounded by islands and islets, which form the archipelago

bearing its name, and has a length from east to west of about ten leagues, a width of four and a half, and a circumference of thirty-two. The total population credited to the Archipelago is from 149,000 to 150,000 souls, 6,800 of which inhabit Jolo, and in this number are included 800 Chinese.

The houses, or rather huts, of the principal place, are estimated to number 3,500, and that of the petty king, called Sultan, cannot be distinguished from the rest except for its greater size; all of bamboo and nipa, weak and poor as their owners, but with cannons of various calibers which mark the residences of the datus, descendants of the petty kings, and who themselves constitute the oligarchy of their Government. I have already stated that the Sultan can do nothing, all matters being decreed by the convention, or Rum Bichara of the datus, where the owner of the greatest number of slaves always decides the questions. [288] Wealth, influence and power, are measured among them solely by the number of slaves, and this is why they cannot but be pirates, in order to acquire this wealth, nor can they offer any guaranty, if it must be accompanied by the renunciation of this pursuit.

By this picture, which is corroborated by the Englishman Moor in his description of Sulu, it will be seen that we can expect nothing from our present relations with Sulu in the way of securing the tranquillity and prosperity of our islands of the south. Neither is a system of continual hostility the best way of procuring these precious gifts, but the promotion and throwing open of avenues of commerce, directing it to one of our ports, which, in view of its position, ought to be Zamboanga; and in this I coincide with the views of my predecessor. Zamboanga, with a different organization, the concession of a free port for all the products from the south and those brought in champanes from China, and the free admission of the exiles who seek refuge there as well as the Chinese traders, aiding the former in establishing themselves, and exempting the latter from all taxes for the first ten years, would be, in all probability, the most suitable point to which to divert from Sulu the little transit business which remains, to guard, from a shorter distance, against the piracy of its inhabitants, and to bring them in the course of time, perhaps, to a more humane mode of living.

But all this requires first the planning of a suitable and adequate system which, bringing nearer to the islands of the south the protection and vigilance of the Government of the capital by means of a subordinate Government embracing its chief characteristics, would relieve those precious islands from the calamities which up to the present time they have suffered by reason of their remoteness and possibly also because of our neglect.

This plan, which I desire to combine with a forward movement in the great and rich island of Mindanao, a large part of whose coast is surrounded by the districts of the corregidors [289] of Karaga and Misamis, will bring about without doubt a new and happy era for the Filipinos of the south, and place, without the sacrifice of people or money, a large number of faithful subjects under the illustrious Government of her Majesty, furnishing the same also with a greater abundance of resources.

To this end I shall hold in view and faithfully observe the policy which her Majesty outlines in her confidential Royal order, to which I reply; its application will be the

constant object of everything I decree and execute. And very happy shall I be thus to make suitable return for the many proofs of co-operation and esteem, which, for the past thirteen years I have received from the Filipinos; infinitely more so, because working at the same time for the better service of her Majesty in accordance with her Royal plans in which these people have always found their greatest and surest well-being.

Your Excellency being convinced, then, that these are the sentiments which impel me and the plans I contemplate for the fulfillment of the important duties her Majesty has deigned to confer upon me, can from this reply assure her that as far as I am concerned, nothing shall be left undone to carry out to the letter the policy she has been pleased to outline to me, and to merit thereby her august confidence, which I so earnestly desire. May God preserve your Excellency many years.

Manila, February 23, 1838.

Andrés G. Camba.

The most excellent, the Secretary, Office of Colonial Administration.

APPENDIX XVI

COMMUNICATION FROM THE GOVERNOR OF ZAMBOANGA TO THE SUPREME GOVERNMENT OF THE PHILIPPINES RELATIVE TO THE TREATY OF SIR JAMES BROOKE WITH THE SULTAN OF SULU, TOGETHER WITH OTHER COMMUNICATIONS RELATING TO THE TREATY, 1849 [290]

Office of the Secretary of the Governor and Captain-General of the Philippines.

Jolo, May 28th, 1849.

Sr. Don Cayetano Figueroa, Zamboanga.

Dear Sir:--I think proper to inform you that yesterday, at three o'clock in the afternoon, the English war steamer "Nemesis" cast anchor at this port, coming from Singapore. She brought on board Sir James Brooke, commissioned to make a treaty of peace and friendship between Great Britain and the Sultan. This treaty was presented to the Sultan to-day in the presence of the Datus and a majority of the people, and after being read in a loud voice it was immediately approved and ratified. I do not think it necessary to inform you as to the tenor of said treaty, as Mr. Brooke has told me that he would go from here to your city for the purpose of communicating to you everything regarding this matter so that you will be thoroughly acquainted with all the details. I understand that they have hastened this matter in view of the recent advices concerning the destruction of Bali by the Dutch troops and their declared intention of taking possession of the entire coast of North Borneo, Sulu, and all its dependencies. In letters received from my partner at Singapore he tells me that it is certain they are coming, and with a large force, but it may be not for a month or two. The people here, in view of this news, have carried everything they have to the interior, and are ready, whenever the Dutch arrive, to leave the town. We shall see where these things will stop. Possibly we shall have another case like that of the

French before you leave Zamboanga. Whatever you may decide to do when you receive this communication, you know that my services are always at your disposal, and in the event of your determining to come, there is a house here at your disposition; and I promise you a friendly reception on the part of the residents. It is my opinion they are in such a fright that they do not know what to do and business, of course, is entirely neglected. My brother-in-law, who is the bearer of this, will inform you in regard to what is going on. He goes to your town to purchase rice for our house, to provide against a siege; for rice is dear and scarce here. I remain, your obedient servant, who kisses your hand.--Guillermo Windham.

Batavia, March 20, 1849.--It appears that the expedition against Jolo is a matter fully determined upon. It is said that two steamers, two frigates, and a corvette, operating at the present time against Bali, are in readiness to set sail the first part of July. I expect that the publishers of the Singapore paper will publish an article entitled, "Labuan, Sarawak, the northeast coast of Borneo and the Sultan of Sulu," by Baron Hoeveel, published in Holland in the first number of the "Journal for Netherlands India," during the month of January last, in which he informs his compatriots that if the Government of Java had followed the counsels of Resident Gronovius of Sambas in 1831 or those of Resident Bloem of Sambas in 1838, they would long ago have had treaties with the Sultan of Bruney which would have closed Sarawak and the northern coast to all flags except the Dutch, and that the questions with the English Government would not have arisen, but that now it is not worth while to discuss it with the court of St. James. England is in possession, and she will stay in possession if she considers it to her advantage. He tells them to be on their guard, because if they do not have a care the English will make another move; and he indicates the point which calls for immediate and indispensable protection, namely, the northeast coast of Borneo: that is to say, from Sampan Manjee Point to the Cape of Kamongan (the Straits of Makassar), which he says are tributary to the Sultan of Sulu. He gives information concerning the different stations for the principal departments: Malsedu (or Kinabalu), Manjedore and Tiroen, designating the bay of Sandakan for the first establishment, as soon as they have taken possession of this side. He enumerates the products of this part of the world: the pearls, the diamonds, the iron and gold mines, the birds'-nests, the trepang, etc.; so that he has strongly influenced the minds of the Dutch. And he concludes by stating that in the next article of his paper he will discuss the Sultan's possession in relation to the government of the Dutch Indies, offering some suggestions as to how his countrymen may avail themselves of the advantages of this rich territory. It is a truly interesting article and appears to me no less curious than reasonable. The editor of the Journal of the Eastern Archipelago will do a good service to his countrymen by making a translation of it, but it must be done very soon. I am too busy to write a paper of such length, otherwise it would have given me pleasure to send you one for your own use. I reiterate the necessity for despatch, for I really believe that the Dutch government will work for its own interests in accordance with the plans which the Baron has marked out. The English will not relish the idea of their oriental Government sleeping and permitting the Sultan to make, under coercion, a treaty such as must be made in order to forward the plans of Van Hoeveel. The vessels of the King of the Low

Countries, the "Prince of Orange," "Sambi," and "Argo," with five others, set sail on the 15th of this month, transporting 1,800 men in the direction of Bali. Afterwards they are to carry to Surabaya, on the 25th proximo, 5,000 men more, besides from 2,500 to 3,000 coolies, 12 cannon, 2 mortars, etc., etc. Receive, etc.

These are notices taken from a letter to hand, from a trustworthy person in Singapore.--Figueroa.

Military and Civil Government, Plaza de Zamboanga.--No. 101.-- Department of Government.--Excellent Sir:--Notwithstanding the fact that the lieutenant governor of this province informs me that he transcribed and forwarded to your Excellency, while he was in charge of the civil government during my absence in Malusu, the letter which Mr. William Windham, a merchant of Jolo, sent me under date of May 28th, it seems to me well to send the original to your Excellency, which I now do, retaining a copy of it for the purpose of reference at any time. As your Excellency may note if he will compare its contents with the text of the treaty of the 29th of the same month of May, made with the Sultan of Sulu by the English Consul-General to Borneo, Sir James Brooke, there is, between the terms of the former and the spirit of Article 7 of the latter, a notable lack of agreement; wherefore it has not seemed to me well to place entire confidence in the offer of Windham, who may be suspected of partiality, and I have concluded, therefore, to move in such a delicate matter with all possible tact and foresight and in accordance with developments, which may become extremely complicated. Considering the great interest which the agents of the English Government show in these questions concerning Sulu and the part of Borneo subject to the Sultan, I immediately suspected that the announcement of the imminent arrival of a considerable Dutch force in the archipelago was only a strategem to obtain, through surprise and fear, the realization of the agreement or treaty referred to; but it having been possible for me to secure fresh data through a different channel, confirming those which Windham furnished me,--which latter I obtained through Mr. Brooke and the captain of the "Nemesis," and herewith transmit to your Excellency,-- I am of the opinion now that the expedition of the Dutch to Jolo is an enterprise fully determined upon, although it may very well be delayed or postponed by fortuitous circumstances difficult to foresee. In the event of the appearance of the Dutch expedition, I shall never believe that it is with the object of confining its field of action to punishing the place of residence of the Sultan in a more thorough manner than was done in the attempt made in April of last year; but that they intend to conquer and occupy the Island and its dependencies. If this should be so, I am equally of the opinion that the Government of your Excellency, notwithstanding its conspicuous firmness and well-known energy, will not succeed in getting them to recede from their purpose, as everything goes to show they have determined to carry it out in the face--most assuredly--of our known and declared rights and claims to the rule of that land. I venture, therefore, to believe that the only way to prevent the serious detriment which would result to this colony, under the wise and worthy government of your Excellency, from the occupation of Sulu, avoiding at the same time a conflict between the Spanish and Dutch Governments, respectively, would be, by means of persuasion and by taking advantage of the state of extreme alarm now existing in Sulu, to anticipate them by a recognition of the

sovereignty of Spain, floating our national flag under guaranties which would make impossible (without manifest violence) this proposed unprecedented aggression. I am convinced that besides flying the national flag and having the sovereignty of Spain recognized in a formal manner, the principal guaranty must be--and I shall require it unconditionally--that they shall agree to let us garrison with Spanish troops the principal fort of Sulu, the residence of the Sultan. To this end I have decided to embark in the pilot boat "Pasig" and make my way to Jolo without delay, where, if I do not obtain the results which I have here set forth, it will certainly not be through lack of zeal and activity, but through encountering obstacles beyond my control or influence, and owing to difficulties incident to the temperament of those people and the ancient prejudices which, owing to a series of events stretching through centuries, they feel towards us, as is only too well known to your Excellency. To aid me in these operations and to meet possible contingencies--since there will be needed there, in case of success, an expert and trustworthy officer--and to carry out reconnaissances and make plans which cannot fail to be always of the greatest usefulness to the government at Manila, I shall invite the chief of engineers of this place, Don Emilio Bernaldez, to accompany me, if the exigencies of the service do not demand his presence here and at Pasanhan. All of which I have the honor to lay before your Excellency in the hope that it may merit your entire approval. May God preserve your Excellency many years.

Zamboanga, June 8, 1849.

Cayetano Figueroa.

His high Excellency the Governor and Captain-General of these Philippine Islands.

Office of the Secretary of the Governor and Captain-General of the Philippines.

Zamboanga, June 5th, 1849.--Mr. Consul-General:--I have the honor to inform you that from notices received from Jolo, it has come to my knowledge that during your stay there with the steamer "Nemesis" you negotiated a commercial treaty with the Sultan Mohammed Pulalun; and as I am entirely ignorant of its essential clauses, and as my Government has for a long time past, and especially of late, been in possession or enjoyment through solemn treaties, the first made with the Malay chiefs, masters of the coasts of Sulu, of the right that our commercial flag be at least as privileged as any other; and in view of the indisputable rights which Spain has to the territory in question, rights not merely of prescription; I have the honor to request, in view of the close friendship which unites our respective Governments and which I honor myself in maintaining, that you have the kindness to give me, officially, knowledge of the said treaty and a copy thereof in order that I may forward it to the most excellent, the Governor-General of these Philippine Islands, without prejudice to my making before you, if the spirit of any of these articles so requires, the remonstrances that may be necessary to uphold the rights of Spain.--Receive, Mr. Consul-General, the assurance of my consideration, etc.

C. de Figueroa.

To Sir James Brooke, Consul-General of her Britannic Majesty in Borneo and Governor of Labuan.

H. M. S. "Nemesis," June 3rd, 1849.--Sir:--I have the honor to reply to your communication of this date; and as the quickest way to furnish your Excellency with the information desired, I enclose herewith a copy of the agreement recently made with the Government of Sulu. It would be unprofitable to discuss at this time the rights of Spain to which you make allusion, and the interests of Great Britain, which are involved, but as the best means of preserving the cordial relations which should always exist between the public servants of our respective governments, I propose to forward our present correspondence to the Secretary of Foreign Affairs of her Britannic Majesty. Nevertheless, permit me to say that my opinion is that the interests of Spain and of Great Britain in these seas should be considered entirely harmonious and equally opposed to any system of oppression or of monopoly.--I have the honor to be, with the greatest consideration, Sir, Your obedient servant.

Brooke, Commissioner and Consul-General.

To His Excellency C. de Figueroa, Governor of Zamboanga.

Her Majesty, the Queen of the United Kingdom of Great Britain and Ireland, desirous of encouraging commerce between her subjects and those of the independent princes in the Eastern seas, and of putting an end to the piracy which has up to this time hindered said commerce: and his Highness the Sultan Mohammed Pulalun who occupies the throne and governs the territories of Sulu, animated by like sentiments and desirous of co-operating in the measures which may be necessary for the achievement of the objects mentioned; have resolved to place on record their determination on these points by an agreement which contains the following articles: Article 1. From now on there shall be peace, friendship, and good understanding between her Majesty the Queen of Great Britain and Ireland and his Highness Mohammed Pulalun, Sultan of Sulu, and between their respective heirs and successors, and between their subjects. Article 2. The subjects of her Britannic Majesty shall have complete liberty to enter, reside, carry on business, and pass with their merchandise through all parts of the dominions of his Highness the Sultan of Sulu, and they shall enjoy in them all the privileges and advantages with respect to commerce or in connection with any other matter whatever which are at this time enjoyed by, or which in the future may be granted to, the subjects or citizens of the most favored nation; and the subjects of his Highness the Sultan of Sulu shall likewise be free to enter, reside, carry on business, and pass with their merchandise to all parts of the dominions of her Britannic Majesty, in Europe as well as in Asia, as freely as the subjects of the most favored nation, and they shall enjoy in said dominions all the privileges and advantages with respect to commerce and in connection with other matters which are now enjoyed by, or which in the future may be granted to, the subjects or citizens of the most favored nation. Article 3. British subjects shall be permitted to buy, lease, or acquire in any lawful way whatever all kinds of property within the dominions of His Highness the Sultan of Sulu; and his Highness extends, as far as lies within his power, to every British subject who establishes himself in his dominions, the enjoyment of entire and complete protection and security to person and to property--as well any property which in the future may be acquired, as that which has already been acquired prior to the date of this agreement. Article 4. His

Highness the Sultan of Sulu offers to allow the war vessels of her Britannic Majesty and those of the India Company to enter freely the ports, rivers, and inlets situated within his dominions and to permit said vessels to supply themselves, at reasonable prices, with the goods and provisions which they may need from time to time. Article 5. If any English vessel should be lost on the coasts of the dominions of his Highness the Sultan of Sulu the latter promises to lend every aid in his power for the recovery and delivery to the owners of everything than can be saved from said vessels; and his Highness also promises to give entire protection to the officers and crew and to every person who may be aboard the shipwrecked vessel, as well as to their property. Article 6. Therefore, her Majesty the Queen of the United Kingdom of Great Britain and Ireland, and the Sultan of Sulu, bind themselves to adopt such measures as lie within their power to suppress piracy within the seas, islands, and rivers under their respective jurisdiction or influence, and his Highness the Sultan of Sulu binds himself not to harbor or protect any person or vessel engaged in enterprises of a piratical nature. Article 7. His Highness the Sultan of Sulu, for the purpose of avoiding in the future any occasion for disagreement, promises to make no cession of territory within his dominions to any other nation, nor to subjects or citizens thereof, nor to acknowledge vassalage or feudality to any other power without the consent of her Britannic Majesty. Article 8. This treaty must be ratified, and the ratifications will therefore be exchanged in Jolo within two years from date. Home Copy.--Brooke.--Approved, etc.--Signed and sealed May 29, 1849.

Zamboanga, June 5, 1849.--Mr. Consul-General:--I have received the letter which you have done me the honor to send under date of the day before yesterday in reply to mine, and I acknowledge receipt of copy of the treaty which you negotiated with his Highness the Sultan of Sulu on the 29th May last. I have no remarks to make, Mr. Consul-General, with respect to the first six articles of the treaty, for the clauses they contain are not of such an urgent character that my Government cannot postpone their discussion if it so deems advisable; but I might perhaps create in the future serious embarrassment to our respective Governments should I allow Article 7 to pass unnoticed. It establishes two principles of the most vital importance: (1st) His Highness the Sultan binds himself to recognize the sovereignty of no power without previously notifying her Britannic Majesty; and (2nd) to make, likewise, no cession of the least portion of the territory of his dominions to any State, person or corporation. With relation to the first point, and waiving for the moment the question whether, because the Sultan is in possession, with slight exceptions, of the coast of Sulu, this island must be regarded as his exclusive domain, it is my duty, Mr. Consul-General, to inform you that for a long time past the said Sultan of Sulu has admitted and acknowledged himself to be under the protection of her Catholic Majesty, recognizing the sovereignty of Spain in a public way and in official documents which his Excellency the Governor-General of these Philippine Islands will be able to produce at the proper time and place. As regards the second point: I find no objection to the pledge of his Highness having all the force of free right with respect to those parts of his dominions lying outside of the island of Sulu, namely, the north and northeast part of Borneo, now under the rule of the Sultan; but under no circumstances with respect to the said island of Sulu and its neighboring islands; for not only can Spain not

recognize in any power the right to intervene in the matter of ceding or not ceding the island of Sulu and its surrounding islands, as it is claimed can be done according to the terms of Article 7 of the Treaty; but Spain does not recognize this right even in the Sultan and Datus of Sulu, because, as I have had the honor to inform you, Mr. Consul-General, these territories belong to Spain, by a right not prescribed, by a right in no way established by the conquest of this archipelago, but positively through the willing submission of the real natives, the Gimbahans, who do now, and who at the end of the 17th century did, constitute the most numerous portion of its population, whose oppressors were then and are now the Sultan and Datus, Malay Mussulmans. At this very time the chief of the Gimbahans, this unfortunate and enslaved race, cherishes with respect and veneration his loving remembrance of Spain and holds in his possession the proofs of what I assert. This fact established, Mr. Consul-General, I am forcibly constrained to protest, which I accordingly do, against every claim in its favor by your nation on the terms of the said Article 7 of the treaty referred to of May 29th of the present year, since it prejudices the incontestable and recognized rights of the crown of Spain to the sovereignty of the territory of the island of Sulu and its surrounding islands, and to its sovereignty over the present possessors of the coasts of this archipelago, begging that you will kindly acknowledge receipt of this letter in order to cover my responsibility to my Government. Receive, again, Mr. Consul-General, the assurances, etc.

C. de Figueroa.

To Sir James Brooke, Consul-General for her Britannic Majesty in Borneo and Governor of Labuan.

H. M. S. "Nemesis," June 5, 1849.--Sir: I have the honor to acknowledge receipt of your communication; and as the matter in question will probably have to be discussed between our respective Governments, I think it better not to take up the objections raised by you in connection with Article 7 of the treaty recently negotiated with his Highness the Sultan of Sulu. I have the honor to be, with great consideration, Sir, Your obedient servant.

Brooke, Commissioner and Consul-General.

To His Excellency, Col. C. de Figueroa, Governor of Zamboanga.

Military and Civil Government, Town of Zamboanga, No. 100, Government Department.--Most Excellent Sir:--On reëmbarking at Malusu, March 31st last, returning from the operations which I had conducted against the same on that same day, following instructions received from your office in a communication of the 17th of the said month of May, the result of which I reported to the most Excellent the Captain-General in an official letter of the 2nd instant, No. 209, the war vessel of the English East India Company, the "Nemesis" was sighted and soon afterwards cast anchor in our vicinity. Aboard the vessel was Sir James Brooke, Consul-General for his country in Borneo and Governor of Labuan; and as a result of a long conference I had with the latter gentleman in regard to recent events in Sulu--which conference it was agreed to continue in this place immediately upon my arrival here--I gave him, successively, the two communications of which I attach copies; with them I send to

your Excellency letters dated the 3rd and 5th instant replying to mine in terms that your Excellency will see embodied in the two original letters of corresponding dates, which I likewise enclose herewith, retaining copies of them, as also an authorized copy of the treaty or agreement of the 29th of last May, also enclosed; feeling confident that the indulgence of your Excellency will approve my action in this delicate matter. May God preserve your Excellency many years.

Zamboanga, June 6th, 1849.

Cayetano Figueroa.

The most Excellent, The Governor and Captain-General of the Philippines.

Copies.--José María Peñaranda: (his flourish).

APPENDIX XVII

COMMUNICATION FROM THE SUPREME GOVERNMENT OF THE PHILIPPINES TO THE SECRETARY OF STATE, RELATIVE TO THE TREATY OF SIR JAMES BROOKE WITH THE SULTAN OF SULU; AUGUST 16, 1849 [291]

Office of the Captain-General and Governor of the Philippines.

To his Excellency, The Secretary of State and of the Office of Gobernación of the Kingdom, I have the honor to state the following, on this date, and under No. 499.

By the communications which I had the honor to send your Excellency from Zamboanga on the 23rd of June and 4th of July last, and that of the General second in command, No. 482, your Excellency must have been informed of the treaty which has been made in Jolo by the Englishman Sir James Brooke, of the answer of the Governor of Zamboanga to the latter and his negotiation with the Sultan and Datus to have the treaty left without effect, without obtaining the least satisfaction.

It will therefore be necessary that the question be settled between the two Cabinets, and I believe that Holland will take our part, as she has an illfeeling against England on account of the latter's usurpations in Borneo, contrary to the spirit of the treaty of March 17, 1824, between the two countries, and must fear to see her rich possessions surrounded by those of so powerful a rival. The communications of her Majesty's Consul in Singapore and his confidential correspondence with the Governor-General of Java, which he has forwarded to the Secretary of State, show that the Dutch Government wishes to maintain the most friendly relations with Spain. Although the English press in Singapore and Hong-Kong are still speaking of a Dutch expedition against Jolo, nothing has been done hitherto, and the favorable season for such an expedition has passed.

As the correspondence between Brooke and the Governor of Zamboanga will probably play an important part in the future correspondence with the British Government, I believe it is my duty to submit a few remarks in regard to the action taken by the said Governor. Notwithstanding that the objections, which he submitted to Brooke in regard to Article 7 of the treaty, were well founded, he ought not to have entered upon such a discussion, and much less to have particularized it in such a way:

he ought to have protested against the treaty as a whole, and to have declared it null, as made without the consent of Spain, which holds not only a protectorate, but sovereignty or dominion over the territory. The second defect that I find in the same letter to Brooke, is his basing our right to the sovereignty over Sulu on the "free submission of the true natives of the Gimbahan race, who live in the interior of the island and are oppressed by the Sultan and the Datus." Although there is some truth in that statement, and we might take advantage of this element in case of a war with the Sultan, I believe that it ought not to have been made under the present circumstances, as, on the same principle, we would invalidate the rights founded by us on the different treaties made by Spain with the Sultan and Datus of Sulu. The acknowledgment made by the latter of the sovereignty of Spain during over two centuries and more especially in the treaties of 1646, 1737 and 1836, by the first of which they pledge themselves to pay, as vassals, a tribute of three boatloads of rice, as recorded in the Archives, is a powerful argument in favor of our rights, which the Sultan has often confirmed in his communications to this Government and in the passports which he gives his subjects, on printed forms supplied by my predecessor;--I enclose herewith a copy of one of said passports.

The British, who doubtless do not feel very certain about their rights, try to excuse their conduct through the press, as they did when they occupied Labuan by force. The Singapore Free Press of the 6th of July published an article in which it alleges, for the purpose of proving that Sulu has always been considered as a sovereign independent power, that we said nothing to England when she accepted the cession of the island of Balambangan, between Borneo and Palawan. Even supposing the fact to be true, there would be nothing astonishing about it, considering the distress and the lack of means of the Government at that time, after the war which, but a few years before, it had miraculously carried on against the English who held Manila and many other places in the islands, and the work it had to do in order to put down interior rebellions, to reorganize the administration and to reëstablish normal conditions in the provinces which had been left uncontrolled during four years and had suffered the consequences of circumstances so unfortunate. Furthermore, the cession of Balambangan cannot be considered as an act of free will on the part of the Sulus, since they took advantage of the first opportunity to drive the British off the island, when they had hardly started to firmly establish their trading posts. The newspaper also mentions the doctrine of Walter, which says that an agreement similar to that existing between the Spanish and Sulu Governments does not entirely derogate the sovereignty of the protected state, which can make treaties and contract alliances, except when it has expressly renounced its right to do so; and that if the first state fails to protect the other, the treaty is invalidated; the author of the article adds that this is our case, since we allowed the Dutch to attack Sulu without interfering, or, as far as known, requiring a reparation or the assurance that such an attack would not be renewed.

With regard to the first point, the reference to Walter is correct, but Walter adds in the same paragraph that "the protected nation is bound forever by the treaty of protection, so that it can undertake no engagements which would be contrary to said treaty, that is to say, that would violate any of the express conditions of the

protectorate, or be inconsistent with any treaty of the said class:" how then could Article 7 of the treaty made by Brooke be valid, when by said article the Sultan pledges himself to recognize the sovereignty of no power without the previous consent of her Britannic Majesty, and not to cede the smallest part of the territory of his dominions to any state, person or corporation, said Sultan having already recognized the sovereignty of Spain and the rights of the latter over the greater part of his territory, in which the island of Palawan, which was ceded to us in the last century by the kings of Bruney is included by mistake.

In regard to the second point, the author of the article is also in the wrong: for this Government was neither aware of the intentions of the Dutch, nor was its assistance requested by the Sultan; and your Excellency knows in what terms I wrote to the Governor-General of Java about that matter.--If I have given so many details, despite their not being new to your Excellency it is because the article of the Singapore Free Press may have been inspired by the British Government, and deserves therefore not to be left unnoticed.

In the event of which I am writing, your Excellency will see the fulfilment of my predictions, and it may perhaps be only the prelude of events of still greater importance.

Thus I cannot but earnestly recommend to your Excellency's notice the necessity that the Governor of the Philippines have very detailed instructions or very ample powers to proceed as regards the Southern regions in accordance with what he believes best suited to her Majesty's interests and to the security of these rich possessions. In this connection I take the liberty of recommending to your Excellency such action as our Sovereign the Queen may deem most wise on my communication (consulta) number 359 and others relative to the same subject.

Perhaps, as I mentioned in my communication of the 4th of July last, the only advantageous issue for us would be to send a strong expedition and to occupy Jolo, our action being warranted by the piratical acts committed by several small boats of Bwal, Sulu; the Dutch may avail themselves of the same excuse and send an expedition before us, if, as is possible, other pancos [292] [Moro boats] have gone south for the same purpose; but anyhow the behavior of the Sultan and Datus of Sulu would give us excellent reasons for taking action against them at any time.

God keep your Excellency many years.

Manila, August 16, 1849.

The Count of Manila.

His Excellency, the Secretary of State and "Gobernación."

APPENDIX XVIII

REGULATIONS RELATIVE TO TAXES AND IMPOSTS ON NATIVES AND IMMIGRANTS IN SULU [293]

General Government of the Philippines, Treasury Department, Manila, February 24th, 1877.

In view of the communications of the politico-military governor of Sulu of October 6th of last year, in which he suggests to this general government the concession of various exemptions in favor of the natives of these islands and of any Chinamen who shall establish themselves in the said place, to the end that by this means there may be promoted the immigration which the interests of that island demand:

In view of the reports issued in the premises by the central administration of imposts, the office of the insular auditor, [294] and the insular departments of civil administration and the treasury: and

Deeming it expedient, for the realization of the high purposes that required the military occupation of Jolo and for the progressive and efficacious development of the moral and material interests of this young colony, that there should be granted certain exemptions for the encouragement of the immigration thereto of the greatest possible number of inhabitants: this office of the general government in conformity with the suggestions made by the treasury department, and in accordance with the statements made by the department of civil administration, disposes the following:

1. All immigrants to the island of Sulu, of whatever class, race, or nationality, who shall establish themselves definitively in the same, engaging in agricultural, industrial, or commercial pursuits, or in any art, trade, or occupation, shall be exempt during ten years from all the contributions or taxes imposed, or which in the future may be imposed, upon the inhabitants of the Philippine Archipelago.

2. The children of immigrants to Sulu, born in said island or who establish themselves there before becoming taxpayers in the pueblos of their birth, shall commence to pay taxes at the age of twenty-five years, but shall be exempt from military service so long as they reside in the said island.

This decree shall be published in the Official Gazette and communicated to the council of administration, the office of the captain-general, and the insular department of civil administration; and shall be returned to the treasury department for such further action as may be proper.

Malcampo.

General Government of the Philippines, Treasury Department, Manila, August 10, 1887.

In view of the investigation conducted by the intendant-general of the treasury with the object of determining whether it would be expedient to prolong the term of exemption from all kinds of taxes and imposts in favor of natives and of immigrants of whatever race or nationality who are established, or who shall establish themselves, in Sulu for the purpose of engaging in any kind of industry, commerce, profession, art, or trade, or in agriculture:

In view of the reports issued by the said directive bureau of the treasury and the politico-military governor of Sulu:

And considering that exemption from all burdens constitutes one of the most efficacious means of encouraging the immigration demanded by the interest of the archipelago in question; this general government, in conformity with the suggestions made by the office of the intendant of the treasury and the politico-military governor of Sulu, disposes that the term of exemption granted by superior decree of this general government of February 24th, 1877, shall be understood as extended for another term of ten years, the said extension to be reckoned from the day following that on which the first term expires, that is, from the 25th day of February of the current year.

This decree shall be published in the Official Gazette; the Government of his Majesty shall be informed thereof and a copy of the records transmitted; it shall be communicated to the council of administration, the tribunal of accounts, the office of the Captain-General, and the insular department of civil administration; and shall be returned to the office of the intendant of the treasury for any further action that may be proper.

Terrero.

Office of the Governor-General of the Philippines.

Most excellent and most illustrious Sir: The politico-military governor of Sulu, in a communication dated the 9th instant, states as follows:

Most excellent Sir: As the time expiration of the exemptions granted to Sulu and its port by decree of the general government under the able direction of your Excellency, dated February 24th, 1877, and extended by superior order issued from the same office for another term of ten years, on August 23rd, 1887, is drawing near, the person who has the honor to sign hereunder believes that the moment has come to call the attention of your Excellency to the matter, and he takes the liberty to set down some remarks in the premises, to the end that when your Excellency determines what is deemed most expedient, they may be taken under advisement.

In the exemptions granted to Sulu, it must be borne in mind that they affect two distinct elements, which constitute the life and favor the development of this locality. Some have reference to the exemption from all taxes, tributes, and gabels imposed, or to be imposed, in favor of natives or foreigners taking up their abode in the Sulu archipelago. Others refer exclusively to the declaration of a free port, with exemption from all taxes and customs formalities in favor of the capital of the island.

In treating this question and in considering what ought to be done in the future, when the moment arrives for determining whether a fresh extension is expedient, or whether, on the contrary, this territory must enter upon the normal administrative life general in other localities of the Philippine Archipelago, the subject must be dealt with under the two aspects above set forth. In regard to the declaration of freedom of the port granted to Jolo, it is undoubtedly expedient to continue it for the present without change. So long as the protocol entered into with the other nations who are parties thereto, continues in force--in which protocol our incontestable right of sovereignty over this archipelago, with the limitations therein stipulated, is declared--it would be highly impolitic to close the period of franchise granted to this

port. Should there be established the embarrassing obstacles and difficulties to commerce entailed by the formalities of customs regulations, the English steamers which now carry on the trade with Singapore, would immediately cease to visit this port and would make their destination some other port of the island, where, under the provisions of the protocol above referred to, no one could lawfully obstruct them until after the effective occupation of the new port selected for trading operations, and until after having allowed to elapse the requisite time subsequent to publishing this resolution in the official papers of the Peninsula. The distinguished intelligence of your Excellency will perceive easily that after this had been repeated several times, we should find ourselves compelled either to occupy effectively all the islands of the Sulu archipelago where English steamers might attempt to establish their business, or, in the end, to allow them to carry on their commercial operations at any place that suited them, which, without doubt, would be much more prejudicial than what happens at the present time; for, at any rate, so long as steamers come exclusively to this port or to that of Siasi, as is the case at present, the trade can be watched easily and conveniently and without the commercial operations which are carried on giving rise to diplomatic questions; it is easy, also to prevent the traffic of arms and war supplies, which would not be the case if they touched at other points where our sphere of action is not so direct and effective. Furthermore, the advantages of the present situation must also be taken into account. So long as these steamers touch only at Jolo and Siasi, as happens now, these two points are the only markets, whither all the people of the archipelago must necessarily go to trade, not only to supply themselves with the effects which they import and are necessary to life, but also to sell all the products they gather in their fields and in the seas, which constitute the element of commerce that justifies English vessels in visiting these regions, making it possible to collect sufficient freight to maintain the two regular lines now established. It is obvious that, since we are masters of the towns of Jolo and Siasi--the only points of distribution for effects necessary to the life of the natives here--we can, when we consider it expedient, prevent the sale of these effects to the villages hostile to the city, a most momentous advantage resulting therefrom and a means of government of inestimable value. So long as the Moros have to supply themselves from these markets, our importance is incontestable; all their outbreaks are easily checked without appeal to violent methods; and the civilizing effect which results from the constant intercourse which is necessitated by their coming to the occupied ports, is extended, thereby modifying the sanguinary and turbulent habits of this race. If the revenues from the duties which would be imposed were of sufficient importance to cover the expenses entailed by the occupation of Sulu, the arguments supporting the opinion above expressed could easily be set aside. But unfortunately there can not be expected from the custom house of Jolo, in the event of its establishment, even the expenses necessary to cover the salaries of the personnel engaged therein. For, the foreign steamers which now visit this port would immediately discontinue their voyages, and even though it were possible to prevent them from making port at some other place for the purpose of carrying on their mercantile operations--a thing which would not be easy so long as the treaty is in force--what would happen? Why, that the trade would be continued by means of smaller boats which would come from Borneo, and it would not be feasible to prevent this except by the posting of a very large

number of coastguards along the shores of the innumerable islands of Sulu, a method which it would be altogether impossible to adopt. It is, therefore, unquestionably expedient to maintain the present status, whether the matter be considered under its economic aspect or under that of the policy it is necessary to develop in this territory. A very different course must, in the opinion of the undersigned, be followed in the matter of the exemption from taxation granted to the inhabitants of Sulu. These exists here a numerous Chinese colony, which is the element that really enjoys the benefit of the advantages flowing from the present free-port conditions, and it is neither just nor equitable that, while the Chinese find in us the support and protection which enable them to carry on and develop the trade in which they alone engage, they should not contribute in any way towards the expenses of the Government which furnishes them so many advantages. It is, therefore, expedient to impose upon all Chinaman residing in the Sulu territory the obligation to pay the same taxes as are paid by those of the same race in other parts of the Philippines. The establishment of this system promises not only the profit of the sums which would be collected as a consequence thereof, but also the desideratum of introducing order into the anarchical manner of life obtaining among the Chinese here. As soon as the obligation to pay taxes is imposed upon all and the lists of tax-payers are made up, individual interest will see to it that all persons living in the country are included therein; for it is unquestionable that, since each desires to be placed under the same conditions as the other, the Chinamen themselves will be of very great assistance in discovering those who now are not included in the incomplete and untrustworthy census lists existing in the offices of the Government of Sulu. It is believed, then, that it is expedient and just to discontinue the franchise now enjoyed by the Chinese here, and that they should begin to contribute at once towards defraying the expenses of the treasury, paying at least as much as is paid by their countrymen in other parts of the Philippines. It would appear also equitable that the Indians residing here should also begin to pay the cédulas [295] of the class to which they respectively belong; but there must be borne in mind the limited number of individuals of this race residing here; the expediency of encouraging by this means the immigration of fresh residents; and, above all, the services they render in any case of alarm, whether caused by juramentados or by more serious aggressions attempted against the city; all of which circumstances make it proper that they should continue enjoying the exemption from the payment of poll-tax which they now enjoy, as also exemption from all the other taxes upon the insignificant industries from which they gain a subsistence. The treasury could not hope for any happy results in this direction; and, on the other hand, if such a tax were imposed, the place would, in a very short time, be left entirely without any civilian population; for only with difficulty, and thanks to the franchises, can persons be found who will face the constant danger in which residents in Jolo are placed--especially those who engage in the cultivation of the soil in the outskirts of the town; of which class the civilian population is, in a very large majority, composed.

It remains, only, most excellent Sir, to discuss the expediency, or otherwise, of establishing taxation upon commerce, industry, and property. All the urban property of Jolo is in the hands of the Chinese, with so few exceptions that there are not more

than three property holders who do not belong to that race. In their hands is all the commerce, with the sole exception of two Spanish houses: every thing relating to business is in their power; so that any burden imposed in this direction would not be borne by them, but would be paid by the garrison of Jolo. For, united as the Chinamen are in every thing that relates to the avoidance of tax-paying, they would come to a perfect understanding to surtax every thing,--not in the same proportion as the contributions they would pay, but with a considerable increase, with the result that the only tax-payer to the treasury and for the Chinaman would be the unfortunate inhabitant of Jolo. And since the population here consists almost entirely of the garrison, which renders such arduous services at this place, I believe that it would not be just to add to the other disadvantages that the service here offers, the very serious one that would result from the imposition of taxes in this capital. Furthermore, one must not lose sight of what might happen or rather what would immediately happen, when, by taxing the commerce of the city, the majority of the Chinamen now established here would go to Maymbung, with a tendency to store their merchandise at other important points in the island, in which places our rule is, it may be said, nominal, and it is unnecessary to insist upon the undesirable consequences that would follow; for we should return to the condition in which Maymbung stood in April of the year 1887, when this town was a very important center of resistence to our rule, due to the facility afforded in that place for the purchase of unlimited arms and ammunition, a business carried on by the foreign steamers who anchored there at that time. And all this without taking into account the undesirability, from a political point of view, of affording the Moros the opportunity of purchasing their supplies at prices lower than those in this city; since, if the merchants in that town did not pay taxes they would be able to sell at lower prices than those in the capital. Summing up what I have stated above and recapitulating the questions herein treated, I will conclude by submitting to the distinguished intelligence of your Excellency that I consider necessary and of the highest political expediency the maintenance of the freedom of the port granted to Jolo; that this franchise should be extended to Siasi, which enjoys this privilege in fact though not by right; and that care should be taken to prevent the slightest obstacle from interfering with the trade at both points, to the end that foreign steamers may, in their own interest, touch only at these two points of the archipelago of Sulu; that the Chinamen should be formed into guilds or associations, after the pattern of the organizations prevailing in other parts of the Philippines, these being necessary, further, to the making up of the lists of tax-payers; that, as a consequence of the formation of these associations, they should be compelled to pay taxes to the same extent as all other Chinamen residing in the country, unless your Excellency is of the opinion that the quota should be increased in consideration of the other advantages they enjoy; that there should be imposed a tax upon smokers of opium and upon the importation thereof. This tax would be a source of revenue of some consideration if it were farmed, as was the intention four years ago, when sale to the highest bidder was desisted from in view of the decree of franchises which is the subject of this communication. Finally, that property, commerce, and industries should not be taxed, nor should the civilian population be burdened with the poll-tax, since the latter deserve consideration by reason of the arduous services they render in this place;

and this applies to the garrison, as well as to the civilians who make up the town, who, in the end, would be the persons who alone would have to bear these burdens. Such, most excellent Sir, is the opinion, expressed as succinctly as possible, of the undersigned in regard to these matters, which, at no distant date, will present themselves for resolution and which your Excellency will determine with your well-known ability and good judgment.

Which I have the pleasure to transmit to your most Illustrious Excellency, to the end that you may take note of the part relating to the economic side of this question.

God preserve your most illustrious Excellency for many years.

Manila, July 31st, 1896.

Blanco.

To the most excellent and most illustrious the Intendant-General of the Treasury.

Office of the Intendant-General of the Treasury Division of Direct Imposts

Most excellent and most illustrious Sir: The just considerations set forth by the politico-military governor of Sulu in a communication addressed to his high Excellency the Governor-General of these islands on July 9th of last year, forwarded to your most illustrious Lordship on the 31st of the same month and year, reveal a close study of the questions treated, based upon practice and experience.

The chief of the division of direct imposts, who signs hereunder, in presenting the report ordered by your most illustrious Lordship in your decree of the first day of the following August, must begin by expressing at once his conformity with the views given by the governor of Sulu, in the part relating to this division.

Undoubtedly considerations of the highest political moment led the high authorities of the Archipelago, on August 23rd of 1887, to extend for another term of ten years the franchises granted to Sulu, and since these considerations have not ceased to be of moment, to judge from the enlightened views expressed by the said politico-military governor, it is to be presumed that it is expedient to grant a fresh concession of franchises; but not, at this time, for a period of time equal to that about to expire, though for a period that might well be half that of the previous term; for, regarding the matter prudently, it might happen that during this lapse of time the conditions in the places under discussion should alter in such a way as to counsel either the total suppression of the liberties in question or their partial modification.

But if there are considerations in favor of this new concession, equity counsels that there be excluded therefrom the Chinese in so far as relates to the imposition of the poll-tax, since they control all the business and are the only persons who really exploit that region.

Consequently, the chief of the division of direct imposts has the honor to report to your most illustrious Lordship:

1. That it be recommended to his high Excellency the Governor-General of these Islands, that, to take the place of the present franchises, there be granted again, at

the proper time, to the ports of Jolo and Siasi, the exemption from the payment of all urban and industrial taxes in favor of the natives and of the Chinese established at those points.

2. That there be created at once the imposition of the poll-tax upon the Chinese.

3. That the natives and the civilian population be exempt from the payment of poll-tax.

Your most illustrious Lordship will, however, determine whatever he deems most expedient.

Manila, August 6th, 1897.

Marcelino Pacheco.

Office of the Intendant-General of the Treasury Division of Indirect Imposts

Most excellent and most illustrious Sir: In compliance with the decree which, under date of August 10 of the current year, your most illustrious Excellency saw fit to issue, to the effect that, in the shortest possible space of time the divisions of imposts should report upon the matters concerning each one in the proceedings set on foot by the politico-military governor of Sulu in regard to the expediency or the inexpediency of the renewal of the exemption from taxation enjoyed by the natives in that place, I have to state to your illustrious Excellency that:

1. The undersigned chief, fully agreeing with the enlightened views set forth by the governor of Sulu, believes that the maintenance of the declaration of freedom of the port granted to Jolo is of the highest political moment and that the franchise should be extended to Siasi.

2. That in regard to indirect imposts which are of such a nature that, while they are a source of profit to the state, they bring also no small benefit to the tax-payer, these should be made applicable to the Sulu archipelago, as undoubtedly has been the case, as a matter of fact, up to the present time in regard to the stamp and lottery revenues.

3. Both for the reasons set forth by the governor of Sulu as well as for these given by his predecessor on June 11, 1893, in favor of a tax upon opium smokers, the undersigned chief believes that it is not only just but a matter of the greatest necessity to continue the imposition of this tax.

Your most illustrious Excellency will, however, order whatever he deems most expedient.

Manila, September 10th, 1897.

José Garcés de Marcilla.

Office of the Intendant-General of the Treasury,

Manila, December 28, 1897.

Let the report of the Chamber of Commerce and of the administration of customs of Manila be heard, within one and the same period of five days.

Dominguez.

APPENDIX XIX

THE PROTOCOL OF SULU, OF 1877, BETWEEN SPAIN, GERMANY, AND GREAT BRITAIN, MAY 30, 1877 [296]

General Government of the Philippines

Royal Order

Colonial office.--No. 281.--Excellent Sir: The Secretary of State sent the following communication to this office on the 26th of March last: By Royal order communicated by the Secretary of State and for such action as is indicated therein I deliver herewith to your Excellency a copy of the protocol signed on the 11th inst. by Señor Manuel Silvela, Secretary of State, and by the representatives of Great Britain and Germany, for the purpose of establishing the liberty of trade and commerce in the Sulu seas; said protocol takes effect on this date, as specified in Article 5 of the same.--Referred to your Excellency by Royal order with a copy of the protocol, for its execution.--God keep your Excellency many years.

Madrid, April 2, 1877.

Martin de Herrera. The Governor-General of the Philippine Islands.

Manila, May 30, 1877. The above order shall be executed, communicated and published. Moriones.

[Protocol referred to.]

The Hon. Austin Henry Layard, Envoy Extraordinary and Minister Plenipotentiary of her Britannic Majesty; and Count Von Hatzfeldt, Envoy Extraordinary and Minister Plenipotentiary of his Majesty the Emperor of Germany, commissioned by their respective Governments to terminate the difficulties which have occurred in the Sulu seas and to establish for that purpose, in a final way, the liberty of commerce in those seas, acknowledged by the Secretary of State of Spain in the Notes which he sent on April 15, 1876, to the representatives of Great Britain and Germany;

After having examined with due attention the preliminaries of the question and especially the negotiations formerly carried on between the Governments of Great Britain and Germany and that of Spain, have agreed to draw up the following Protocol:

The Secretary of State of Spain, in the name of his Government, says:

Considering the preliminary fact that the German ships "Marie Louise" and "Gazelle" were returned and an indemnity paid for their cargoes in 1873 and 1874, and that the German ship "Minna" was returned twice in 1875 and 1874;

Duly appreciating the increasing requirements of navigation and commerce, and above all the legal status constituted by the Notes of the Spanish Secretary of State dated the 15th of April last and by the official publication of said Notes by the

Governments of Great Britain and Germany, as also by the instructions given accordingly by said Governments to their consuls, agents and commanders of their naval forces;

Therefore the Government of his Majesty the King of Spain recognizes that the merchant ships going to the Sulu archipelago can no longer be required to call first at Zamboanga, to pay the harbor dues there and to provide themselves with a navigation permit delivered at said port. It furthermore believes that it must acknowledge, as provided in the Notes of the 15th of April last, the complete liberty of direct trade and commerce for ships and subjects of Great Britain, the German Empire and the other powers, with the Sulu archipelago.

Considering that the Governments of Great Britain and of Germany have maintained all their claims in regard to the liberty of navigation, commerce and direct trade with the Sulu archipelago and within the archipelago; that the Government of his Majesty the King of Spain admits that it cannot guarantee the security of commerce at unoccupied places of the archipelago in return for duties and dues paid, but will guarantee perfect security to the ships and subjects of Great Britain, Germany and the other powers at places occupied by said Government, and provide the establishments necessary for the protection of their trade, the Spanish Secretary of State remarks that there is no reason why said ships and subjects should be exempted, at places occupied by Spain, from the formalities, general regulations, and ordinary duties, whose nature will be explained in the present Protocol.

The undersigned representatives of Great Britain and of Germany refer, on their part, to the Notes and official communications sent by them on this matter to the Spanish Government, and requesting the latter to acknowledge the absolute liberty of commerce and trade in all parts of the Sulu archipelago, said acknowledgment having been mentioned by the Spanish Government in the Notes of April 15, 1876.

In consequence of what precedes and as the result of their conferences, the undersigned have agreed on the following declarations:

I

Commerce and direct trading by ships and subjects of Great Britain, Germany and the other powers are declared to be and shall be absolutely free with the Sulu archipelago and in all parts thereof, as well as the right of fishery, without prejudice to the rights recognized to Spain by the present Protocol, in conformity with the following declarations:

II

The Spanish authorities shall no longer require ships and subjects of Great Britain, Germany and the other powers, going freely to the archipelago of Sulu, or from one point to another within the Sulu waters, or from such a point to any other point in the world, to touch, before or after, at any specified place in the archipelago or elsewhere, to pay any duties whatsoever, or to get a permit from said authorities,

which, on their side, shall refrain from obstructing or interfering in any way with the above mentioned trade.

It is understood that the Spanish authorities shall in no way and under no pretense prevent the free importation and exportation of all sorts of goods, without exception, save at such places as are occupied, and in accordance with Declaration III, and that in all places not occupied effectively by Spain, neither the ships and subjects above mentioned nor their goods shall be liable to any tax, duty or payment whatsoever, or any sanitary or other regulation.

III

In the places occupied by Spain in the archipelago of Sulu the Spanish Government shall be empowered to establish taxes and sanitary and other regulations, while said places are effectively occupied; but Spain pledges herself, on her part, to provide in such places the offices and employees necessary to meet the requirements of commerce and the application of said regulations. It is however expressly understood that the Spanish Government, while it is resolved to impose no restrictive regulations in the places occupied by it, pledges itself voluntarily not to establish in said places taxes or duties exceeding those provided in the Spanish tariffs or in the treaties or conventions between Spain and any other power. Neither shall it put into force in said places exceptional regulations applicable to the commerce and subjects of Great Britain, Germany and the other powers. In case Spain should occupy effectively other places in the archipelago of Sulu, and provide thereat the offices and employees necessary to meet the requirements of commerce, the Governments of Great Britain and Germany shall not object to the application of the rules already stipulated for places occupied at present. But, in order to avoid the possibility of new claims due to the uncertainty of business men in regard to the places which are occupied and subject to regulations and tariffs, the Spanish Government shall, whenever a place is occupied in the Sulu archipelago, communicate the fact to the Governments of Great Britain and Germany, and inform commerce at large by means of a notification which shall be published in the official journals of Madrid and Manila. In regard to the tariffs and regulations stipulated for places which are occupied at the present time, they shall only be applicable to the places which may be subsequently occupied by Spain six months after the date of publication in the Official Gazette of Madrid. It remains agreed that no ship or subject of Great Britain, Germany and other powers shall be required to call at one of the occupied places, when going to or from a place not occupied by Spain, and that they shall not be liable to suffer prejudice on that account or on account of any class of merchandise shipped to an unoccupied place in the archipelago.

IV

The three Governments represented by the undersigned pledge themselves respectively to publish the present declarations and to have them strictly respected by their representatives, consular agents and commanders of the naval forces in the

seas of the Orient.

V

If the Governments of Great Britain and Germany do not refuse their adhesion to the present Protocol within 15 days from this date, or if they notify their acceptance before the expiration of said period, through their undersigned representatives, the present Declarations shall then come into force.

Manuel Silva, Secretary of State of His Majesty the King of Spain.

Done at Madrid, the 11th of March, 1877.

A true copy.--Madrid, April 2, 1877.--A true copy.--The Subsecretary, Francisco Rubio.

APPENDIX XX

THE PROTOCOL OF SULU OF 1885, BETWEEN SPAIN, GERMANY, AND GREAT BRITAIN, MARCH 7, 1885 [297]

General Government of the Philippines

Royal Order

Foreign Office.--No. 312.--Excellent Sir: The Secretary of State sends me the following communication on March 29th, 1885:--Excellent Sir: I have the honor to forward you a translated copy of the protocol between Spain, Germany and Great Britain, the latter two nations recognizing the sovereignty of the first over the archipelago of Sulu, signed in Madrid on the 7th of March, 1885.--I send you this communication by Royal order, and enclose a copy of the treaty referred to. God keep your Excellency many years.--Madrid, April 8, 1885.--Tejada.

Manila, June 17, 1885.--To be executed and published in the Official Gazette.

Terrero.

A seal which says: Office of the Minister of State.--Translation.--The undersigned, his Excellency Señor José Elduayen, Marquis of Pazo de la Merced, Minister of State of his Majesty the King of Spain; His Excellency Señor Count Solms Sonnerwalds, Envoy Extraordinary and Minister Plenipotentiary of his Majesty the Emperor of Germany, and His Excellency Sir Robert B. D. Morier, Envoy Extraordinary and Minister Plenipotentiary of her Britannic Majesty, authorized in due form to carry on the negotiations followed in London and Berlin during the years 1881 and 1882 by the representatives of his Majesty the King of Spain with the Governments of Great Britain and Germany, for the purpose of obtaining from these two powers the solemn recognition of the sovereignty of Spain over the archipelago of Sulu, have agreed on the following articles:

I

The Governments of Germany and Great Britain recognize the sovereignty of Spain over the parts which are effectively occupied as well as over those which are not yet occupied, of the archipelago of Sulu, whose limits are established in Article II.

II

As expressed in Article I of the treaty signed on September 23, 1836, between the Spanish Government and the Sultan of Sulu, the archipelago of Sulu includes all the islands between the western extremity of the island of Mindanao on one side and the mainland of Borneo and the island of Palawan on the other, except those mentioned in Article III. It is understood that the islands of Balabak and Kagayan Sulu belong to the archipelago.

III

The Spanish Government renounces, as far as regards the British Government, all claims of sovereignty over the territories of the mainland of Borneo which belong or may have belonged to the Sultan of Sulu, including the neighboring islands of Balambangan, Banguey, Malawati, and all those comprised within a zone of three maritime leagues from the coast, and which are part of the territories administered by the company known as "The British North Borneo Company."

IV

The Spanish Government pledges itself to carry out in the archipelago of Sulu the stipulations contained in Articles I, II, and III of the protocol signed in Madrid on March 11, 1877, viz.: (1) Commerce and direct trading by ships and subjects of Great Britain, Germany and the other powers are declared to be and shall be absolutely free with the archipelago of Sulu and in all parts thereof, as well as the right of fishery, without prejudice to the rights recognized to Spain by the present Protocol, in conformity with the following declarations: (2) The Spanish authorities shall no longer require ships and subjects of Great Britain, Germany and the other powers, going freely to the archipelago of Sulu, or from one point to another point in the world, to touch, before or after, at any specified place in the archipelago or elsewhere, to pay any duties whatsoever, or to get a permit from said authorities, who, on their side, shall refrain from obstructing or interfering in any way with the above mentioned trade.

It is understood that the Spanish authorities shall in no way and under no pretense prevent the free importation and exportation of all sorts of goods, without exception, save at such places as are occupied, and in accordance with Declaration 3, and that in all places not occupied effectively by Spain, neither the ships and subjects above mentioned nor their goods shall be subject to any tax, duty or payment whatsoever, or any sanitary or other regulation. (3) In the places occupied by Spain in the archipelago of Sulu, the Spanish Government shall be empowered to establish taxes and sanitary and other regulations, while said places are effectively occupied; but

Spain pledges herself, on her part, to provide in such places the offices and employees necessary to meet the requirements of commerce and the application of said regulations. It is however expressly understood that the Spanish Government, which is resolved to impose no restrictive regulations in the places occupied by it, pledges itself voluntarily not to establish in said places taxes or duties exceeding those provided in the Spanish tariffs or in the treaties or conventions between Spain and any other power. Neither shall it put into force in said places exceptional regulations applicable to the commerce and subjects of Great Britain, Germany and the other powers. In case Spain should occupy effectively other places in the archipelago of Sulu, and provide thereat the offices and employees necessary to meet the requirements of commerce, the Governments of Great Britain and Germany shall not object to the application of the rules already stipulated for places occupied at present. But in order to avoid the possibility of new claims due to the uncertainty of business men in regard to the places which are occupied and subject to regulations and tariffs, the Spanish Government shall, whenever a place is occupied in the Sulu archipelago, communicate the fact to the Governments of Great Britain and Germany, and inform commerce at large by means of a notification which shall be published in the Official Gazettes of Madrid and Manila. In regard to the tariffs and regulations stipulated for places which are occupied at the present time, they shall only be applicable to the places which may be subsequently occupied by Spain six months after the date of publication in the Official Gazette of Madrid.

It remains agreed that no ship or subject of Great Britain, Germany and the other powers shall be required to call at one of the occupied places, when going to or coming from a place not occupied by Spain, and that they shall not be liable to suffer prejudice on that account or on account of any class of merchandise addressed to an unoccupied place in the archipelago.

V

The Government of her Britannic Majesty pledges itself to see that there is entire freedom of commerce and navigation, without distinction of flags, in the territory of North Borneo administered by the "British North Borneo Company."

If the Governments of Great Britain and Germany do not refuse their adhesion to the present protocol within fifteen days from this date, or if they notify their acceptance before the expiration of said period, through their undersigned representatives, the present declarations shall then come into force. Done at Madrid the 7th of March, 1885.--Seal.--(Signed) J. Elduayen.--Seal.--(Signed) C. Solms.--Seal.--(Signed) R. B. D. Morier.

APPENDIX XXI

DECREE OF THE GENERAL GOVERNMENT IN REGARD TO PAYMENT OF TRIBUTE BY SULUS, MARCH 1, 1894 [298]

Office of the Governor-General of the Philippines, Manila, March 1, 1894.

In view of the obligation incurred by the Sultan of Sulu by virtue of which the Moros of all the Sulu archipelago have to pay from the first day of January of next year, one real each, as a tribute of vassalage; and since it is necessary to organize this service in a regular manner and in harmony with the customs of the races living there, I decree the following:

1. The Sultan of Sulu shall direct at once all the Datus and Chiefs of the Moro rancherias [299] to make up lists of the names of the inhabitants composing each aggregation, giving therein, besides the names, the status of each individual.

2. These partial lists shall be fused in one single general census which the Sultan of Sulu shall deliver to the politico-military governor of that archipelago before October 1, of the current year.

3. The interpreters of Jolo, Siasi, Tata'an, and Bangao shall assist the Sultan in the work of making up these lists and shall translate them into Spanish; and for this extra work they shall receive the allowances designated below, the amounts being deducted from the total proceeds of the liege-money above referred to.

Allowances

To the interpreter of Jolo P20 per month. To the junior linguist of Jolo P 6 Do. To the interpreter of Siasi P 8 Do. To the interpreter of Tata'an P 8 Do. To the interpreter of Bangao P 8 Do.

4. As soon as the lists are completed and have been examined by the politico-military governor of Sulu, certified copies shall be sent to this office.

5. The collection of the tribute shall be made by means of certain special cedulas, which in due time will be furnished to the Sultan for distribution, who will collect the amounts paid in and deliver them over in specie at the office of the politico-military governor of Sulu.

6. The total proceeds from the said tribute, after deducting the amount of the allowances to the interpreters, shall be devoted for the present to the development of the establishments of Jolo, and especially to the construction of roads.

To be communicated.

Blanco.

APPENDIX XXII

ROYAL COMMUNICATION RELATIVE TO THE RIGHTS OF FOREIGNERS ON THE PEARL FISHERIES OF SULU [300]

Manila, December 25, 1895. His high Excellency the Minister of Colonial Affairs.

Excellent Sir: In compliance with the Royal order communicated under date of the 23rd of October last, I have the honor to send to your Excellency a copy of the previous record of investigations transmitted by the office of this General Government, together with the report of the office of the secretary, the remittance of

which your Excellency requests.

The inquiry formulated by the politico-military governor of Sulu, arising out of a resolution of the fishery board of the naval station relative to the order prohibiting foreign subjects from engaging in the pearl fisheries in the waters of the Sulu archipelago, did not call for a speedy resolution nor a close study, it being sufficient to bring the matter to the knowledge of your Excellency without entering deeply into the question involved, in order not to prejudice the resolution of the same, leaving to the supreme judgment of his Majesty's Government the entire appreciation of its reach and consequences, as the only authority acquainted with the demands of our international relations and the influence thereon of a decision in regard to a matter of such recognized importance as is that of the interpretation to be given to Declaration I of the Sulu Protocol of May 11th of 1877, contained in Article IV of the Protocol between Spain, Germany, and Great Britain, signed in Madrid on March 7th, 1885:--hence the brevity of the data contained in the communications above referred to and even the forbearance of this office from expressing a concrete opinion (in any case, not called for) in regard to a question as vital as it is complex. But circumstances, which are always superior to every will and every calculation, now make prompt action necessary, and not only forbid any delay, but impose upon this General Government the duty of emitting an opinion which shall complement the data furnished by the office of the secretary of the same, which data were less extensive and explicit than they would certainly have been had not a respect for the free initiative of the Supreme Government acted as a restraining influence. The incident arising out of the presence in the city of Jolo of the British subject Mr. H. W. Dalton, from Sandakan, awaiting the arrival of a fleet of boats of light tonnage belonging to the English concern, The Pearling and Trading Co. Ltd., [301] of which he is the representative for the purpose of using the same in the mother-of-pearl shell fishery, which fact I communicated to your Excellency by cablegram on the 3rd of the current month, makes more urgent the sovereign decision in regard to the concrete point as to whether foreign subjects are allowed to engage in the pearl fishery in the archipelago of Sulu.

In the judgment of this office (which has, on various occasions, inspired only by a regard for the best interests of the nation, expressed the opinion that the Sulu Protocol is too prejudicial to the said interests to permit of the points of doubtful interpretation in the same being interpreted liberally), the point in regard to the right of fishery which foreigners lay claim to exercise freely in waters under the jurisdiction of our sovereignty, is not a doubtful one at all, but is entirely contrary to their pretensions. The claims are founded, according to the statements of those who agree with the views which they involve, in Declaration I of the said Protocol of 1877, reproduced in the Protocol of 1885 and in that signed in Rome in the same year, relating to the Caroline and Pelew Archipelagoes.

This declaration runs as follows--ratified by Article IV of the second of these important diplomatic documents:

The direct commerce and trade of boats and subjects of Great Britain, of Germany, and of the other powers, is declared, and shall be, absolutely free in the archipelago

of Sulu and in all its parts, as also the right of fishery, without prejudice to the rights recognized as belonging to Spain in the present Protocol, in conformity with the following declarations * * *.

III. At points occupied by Spain in the archipelago of Sulu, the Spanish Government may establish imposts, and sanitary and other regulations of whatever kind, during the effective occupation of the said points * * *.

From the transcript it is evident that Spain may regulate the exercise of the right of traffic and commerce, not with the purpose of restricting, and much less of denying, the principle of commercial liberty recognized in Declaration I, but with that of conditioning the exercise of that right in such a way that her own rights as a sovereign nation shall not be infringed. And what she may do in regard to mercantile trade, with greater reason she may and should do in everything referring to the right of fishery, a right which is declared only in general terms, and one of which the protocol does not treat except in making the affirmation of the principle itself, whereas in regard to commerce, it descends to minute details.

And this could not be otherwise, for anything else would be equivalent to impairing the sovereignty of Spain; and this, in an agreement in which this sovereignty is openly recognized and proclaimed, would pre-suppose a contradiction so palpable and absurd that it is not worth while even to discuss it.

Spain, as a sovereign and independent state, holds and exercises her sovereignty not only in her territories and on the coasts of the same, but in her jurisdictional waters, and can, therefore, regulate the exercise therein of any right granted to foreign subjects, and may, even, in the exercise of her sovereignty, prohibit the enjoyment of such right altogether; this is an indisputable principle of international law, though there is nothing to prevent a state from limiting the same in favor of another or other states; but it is a sine qua non condition to this that there shall be an express and clear declaration of her will on this point, and no one can reasonably affirm that Spain has made in the Sulu Protocols, neither in that of 1877, nor in that of 1885, a total or partial surrender of this right in regard to that of fishery; there is, it is true, a declaration in general terms that the fisheries are absolutely free in the archipelago of Sulu; but this absoluteness of the principle is immediately qualified by the condition that it shall be without prejudice to the rights recognized as belonging to Spain in the protocol, and it has already been pointed out that one of these rights--the principal one and that which contains all the others, the right of sovereignty--is proclaimed and recognized at the head of the agreement. Outside this declaration in general terms, there will not be found in all the protocol a provision or regulation referring to the exercise of the right of fishery and much less a concrete and express declaration on the part of Spain that she will permit the exercise thereof freely on her coasts and in her territorial waters. To permit of this a concrete, clear, and definite declaration would be necessary, such as is to be found in the Morocco Treaty, signed on November 30, 1861, Article 57 of which establishes qualifiedly "That Spanish subjects shall have a right to fish along the coasts of the Moroccan Empire;" and even so, in Article 60 of the same treaty, it is stipulated that, in order to facilitate the coral fishery, in which the Spaniards engage on the coast of Morocco,

fishers shall pay the sum of 150 Spanish dollars for each coral fishing boat, and that through the representative of Spain they shall request permission from the minister of foreign affairs of His Majesty the Sultan who shall issue the necessary authorization.

From which it may be seen that even in the case of declarations in regard to the right of fishery which are concrete, clear and definite, there is needed, for the free exercise of the same, something more than a declaration in general terms, such as is that contained in the Sulu Protocol of 1877.

Furthermore, it is always customary in international agreements which refer to fishery rights to lay down regulations and provisions which shall regulate the exercise of such rights, as is proved by a multitude of agreements, among which are: that already cited of Morocco, that of February 18th, 1886, between Spain and France regarding the fishery and navigation of the Bidasoa, in which the right of oyster fishing is restricted, its absolute prohibition being made possible; as also that of 1889 ratifying the preceding one, the Portuguese convention of March 27th of 1893 and the coast police and fishery regulations; as well as that of August 22nd of 1894, in regard to the fisheries in the waters of the Algarbes, etc.; all of which is well known by the illustrious Government of His Majesty, and attention is called to it here only in support of the opinion maintained, namely, that the right to authorize, condition, restrict, and even prohibit the engagement in fishery on its coast and in its jurisdictional waters is inherent in the sovereignty of an independent state; and if it has this right in regard to fisheries in general, with greater reason must it preserve and exercise the same in regard to oyster fisheries, by reason of the changes which may be produced in the sea bed, and even for the purpose of preserving the breeding grounds of the precious pearl-shell mollusk, the Avicula Margaritifera, the banks being the property of the nation, and like all its territory, inalienable and non-prescriptible; both so that they shall not be exhausted and that their exploitation may be reserved for the national industry.

From the preceding, written with less detail than would have been the case had the pressure of time permitted, it may easily be inferred that, in the opinion of this General Government, Spain in spite of Declaration I of the Sulu Protocol--perhaps it would be more correct to say, by virtue of that very declaration, the terms of which really determine the meaning of Declaration III and Article I of the Treaty--preserves intact her right as a sovereign nation to restrict, condition, and even prohibit engagement in the oyster fishery on her coasts and in her jurisdictional waters, without further limitations than those which she may deem expedient to self-impose.

Admitting her rights as a sovereign state, there arises a question of a political nature, which the circumstances above indicated convert into a problem demanding an early resolution.

To what extent should Spain exercise this right?

On this point, the views of the General Government will be expressed as concisely as possible and with the soberness demanded both by the respect due to the high prerogatives of the public authorities and by an ignorance of many of the elements

which enter into the question, without a knowledge of which it is difficult to determine to what extent it is expedient to restrict the exercise of the right to engage in the oyster fisheries which foreign subjects claim to exercise freely in the Sulu archipelago, a pretension which this General Government regards as entirely opposed to the rights of Spain and her moral and material interests in the Far East. Our prestige with the Malay races here, our moral influence over these semi-civilized Mohammedan people, who recognize no right or supremacy but that of might, demand that Spain, as a colonizing nation, shall maintain the integrity of her sovereignty and shall not seem to be subjugated to the will of other Powers, as would appear if, in her territories and on her coasts, with the knowledge and permission of her authorities and of her war ships, and without even heeding them, foreigners should perform acts which, like that of engaging in the mother-of-pearl fishery, being contrary to our material interests, cannot be carried out without paying tribute to the Moro sultans and chieftains themselves.

There is no doubt that the need for preserving cordial relations with Germany and England and for maintaining the most perfect understanding between the European powers in anticipation of some concerted action in regard to the Empires of China and of Japan, which will render necessary in the future the expansive policy of the latter towards the south, as well as the hegemony claimed by the latter in the Orient, counsel a circumspect international policy and a moderate exercise of our sovereign rights in the archipelago of Sulu; and for this reason, perhaps it would be inexpedient to forbid the right of fishery to foreign subjects, as such action would certainly give rise to diplomatic questions and remonstrances, which should be avoided at any cost; but this General Government deems it indispensable to condition and regulate the exercise of this fishery right, especially in so far as it relates to the pearl-producing oyster, the exploitation of which should be governed by considerations of our prestige and of the advantage and benefit of our material interests. Supported therefore by our right of sovereignty, by international practice, and by the terms of Declarations I and III of the Protocol of 1877 and of Articles I and IV of that of 1885, there should be issued certain coast police and fishery regulations for the Sulu archipelago, laying down clearly the relations which are to exist between the Spanish Government and foreign subjects engaging in the fishery industries along our coasts and in our jurisdictional waters; which industries should not be engaged in, especially in the case of the oyster, without the necessary authorization of the Spanish authorities, and after the payment of the corresponding industrial patent or license, or of the dues which it may be deemed expedient to exact.

Much more might be said in regard to this important question, as unexpectedly presented as it is urgent of resolution, given the conditions created by the claim of the British subject Mr. H. W. Dalton; and this General Government appreciates fully the deficiency of its suggestions, which will be advantageously supplemented by the great wisdom of his Majesty's Government, its exalted patriotism, and the solicitous care that it gives to everything touching the high interests of the nation, by which elevated sentiments they are inspired.

APPENDIX XXIII

ROYAL DIRECTIONS RELATIVE TO THE TREATMENT OF FOREIGNERS ENGAGED IN PEARL FISHING IN THE SULU WATERS, MARCH 23, 1896 [302]

Colonial Office

Excellent Sir: Examined by this office of the government the papers transmitted by your Excellency with the official communication No. 1967, of September 16th last, in the question raised by the politico-military governor of Sulu, by reason of a communication addressed to the same by the office of the commander-general of the naval station at Manila, directing the prohibition of the mother-of-pearl fishery in the waters of Sulu and the Carolines; studied also the report of the General Government, and that of the council of administration of the Philippines, and heard also the illustrious opinion of the Department of State, to secure which the papers were sent there, accompanied by the Royal order of the 7th of January last; bearing in mind that our prestige among the natives in those islands would perforce suffer seriously if foreigners were to perform, without any intervention on the part of our authorities, acts, which, like that of engaging in the mother-of-pearl shell fishery, they cannot carry on without paying tribute to the Moro Sultans and chieftains; though it is not less true that the absolute prohibition of the right of fishery to foreigners would arouse, as wisely foreseen by your Excellency, diplomatic remonstrances based upon the Protocol of Sulu of March 7th, 1886; his Majesty the King (whom God protect), the Queen Regent of the Kingdom acting in his name, has seen fit to direct that your Excellency be informed that he has seen with pleasure the tact and prudence with which this question has been dealt with, in the first place by your Excellency, and afterwards by all the authorities who have intervened in the same; that so long as the representative of the English Pearling and Trading Company, the captains of their boats, or other foreigners, do not urge with importunity the right to carry on the industry of the mother-of-pearl shell fishery within the zone of jurisdictional waters and at occupied places, an endeavor must be made to prevent their doing so, in order, if possible, to set a precedent favorable to our interests; and that in the event of their insisting, it will be necessary to permit them to engage in the industry of the mother-of-pearl fishery, with the obligation to submit in so doing to the rules and regulations now in force or which may be put into force hereafter. It is also the wish of his Majesty that your Excellency be apprised of the expediency of formulating, with the greatest possible despatch, coast police and fishery regulations for the archipelagoes of Sulu and the Carolines; in which regulations care must be taken not to make special mention of the Protocols, nor to recognize expressly the rights of foreigners, and, on the other hand, not to depart from the terms of the provisions of these international agreements, so that in the event of any foreigners claiming the right in question, they shall not be able to elude compliance with the regulations by basing their pretensions on the terms of the said Protocols; for all of which your Excellency will place yourself in harmony with the competent authorities whose duty it is to take cognizance of this matter, submitting afterwards for the approbation of this office drafts of the coast police and fishery regulations above referred to.

By Royal order I communicate the above to you for proper action.

God protect your Excellency many years.

Madrid, March 23rd, 1896.

Tomas Castellano: rubricated.

To the Honorable the Governor-General of the Philippine Islands.

APPENDIX XXIV

LA TORRE'S VIEWS ON THE POLICY THAT SHOULD BE ADOPTED IN MINDANAO AND SULU, JANUARY 11, 1893 [303]

Office of the Governor-General of the Philippines

A seal with the inscription: "Office of the Captain-General of the Philippines. Headquarters."

Excellent Sir: At all times the condition of the unsubdued regions of the island of Mindanao and, in general, of the whole archipelago, has occupied the close attention of the Governors-General of these Islands, and they have studied, according to their respective views, the best methods for the complete subjection of the same.

For my part, I have meditated deeply upon every thing relating to this important matter, and judging both from past experience and from observations that I have been able to make personally, as I apprised your Excellency after my return from a visit to the aforementioned island on May 29th last, I believe it is evident that the adoption of the same system for the subjection of different races will not be productive of good results. In the island of Luzon, a properly understood policy of conciliation, accompanied by slight displays of force, will be successful in conciliating and subduing the people sooner or later; for it may be observed at once that here there does not exist that great racial antagonism which nearly always makes compromise impossible. Such a policy, linked with prudence and particularly with justice on the part of the delegates of authority, will always be productive of great results, aside from the fact that there are here many villages whose inhabitants are not warlike, but, on the contrary, are docile, and await only some slight indication on our part to regard us as protectors and allies against their enemies.

Much has already been done in this direction, as is shown by the many politico-military provinces existing in this island; but we should not stop in this island of progress; and in order to carry forward and consummate the complete subjugation of the extensive districts not yet subdued, troops must be detailed,--not in very large numbers, but still in numbers sufficiently large to affect appreciably the service, equally necessary in other regions of the archipelago. This is one of the reasons which make requisite an increase in the army force stationed here; further, if the number of the comandancias [304] is to be increased, it is obvious that, in order to garrison them, more troops are needed.

I have pointed out the need there is for employing different methods for the subjection of the different races; and in fact, in regard to the races inhabiting Mindanao, I believe that it is obvious and unquestionable that favorable results will

never be secured without employing methods other than those of attraction.

The Moro race is completely antithetic to the Spanish, whether the latter be peninsular or indigenous, and will ever be our eternal enemy.

The past proves clearly that those ostensible and ephemeral submissions, apparently guaranteed by oaths and agreements, do not bind the Moros in the slightest degree; for, knowing nothing of the first principles of good-faith and loyalty, they do not hesitate to break their promises whenever a favorable opportunity offers and they think it possible to defeat our troops. They make a pretense of being trusting and attentive even to our smallest suggestions, but they are always watching for a good chance to open up hostilities, and will resort to treason and cunning.

For these reasons it is well that they should know that we are the stronger; that our friendship suits their interests because we are backed by force--which is the only argument they can understand; that their friendship is of no moment to us; and that the instant they antagonize us, they will be promptly and severely punished.

Having taken up this point of view, the policy that we should adopt may be inferred.

It is not necessary to undertake operations on a large scale, or to open what might be termed a regular campaign, as has been done every two or three years in the past; but, with our troops established at a number of fortified places, it may be seen at once from what has been said above, that we ought to maintain them there at any cost, and that, abandoning an attitude entirely passive, we should advance little by little in our conquest, always establishing ourselves firmly on the territory conquered. In this way we shall, step by step, bring under our dominion a large area of territory, at the same time extending our sphere of influence towards the interior. Given the conditions above described, it will be understood at once how much we should lose in importance in the eyes of such an enemy if, in response to their frequent attacks, we confined ourselves entirely to a defensive policy, for they would interpret such an attitude as an indication of weakness; consequently it is impossible for us to maintain an attitude of inactivity: rather, taking advantage of the treacherous conduct of the enemy, we should castigate them by means of rapid and unexpected excursions lasting a few days, and for this purpose it is indispensable that small columns of troops be stationed at two or three well chosen points.

That the Moros are not disposed to be our friends is evident: and while frequent examples in the history of these islands, in addition to what has been said above, are sufficient to prove this assertion, it is further corroborated by the many despatches I have addressed to your Excellency, apprising you of the attacks made by the Moros upon our troops and especially of the incidents which have taken place during the last months of the year 1892. These I will recapitulate succinctly, as they show that, far from breaking the rebels, the events have only increased their strength.

On the morning of October 28th, while a reconnaissance was being made at the post of Baras, the detachment making the same was attacked by some fifty or sixty Moros, who were awaiting them in ambush. The latter were, however, repulsed, and our troops being reënforced by a detachment from the fort, the enemy fled, leaving

five dead on the field, besides two spears, three krises, three kampilan, and two daggers, the losses on our side being one dead and five wounded.

On the morning of November 9th, again at the time of making a reconnaissance, at the post of Malabang, our men were attacked by some sixty Moros, who, being repulsed, fled, leaving six dead on the field--three others dying later, according to reports received--besides four kampilan, three krises, one tabas, one lance, and four daggers; the losses of our side being one soldier killed and six wounded.

These two posts being afterwards visited by the military commander of Illana Bay and the politico-military governor of Mindanao, by reason of reports having been received that some thousand Moros had banded together for the purpose of attacking these two places, they informed me that excellent discipline prevailed among the troops of the said garrisons, and that the Moros must have beaten a retreat, since they had not been seen in that country.

On my part I have directed that the greatest possible vigilance, care, and watchfulness be exercised at all the posts, never losing sight of the fact that they are always in the presence of the enemy, as is proved by the frequency with which they have been attacked. I have ordered, further, that, when making reconnaissances or upon any other occasion when it is necessary to separate a detachment from the main body, the greatest number of soldiers that the circumstances permit be employed, so as to prevent a surprise or ambuscade, which aside from the direct loss that it entails, might have the effect of demoralizing the troops, and so of increasing the boldness and temerity of the enemy; I have given special instructions, too, that the officers display in the field the greatest possible energy, so as to keep up the spirits and confidence of the men.

In the northern portion of Mindanao, between Iligan and Mumungan the Moros have also been active in making attacks, and although beaten in every case, thanks to the good discipline prevailing among the men and the judgment shown by the officers, who inspire the former with confidence and afford them a good example at all times, they still hope to have better luck in their future raids, as is proved by the despatches received from the politico-military commander of Mumungan. These despatches show that our soldiers no longer fear the Moro race, nor even the Juramentados; and that our men always await the attack of the enemy with great calmness and bravery, as is shown by the accounts of the frequent ambuscades laid and surprises attempted by the Moros. Already at the beginning of 1892 the attitude of the sultans and datus in the neighborhood of Mumungan was so questionable that Captain Abad, then commander of the fort there, having attempted to go up the river Agus, accompanied by only one officer and four men--thus in the guise of absolute peace--Datu Ala, of Balud, who is now our friend, stopped him when he approached his territory, telling him that although he wished to live at peace with us, he could not allow him to advance further, nor any part of our troops to do so. In spite of this, two months after this incident, General Castilla, following closely my instructions, and taking advantage of the circumstance foreseen by me--that upon his arrival at Mumungan he was visited by the neighboring datus and sultans, including the Sultan of Pantar, he announced to the latter, acting under instructions from me, his intention

of returning the friendly visit. Leaving Mumungan early, in spite of a continuous heavy rain storm, he reached Pantar at about eleven in the morning without making any stop, accompanied by Ala and another datu, and while he was holding an affectionate interview with the Sultan of Pantar and the troops were resting, the captain of engineers, Navarro, made a clandestine inspection of the ground and took a rough sketch of the best site for the future fort, close to a bridge that can be built across the river Agus, with a turret or rough defensive fortification on the opposite bank; this done, General Castilla returned that same afternoon to Mumungan, which he reached before night, without having fired a shot, in spite of the predictions of the datus that he might easily meet with resistance on the road.

Later, all the datus living in the region lying between Pantar and Iligan reiterated to me, personally, in May last, at Mumungan, and later to the military commander, their protestations of adhesion to Spain. Afterwards there came the visit that a goodly number of datus, among them the Datu of Pantar, made me in Manila, where they remained and were entertained during fifteen days; and with the consistent approval of these, the road from Iligan to Mumungan was built, in consequence of which work the weekly attendance of Moros at the market of Iligan increased, and the Datu of Bukamar and another from Marawi presented themselves in that place. Thither also the Datu Amay-Pakpak, now an old man, promised to send his son. The concurrence of Moros at that place was further increased by the assistance that was given to a wounded Moro; until, at last, a solemn oath of allegiance was secured, being taken, in the presence of the aforementioned military commander, by a great number of datus and sultans, in accordance with their ritual.

On November 8th, the military commander of Mumungan, under the pretext of a wedding to which the Datu of Pantar had invited him and which he attended, made an inspection of the country in the neighborhood of the said rancheria [305] of Pantar, lying to the south of Mumungan, and had an opportunity of seeing that, in conformity with the reports I had received, Pantar possessed advantageous conditions for the establishment there of another advance fort, the construction of which could be commenced upon the continuation and completion up to that point of the new road built from Iligan to Mumungan. But in spite of the good intentions of the military commander not to break into hostilities except in the last resort, in accordance with the positive instructions I had given him, he was unable to prevent his troops being attacked upon the return journey, and therefore they opened fire upon the enemy; which proves once again the difficulty of following the path of conciliation and attraction with an enemy who pays absolutely no heed to reason; in spite of the fact that with this method there had been joined that of warning the neighboring Moros who profess to be so friendly, that the only genuine proof of adhesion to which I should give credit would be that of the moral and collective support of all of them against any act of aggression within their territory committed by Moros from other rancherias, whether in large or in small numbers.

On November 25th I was informed by the same military commander that, while the convoy was transferring supplies from Mumungan to Iligan, there appeared a juramentado, who attempted to wound a soldier; but the latter, waiting for him with

great calmness, defended himself valiantly, and the Moro was despatched with the assistance of some other soldiers who came upon the scene.

On the 10th of December I was informed that a detachment of the troops stationed at Mumungan, while on its way to the market of Iligan was attacked by a body of fourteen juramentados who, however, were repulsed with a loss of two killed, while, on our side, one man was lost.

At Baras, also, while making the reconnaissance on December 10th there appeared a band of Moros in an attitude of hostility; but they were compelled to retire at the first volley from our troops. Nevertheless, two juramentados separated themselves from the main body and attacked an equal number of our men; the latter awaited them firmly and killed them with bayonet thrusts. Another Moro was also slain while attempting a precipitate flight. Recently, on the 15th of December, the military commander of Mumungan, hearing of the intentions of the enemy, which were far from peaceable, determined, in order to guard against all contingencies, to continue the extension of the road and to complete and close the palisade around the new inclosure at the fort, made so as to accommodate the increased number of troops. For the first of these two purposes, he left the fort at half past five in the morning, well-armed and ready to punish the Moros if they presented themselves, setting out with one hundred and fifty men of the 73rd regiment and sixteen convicts, besides a corporal and eight persons of the 73rd in charge of a company of engineers, another company of the 73rd and sixty convicts, who marched without arms and equipped for work.

At ten o'clock in the morning the advance guard reached the entrance to the wood, and as the intention was to collect lumber that had already been cut and dragged to the road, the troops advanced. At this moment there appeared in the middle of the road some eight hundred Moros brandishing their arms and uttering war-cries, who immediately retired to some defensive works which they had constructed out of the very logs above referred to. In view of this, our troops continued their march, opening fire at about one hundred yards from the defensive works of the enemy, and in a little while, captured the same, routing the defenders, as well as some more of the enemy who appeared on the two flanks of the column, causing some eighty deaths; on our side we had one killed and two wounded convicts. After this incident, the said military commander made his way to Iligan without suffering any attack, in spite of the fact that the Moros had constructed other defensive works on the road, which latter were destroyed without any casualties.

The conduct of the troops on this march was brilliant, and I wish to recommend to the consideration of your Excellency those who especially distinguished themselves; but I have again directed the military commander of Mumungan to avoid as far as possible all necessity for fresh combats, extending, but without any compromise of dignity, the policy of conciliation which I have so strongly recommended to him.

From all the above your Excellency will understand with how much foresight I requested from the Government of his Majesty, on the 24th of April last, permission to place on a war footing as many of the seven regiments which make up the infantry

in these Islands as had not yet been placed on this footing, setting forth the estimated cost of the same in the plans which I sent for approval, and if the increase was necessary then, it is evident that at the present time it is much more necessary; for, as your Excellency will see from what I have communicated to you in this extensive document, the condition of the Moros, justifying the predictions made by me at that time, has become steadily more hostile as they never rest nor miss any opportunity of causing us the greatest possible harm, endeavoring to obstruct all the work we plan to carry out for the improvement of the means of communication between our present possessions; and while it is true that they are not successful in their attempts, still we must put a stop to their increasing audacity.

I take the liberty again to call the attention of your Excellency to the absolute necessity of placing on a war footing the three regiments now on a footing of peace, in accordance with the permission already granted by the Department--without waiting until next July. In this way, without undertaking a regular campaign, as I have already stated, and without expense to the Government, it will be possible to improve the present condition of things, which is gradually becoming somewhat discreditable to the honor of the flag. I do not doubt that your Excellency will so understand it, and I thank you in advance, in the name of this suffering army, for the immediate concession of the credit necessary for the reënforcement above mentioned. God protect your Excellency many years.

Manila, January 11th, 1893.

Most Excellent Sir:--Eulogio Despojol.--Followed by a rubric. The most Excellent the Minister of War.--A copy.--The Acting Colonel in Command of Headquarters.--Pedro de Bascaran.--A seal with the inscription: "Office of the Captain-General of the Philippines.--Headquarters."

A copy.--Luis de la Torre: rubricated.

NOTES

[1] See Ethnological Survey Publications, Vol. IV, Pt. I, p. 11.

[2] The spelling of proper names used throughout this paper is that adopted by the author and differs in some respects from that in use in the Division of Ethnology.--Editor.

[3] This settlement is on a small adjacent island of the same name.

[4] An officer next below a datu in rank.

[5] An officer next below a panglima in rank.

[6] The word Tumangtangis means "Shedder of tears." As the summit of this mountain is the last object to be seen by sailors leaving the island, they weep from homesickness when they lose sight of it.

[7] Quoted in Keppel's "Visit to the Indian Archipelago," p. 70.

[8] Some maps place this mountain near Tu'tu', but reliable Moros apply the name to the mountain west of Si'it and nearer to Su' than to Tu'tu'.

[9] Princess Ipil and her followers were wrecked and drowned at this point. Their bodies are said to have turned into stone and formed the rocks that line the shore. Some of the rocks seemed to the people to resemble petrified human beings.

[10] Names of fruits with no English equivalents.

[11] A Philippine tree from the blossoms of which a perfume is made.

[12] Spanish word for street.

[13] Beach at the head of the bay.

[14] A sultanate in northern Borneo.

[15] The Mindanao Herald, July 21, 1906.

[16] Gum copal.

[17] Most of these are females.

[18] See below, p. 148.

[19] The eleventh month of the Mohammedan year.

[20] Sulu; the head, the chief.

[21] Arabic; the slave of the Merciful.

[22] Malay; sir or mister.

[23] Arabic; leader, caliph, high priest.

[24] A Sulu form of the Arabic "Caliph."

[25] Malay-Sanskrit; minister of state.

[26] The central high region of Sumatra.

[27] Malay; officer of state. It literally means "rich man."

[28] Sanskrit; king.

[29] Malay-Sanskrit; emperor or caliph. It is here used as a proper noun.

[30] A place in Lati, Sulu.

[31] Sulu; chicken, fowl.

[32] Sulu-Malay; slave.

[33] Sanskrit; wise.

[34] Arabic; understanding, mind.

[35] Malay-Sanskrit; subordinate officer of state.

[36] Arabic; lady, grandmother.

[37] Arabic; safe and sound.

[38] Malay; lady, woman.

[39] Arabic; righteous.

[40] A title of nobility.

[41] Arabic, Fatimah; the name of the Prophet's daughter.

[42] Arabic; brilliant.

[43] Arabic; wife or husband.

[44] Arabic; beautiful.

[45] Arabic; hoping.

[46] Arabic; faithful.

[47] Arabic; religion.

[48] Arabic; trusted or trustworthy.

[49] Arabic; guide, leader.

[50] Sulu; fruit.

[51] Arabic; intelligent.

[52] Arabic; feminine of "salim" or safe and sound.

[53] Arabic; sleeping.

[54] Arabic; known.

[55] Arabic; noble, subordinate officer of state.

[56] Sanskrit; Iddha, kindled, lighted, or sunshine.

[57] Sanskrit; Indra, the god of the heavens, or most likely Indira, name of Lakshmi, the wife of Vishnu.

[58] Sulu; light, sun.

[59] Arabic; wise.

[60] The name of Mohammed's wife.

[61] Arabic; everlasting, eternal.

[62] Arabic; perfection.

[63] Arabic; scribe.

[64] Arabic; educated, taught.

[65] Arabic; virtuous.

[66] Arabic; pride, glory.

[67] Arabic; father.

[68] Arabic; firm, resolute, an attribute of God.

[69] Arabic; Mary.

[70] The Baklaya party should have been mentioned after the Tagimaha, but it was evidently left out by mistake. Tagimaha is a Sanskrit word which means country.

[71] Arabic; generous, noble.

[72] Arabic; served, master.

[73] Arabic; noble, applied to a descendant of Mohammed.

[74] Sulu, anchorage. The settlement lies 3 miles west of Jolo.

[75] It is used here as a name. As a title it is higher than raja and is equivalent to sultan or emperor.

[76] The Moro word for Zamboanga.

[77] Arabic; night, a common name.

[78] Arabic; power, superior authority, sultan.

[79] Arabic; glory.

[80] A corrupt form of the Arabic Ahmad.

[81] From the Arabic "Sheikh," meaning chief.

[82] A place in Sumatra (?)

[83] Java.

[84] Arabic; master or noble, addressed to descendants of the prophet Mohammed.

[85] Town and state in southeastern Sumatra.

[86] Arabic; noble. This word is often pronounced by the Moros as "salip" or "sarip."

[87] Arabic; height.

[88] Sanskrit; princess.

[89] Sanskrit; greater king, emperor.

[90] In Malay it indicates rank or office; in Sulu it is used only as a name.

[91] Malay; young.

[92] Arabic; defender.

[93] Arabic; honor, respect.

[94] Arabic; star, meteor, bright flame.

[95] Arabic; chosen (by God).

[96] Arabic; interceder.

[97] Arabic; victory.

[98] From the Arabic `azeem or great; not from `Alim, meaning learned.

[99] Arabic; exalter or defender.

[100] Arabic; Israel.

[101] Arabic; honor.

[102] Arabic; orator; the pandita who reads the oration, a part of the religions services held on Friday.

[103] See Ethnological Survey Publications, Vol. IV, pt. 1, p. 64.

[104] The servant of the giver.

[105] Jamiyun is Sanskrit and means brother or sister's son; Kulisa is Indra's thunderbolt.

[106] One of the names of the wife of Vishnu.

[107] Sulu; the sun.

[108] The Sulus believed that Alexander the Great came to Sulu and that their ancient rulers were descended from him.

[109] Sanskrit; the plant. Jamiyun Kulisa, Indira Suga, and Masha'ika are the names of the ancient gods of Sulu. Prior to Islam the Sulus worshiped the Vedic gods and evidently believed them to be the forefathers or creators of men. The Sulu author was ignorant of this fact and used the names of the gods as names of real men.

[110] Arabic; faithful.

[111] Chief.

[112] A gong used for signals and in worship.

[113] Western district of the Island of Sulu.

[114] The northern and central district of the Island of Sulu.

[115] The southern and central part of the Island of Sulu.

[116] The eastern part of the Island of Sulu.

[117] The town where the present Sultan of Sulu resides.

[118] The inhabitants of the region west of the town of Jolo.

[119] The inhabitants of the northern coast, east of Jolo.

[120] Arabic; generous.

[121] Arabic; master or served.

[122] Arabic; noble; a title applied to a descendant of Mohammed.

[123] Arabic; plural of wali, a man of God.

[124] Sulu; anchorage; the ancient capital of Sulu.

[125] A district in Sumatra.

[126] Arabic; beauty.

[127] Arabic; plural of karim, meaning generous.

[128] Arabic; orator; a high religious title, allied to Imam.

[129] Arabic; slave or servant.

[130] Arabic; the Giver, referring to God.

[131] See p. 152.

[132] Genealogies; see Vol. IV, pt. 1, p. 11, Ethnological Survey Publications.

[133] Sanskrit; sunshine.

[134] Natives of the Celebes; they were often called by the Spaniards Macassars.

[135] Timway or tumuway, meaning "leader" or "chief," is the title given to the chiefs of the land before Islam. Timway has been replaced by datu.

[136] It is possible that this color distinction arose from an early superstition or belief of Hindu origin assigning those divisions of the island to the four respective Hindu deities, who are generally represented by those four colors.

[137] Quoted in Keppel's "Visit to the Indian Archipelago," p. 127.

[138] This term is applied in Sulu in the same sense as the Malay terms Orang-banua and Orang-bukit, meaning hill tribes or aborigines, or, as they say in Mindanao, Manubus.

[139] This term is used here in the same sense as Orang-Malayu meaning the better or seacoast Malays.

[140] The determination of this date and that of the rule of Abu Bakr is covered by a complete statement which will appear in the chapter on the early Mohammedan missionaries in Sulu and Mindanao, to be published in a later paper.

[141] The first historic seat of Malay rule was Pagar Ruyong (in the mountains of Sumatra), the capital of the so-called "Empire of Menangkabaw." (Malay-English Dictionary, R. J. Wilkinson, III, 2.)

[142] Brass cannon used by Moros.

[143] Variety of mango.

[144] The prince of the princes.

[145] The exalter of the humble.

[146] The defender of the faith; the first.

[147] Malay word, meaning "in the mountain."

[148] The Sulu equivalent of "Digunung."

[149] The kind.

[150] "The Philippine Islands," Blair and Robertson, Vol. IV, p. 174.

[151] Bisayas.

[152] Natives of the Philippine Islands.

[153] Large estates assigned to Spaniards.

[154] An honorific title given to the early governors of the Philippines.

[155] The Philippine Islands, Blair and Robertson II, pp. 98, 99.

[156] Ibid., II, p. 156.

[157] Ibid., VII, p. 68, 69.

[158] So given in the text without explanation. It is probably a weight.

[159] The Philippine Islands, VIII, pp. 73-75.

[160] Apuntes sobre Jolo, Espina, p. 56.

[161] A large canoe used by the Malayan peoples with two rows of oars, very light, and fitted with a European sail; its rigging of native manufacture. (Philippine Islands, II, p. 246.)

[162] Large Moro boat with outriggers.

[163] Bungsu, the sultan; sire and intermediator.

[164] Name of boat used in the Philippine Islands.

[165] Rizal conjectures that this word is a transformation of the Tagál word, lampitaw, a small boat still used in the Philippines.

[166] We follow Stanley's translation. He derives the word cacatal (zacatal) from zacatc, or sacate, signifying "reed," "hay," or other similar growths, zacatal thus being a "place of reeds" or a "thicket."

[167] A long weapon resembling a sword, used by Moros.

[168] From kalasag, a shield. (Rizal.)

[169] Argensola says that this native, named Ubal, had made a feast two days before, at which he had promised to kill the Spanish commander. (Rizal.)

[170] Posts set upright in the ground.

[171] Sucesos de Is Islas Filipinas, Dr. Antonio de Morga, Mexico, 1609; The Philippine Islands, XV, pp. 90-92.

[172] See Appendixes I and II, Pacification of Mindanao.

[173] Fathoms.

[174] The Philippine Islands, Blair and Robertson IX, pp. 283, 285-287.

[175] Ibid., IX, pp. 289, 290.

[176] See Appendix III, Moro Raids of 1599 and 1600.

[177] History of the Philippines, Barrows, pp. 153, 154.

[178] See Appendix IV, Gallinato's expedition to Jolo.

[179] See Appendix V, Olaso's expedition.

[180] The greatest Sultan of Mindanao, the son of Bwisan.

[181] An account of this fight and the Moro expedition under Tagal is given in "The Philippine Islands," Blair and Robertson XXVII, pp. 215-226.

[182] See "Letter from Corcuera to Philip IV." (The Philippine Islands, XXVII, pp. 346-359.)

[183] See Appendix VI, Corcuera's campaign in Jolo.

[184] On Moro pirates and their raids in the seventeenth century, see The Philippine Islands, Blair and Robertson, XLI, pp. 277-324.

[185] A Spanish measure of weight used in the Philippine Islands, equivalent to about 133 pounds.

[186] The defender of the Faith.

[187] Relación de a entrada del Sultan Rey de Joló, in Archivo del Bibliófilo Filipino, Vol. I.

[188] History of the Philippines, Barrows, p. 227.

[189] See Appendix VII, Obando's report on the preparations to be undertaken to return Alimud Din to Sulu; also Appendix VIII, Obando's report on the circumstances attending the attempt to return Alimud Din to Sulu.

[190] The Philippine Islands, Foreman, pp. 145, 146.

[191] The sultan complained that he had not been treated in Manila with dignity equal to his rank and quality, and that he had constantly been under guard of soldiers in his residence (this was explained to be a guard of honor).

[192] The Philippine Islands, Foreman, p. 147.

[193] On the occupation of Palawan and Balabak, see Appendixes IX and X.

[194] History of the Philippines, Barrows, p. 228.

[195] See Appendix XI.

[196] See Forrest's "A Voyage to New Guinea," pp. 320-335.

[197] Another name for Jolo and the name of the stream which passes through it.

[198] It is more likely that elephants were obtained from Borneo and Sumatra.

[199] Some were more than 90 feet in length.

[200] One of the settlements forming the town of Kotabato.

[201] This was an erroneous impression. It no doubt seemed so to Captain Forrest who judged from his observations of Sultan Israel who acquired a taste for European music in Manila.

[202] A Voyage to New Guinea, Capt. Thomas Forrest, pp. 336-337.

[203] Name given to the network of channels by which the waters of the Pasig River find their way to the sea.

[204] History of the Philippines, Barrows, pp. 246-248.

[205] See Appendixes XII, XIII, XIV, and XV.

[206] A variety of palm from which mats and sails are made.

[207] Edition of 1853, pp. 57-69.

[208] A leaf chewed with betel nut.

[209] Amirul Mu'minin or Alimud Din I.

[210] See Appendixes XVI and XVII.

[211] A visit to the Indian Archipelago, p. 58.

[212] A big dugout canoe.

[213] Vessels of some 11 meters length, 1 1/2 meters beam, and 40 centimeters overhang at the bow. They are furnished with outriggers and a removable deck [commonly of loose slats]. (Note in Montero y Vidal's History of the Piracy of the Mohammedan Malays.)

[214] The Spanish word for conquest transliterated. The word can not be understood by the Sulus.

[215] Datu Daniel.

[216] Spanish. Como reconocimiento de dominio (i.e., of Spain). The idea is that the settler acknowledges that he does not own the land in fee simple, but holds it as a tenant of the state.

[217] A police force maintained in the Philippines during Spanish times.

[218] Troops made up of men deported from other parts of the Islands.

[219] A large knife used by Moros in fighting.

[220] Men who have taken an oath to kill non-Mohammedans.

[221] Moro cannon.

[222] About 5 cents, United States currency.

[223] See Appendix XVIII, on regulations relative to taxes and imports on natives and immigrants in Sulu; also Appendix XIX, on the protocol of Sulu of 1877 between Spain, Germany, and Great Britain; Appendix XX, on the protocol of Sulu of 1885 between Spain, Germany, and Great Britain; Appendix XXI, decree of the General Government in regard to payment of tribute of Sulus; Appendixes XXII and XXIII, on rights of foreigners engaged in pearl fishing in Sulu waters.

[224] A chief subordinate to a datu.

[225] See Appendix XXIV, on La Torre's views on the policy that should be adopted in Mindanao and Sulu.

[226] The Philippine Islands, Blair and Robertson, XV, pp. 93-100.

[227] A point and settlement on the north bank of the Mindanao River and at its mouth.

[228] A careful review of Ronquillo's reports and letters on his pacification of Mindanao shows an evident error in the use of the word Bwayan to signify the settlement or stronghold of the Sultan of Magindanao. Bwayan here, and probably in Figueroa's report, too, is used in place of Magindanao, which lay on the site occupied at present by Kotabato. Bwisan was then the Sultan of Magindanao and headed the opposition to Ronquillo's advance up the north branch of the Mindanao River. Sirungan, who is mentioned in this report, might have been a datu or subdatu of Magindanao, not necessarily Sirungan, the Raja of Bwayan.

[229] The correct name is Sirungan.

[230] Cachil or Kachil is a Malay word signifying "little" or "young," hence a youth of distinction or a younger prince of the royal line.

[231] A tributary of the Mindanao River which rises in Talayan, and empties at Taviran.

[232] The Philippine Islands, Blair and Robertson, XI, pp. 135-139.

[233] Unsigned.

[234] Point or bay, not an Island.

[235] Point or bay, not an island.

[236] The Strait of Sunda, which separates Java from Sumatra.

[237] The Philippine Islands, Blair and Robertson, XV, pp. 190-196.

[238] This word is as commonly used with an "l" as with an "r," as Sirungan.

[239] A strong wind south by west.

[240] Shields.

[241] This was the first piratical expedition made against the Spaniards by the inhabitants of the southern islands. (Rizal.)

Barrantes (Guerras Piraticas) wrongly dates the abandonment of La Caldera and the incursion of the Moros 1590. Continuing, he says: "The following year they repeated the expedition so that the Indians retired to the densest parts of the forests, where it cost considerable trouble to induce them to become quiet, for a woman, who proclaimed herself a sibyl or prophetess, preached to them that they should not obey the Spaniards any longer, for the latter had allied themselves with the Moros to exterminate all the Pintados."

[242] Native word for mountain.

[243] Those to whom land had been granted with control over the natives who worked on it.

[244] The Island of Gimarás, southeast of Panay, and separated from it by the Strait of Iloilo.

[245] Probably gongs.

[246] Neither Stanley nor Rizal throws any light on this word. The Spanish dictionaries likewise fail to explain it, as does also a limited examination of Malay and Tagal dictionaries. Three conjectures are open: 1. A derivative of tifatas, a species of mollusk, hence a conch; 2. A Malay or Tagal word for either a wind or other instrument, the Malay words for "to blow," "sound a musical instrument," being tiyup and tiyupkan; 3. A misprint for the Spanish pifas, a possible shortened form of pifanos, signifying fifes.

[247] The Philippine Islands, Blair and Robertson, XV, pp. 240-244, 264-268.

[248] Sailing vessels.

[249] The Philippine Islands, Blair and Robertson, XXIII, pp. 87, 88.

[250] Unsigned.

[251] A small vessel used as a tender to carry messages between larger vessels.

[252] The Philippine Islands, Blair and Robertson, XXVIII, pp. 41-63.

[253] In the manuscript that we follow the letter of March 31 is given second, while that of April 5 is given first; we have arranged them chronologically.

[254] Garo: probably the same as garita; a fortified outpost.

[255] The translation of this passage seems to be, "If God fights against a city, he who guards it watches in vain." The difficulty lies in "a custodierit," which we translate as "fights against."

[256] A Spanish measure of length which is about equal to 1 yard, English measure.

[257] The Gimbahans or Sulus of the interior mountains.

[258] Babui, in their language, signifies "pig"; apparently they called the Spaniards "swine," as expressing the acme of contempt for their besiegers.

[259] "Thanks be to God who has given us the victory through our Lord Jesus Christ."

[260] Combés says (Hist. Mindanao, Reana's ed., column 264) that this queen, named Tuan Baluka, was a native of Basilan, and that she had acquired such ascendancy over her husband that the government of Sulu was entirely in her hands. This statement explains the presence of the Basilan men in the Sulu stronghold.

[261] Zamboanga, the correct spelling is Samboangan.

[262] Culverins of small bore.

[263] This letter is unsigned; but the transcript of it made by Ventura del Arco places it with others ascribed to Barrios. See detailed accounts of the expedition

against Jolo (Sulu) in Combés's Hist. Mindanao y Joló (Retana and Pastells ed.), cols. 349-368; Diaz's Conquistas, pp. 388-401: Murillo Velarde's Hist. Philipinas, fol. 92, 93; and La Concepcion's Hist. Philipinas, V, pp. 334-351.

[264] From the Division of Archives, Executive Bureau, Manila.

[265] The Recoletos or barefoot Augustinian friars.

[266] Spanish expediente, the collection of all the papers referring to a single subject.

[267] From the Division of Archives, Executive Bureau, Manila.

[268] Maestre de Campo.

[269] The inhabitants of Koran, northeast Borneo, pagan pirates subdued by Sulu in 1769.

[270] Official designation of the Audiencia when assembled in executive session under the presidency of the Captain-General.

[271] From the Division of Archives, Executive Bureau, Manila.

[272] Sp. forzados, men compelled to row in the galleys, usually as punishment for crime.

[273] Manila. The shorter form of its title of "La siempre noble y leal Ciudad."

[274] From the Division of Archives, Executive Bureau, Manila.

[275] A small sailing vessel.

[276] From the Division of Archives, Executive Bureau, Manila.

[277] From the Division of Archives, Executive Bureau, Manila.

[278] The Honorable East India Company.

[279] From the Division of Archives, Executive Bureau, Manila.

[280] I.e., of the Sulus.

[281] Sp. champanes.

[282] From the Division of Archives, Executive Bureau, Manila.

[283] "En sus propios buques" (i.e., of Sulu).

[284] This and the following statements are not correct.

[285] From the Division of Archives, Executive Bureau, Manila.

[286] Though inaccurate and biased, the ideas expressed in this report represent the opinion and feelings of many Spanish officials who were connected with Moro affairs.

[287] The correct name is Abu Bakr.

[288] Such a statement is unduly biased.

[289] A Spanish magistrate.

[290] From the Division of Archives, Executive Bureau, Manila.

[291] From the Division of Archives, Executive Bureau, Manila.

[292] Vessels up to 80 feet length by 18 or 20 beam, made of wood, bamboo, nipah, and rattan. The Moros arm them by placing at the two sides lantakas and falconets, mounted on iron swivels, and at the bow and stern, cannon set in stout pieces of timber. The sails are usually of matting made of saguran [a kind of palm-leaf], spread on bamboo poles. (Note in Montero y Vidal's History of the Piracy of the Mohammedan Malays.)

[293] From the Division of Archives, Executive Bureau, Manila.

[294] Sp. Contaduría General.

[295] Personal registration fees.

[296] From the Division of Archives, Executive Bureau, Manila.

[297] From the Division of Archives, Executive Bureau, Manila.

[298] From the Division of Archives, Executive Bureau, Manila.

[299] Settlements.

[300] From the Division of Archives, Executive Bureau, Manila.

[301] The Gearling & Tradin (sic.).

[302] From the Division of Archives, Executive Bureau, Manila.

[303] From the Division of Archives, Executive Bureau, Manila.

[304] A term used by the Spaniards to designate certain governmental districts in the Philippines.

[305] Settlement.

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